



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
CADILLAC DISTRICT OFFICE



PHILLIP D. ROOS
DIRECTOR

January 22, 2024

VIA EMAIL

Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Jeffrey Dietlin:

SUBJECT: Follow-up to Violation Notice No. VN-012230 (VN-012230)
National Pollutant Discharge Elimination System Permit No. MI0020257
Industrial Pretreatment Program (IPP) Procedures Manual
Modification Submittal
Designated Name: Cadillac WWTP

On June 15, 2023, the Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD) received proposed modifications to the City of Cadillac IPP Procedures Manual from Fleis and VandenBrink on behalf of the City of Cadillac. The proposed modifications to the IPP Procedures Manual were submitted in response to VN-012230, dated September 30, 2021, which identified deficiencies in the existing IPP. On August 1, 2023, the WRD also received a written request from the City of Cadillac requesting modifications to the IPP.

As stated in our letter to you dated October 3, 2023, the proposed revisions to the IPP have been determined to be a substantial modification in accordance with the criteria set forth in R 323.2309 of the Michigan Administrative Code. The proposed modifications consist of changes to the local limits, as reviewed in the letter, and proposed revisions to the Sewer Use Ordinance, IPP Procedures Manual, including the Enforcement Response Plan, and the Industrial User template permit, and template letters.

The WRD has now also reviewed the proposed revisions to the Sewer Use Ordinance, IPP Procedures Manual, Enforcement Response Plan, and Industrial User template permit and template letters. Comments on the submitted documents are provided in the enclosed document. Please review the WRD comments and revise the submission to meet the requirements as stated in the comments. Please submit revised versions of the MAHL Study and associated local limits, Sewer Use Ordinance, IPP Procedures Manual, including the Enforcement Response Plan, and template documents to MiEnviro by **March 22, 2024**.

Should you require further information regarding this Violation Notice or if you would like to arrange a meeting to discuss it, please contact Claire Lowe at 989-330-4639; LoweC9@michigan.gov; or EGLE, WRD, Gaylord District Office, 2100 West M-32, Gaylord, Michigan 49735-9282.

Sincerely,

Brian Jankowski, District Supervisor
Water Quality Unit
Cadillac and Gaylord District Offices
Water Resources Division

Enclosure

cc: Patrick Miller, City of Cadillac
Elaine Venema, Fleis and VandenBrink
Jake Riley, EGLE

CITY OF CADILLAC

INDUSTRIAL PRETREATMENT PROGRAM

PROCEDURES MANUAL



June 2023



TABLE OF CONTENTS

1.0	Introduction.....	5
2.0	Purpose and Scope.....	6
2.1	Administration.....	6
3.0	Identification of Users.....	8
3.1	Discharge Characterization.....	8
3.2	User Notification.....	8
3.3	Domestic Users.....	8
3.4	Nondomestic Users.....	8
3.5	Hauled Wastewater.....	9
4.0	Permit Application/Issuance.....	10
4.1	Discharge Permit Application.....	10
4.2	Baseline Report.....	11
4.3	Wastewater Discharge Permit.....	11
4.4	Permit Reissuance.....	12
4.5	User Fees.....	12
5.0	Monitoring Procedures.....	13
5.1	Scheduled Monitoring.....	13
5.2	Unscheduled Monitoring.....	14
5.3	Demand Monitoring.....	14
5.4	Reporting Requirements.....	14
5.5	Sample Types.....	15
5.6	Monitoring Frequencies.....	16
5.7	Confidentiality/Freedom of Information.....	17
6.0	Inspection Procedures.....	18
6.1	Scheduled Inspection Procedures.....	18
6.2	Unscheduled Inspection Procedures.....	20
6.3	Denial of Entry Procedures.....	20
6.4	Inspection Frequencies.....	20
6.5	Slug Control Plan.....	21
6.6	Compliance Tracking.....	21
7.0	General Notifications.....	23
7.1	Changed Discharge or Change in User Status.....	23
7.2	Change of Ownership.....	23
7.3	Hazardous Waste Discharges to Sanitary Sewer.....	23

7.4	Discharges Potentially Causing Problems to the POTW or Slug Loadings	23
7.5	Upset or Unanticipated Bypass.....	24
7.6	User Violation of Pretreatment Standards	24
7.7	Installation of New Pretreatment Facilities	24
8.0	Enforcement Response Plan	25
A.	Introduction.....	25
B.	Functions.....	25
C.	Concepts	25
D.	The following abbreviations shall have the designated meanings.....	25
E.	Violation/Noncompliance.....	26
A.	CO - Consent Order	26
B.	CMO - Compliance Order	26
C.	CDO - Cease and Desist Order	27
D.	CS - Compliance Schedule	27
E.	LIT - Litigation.....	27
F.	NOV - Notice of Violation	27
G.	SCH - Show Cause Hearing	27
H.	SNC - Significant Non Compliance	27
I.	TRC - Technical Review Criteria.....	28
J.	VTN - Verbal Telephone Notice	28
K.	Isolated.....	28
L.	Infrequent	28
M.	Minor Non Compliance.....	28
N.	Major Non Compliance.....	28
O.	Service Suspensions.....	28
8.1	Types of Enforcement	28
8.2	Sewer Use Enforcement Response Guide	31
8.3	Effectiveness Reassessment	31
8.4	Public Participation.....	31
9.0	Evaluation of Proposed Discharges	32
10.0	Pretreatment Program Annual Report	33

APPENDICES

Appendix A – General Pretreatment Regulations (40 CFR Part 403)
Appendix B – MI Part 23 Rules
Appendix C – Cadillac NPDES Permit
Appendix D – Enforcement Response Plan
Appendix E – Industrial User List
Appendix F – Baseline Monitoring Report
Appendix G – 90 Day Compliance Report
Appendix H – Continuing Compliance Report
Appendix I – Permit Application
Appendix J – Example Letter – Significant Industrial User Determination Notification
Appendix K – Model Wastewater Discharge Permit & Standard Conditions
Appendix L – Existing Wastewater Discharge Permits
Appendix M – Non-Domestic User Survey
Appendix N – Food Service Establishment Survey
Appendix O – Requirements for Wastewater Sampling
Appendix P – Requirements for Wastewater Flow Metering
Appendix Q – Monitoring Manhole Specifications
Appendix R – Industrial User Inspection Form
Appendix S – Safety Considerations during Sampling and Inspection
Appendix T – Example Chain of Custody Form
Appendix U – Required Containers, Preservation Techniques, and Holding Times
Appendix V – Procedure for Identifying Non-Contributors
Appendix X – Procedure for Handling Requests for Increase Pollutant Loadings
Appendix Y – Program Implementation and Funding Sources
Appendix Z – Example Letter – Non-Domestic User Hazardous Waste Discharge Reporting Reqs
Appendix AA – Certificate of Legal Authority
Appendix BB – City of Cadillac Sewer Use Ordinance
Appendix CC – Example Non Permitted Notice of Violation
Appendix DD – Example Permitted Notice of Violation
Appendix EE – Example Administrative Order to Show Cause
Appendix FF – Example Administrative Order of Consent
Appendix GG – Example Admintrative Order to Achieve Compliance
Appendix HH – Cease and Desist Order
Appendix II – Emergency Cease and Desist Order
Appendix JJ – Procedure for Notifying EGLE

1.0 INTRODUCTION

In accordance with the requirements of the Michigan Part 23 Pretreatment Rules (R323.2306), the City of Cadillac has developed this updated Procedures Manual for its Industrial Pretreatment Program (IPP).

This manual provides information on the following regulated activities:

- a. Identify and locate all possible industrial users which might be subject to the City's pretreatment program (according to R323.2306c[i]).
- b. Identify the character and volume of pollutants contributed to the POTW by the industrial users identified above (according to R323.2306c[ii]).
- c. Notify industrial users of applicable pretreatment standards and any applicable requirements under Sections 204(b) and 405 of the Clean Water Act (according to R323.2306c[iii]).
- d. Receive and analyze self-monitoring reports and other notices submitted by industrial users in accordance with the self-monitoring requirements (according to R323.2306c[iv]).
- e. Randomly sample and analyze the effluent from industrial users and conduct surveillance and inspection activities to verify the industrial self-monitoring reports (according to R323.2306c[v]).
- f. Investigate instances of noncompliance with pretreatment standards and requirements found in reports and notices, or in the surveillance and inspection activities; collect evidence that is admissible in enforcement proceedings or in judicial actions (according to R323.2306c[vi]).
- g. Comply with the public participation requirements in the enforcement of National Pretreatment Standards, including the provisions for annual public notification of all categorical users which were significantly violating applicable pretreatment standards or other pretreatment requirements (according to R323.2306d).
- h. Evaluate proposed new discharges or modifications to existing discharges to determine if they are acceptable (according to R 323.2310 [9] b). Accept, deny, or condition these discharges as appropriate.

The Manual is on file with the State, the City, and Fleis & VandenBrink, as indicated below. Any changes to the Manual should be submitted to the following addresses:

Claire Lowe, IPP Coordinator
Michigan Department of Environmental, Great Lakes and Energy
Cadillac District Office
120 Chapin St,
Cadillac, MI 49601
Phone: (989) 330-4639

Jeff Dietlin, Director of Utilities
Patrick Miller, WWTP Superintendent
City of Cadillac
200 N. Lake Street,
Cadillac, MI 49601
Phone: (231) 775-0181

Elaine Venema, P.E.
Fleis & VandenBrink
2960 Lucerne Dr. SE
Grand Rapids, MI 49546
Phone: (616) 977-1000

2.0 PURPOSE AND SCOPE

The objectives of the Federal pretreatment regulations are to;

- a. To prevent the introduction of pollutants into publicly owned treatment works (POTW's) which will interfere with the operation of a POTW, including interference with its use or disposal of municipal sludge;
- b. To prevent the introduction of pollutants into POTW's which will pass through the treatment works or otherwise be incompatible with such works; and
- c. To improve opportunities to recycle and reclaim municipal and industrial wastewaters and sludges; i.e. to prevent biosolids contamination.

These objectives are met by implementing and enforcing the "General Pretreatment Regulations for Existing and New Sources of Pollution", as defined by Part 403 of the Code of Federal Register (40 CFR). These Federal regulations are included here in Appendix A.

The City's enforcement authority for the above Federal regulations resides in Article IV of Chapter 42 of the Cadillac City Code is entitled "Sewer Service" and is included herein as Appendix BB. Division 10 specifically deals with Industrial monitoring and pretreatment.

This IPP Manual provides the guidelines for management of the IPP program, including monitoring and sampling procedures, and enforcement response procedures for different levels of IPP violations. These policies do not confer any rights but are merely guidelines.

2.1 ADMINISTRATION

The Cadillac IPP is under the day-to-day direction of the Wastewater Treatment Plant (WWTP) Superintendent, subject to the supervision of the Director of Utilities. Certain WWTP staff, including the IPP Supervisor, Lab Manager, and others assist the Superintendent in administering the IPP, as appropriate.

LEGAL AUTHORITY

The Cadillac IPP was developed to ensure that pollutant discharges from nondomestic sources do not:

- a. Cause, in whole or in part, the failure to comply with the final effluent limitations;
- b. Restrict, in whole or in part, the approved Residuals Management Plan;
- c. Cause, in whole or in part, operational problems at the treatment facility or in its collection system;
- d. Exceed the approved local limits contained within the proposed Cadillac City Sewer Service Ordinance; or
- e. Exceed Pretreatment Rules as identified in the Michigan Part 23 Pretreatment Rules and in regulations pursuant to Section 307 of the Clean Water Act.

The Sewers Ordinance (Chapter 42, Article IV) of the Cadillac City Code provides the City with the required legal authority to implement and operate the IPP. Appendix BB contains the complete document. Key elements of the ordinance include the minimum standards set forth by the Michigan Department of Environment, Great Lakes and Energy (EGLE) in the Part 23 Pretreatment Rules to: 1) control discharges to ensure compliance with pretreatment standards; 2) develop and enforce compliance schedules and reporting requirements; 3) carry out independent inspection, surveillance, and monitoring; and 4) obtain injunctive relief and assessment of penalties for noncompliance.

FINANCIAL SOURCES

The general guidelines of an IPP user charge system are that revenue should be sufficient to cover all operational costs of the system, and that all users should pay in proportion to the expenses they cause. For this reason, users are responsible for the cost of any sampling and laboratory analyses which are required as part of their discharge monitoring.

CONTROL MECHANISMS

Local Limitations

Section 42-337 of the Sewer Ordinance contains both general discharge prohibitions and specific pollutant limits.

The general discharge prohibitions include fire/explosion protection, solid or viscous substances, pH less than 5.5 or greater than 9.5, toxic pollutants causing interference or health threats or pass-through, any substance causing violation of the City's NPDES permit, and/or excessive temperature. These prohibitions also include any wastewater or substance containing radioactive wastes.

Federal Categorical Standards

Federal categorical industries are also regulated by the City via enforcement of appropriate discharge standards. These standards apply at the discharge of the regulated process, compared to the City's local limitations that apply to the combined discharge entering the sanitary sewer.

Where not possible to analyze actual process effluents at integrated facilities, the WWTP Superintendent utilizes the "Combined Waste Stream Formula" to account for noncategorical dilution flows and calculate alternative limits. The more stringent of these alternative limits and the ordinance-based local limits are then applied to determine compliance of a particular categorical industry discharge. In most cases, the Cadillac Local Limits are much more stringent than the Categorical Limits.

Application of this formula is described in R323.2311(7) of the Michigan Part 23 Pretreatment Rules, which are attached as Appendix B.

3.0 IDENTIFICATION OF USERS

3.1 DISCHARGE CHARACTERIZATION

All new sources proposing to connect to the City sewer system, and all existing sources proposing to change their operation and/or wastewater discharge, are required to complete a obtain a wastewater discharge permit prior to initiating or changing the discharge. The survey form is also used to periodically update the files on existing nondomestic users.

The City's survey form is included in Appendix M. The required submittal information on the survey form includes the following:

1. User's name, mailing address, and location.
2. Description of activities/facilities on the premises.
3. Standard Industrial Code (SIC) numbers.
4. Average wastewater flow rates.
5. A description of the types of wastewater discharged to the sewer system.
6. A list of all hazardous or toxic substances used or stored on site, the quantities used or stored, and the disposal method for each substance.
7. Spill prevention procedures.

In addition, the WWTP Superintendent may request material safety data sheets (MSDS) on each chemical being used at the site. Upon examination of submitted information, the Superintendent makes a determination on whether or not the prospective discharger may have to perform additional sampling and analysis to more fully characterize the wastewater.

3.2 USER NOTIFICATION

When a new industry is identified, the WWTP Superintendent makes initial contact by letter. This letter addresses the applicable local ordinance, the Michigan Part 23 Pretreatment Rules, and any other pertinent requirements; it also includes a copy of the Sewer Service Ordinance. Follow-up phone calls and/or meetings are also utilized where appropriate.

When pretreatment standards or regulations are promulgated or revised, the City is responsible for contacting the affected industries. The WWTP Superintendent receives notifications from EGLE on IPP issues, attends seminars on IPP issues given by EGLE and U.S. EPA, and is an active member of the Michigan Water Environment Association (MWEA).

The WWTP Superintendent also stays informed of new hazardous waste requirements through communications from EGLE and publications received on a periodic basis.

3.3 DOMESTIC USERS

A Domestic User is an individual home or dwelling unit (including mobile homes, apartments, condominiums, or multi-family dwellings, or other structures, that discharge only segregated domestic wastes or wastes from sanitary conveniences. While not the main focus of the IPP, domestic customers are restricted as to what they are allowed to discharge per Section 42-337.

3.4 NONDOMESTIC USERS

Two classifications of industrial users are currently utilized in the Cadillac IPP: "Industrial User" and "Significant Industrial User".

Industrial Users are defined as any User other than a Domestic User. As such, the list of Industrial (or non-domestic) Users in the City of Cadillac is quite large (see Appendix E). This list should be updated as Nondomestic Users come into or leave the City.

The responsibility for identifying new nondomestic users lies with the WWTP Superintendent. This activity is based upon the following sources of information.

Site Reviews: The City Administrator receives plans of new buildings in the City. Through this source of information, he identifies and notifies the Wastewater Treatment Plant Superintendent of new nondomestic users being established in the City.

Field Observations: The WWTP Superintendent periodically surveys available lands within the sewer service area for any new construction. Surveys are also performed of existing nondomestic users to identify any changes in owner or tenant status.

Once every five years, the City of Cadillac will be responsible for conducting a Nondomestic Users survey as required by 40 CFR 403.8 (f)(2)(i). An Industrial Wastewater Survey, included in Appendix M, will be distributed to all Nondomestic Users as a means of conducting the survey. During the same period, the City will update the Nondomestic Users list by examining water use records and performing a windshield survey. It is notable that both SIUs are regulated by Federal Categorical Standards.

Any one of the following criteria are currently used to indicate a Significant Industrial User:

- Are any of the chemicals noted on the U.S. Environmental Protection Agency (U.S. EPA) List of Priority Pollutants being used in the process, stored on-site, or discharged to the POTW in the product or as a by-product?
- Does the nondomestic user utilize in its process, store on-site, or discharge to the POTW any chemicals, oils, heavy metals, solvents, or high-strength wastes?
- Does the nondomestic user discharge any process water, boiler water, or cooling water to the POTW?
- Does the nondomestic user have a process water flow which is greater than 25,000 gpd or is more than 5% of the total POTW organic or hydraulic dry weather loading?
- Is any process subject to Federal Categorical Standards?

The Cadillac WWTP Superintendent and IPP Supervisor have reviewed the Nondomestic User list to determine which Users whose wastewater discharge may have a detrimental effect on the wastewater system or pass-through to the Clam River. These Significant Industrial Users were determined per the definition in the Section 42-241 and are listed in Appendix BB of this Manual.

3.5 HAULED WASTEWATER

The City of Cadillac does not currently accept hauled wastes / wastewater. Refer to Section 42-444 regarding the City's current policy on hauled wastes. Should the City ever allow acceptance of hauled waste / wastewater, the City's procedures for hauled waste acceptance are detailed in Sections 42-445 through 42-450.

4.0 PERMIT APPLICATION/ISSUANCE

4.1 DISCHARGE PERMIT APPLICATION

New potential significant and/or categorical industrial users must complete a discharge permit application for the City's review and approval (as indicated by issuance of a discharge permit) prior to discharging industrial process wastewater to the sanitary sewer system. A copy of the permit application form is included in Appendix I.

Permitted industrial users must also submit a permit application to order, to renew, or revise their existing discharge permit.

The procedures for the submittal of the Permit Application are as follows:

1. New Nondomestic User
 - a. After notification of a New Nondomestic User by the City, the Wastewater Superintendent sends a Permit Application to New Nondomestic User.
 - b. New User completes and submits the Permit Application to Wastewater Superintendent at least 60 days prior commencement of discharge.
 - c. Wastewater Superintendent reviews the Permit Application and inspects New Nondomestic User's facility within 30 days.
 - i. Classifies User as Significant Industrial User or Nonsignificant Nondomestic User. Notifies User of monitoring requirements. Provides User with copy of Cadillac's Sewer Service Ordinance, if requested (User charged for copies).
 - ii. A Significant Industrial User must be classified as either Categorical or Noncategorical. Review of the Code of Federal Regulation (40 CFR) and the appropriate EPA guidance manuals will assist in this determination.
 - iii. A Baseline Monitoring report (see section 4.2 and Appendix F) is required for Categorical Users.
 - iv. If the Nondomestic User is determined to be a Significant Industrial User, the Wastewater Superintendent must notify the Significant Industrial User of its status as such and of all requirements applicable to it as a result of such status (see example SIU notification letter in Appendix J).
 - v. Significant Industrial Users cannot discharge until issued a Wastewater Discharge Permit (Appendix K) by the Wastewater Superintendent.
2. Existing Nondomestic User – Change in Status
 - a. City receives from existing Nondomestic User a request for (1) name change on utility bill or (2) significant change in sewer use (see Section 42-486). City notifies Wastewater Superintendent of proposed changes.
 - b. Wastewater Superintendent sends out Permit Application to Existing Nondomestic User.
 - c. User completes and submits completed Permit Application to Wastewater Superintendent at least 90 days prior to a change in discharge. Changes in sewer use shall not commence until User is notified by the Wastewater Superintendent.
 - d. Wastewater Superintendent reviews Permit Application and inspects Existing Nondomestic User's facility within 30 days.
 - i. Classifies User as Significant Industrial User or Nonsignificant Nondomestic User. Notifies User of monitoring requirements. Provides User with copy of Cadillac's Sewer Service/Industrial Pretreatment Ordinance, if requested (User charged for copies).

- ii. A Significant Industrial User must be classified as either Categorical or Noncategorical. Review of the Code of Federal Regulation (40 CFR) and the appropriate EPA guidance manuals will assist in this determination.
- iii. If the Nondomestic User is determined to be a Significant Industrial User, the Wastewater Superintendent must notify the Significant Industrial User of its status as such and of all requirements applicable to it as a result of such status.
- iv. An Existing Nondomestic User, classified as a Significant Industrial User because of a significant change in sewer use, shall be issued a Wastewater Discharge Permit by the Wastewater Superintendent.

3. Existing SIU/CIU – Permit Reissuance

- a. City submits Permit Application form to permitted SIU/CIU prior to permit reissuance application deadline.
- b. SIU/CIU completes Permit Application form and submits to the City for review and reissuance of permit.

The City may charge a fee for permit application review, as established in the IPP fees.

4.2 BASELINE REPORT

New categorical industries and existing categorical industries subject to revised categorical standards (40 CFR) are required to perform baseline sampling/analysis to report actual discharge concentrations. These reports are due within ninety days following the effective date for new or revised pretreatment standards, or ninety days prior to the commencement of discharge for new sources. New sources are also required to include information on the pretreatment methods they intend to use and to provide estimated data on production, flow, and amounts of regulated pollutants. The City's baseline form is included in Appendix F.

Also addressed in the baseline report is an assessment of whether the applicable requirements are being met. If not, the industrial discharger is required to submit a plan and schedule that will be implemented to achieve compliance. The user is required to report any changes in the information in the baseline report to the City within 60 days.

A Baseline Report from an existing User, newly classified as a Significant Categorical Industrial User, is due 180 days after the effective date of a categorical standard, or 180 days after the final administrative decision upon a category determination submission, whichever is later.

4.3 WASTEWATER DISCHARGE PERMIT

The National Pretreatment Standards and Requirements state in 40 CFR 403.8(t)(l)(iii) that cities with approved pretreatment programs must control the discharge from Industrial Users through permit, order, or similar means to ensure compliance with applicable Pretreatment Standards and Requirements. As a representative of the U.S. EPA, EGLE requires the use of wastewater discharge permits to regulate Industrial Users. A model Wastewater Discharge Permit is included in Appendix K.

The authority and procedures to issue a discharge permit are contained in the City of Cadillac's Sewer Service/Industrial Monitoring and Pretreatment Ordinance, Section 42-484 of the Ordinance requires all Significant Industrial Users to obtain a Wastewater Discharge Permit.

To obtain a Wastewater Discharge Permit, the Ordinance indicates that applications for permit shall be made on a permit application form supplied by the City.

Wastewater Discharge Permits issued to Significant Industrial Users shall be issued for up to two (2) years. The permits are composed of a number of different sections that may change from User to User. A brief description of some of the control measures that shall be included in a permit are as follows:

1. PART I, A - EFFLUENT LIMITATIONS AND MONITORING REQUIREMENTS

This is the section of the permit where wastewater discharge limits will be imposed. The limits listed will be calculated case by case. **It should be noted that more than one set of limits may be issued in order to allow the City greater flexibility with an Industry.**

The more **stringent of local or categorical limits shall be included.** The **combined waste stream formula contained in 40 CFR 403.6(e)** must be taken into account where more than one categorical process is present, or regulated waste streams are being diluted prior to discharge. Procedures to be utilized for developing alternative mass or concentration-based limits are as noted in 40 CFR 403.6(e)(l).

2. PART I, B - SCHEDULE OF COMPLIANCE

This section of the permit specifies a compliance schedule for the Significant Industrial User. This section will vary from User to User.

4.4 PERMIT REISSUANCE

A User must apply for reissuance of a permit by submitting a complete permit application to the WWTP Superintendent **at least 180 days prior to the expiration** of the User's existing permit.

4.5 USER FEES

There are several types of fees associated with sewer use. These types include:

1. Fees for reimbursement for costs of setting up and operating the City's Pretreatment Program;
2. Fees for monitoring, inspections, and surveillance procedures;
3. Fees for reviewing accidental discharge procedures and construction;
4. Fees for permit applications;
5. Fees for filing appeals; and
6. Fees for consistent removal (by the City) of pollutants otherwise subject to Federal Pretreatment Standards and Michigan EGLE Standards.
7. Other fees as the City may deem necessary to carry out the requirements contained herein.

These fees may be adopted by resolution of the City of Cadillac Council.

5.0 MONITORING PROCEDURES

The management of the Industrial Pretreatment Program is dependent on a constant flow of information received through the required monitoring system. The information obtained is used to determine Industrial User compliance with Ordinance requirements and applicable Federal and State laws and regulations.

There are three types of monitoring. These include (1) scheduled monitoring, (2) unscheduled monitoring, and (3) demand monitoring. Scheduled monitoring is conducted on a required basis. The City and the industrial users have agreed that City staff will complete the required scheduled compliance sampling and analysis.

Unscheduled monitoring is monitoring which is unscheduled.

Demand monitoring is conducted in the event of a spill or other disruption caused by an Industrial User. For users that have a noncompliant discharge, the WWTP Superintendent will order an appropriate increase in monitoring. The frequency and duration of this sampling are at the discretion of the Superintendent.

The City also requires a semiannual sampling/analysis report from each categorical user detailing the pollutants in their discharge. This report is to be submitted every June and December for all categorical industries. At the industrial user's option, this monitoring may be completed by the City; this is contingent upon the City being reimbursed for all costs incurred by performing this monitoring, including the cost of labor by City personnel. If the monitoring is performed by the City, no report need be filed by the industrial user. The City will report any violations of pretreatment standards to the industrial user within ten days of receipt of the monitoring results.

If a discharger is on a compliance schedule, requirements for monitoring may be modified by the City on a case-specific basis. Each user may also be sampled by the City with or without prior notification, if deemed appropriate. Justification for additional sampling includes, but is not limited to, the following: the industry reported results are not in compliance with the permit limit, the industry is on a compliance schedule, the industry is suspected of being in noncompliance, or there are public complaints concerning discharge from the industry.

5.1 SCHEDULED MONITORING

1. Significant Categorical Industrial Users

- a. Baseline Reports [40 CFR 403.12(b)]. Within 180 days after the effective date of a categorical pretreatment standard, or 180 days after the final administrative decision made upon a category determination submission under 40 CFR 403.6(a)(4), whichever is later, an Existing Industrial User subject to the Categorical Pretreatment Standards and which currently discharges or is scheduled to discharge to the POTW shall submit a report to the WWTP Superintendent as required by 40 CFR 403.12(b). At least 90 days prior to commencement of discharge, new sources, and sources that become Industrial Users subsequent to the promulgation of an applicable Categorical Pretreatment Standard shall submit the reports to the WWTP Superintendent as required by 40 CFR 403.12(b).
- b. Reports on Compliance with Categorical Pretreatment Standard Deadline [40 CFR 403.12(d)]. Within 90 days following the date for final compliance with applicable Categorical Pretreatment Standard or, in the case of a New Source, following commencement of the discharge to the POTW, any Industrial User subject to Categorical Pretreatment Standards and requirements shall submit the reports to the WWTP Superintendent required by 40 CFR 403.12(d).

- c. Periodic Reports on Continued Compliance [40 CFR 403.12(e)]. Any Industrial User subject to a Categorical Pretreatment Standard, after the compliance date of the Categorical Pretreatment Standard or, in the case of a New Source, after commencement of the discharge into the public sewer or POTW, shall submit the periodic reports to the Superintendent required by 40 CFR 403.12(e). These periodic reports shall be submitted at least once every six months (during the months of June and December unless alternate months are specified by the WWTP Superintendent), unless required more frequently by the applicable pretreatment standard or by the WWTP Superintendent.
2. Significant Noncategorical Industrial Users
 - a. Continuing Compliance Reports for Users with discharges not subject to Categorical Pretreatment Standards may be due during the months of June and December if requested by the City. [See 40 CFR 403.12(h)].

5.2 UNSCHEDULED MONITORING

1. As required by 40 CFR 403.8 (f)(2)(v), the City will conduct unscheduled surveillance monitoring on Significant Industrial Users at least once per year. Unscheduled surveillance monitoring will consist of a complete sampling and analysis of all regulated pollutant parameters.
 - a. Costs for surveillance monitoring shall be charged directly to the individual Significant Industrial Users.
 - b. Where requested, dischargers are responsible for installing and maintaining monitoring manholes.
 - c. City inspections and sampling at User's property are permitted at all reasonable times. The City will conduct an annual scheduled inspection of all Significant Industrial Users' facilities.
2. Costs for any additional monitoring deemed necessary by the City shall be charged directly to the individual User.

5.3 DEMAND MONITORING

1. Demand monitoring will be conducted in the event of a spill and/or disruption of the Treatment Plant.
 - a. Costs for all demand monitoring shall be charged directly to the discharger(s) responsible for the spill and/or disruption.

5.4 REPORTING REQUIREMENTS

There are three (3) types of routine discharge reports to be submitted by Industrial Users subject to categorical pretreatment standards. These reports are detailed below.

1. Baseline Monitoring Report
2. 90-Day Compliance Report
3. Continuing Compliance Report (CCR)

Noncategorical significant industrial users are required to submit semi-annual reports regarding the quality and quantity of wastewater and pollutants discharged to the POTW. The City of Cadillac IPP shall use the same reporting form for noncategorical Users.

A description of the contents of each of the above-mentioned routine discharge reports is as follows:

1. Baseline Report. The Baseline Report must contain the following information as specified by 40 CFR 403.12(b):
 - a. Identifying information regarding User.
 - b. Environmental control permits held by or for User.
 - c. Description of process operations.
 - d. Flow measurement or estimation (estimation appropriate for new sources).
 - e. Measurement of pollutants (estimations appropriate for new sources)
 - f. Certification by a qualified professional.
 - g. Compliance schedule for pretreatment, if necessary.

The purpose of the Baseline Monitoring Report is to familiarize User with the requirements of the IPP program and evaluate their preliminary compliance status. A blank BMR form is included in Appendix F.

2. 90-Day Compliance Report. The 90-day Compliance Report must contain the following information as specified by 40 CFR 403.12(d):
 - a. Flow measurement or estimation (estimation appropriate for New Sources)
 - b. Measurement of pollutants
 - c. Certification by a qualified professional

The 90-Day CR must be submitted within 90 days following the date for final compliance with applicable Categorical Pretreatment Standards, or for new Users, following commencement of the introduction of wastewater into the POTW. An example of the 90 Day CR is included in Appendix G.

3. Continuing Compliance Report (CCR). The Continuing Compliance Report must contain the following information as specified by 40 CFR 403.12(e) for Categorical Industrial Users or 40 CFR 403.12(h) for Noncategorical Industrial Users.
 - a. Nature and concentration of pollutants in effluent regulated by Categorical Pretreatment Standards
 - b. Measured or estimated average and daily maximum flows for the reporting period.

The purpose of CCR is to track on a semi-annual basis (during the months of June and December, unless alternate months are specified by the WWTP Superintendent) the compliance of the Industrial User regarding the requirements of the IPP Program. These reports are required from Categorical and may also be required for certain Noncategorical Significant Users. An example of the CCR form is included in Appendix H.

5.5 SAMPLE TYPES

In general, the following parameters should be sampled according to the following methods:

24-Hour Flow Proportional Composite Sample

- Conventional pollutants (BOD, TSS, ammonia, phosphorus)
- Inorganic pollutants (metals)
- Non-volatile organics

Grab Sample

- pH
- Cyanide
- Total Phenols
- Fats, oils, and grease (FOG)

- Sulfides
- Volatile organics
- PFAS

Composite samplers are normally used for the City's surveillance sampling. A typical one-day sampling event employs a 1-hour multiple sampling regime in which partial samples are collected every 15 minutes (i.e., 24 sample bottles are used to represent one day). The Superintendent, assisted by WWTP staff, is responsible for conducting surveillance sampling. All sampling equipment and sample bottles are pre-cleaned to prevent sample contamination. Each industry has its own dedicated sampling tube.

At the Superintendent's discretion, a series of grab samples may also be collected to investigate suspected noncompliance or to verify accuracy of self-monitoring results.

As the City has its own laboratory, most parameters are analyzed by the City of Cadillac laboratory. Samples are collected in labeled plastic or glass bottles with the proper amount of needed preservative according to EPA and EGLE guidelines. All samples collected are given an initial screening in the field, including a visual inspection for color and oil/grease. All data collected in the field and laboratory are recorded on bench sheets.

A few parameters are analyzed by an outside laboratory. These samples are refrigerated immediately after sampling and delivered to the laboratory in an insulated cooler. The outside laboratory is certified by the EPA and has a QA /QC program in place.

Appendix O describes the different sampling types in greater detail.

5.6 MONITORING FREQUENCIES

Monitoring frequencies vary for the different required reports (BMR, 90-Day CR, CCR), and may also vary from permit to permit. The minimum monitoring frequency for required reports is six months.

1. Baseline Monitoring Report, 90-Day CR. These two reports require data from pollutant analysis to be submitted. In accordance with 40 CFR 403.12(b)(5), the User must "submit the results of sampling and analysis identifying the nature and concentration of regulated pollutants in the discharge from each regulated process." (New sources can submit estimations on the Baseline Report. Historical data may be submitted on the Baseline Report as long as the data provides information sufficient to determine the need for industrial pretreatment measures.)

The sample **should** be representative of daily operations. The following sampling frequencies are required:

- a. Grab Samples – A minimum of four (4) grab samples for pH, cyanide, total phenols, fats, oils and grease (FOG), sulfide and volatile organics, if these parameters are regulated for the User.
- b. Composite Samples – A minimum of one (1) 24-hour flow proportional composite sample for all other regulated pollutants. (If the User can demonstrate that flow proportional sampling is infeasible, a time-proportional composite sample may be used, if approved by the Wastewater Superintendent. A minimum of 4 grab samples may also be used if the User demonstrates that this will provide a representative sample. Alternate period other than 24 hours can be specified for periodic discharges resulting from reduced manufacturing operations.)

Reference 40 CFR 403.12(b) and (d) for additional sampling regulations.

2. Continuing Compliance Reports. Federal regulations (see 40 CFR 403.12(e)(1)) specify a minimum monitoring frequency of twice per year. However, as stated in the *EPA Industrial User*

Permitting Guidance Manual. September 1989, p. 8-7, Control Authorities “have considerable discretion in establishing monitoring frequencies.”

For additional information on monitoring requirements, see the *EPA Industrial User Permitting Guidance Manual*, Sept. 1989. This guidance manual addresses specific industrial categories and their permitting requirements, as well as the Total Toxic Organic (TTO) Certification procedures.

5.7 CONFIDENTIALITY/FREEDOM OF INFORMATION

The following provisions shall apply regarding the treatment by the City of confidential information submitted to or obtained by the City in the administration of the City's IPP program.

1. Information and data regarding a User obtained from reports, questionnaire, permit applications, permits and monitoring programs, and from inspections shall be made available to the public or other governmental agency without restriction unless the User specifically requests and is able to demonstrate to the satisfaction of the City that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the User.
2. Information submitted by a User for which confidentiality is requested shall be clearly marked by the User on each page as to the portion or portions considered by the User to be confidential and shall be accompanied by a written explanation of why the User considers the information to be confidential or why the release of the information would divulge information, process or methods of production entitled to protection as trade secrets of the User.
3. Information which the City has determined may disclose trade secrets or secret processes, and for which the User has requested confidentiality as provided by these provisions, shall not be made available for inspection by the general public (and shall be removed from the file prior to inspection of any non-confidential information in the file by a member of the public); however, that information shall be made available upon written request to governmental agencies for uses related to matters regulated by this Chapter and shall be made available for use by the state, any state agency, or the City in judicial review or enforcement proceedings which involve the User 10 days in advance if it intends to release confidential information to another governmental agency as authorized by this Section.
4. Information furnished to the City on the volume or characteristics of wastewater or pollutants discharged or proposed to be discharged into the POTW shall be available to the public or other governmental agency without restriction.
5. If a User has mass-based limits as allowed by certain Categorical Pretreatment Standards on a production basis, the production data necessary to determine compliance must also be provided by the User to the City and shall be available to the public. If application of the combined waste stream formula is necessary to apply categorical pretreatment standards to a User, the flow measurements and other data used in the calculation must be provided by the User to the City and shall be available to the public.
6. Observations made by City inspectors shall be subject to the confidentiality provisions of this Section as if they were in writing if the User specifies to the City in writing for which particular observations made by the City inspector the User seeks confidentiality.
7. All information received by the City from Users or obtained during inspections, whether subject to a claim of confidentiality or not, shall be kept in a secure location which is not accessible to persons other than IPP personnel without prior IPP personnel approval (such as a locked file cabinet or limited-access room).

6.0 INSPECTION PROCEDURES

Procedures to conduct industrial inspection and monitoring activities are required by the Federal Pretreatment Regulations 40 CFR 403.8 (f) (2) (v). This Federal Regulation is supported by the City of Cadillac Ordinance Chapter 42. The Federal Regulations require the City to inspect and sample the effluent of each Significant Industrial User at least once a year (any sampling required by the City will be at the expense of the industry). Evaluations are required at least once every two years to determine if each Significant Industrial User needs a plan to control slug discharges, as required by 40 CFR 403.8 (f) (2) (v).

The decision to inspect a nondomestic user more frequently could be based on abnormalities noticed in monitoring or observed by the City's field crew. An inspection could also be warranted by public complaints regarding a particular industry, or the Superintendent's suspicion of unacceptable activities.

Industrial Inspections are important to the City of Cadillac's Industrial Pretreatment Program (IPP). Through monitoring and inspection activities the City determines the compliance of a User with its discharge permit, City Sewer Ordinance, and State and Federal regulations. An onsite inspection form is included in Appendix R.

6.1 SCHEDULED INSPECTION PROCEDURES

1. Arranging an Inspection:
 - a. A scheduled inspection should be mutually agreed upon one week to one month in advance.
 - 1) If the User has a Baseline Monitoring Report on file, a copy and blank form are sent along with a letter verifying the agreed-upon inspection. The User is requested to check and update the form, if necessary, in preparation for inspection.
 - 2) A User which does not have a BMR on file is sent a blank form and letter describing the information required. The User is requested to complete the form in preparation for inspection.
 - b. The User is telephoned one to two days prior to schedule inspection to verify the appointment. Additional clarification is offered at this time, if necessary.
2. Preparation:
 - a. Review the User's file and any existing records:
 - 1) Baseline Monitoring Report/Compliance Reports
 - 2) Previous In-Plant Inspection Reports
 - 3) Monitoring Data and Wastewater Permit
 - 4) Plant Layout / Process Flow Diagrams
 - 5) Water Consumption and Sewer Use Records
 - 6) Correspondence
 - 7) Previous Enforcement Actions
 - b. Review appropriate National Pretreatment Standards and Requirements.
3. Onsite Inspection:

- a. The Inspector(s) should first identify themselves and present appropriate identification. This is a requirement of Cadillac's Sewer Service Ordinance and should be followed whether or not identification is requested.
 - b. Interview the User representative(s) prior to visual inspection of the facility.
 - 1) Reiterate purpose of the inspection.
 - 2) Review Baseline Monitoring Report.
 - 3) Ask questions using the Inspection Form.
 - 4) Discuss required safety precautions. Follow Safety Considerations listed in Appendix S.
 - 5) Review Pollution Incident Prevention Plan (PIPP). The need for slug control plan should be assessed by the City at least every two years as required by 40 CFR 403.8(f)(2)(v).
 - c. Visual Inspection:
 - 1) Utilize Inspection Form
 - 2) Miscellaneous guidelines:
 - Study each process until materials used and wastes generated are understood.
 - Make sure origin, content, and fate of each waste stream is described and understood.
 - Avoid being "rushed through" as much as possible.
 - Point out positive things the User is doing right.
 - Do not make recommendation or offer specific advice that may be misconstrued to be an official order.
 - 3) Review Inspection Form at the end of the inspection to verify all items have been covered.
 - 4) Obtain any necessary additional information (waste disposal records, SDS sheets, etc.)
 - d. Field Investigation, if necessary:
 - 1) Check sewer and storm drain maps.
 - 2) Investigate area sewers, storm drains, surface waters.
 - 3) Note exterior storage tanks, drum storage, loading areas, cooling towers, visible disposal practices (i.e. ditches, ponds, landfill, dumps, treatment tanks)
 - e. Closing Interview, if necessary:
 - 1) Request additional information or data if necessary.
 - 2) Inspector may summarize inspection findings.
4. Reporting:
- a. As soon as possible, review inspection notes. Expand, explain or rewrite as necessary.
 - b. List items overlooked or items needing further investigation. Arrange return trips as needed.
 - c. Write up final report and submit to User within 30 days with any listed deficiencies and recommendations discovered in the inspection.

6.2 UNSCHEDULED INSPECTION PROCEDURES

1. Unscheduled inspections have the same purpose as scheduled inspections and are performed in the same manner; however, User is not provided with advance notice.
2. Surveillance monitoring for the purpose of confirming information supplied by Significant Industrial Users as required by the Ordinance and/or discharge permits will be unscheduled.
3. Monitoring Procedures:
 - a. Samples collected by the City for surveillance monitoring must be accompanied by a chain of custody form. A sample chain of custody form is included in Appendix T.
 - b. Proper procedures regarding containers, holding times, and preservation times must be followed in accordance with 40 CFR 136 (see Appendix U).

6.3 DENIAL OF ENTRY PROCEDURES

In the event an inspector is refused entry into a facility, certain procedural steps must be followed. The following procedures have been developed in accordance with the 1978 US Supreme Court decision in *Marsh v. Barlow's, Inc.*

1. Make certain that all credentials and notices have been properly presented to the facility owner or agent in charge.
2. If entry is not granted, ask why. Tactfully probe the reason for the denial to see if obstacles can be cleared.
3. If entry is still denied, Inspector should withdraw from the premises and contact his or her supervisor. The supervisor may confer with attorneys to discuss the desirability of obtaining an administrative warrant.
4. All observations pertaining to the denial are to be carefully noted and documented by the Inspector as soon as possible. Include facility name and exact address, name and title of person(s) approached who refused entry, date and time of denial, detailed reasons for denial, facility appearance and any reasonable suspicions that refusal was based on a desire to cover up violations. All such information will be important, should a warrant be sought.
5. Under no circumstances should the Inspector discuss potential penalties or do anything that may be construed as coercive or threatening.
6. Inspector should use care and discretion to avoid any threats of any kind, inflammatory discussions or deepening of misunderstandings. In the event of a threatening confrontation, Inspector should document the event and report it immediately to his or her supervisor. If feasible, statements from witnesses should be obtained and included in the documentation.

Industrial inspections are an important part of the City of Cadillac's Industrial Pretreatment Program (IPP). Inspections will help the City maintain current data on all its Users. The inspections also serve to establish and maintain good relations with Users, which are critical for a well-run IPP. During inspection meetings the City may inform the User of their responsibilities, therefore assisting the Users in maintaining compliance.

6.4 INSPECTION FREQUENCIES

1. Scheduled

The City is committed to inspect all Significant Industrial Users prior to permit issuance, following permit issuance and at the time of permit renewal. At the time when required notices of significant

change in sewer use are received, inspections should again be scheduled. Federal regulations require an annual inspection and sampling of each Significant Industrial User. The City reserves the right, however, through its Ordinance, to inspect User at any reasonable time. Such inspection may be scheduled or unscheduled.

2. Unscheduled

Based upon plant operating data, the City reserves the right to inspect User at any reasonable time. Again, such inspections may be scheduled or unscheduled. A minimum of once per year unscheduled surveillance monitoring will be conducted by the City at Significant Industrial User's facilities.

6.5 SLUG CONTROL PLAN

According to 40 CFR 403.8(f)(2)(v), the City must evaluate each Significant Industrial User for the need to develop a slug control plan at least every two years. A slug discharge is defined as "any discharge of a nonroutine, episodic nature, including but not limited to, an accidental spill or a non-customary batch discharge."

If the POTW determines that a Significant Industrial User requires a Slug Control Plan, the Plan shall contain, at a minimum, the following elements:

1. Description of discharge practices, including non-routine batch discharges;
2. Description of stored chemicals;
3. Procedures for immediately notifying the Treatment Plant of slug discharges, including any discharge that would violate a prohibition under 40 CFR 403.5(b), with procedures for follow-up written notification within five days;
4. If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

6.6 COMPLIANCE TRACKING

All inspection forms and surveillance monitoring data will be reviewed by the IPP Coordinator/WWTP Superintendent within five days of receipt to check for violations of permit limits. If a violation is discovered, the appropriate enforcement action should be taken according to the Enforcement Response Plan. Sampling, analysis, and the collection of other information should be performed with sufficient care to produce evidence admissible in enforcement proceedings or in judicial actions, should it become necessary. IPP Coordinator will evaluate Industrial Users quarterly to determine if User is in significant noncompliance (SNC). A User is in significant noncompliance if its violation meets one or more of the following criteria:

1. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent or more of all the measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter.
2. Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent or more of all the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH).
3. Any other violation of a pretreatment effluent limit (daily maximum or longer-term average) that the Control Authority determines has caused, alone or in combination with other discharges,

interference or pass through (including endangering the health of POTW personnel or the general public).

4. Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority to halt or prevent such a discharge.
5. Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.
6. Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules.
7. Failure to accurately report noncompliance.
8. Any other violation or group of violations which the Control Authority determines will adversely affect the operation or implementation of the local pretreatment program.

Annually, a list of all Users determined to be in Significant Noncompliance during the previous twelve months, shall be published in the largest daily newspaper published in the City of Cadillac.

7.0 GENERAL NOTIFICATIONS

Under the City of Cadillac's Sewer Service Ordinance, Nondomestic Users are required under certain circumstances to notify the WWTP Superintendent and/or appropriate regulatory agency(ies) regarding their sanitary sewer discharge. The circumstances that require general notification include:

- Changed discharge or change in User status
- Change of ownership
- Hazardous waste discharges to the sanitary sewer
- Discharges causing potential problems to the POTW or slug loadings
- Upset or unanticipated bypass
- User violation of pretreatment standards
- Installation of new pretreatment facilities

Each of these notification requirements are discussed in detail below.

7.1 CHANGED DISCHARGE OR CHANGE IN USER STATUS

All Industrial Users shall promptly notify WWTP Superintendent of any substantial change in the volume or character of pollutants in their discharge. A substantial change in sewer use includes:

1. A discharge of any amount of a pollutant not identified in User's permit application or in the permit issued;
2. An increase in concentration of any pollutant which exceeds 5% of the concentration reported in the Baseline Report;
3. An increase in discharge volume which exceeds 20% of the volume reported in the Baseline Report;
4. A change in discharge which converts an Industrial User into a Significant Industrial User.

If the City receives such a notification, the WWTP Superintendent shall require the User to complete a Baseline Report. The WWTP Superintendent shall then determine if this significant change in sewer use will classify the User as a Significant Industrial User. If the User does receive this classification, the City must take the appropriate steps to inspect and permit the User, according to the IPP Procedures contained in this manual.

7.2 CHANGE OF OWNERSHIP

At least thirty (30) days prior to but no later than thirty (30) days afterwards, User is required to notify the City of a change in ownership of the facility and indicate the name change for the utility bill and/or Wastewater Discharge Permit.

7.3 HAZARDOUS WASTE DISCHARGES TO SANITARY SEWER

Any Industrial User which discharges a substance which, if disposed of other than by discharge to the POTW would be a hazardous waste, shall notify the WWTP Superintendent, the U.S. EPA Region V Waste Management Division Director, and the Chief of the Waste Management Division of the Michigan Department of Natural Resources.

7.4 DISCHARGES POTENTIALLY CAUSING PROBLEMS TO THE POTW OR SLUG LOADINGS

All Industrial Users shall immediately notify the POTW of all discharges by the User which could cause problems to the POTW, including slug loadings or discharges that exceed a discharge prohibition or

limitation provided by the Sewer Service/Industrial Pretreatment Ordinance. User shall also resample discharge for pollutant(s) potentially causing problems to the POTW and transmit the analytical results to the POTW within thirty (30) days.

7.5 UPSET OR UNANTICIPATED BYPASS

All Nondomestic Users are to notify the WWTP Superintendent within 24 hours of becoming aware of an upset or unanticipated bypass. User must submit a written report to the WWTP Superintendent within five (5) days of becoming aware of the occurrence.

7.6 USER VIOLATION OF PRETREATMENT STANDARDS

If sampling performed by an Industrial User demonstrate compliance with applicable pretreatment standards indicates a violation of a pollutant limitation, User, within 24 hours of becoming aware of the violation, shall notify the POTW, resample discharge for pollutant(s) and transmit the analytical results to the POTW within thirty (30) days.

Alternately, if compliance sampling conducted by City staff indicates a permit violation, the City will re-sample within 30 days.

7.7 INSTALLATION OF NEW PRETREATMENT FACILITIES

Within five (5) days after completing installation of new pretreatment facilities, all Industrial Users shall notify the Superintendent in writing of the time and date when it intends to commence operation of the new facilities and identify the person who will conduct any testing to be performed. Testing which must be performed establishing discharges will comply with requirements prior to being placed in regular operation.

8.0 ENFORCEMENT RESPONSE PLAN

The National Pretreatment Standards and Requirements state in **40 CFR 403.8(f)(5)** that all Publicly-Owned Treatment Works (POTWs) shall develop and implement an Enforcement Response Plan (ERP) to investigate and respond to Industrial Users in noncompliance. The ERP shall describe how instances of noncompliance will be investigated, describe types of escalating enforcement responses the POTW will take and the time period within which these responses will take place, identify (by title) the official(s) responsible for each type of response and adequately reflect the POTW's primary responsibility to enforce all applicable pretreatment requirements and standards. This section describes instances of noncompliance and describes the various types of enforcement responses.

A. Introduction

This document represents the City of Cadillac's Enforcement Procedures for the Industrial Pretreatment Program. In order to effectively implement a pretreatment program, an enforcement response plan is necessary. This plan describes how the Publicly-Owned Treatment Works (POTW) will investigate and respond to instances of noncompliance.

Cadillac will enforce all pretreatment program requirements Federal, State and Local. Every instance of noncompliance (regardless of fault, negligence, or intent on the part of industrial user) is a violation of the Sewer Service Ordinance and subjects the User to enforcement. However, while every instance of noncompliance may be a violation, all violations will not be met with the same initial enforcement response.

This plan covers a wide range of violations. **It is not intended to cover all types of violations** nor limit the enforcement discretion of any administering agency.

B. Functions

This guide serves two major functions:

1. Defines the range of appropriate enforcement actions based on the nature and severity of the violation and other relevant factors.
2. Promotes consistent and timely use of enforcement remedies. In addition to eliminating uncertainty and confusion concerning enforcement, this consistency lessens the likelihood of a successful legal challenge based on charges of "selective enforcement" or harassment.

C. Concepts

This guide represents the following concepts:

1. All violations of requirements will be reported to and reviewed by the Wastewater Superintendent. Violations will be documented and highlighted in IU's file.
2. Generally, the Superintendent will notify the IU when a violation occurs. All IU compliance information will be reviewed and compared with permit requirements within 15 days.
3. **If the IU reports the analysis for an effluent violation, and no further noncompliance is identified, no further response will be necessary.**
4. **For all violations, the department should receive an explanation and, as appropriate, a plan from the IU to correct the violation within a specified time period. The Superintendent will initiate enforcement within 30 days of identifying a violation.**
5. If the **violation persists** or the explanation and the plan are not adequate, the City's response will become formal and commitments (or schedules) for compliance will be established in an enforceable document.
6. The enforcement response selected will be related to the seriousness of the violation, and enforcement response will be escalated if compliance is not achieved expeditiously after the initial action has been taken.

D. The following abbreviations shall have the designated meanings.

1. CO - Consent Order
2. CMO - Compliance Order
3. CDO - Cease and Desist Order

4. CS - Compliance Schedule
5. LIT - Litigation
6. NOV - Notice of Violation
7. SCH - Show Cause Hearing
8. SNC - Significant Non-Compliance
9. TRC - Technical Review Criteria
10. VTN - Verbal Telephone Notice

E. Violation/Noncompliance

Industries found to be out of compliance with Federal, State or local requirements are subject to the conditions out lines in this guide. All enforcement actions shall be carried out by the **WWTP Superintendent**. Attempts on the part of an industry to act in "good faith" to achieve compliance will be duly noted by the City and therefore may receive an enforcement response less severe than an industry which does not appear to be acting in "good faith".

The City shall publish annually, in the largest daily newspaper published in the municipality of Cadillac, a list of the industrial users which, during the previous twelve months, were in significant noncompliance with applicable pretreatment standards and requirements. **The term significant noncompliance shall mean:**

1. Chronic violations of wastewater discharge limits defined here as those in which sixty-six percent (66%) or more of wastewater measurements taken during a 6-month period exceed the daily maximum or average limit for the same pollutant parameter by any amount;
2. Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of wastewater measurements taken for each pollutant parameter during a 6-month period equals or exceeds the product of the daily maximum limit or the average limit multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH);
3. Any other discharge violation that the City believes has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of City personnel or the general public);
4. Any discharge of pollutants that has caused imminent endangerment to the public or to the environment, or has resulted in the City's exercise of its emergency authority to halt or prevent such a discharge;
5. Failure to meet, within 90 days of the scheduled date, a compliance schedule milestone contained in a wastewater discharge permit or enforcement order for starting construction, completing construction or attaining final compliance;
6. Failure to provide within 30 days after the due date, any required reports, including baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;
7. Failure to accurately report noncompliance;
8. Any other violation (s) which the City determines will adversely affect the operation or implementation of the local pretreatment program.

Types of Enforcement Response and Definitions of Terms

A. CO - Consent Order

A Consent Order would be used in such cases where the Superintendent believed the industrial user was committed to providing the corrective measures to correct previous violations. The consent order is a document assuring voluntary compliance and establishing an agreement with the user responsible for noncompliance. The CO would include specific action to be taken by the user to achieve compliance within a specified period of time. If the user violates any provisions of the CO or the timetables involved (usually 1 to 6 months) then the next step in the enforcement proceedings will immediately be taken by the Superintendent, which in most cases will be a cease and desist order.

B. CMO - Compliance Order

When the Superintendent finds that a user has violated or continues to violate the ordinance, wastewater discharge permits or orders issued hereunder, or any other pretreatment standards or requirements, he

may issue to the user responsible for the discharge directing that the user come into compliance within 30 days. If the user does not come into compliance within 30 days, sewer service shall be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. A compliance order may not extend the deadline for compliance established for a Federal pretreatment standard or requirement, nor does a compliance order release the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a prerequisite to taking any other action against the user.

C. CDO - Cease and Desist Order

When the Superintendent finds that a user is violating the sewer service ordinance, the user's wastewater permit, or any order issued, or any pretreatment standard or requirement, or that the user's past violations are likely to recur, the Superintendent may issue an order to the user directing it to cease and desist all such violations and directing the user to:

1. Immediately comply with all requirements.
2. Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease and desist order shall not be a prerequisite to taking any other actions against the user.

D. CS - Compliance Schedule

A compliance schedule is a list of tasks or actions to be taken by the user within a specified time frame to achieve compliance. A compliance schedule may be a condition in a permit, or enforcement response order. An example would be, that as part of a consent order a compliance schedule would be established providing for the installation of a pretreatment device [such as a tank to remove fats, oil, grease, and suspended solids] within a specified time period, followed by a time period (such as 30 days after installation) to achieve compliance with permit and ordinance limits.

E. LIT - Litigation

Litigation is utilized to define several courses of action, all would involve the court system and follow procedures for due process. Judicial enforcement remedies include injunctive relief, civil penalties, and criminal prosecution.

Whenever a user has violated provisions of the sewer service ordinance, wastewater discharge permits, or enforcement orders, the Superintendent may petition the appropriate court through the City Attorney for a temporary or permanent injunction, and/or institute civil or criminal proceedings against the user.

F. NOV - Notice of Violation

A notice of violation is a formal letter from the Superintendent to an IU (issued within 30 days of identifying a violation) detailing the violation and **informing** the user to investigate the violations followed by a report to the Superintendent showing the cause and corrective action taken. This status report must be sent to the Superintendent within 15 days of notice. No response will be cause for further enforcement action.

G. SCH - Show Cause Hearing

The Superintendent may order any user to appear before the Superintendent and show cause why a proposed enforcement action should not be taken. Notice shall be served and user specifying the time and place for the meeting, the proposed enforcement action, the reasons for the action and a request that the user show cause why this proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least 15 days prior to the hearing. **Whether or not the user as ordered**, immediate enforcement action may be pursued following the hearing date.

H. SNC - Significant Non Compliance

Definition as in Section E, Violation/Noncompliance.

I. TRC - Technical Review Criteria

Technical Review Criteria and chronic violations defined in Section E, Violation/Noncompliance.

J. VTN - Verbal Telephone Notice

Telephone contact of IU by Superintendent to notify user of a violation. May be used for minor, infrequent or isolated violations. May also be used in conjunction with other types of enforcement response.

K. Isolated

Isolated shall mean a single instance in a 12 month period.

L. Infrequent

Infrequent shall mean three or less instances in a 12 month period.

M. Minor Non Compliance

Minor Non Compliance shall mean isolated or infrequent instances of noncompliance or harmless noncompliance within Technical Review Criteria.

N. Major Non Compliance

Major Non Compliance shall mean frequent minor violations, or a single violation that is less than significant noncompliance.

O. Service Suspensions

The Superintendent may immediately suspend a user's discharge (after informal notice to the user) whenever such a suspension is necessary to stop an actual or threatened discharge which reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons. The Superintendent may also suspend a user's discharge (after notice and opportunity to respond) that threatens to interfere with POTW operation, or which presents or may present an endangerment to the environment.

8.1 TYPES OF ENFORCEMENT

There are various types or levels of enforcement the City may serve upon User, under the power of the Cadillac Sewer Service Ordinance. These types of enforcement are as follows:

1. Inspection, Surveillance, Monitoring

The WWTP Superintendent and other authorized representatives of the City are authorized to carry out all inspection, surveillance, sampling, and monitoring activities and procedures necessary to determine compliance or noncompliance with applicable pretreatment standards and requirements with the Sewer Service Ordinance and with other applicable laws and regulations. This Authority includes the authority:

- a. To require any User to submit one or more representative samples of the wastewater discharged or which the User proposes to discharge to the POTW.
- b. To enter into any premises of any Industrial User in which a discharge source or treatment system is located or in which records required to be kept are maintained for inspection, observing, measuring, sampling, and testing the wastewater discharge, removing samples of wastewater for analysis, and making copies of applicable records.
- c. To randomly sample and analyze the effluent from Industrial Users and conduct surveillance activities to identify occasional and continuing noncompliance with applicable standards and requirements.

2. Notice of Violation

Any person found to be violating a provision of the Cadillac Sewer Service Ordinance may be served with written notice stating the nature of the violation and providing a reasonable time limit

for the satisfactory correction of the violation. The person shall, within the period of time stated, permanently cease all violations. The notice of violation shall be served by personal delivery or certified mail. A Notice of Violation form is included in Appendix CC and DD.

3. Civil Administrative Fines

- a. If Superintendent determines that any person has violated, or is violating, any provision of the Sewer Service/Industrial Monitoring and Pretreatment Ordinance, or any permit, order, decision, or determination promulgated, issued, or made under the Sewer Service Ordinance, the Superintendent may assess a **Civil Administrative Fine** in an amount not **to exceed \$500 per violation**. Each day on which a violation occurs or continues is a separate and distinct violation. The fine may be assessed in addition to any other charge, fee, surcharge, penalty, or fine authorized or levied. Fines assessed by Superintendent shall be subject to the prior approval of the Director of Utilities.
- b. If a fine is assessed, Superintendent shall send a written notice of assessment to Violator.
- c. In determining the amount of a fine, Superintendent shall consider the type, nature, severity, frequency, duration, preventability, potential and actual effect, and economic benefit to Violator (such as delayed or avoided costs or competitive advantage) of a violation, and Violator's recalcitrance or efforts to comply. Violator shall bear the burden of demonstrating the presence and degree of any mitigating factors to be considered by the Superintendent in determining the amount of a fine. However, mitigating factors shall not be considered unless the Superintendent determines that Violator has made all good faith efforts to correct and terminate all violations. The fact that a fine may cause severe financial damage or put Violator out of business shall not be determinative of the amount of a fine.

4. Order of Enforcement

Superintendent may issue an Order to any User as determined by the Superintendent to be appropriate under the circumstances. All Orders issued by the Superintendent, and all modifications, amendment, suspensions, or revocations of Orders by the Superintendent, shall be subject to the prior approval of the Director of Utilities.

- a. Service. Orders to Immediately Cease and Desist Discharge, or other emergency Orders where delay might endanger human health, the environment, or the POTW may be oral and may be served by telephone (to be followed within five days by written confirmation of the Order by the Superintendent).
 - i. Order to Cease and Desist Discharge. The Superintendent may issue an Order to Cease and Desist from discharging any wastewater, incompatible pollutant, or discharge not in compliance with the Sewer Service Ordinance. The Order shall have immediate effect if the actual or threatened discharge of pollutants to the system presents, or may present, imminent or substantial endangerment to the health or welfare of persons, to the environment, or causes, or may cause, interference or pass through. The Superintendent shall implement whatever action is necessary to halt the illegal discharge.
 - ii. Order to Terminate Sewer Services. The Superintendent may issue an Order to Terminate the Sewer Services of a User, including physical blockage of the User's sewer connection, for reasons including, without limitation, the following:
 1. A discharge which violates any general or specific discharge prohibition, including any pretreatment standard or requirement, and which reasonably appears to present an imminent endangerment to human health, the environment, or the POTW.

2. Failure of a User to notify the POTW of any discharge as described above, of which the User was aware or reasonably should have been aware.
 3. Failure of User to sample, monitor, pretreat, or report, or failure to install monitoring or pretreatment facilities, as required by an Order of the Superintendent.
 4. A knowing, willful violation of any term, condition, or requirement of an Order or Wastewater Discharge Permit
 5. A negligent violation of any major term, condition, or requirement of an Order or Wastewater Discharge Permit
- iii. Order to Cease Discharge Within a Time Certain. The Superintendent may issue an Order to Show Cause why an Order to Cease and Desist by a certain time and date should not be issued. The proposed time for remedial action shall be specified in the Order to Show Cause. The Order may also contain conditions as determined appropriate by the Superintendent. In addition to other circumstances as determined appropriate by the Superintendent, the failure to pay applicable permit fees or to comply with any term of a Wastewater Discharge Permit constitutes sufficient cause to issue an Order.
 - iv. Order to Effect Pretreatment. The Superintendent may issue an Order to Show Cause why User should not be required to pretreat its discharge in accordance with the Sewer Service Ordinance. Any User subject to an Order to pretreat shall prepare a plan to pretreat its discharge so that the discharge complies with the requirements of the Order and the Sewer Service Ordinance.
 - v. Order to Perform Affirmative Action. The Superintendent may issue an Order requiring a User to perform any action requiring User to submit samples; to install sampling, metering, and monitoring equipment; to submit reports; to permit access for inspection, sampling, testing, monitoring, and investigations; to reduce or eliminate a discharge or pollutants in a discharge; or to pay permit fees or other applicable charges.
 - vi. Order to Show Cause. The Superintendent may issue an Order requiring User to appear and explain any noncompliance with requirements, issued, and to show cause why more severe enforcement actions against the User should not go forward. A Show Cause hearing shall be held within ten days after the Order to Show Cause was issued.
5. Reimbursement to City

Any User who violates the provisions of the Sewer Service Ordinance shall be liable to and reimburse the City for any expense, loss, or damage caused by the violation. The User is subject to payment of a penalty charge to the City for all fines and/or penalties incurred by the City as a result of the User's violation.

8.2 SEWER USE ENFORCEMENT RESPONSE GUIDE

The City's Enforcement Response Plan is provided in Appendix D, with details regarding specific activities contained in the "Response Guide Table." Various forms included in the response are also included.

The Response Guide Table serves two purposes for the City's IPP. First, it identifies the anticipated violations and establishes the appropriate actions based on nature of the violation and other relevant factors. Second, it promotes the consistent and timely use of enforcement remedies which, in addition to eliminating uncertainty concerning enforcement, lessens the likelihood of a successful challenge based on charges of "selective enforcement" or harassment.

8.3 EFFECTIVENESS REASSESSMENT

The WWTP Superintendent is responsible to periodically reevaluate the effectiveness of these enforcement response procedures relative to accomplishing existing and/or new pretreatment program goals. This review will be conducted based on the following objectives:

- Ensure violators' return to compliance as soon as possible.
- Penalize noncompliant users for pretreatment violations.
- Deter future noncompliance.
- Recover any additional expenses attributable to the noncompliance.

8.4 PUBLIC PARTICIPATION

Records are maintained of all industrial dischargers who have experienced significant violation(s) of the applicable pretreatment standards or requirements. The City currently defines significant violation as one which qualifies as "significant noncompliance" based on the Michigan Part 23 Pretreatment Rules; results in failure to meet, within 90 days of schedule date, a compliance schedule, milestone or enforcement order; results in failure to provide, within 30 days after due date, required reports; results in failure to accurately report noncompliance; or those which the City deems as grievous of terms and conditions of the ordinance or applicable permit(s).

All categorical industries that were significant violators over the past 12 months, along with a description of the particular violation, are annually published in the City's newspaper.

9.0 EVALUATION OF PROPOSED DISCHARGES

The Superintendent will evaluate all proposed new discharges or modifications to existing discharges with respect to the general and specific prohibitions in the Sewer Ordinance and the available capacity of the WWTP.

In general, this evaluation should follow the following steps:

- IPP staff should review background information on the user. At a minimum, this will consist of a review of the user's Nondomestic User Survey Form and Wastewater Discharge Permit Application (Appendix M, I). Submission of additional information and inspections may be required if the IPP staff deems them necessary.
- The toxic pollutants which may be present in the waste stream should be identified and sampling and analysis conducted to determine the concentrations of these pollutants. As a minimum, analyses for all pollutants subject to **Ordinance local** should be conducted. For poorly characterized waste streams, a complete priority pollutant scan should be conducted.
- The total industrial flow including the proposed discharge should be compared to the industrial flow used in the local limits evaluation. If the proposed discharge would result in the exceedance of the industrial flow used in the limits evaluation, then it may be necessary to revise the local limits to account for the increase in flow.
- The toxic pollutant concentrations should be compared to the lower of the Ordinance local limits and any applicable categorical discharge limits, or other guidelines designed to protect wastewater treatment plant operations (these guidelines should be based on a technical evaluation of the potential of the pollutant to cause pass-through or interference at the WWTP).
- The total flow and compatible pollutant loadings on the WWTP including the proposed discharge should be compared to the WWTP's approved basis of design.

The Superintendent may approve, deny, or condition the discharge. All permits will include the following conditions:

- A statement of permit duration, which shall not exceed five years.
- A statement of nontransferability without prior notification of the proposed transfer to the City and provision of a copy of the permit to the new owner or operator.
- Effluent limits based on applicable general pretreatment standards, categorical pretreatment standards, local limits, and State and local law.
- Self-monitoring, sampling, reporting, notification, and recordkeeping requirements, including identification of the pollutants to be monitored, sampling location, sampling frequency, and sample type, based on the applicable general pretreatment standards, categorical pretreatment standards, local limits, and State and local law.
- A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements and any applicable compliance schedule. The schedule may not extend the compliance date beyond applicable Federal deadlines.

10.0 PRETREATMENT PROGRAM ANNUAL REPORT

The National Pretreatment Standards and Requirements state in 40 CFR Section 403.12(i) that POTWs with approved Pretreatment Programs must complete and submit a yearly report on their pretreatment program activities.

The Michigan Department of Environment, Great Lakes and Energy (EGLE) requires the use of a standard report. This form has recently been integrated into the EGLE MiWaters electronic reporting system, available at <https://miwaters.egle.state.mi.us/miwaters/#/login>. Check the EGLE IPP webpage for any updates.

EGLE indicates that the form will be used in conjunction with EGLE Pretreatment Compliance Inspections (PCI's) and Audit to evaluate the effectiveness of the City's Pretreatment Program.

The Annual Report is prepared and submitted by the WWTP Superintendent through the MiWaters system. The report summarizes the results of inspections performed throughout the year as well as the compliance status of Industrial Users. A summary of violations is documented, as are the number of enforcement actions initiated and the amount of fines levied.

The Annual Report shall also include a summary of toxics monitored in the plant influent, effluent, and sludge per R 323.2310(8)(d). The annual monitoring program shall include all system-wide ordinance limits.

APPENDIX A: GENERAL PRETREATMENT REGULATIONS (40 CFR PART 403)

ELECTRONIC CODE OF FEDERAL REGULATIONS

e-CFR data is current as of January 19, 2018[Title 40](#) → [Chapter I](#) → [Subchapter N](#) → Part 403

Title 40: Protection of Environment

PART 403—GENERAL PRETREATMENT REGULATIONS FOR EXISTING AND NEW SOURCES OF POLLUTION**Contents**

[§403.1 Purpose and applicability.](#)
[§403.2 Objectives of general pretreatment regulations.](#)
[§403.3 Definitions.](#)
[§403.4 State or local law.](#)
[§403.5 National pretreatment standards: Prohibited discharges.](#)
[§403.6 National pretreatment standards: Categorical standards.](#)
[§403.7 Removal credits.](#)
[§403.8 Pretreatment Program Requirements: Development and Implementation by POTW.](#)
[§403.9 POTW pretreatment programs and/or authorization to revise pretreatment standards: Submission for approval.](#)
[§403.10 Development and submission of NPDES State pretreatment programs.](#)
[§403.11 Approval procedures for POTW pretreatment programs and POTW granting of removal credits.](#)
[§403.12 Reporting requirements for POTW's and industrial users.](#)
[§403.13 Variances from categorical pretreatment standards for fundamentally different factors.](#)
[§403.14 Confidentiality.](#)
[§403.15 Net/Gross calculation.](#)
[§403.16 Upset provision.](#)
[§403.17 Bypass.](#)
[§403.18 Modification of POTW pretreatment programs.](#)
[§403.19 Provisions of specific applicability to the Owatonna Waste Water Treatment Facility.](#)
[§403.20 Pretreatment Program Reinvention Pilot Projects Under Project XL.](#)
[Appendixes A-C to Part 403 \[Reserved\]](#)
[Appendix D to Part 403—Selected Industrial Subcategories Considered Dilute for Purposes of the Combined Wastestream Formula](#)
[Appendix E to Part 403—Sampling Procedures](#)
[Appendix F to Part 403 \[Reserved\]](#)
[Appendix G to Part 403—Pollutants Eligible for a Removal Credit](#)

AUTHORITY: 33 U.S.C. 1251 *et seq.*

SOURCE: 46 FR 9439, Jan. 28, 1981, unless otherwise noted.

[↑ Back to Top](#)**§403.1 Purpose and applicability.**

(a) This part implements sections 204(b)(1)(C), 208(b)(2) (C)(iii), 301(b)(1)(A)(ii), 301(b)(2) (A)(ii), 301(h)(5) and 301(i)(2), 304 (e) and (g), 307, 308, 309, 402(b), 405, and 501(a) of the Federal Water Pollution Control Act as amended by the Clean Water Act of 1977 (Pub. L. 95-217) or “The Act”. It establishes responsibilities of Federal, State, and local government, industry and the public to implement National Pretreatment Standards to control pollutants which pass through or interfere with treatment processes in Publicly Owned Treatment Works (POTWs) or which may contaminate sewage sludge.

(b) This regulation applies:

(1) To pollutants from non-domestic sources covered by Pretreatment Standards which are indirectly discharged into or transported by truck or rail or otherwise introduced into POTWs as defined below in §403.3;

(2) To POTWs which receive wastewater from sources subject to National Pretreatment Standards;

(3) To States which have or are applying for National Pollutant Discharge Elimination System (NPDES) programs approved in accordance with section 402 of the Act; and

(4) To any new or existing source subject to Pretreatment Standards. National Pretreatment Standards do not apply to sources which Discharge to a sewer which is not connected to a POTW Treatment Plant.

[46 FR 9439, Jan. 28, 1981, as amended at 48 FR 2776, Jan. 21, 1983; 60 FR 33932, June 29, 1995]

[↑ Back to Top](#)

§403.2 Objectives of general pretreatment regulations.

By establishing the responsibilities of government and industry to implement National Pretreatment Standards this regulation fulfills three objectives:

- (a) To prevent the introduction of pollutants into POTWs which will interfere with the operation of a POTW, including interference with its use or disposal of municipal sludge;
- (b) To prevent the introduction of pollutants into POTWs which will pass through the treatment works or otherwise be incompatible with such works; and
- (c) To improve opportunities to recycle and reclaim municipal and industrial wastewaters and sludges.

[↑ Back to Top](#)

§403.3 Definitions.

For the purposes of this part:

(a) Except as discussed below, the general definitions, abbreviations, and methods of analysis set forth in 40 CFR part 401 shall apply to this regulation.

(b) The term *Act* means Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. 1251, *et seq.*

(c) The term *Approval Authority* means the Director in an NPDES State with an approved State pretreatment program and the appropriate Regional Administrator in a non-NPDES State or NPDES State without an approved State pretreatment program.

(d) The term *Approved POTW Pretreatment Program or Program* or *POTW Pretreatment Program* means a program administered by a POTW that meets the criteria established in this regulation (§§403.8 and 403.9) and which has been approved by a Regional Administrator or State Director in accordance with §403.11 of this regulation.

(e) The term *Best Management Practices* or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in §403.5(a)(1) and (b). BMPs also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

(f) The term *Control Authority* refers to:

(1) The POTW if the POTW's Pretreatment Program Submission has been approved in accordance with the requirements of §403.11; or

(2) The Approval Authority if the Submission has not been approved.

(g) The term *Director* means the chief administrative officer of a State or Interstate water pollution control agency with an NPDES permit program approved pursuant to section 402(b) of the Act and an approved State pretreatment program.

(h) The term *Water Management Division Director* means one of the Directors of the Water Management Divisions within the Regional offices of the Environmental Protection Agency or this person's delegated representative.

(i) The term *Indirect Discharge* or *Discharge* means the introduction of pollutants into a POTW from any non-domestic source regulated under section 307(b), (c) or (d) of the Act.

(j) The term *Industrial User* or *User* means a source of Indirect Discharge.

(k) The term *Interference* means a Discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

(1) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; and

(2) Therefore is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent State or local regulations): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including State regulations contained in any State sludge management plan prepared pursuant to subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine Protection, Research and Sanctuaries Act.

(l) The term *National Pretreatment Standard*, *Pretreatment Standard*, or *Standard* means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with section 307 (b) and (c) of the Act, which applies to Industrial Users. This term includes prohibitive discharge limits established pursuant to §403.5.

(m)(1) The term *New Source* means any building, structure, facility or installation from which there is or may be a Discharge of pollutants, the construction of which commenced after the publication of proposed Pretreatment Standards under section 307(c) of the Act which will be applicable to such source if such Standards are thereafter promulgated in accordance with that section, *provided that*:

(i) The building, structure, facility or installation is constructed at a site at which no other source is located; or

(ii) The building, structure, facility or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(iii) The production or wastewater generating processes of the building, structure, facility or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a New Source if the construction does not create a new building, structure, facility or installation meeting the criteria of paragraphs (m)(1)(ii) or (m)(1)(iii) of this section, but otherwise alters, replaces, or adds to existing process or production equipment.

(3) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

(i) Begun, or caused to begin as part of a continuous onsite construction program:

(A) Any placement, assembly, or installation of facilities or equipment; or

(B) Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

(ii) Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

(n) The terms *NPDES Permit* or *Permit* means a permit issued to a POTW pursuant to section 402 of the Act.

(o) The term *NPDES State* means a State (as defined in 40 CFR 122.2) or Interstate water pollution control agency with an NPDES permit program approved pursuant to section 402(b) of the Act.

(p) The term *Pass Through* means a Discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation).

(q) The term *Publicly Owned Treatment Works* or *POTW* means a treatment works as defined by section 212 of the Act, which is owned by a State or municipality (as defined by section 502(4) of the Act). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes and other conveyances only if they convey wastewater to a POTW Treatment Plant. The term also means the municipality as defined in section 502(4) of the Act, which has jurisdiction over the Indirect Discharges to and the discharges from such a treatment works.

(r) The term *POTW Treatment Plant* means that portion of the POTW which is designed to provide treatment (including recycling and reclamation) of municipal sewage and industrial waste.

(s) The term *Pretreatment* means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration may be obtained by physical, chemical or biological processes, process changes or by other means, except as prohibited by §403.6(d). Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with §403.6(e).

(t) The term *Pretreatment requirements* means any substantive or procedural requirement related to Pretreatment, other than a National Pretreatment Standard, imposed on an Industrial User.

(u) The term *Regional Administrator* means the appropriate EPA Regional Administrator.

(v) *Significant Industrial User*. (1) Except as provided in paragraphs (v)(2) and (v)(3) of this section, the term Significant Industrial User means:

(i) All Industrial Users subject to Categorical Pretreatment Standards under 40 CFR 403.6 and 40 CFR chapter I, subchapter N; and

(ii) Any other Industrial User that: discharges an average of 25,000 gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); contributes a process wastestream which makes up 5 percent or more of the average dry weather hydraulic or organic capacity of the POTW Treatment plant; or is designated as such by the Control Authority on the basis that the Industrial User has a reasonable potential for adversely affecting the POTW's operation or for violating any Pretreatment Standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

(2) The Control Authority may determine that an Industrial User subject to categorical Pretreatment Standards under §403.6 and 40 CFR chapter I, subchapter N is a Non-Significant Categorical Industrial User rather than a Significant Industrial User on a finding that the Industrial User never discharges more than 100 gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the Pretreatment Standard) and the following conditions are met:

(i) The Industrial User, prior to the Control Authority's finding, has consistently complied with all applicable categorical Pretreatment Standards and Requirements;

(ii) The Industrial User annually submits the certification statement required in §403.12(q) together with any additional information necessary to support the certification statement; and

(iii) The Industrial User never discharges any untreated concentrated wastewater.

(3) Upon a finding that an Industrial User meeting the criteria in paragraph (v)(1)(ii) of this section has no reasonable potential for adversely affecting the POTW's operation or for violating any Pretreatment Standards or requirement, the Control Authority may at any time, on its own initiative or in response to a petition received from an Industrial User or POTW, and in accordance with 40 CFR 403.8(f)(6), determine that such Industrial User is not a Significant Industrial User.

(w) The term *Submission* means:

(1) A request by a POTW for approval of a Pretreatment Program to the EPA or a Director;

(2) A request by a POTW to the EPA or a Director for authority to revise the discharge limits in categorical Pretreatment Standards to reflect POTW pollutant removals; or

(3) A request to the EPA by an NPDES State for approval of its State pretreatment program.

[46 FR 9439, Jan. 28, 1981, as amended at 49 FR 5132, Feb. 10, 1984; 49 FR 28059, July 10, 1984; 51 FR 20430, June 4, 1986; 51 FR 23760, July 1, 1986; 52 FR 1600, Jan. 14, 1987; 53 FR 40610, Oct. 17, 1988; 55 FR 30129, July 24, 1990; 70 FR 60191, Oct. 14, 2005]

[↑ Back to Top](#)

§403.4 State or local law.

Nothing in this regulation is intended to affect any Pretreatment Requirements, including any standards or prohibitions, established by State or local law as long as the State or local requirements are not less stringent than any set forth in National Pretreatment Standards, or any other requirements or prohibitions established under the Act or this regulation. States with an

NPDES permit program approved in accordance with section 402 (b) and (c) of the Act, or States requesting NPDES programs, are responsible for developing a State pretreatment program in accordance with §403.10 of this regulation.

[Back to Top](#)

§403.5 National pretreatment standards: Prohibited discharges.

(a)(1) *General prohibitions.* A User may not introduce into a POTW any pollutant(s) which cause Pass Through or Interference. These general prohibitions and the specific prohibitions in paragraph (b) of this section apply to each User introducing pollutants into a POTW whether or not the User is subject to other National Pretreatment Standards or any national, State, or local Pretreatment Requirements.

(2) *Affirmative Defenses.* A User shall have an affirmative defense in any action brought against it alleging a violation of the general prohibitions established in paragraph (a)(1) of this section and the specific prohibitions in paragraphs (b)(3), (b)(4), (b)(5), (b)(6), and (b)(7) of this section where the User can demonstrate that:

(i) It did not know or have reason to know that its Discharge, alone or in conjunction with a discharge or discharges from other sources, would cause Pass Through or Interference; and

(ii)(A) A local limit designed to prevent Pass Through and/or Interference, as the case may be, was developed in accordance with paragraph (c) of this section for each pollutant in the User's Discharge that caused Pass Through or Interference, and the User was in compliance with each such local limit directly prior to and during the Pass Through or Interference; or

(B) If a local limit designed to prevent Pass Through and/or Interference, as the case may be, has not been developed in accordance with paragraph (c) of this section for the pollutant(s) that caused the Pass Through or Interference, the User's Discharge directly prior to and during the Pass Through or Interference did not change substantially in nature or constituents from the User's prior discharge activity when the POTW was regularly in compliance with the POTW's NPDES permit requirements and, in the case of Interference, applicable requirements for sewage sludge use or disposal.

(b) *Specific prohibitions.* In addition, the following pollutants shall not be introduced into a POTW:

(1) Pollutants which create a fire or explosion hazard in the POTW, including, but not limited to, wastestreams with a closed cup flashpoint of less than 140 degrees Fahrenheit or 60 degrees Centigrade using the test methods specified in 40 CFR 261.21;

(2) Pollutants which will cause corrosive structural damage to the POTW, but in no case Discharges with pH lower than 5.0, unless the works is specifically designed to accommodate such Discharges;

(3) Solid or viscous pollutants in amounts which will cause obstruction to the flow in the POTW resulting in Interference;

(4) Any pollutant, including oxygen demanding pollutants (BOD, etc.) released in a Discharge at a flow rate and/or pollutant concentration which will cause Interference with the POTW.

(5) Heat in amounts which will inhibit biological activity in the POTW resulting in Interference, but in no case heat in such quantities that the temperature at the POTW Treatment Plant exceeds 40 °C (104 °F) unless the Approval Authority, upon request of the POTW, approves alternate temperature limits.

(6) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through;

(7) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

(8) Any trucked or hauled pollutants, except at discharge points designated by the POTW.

(c) *When specific limits must be developed by POTW.* (1) Each POTW developing a POTW Pretreatment Program pursuant to §403.8 shall develop and enforce specific limits to implement the prohibitions listed in paragraphs (a)(1) and (b) of this section. Each POTW with an approved pretreatment program shall continue to develop these limits as necessary and effectively enforce such limits.

(2) All other POTW's shall, in cases where pollutants contributed by User(s) result in Interference or Pass-Through, and such violation is likely to recur, develop and enforce specific effluent limits for Industrial User(s), and all other users, as appropriate, which, together with appropriate changes in the POTW Treatment Plant's facilities or operation, are necessary to ensure renewed and continued compliance with the POTW's NPDES permit or sludge use or disposal practices.

(3) Specific effluent limits shall not be developed and enforced without individual notice to persons or groups who have requested such notice and an opportunity to respond.

(4) POTWs may develop Best Management Practices (BMPs) to implement paragraphs (c)(1) and (c)(2) of this section. Such BMPs shall be considered local limits and Pretreatment Standards for the purposes of this part and section 307(d) of the Act.

(d) *Local limits.* Where specific prohibitions or limits on pollutants or pollutant parameters are developed by a POTW in accordance with paragraph (c) above, such limits shall be deemed Pretreatment Standards for the purposes of section 307(d) of the Act.

(e) EPA enforcement actions under section 309(f) of the Clean Water Act.

If, within 30 days after notice of an Interference or Pass Through violation has been sent by EPA to the POTW, and to persons or groups who have requested such notice, the POTW fails to commence appropriate enforcement action to correct the violation, EPA may take appropriate enforcement action under the authority provided in section 309(f) of the Clean Water Act.

[46 FR 9439, Jan. 28, 1981, as amended at 51 FR 20430, June 4, 1986; 52 FR 1600, Jan. 14, 1987; 55 FR 30129, July 24, 1990; 60 FR 33932, June 29, 1995; 70 FR 60192, Oct. 14, 2005]

[↑ Back to Top](#)

§403.6 National pretreatment standards: Categorical standards.

National pretreatment standards specifying quantities or concentrations of pollutants or pollutant properties which may be discharged to a POTW by existing or new industrial users in specific industrial subcategories will be established as separate regulations under the appropriate subpart of 40 CFR chapter I, subchapter N. These standards, unless specifically noted otherwise, shall be in addition to all applicable pretreatment standards and requirements set forth in this part.

(a) *Category determination request*—(1) *Application deadline.* Within 60 days after the effective date of a Pretreatment Standard for a subcategory under which an Industrial User may be included, the Industrial User or POTW may request that the Water Management Division Director or Director, as appropriate, provide written certification on whether the Industrial User falls within that particular subcategory. If an existing Industrial User adds or changes a process or operation which may be included in a subcategory, the existing Industrial User must request this certification prior to commencing discharge from the added or changed processes or operation. A New Source must request this certification prior to commencing discharge. Where a request for certification is submitted by a POTW, the POTW shall notify any affected Industrial User of such submission. The Industrial User may provide written comments on the POTW submission to the Water Management Division Director or Director, as appropriate, within 30 days of notification.

(2) *Contents of application.* Each request shall contain a statement:

(i) Describing which subcategories might be applicable; and

(ii) Citing evidence and reasons why a particular subcategory is applicable and why others are not applicable. Any person signing the application statement submitted pursuant to this section shall make the following certification:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

(3) *Deficient requests.* The Water Management Division Director or Director will only act on written requests for determinations that contain all of the information required. Persons who have made incomplete submissions will be notified by the Water Management Division Director or Director that their requests are deficient and, unless the time period is extended, will be given 30 days to correct the deficiency. If the deficiency is not corrected within 30 days or within an extended period allowed by the Water Management Division Director or the Director, the request for a determination shall be denied.

(4) *Final decision.* (i) When the Water Management Division Director or Director receives a submittal he or she will, after determining that it contains all of the information required by paragraph (2) of this section, consider the submission, any additional evidence that may have been requested, and any other available information relevant to the request. The Water Management Division Director or Director will then make a written determination of the applicable subcategory and state the reasons for the determination.

(ii) Where the request is submitted to the Director, the Director shall forward the determination described in this paragraph to the Water Management Division Director who may make a final determination. The Water Management Division Director may

waive receipt of these determinations. If the Water Management Division Director does not modify the Director's decision within 60 days after receipt thereof, or if the Water Management Division Director waives receipt of the determination, the Director's decision is final.

(iii) Where the request is submitted by the Industrial User or POTW to the Water Management Division Director or where the Water Management Division Director elects to modify the Director's decision, the Water Management Division Director's decision will be final.

(iv) The Water Management Division Director or Director, as appropriate, shall send a copy of the determination to the affected Industrial User and the POTW. Where the final determination is made by the Water Management Division Director, he or she shall send a copy of the determination to the Director.

(5) *Requests for hearing and/or legal decision.* Within 30 days following the date of receipt of notice of the final determination as provided for by paragraph (a)(4)(iv) of this section, the Requester may submit a petition to reconsider or contest the decision to the Regional Administrator who shall act on such petition expeditiously and state the reasons for his or her determination in writing.

(b) *Deadline for compliance with categorical standards.* Compliance by existing sources with categorical Pretreatment Standards shall be within 3 years of the date the Standard is effective unless a shorter compliance time is specified in the appropriate subpart of 40 CFR chapter I, subchapter N. Direct dischargers with NPDES Permits modified or reissued to provide a variance pursuant to section 301(i)(2) of the Act shall be required to meet compliance dates set in any applicable categorical Pretreatment Standard. Existing sources which become Industrial Users subsequent to promulgation of an applicable categorical Pretreatment Standard shall be considered existing Industrial Users except where such sources meet the definition of a New Source as defined in §403.3(m). New Sources shall install and have in operating condition, and shall "start-up" all pollution control equipment required to meet applicable Pretreatment Standards before beginning to Discharge. Within the shortest feasible time (not to exceed 90 days), New Sources must meet all applicable Pretreatment Standards.

(c)(1) *Concentration and mass limits.* Pollutant discharge limits in categorical Pretreatment Standards will be expressed either as concentration or mass limits. Wherever possible, where concentration limits are specified in standards, equivalent mass limits will be provided so that local, State or Federal authorities responsible for enforcement may use either concentration or mass limits. Limits in categorical Pretreatment Standards shall apply to the effluent of the process regulated by the Standard, or as otherwise specified by the standard.

(2) When the limits in a categorical Pretreatment Standard are expressed only in terms of mass of pollutant per unit of production, the Control Authority may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual Industrial Users.

(3) A Control Authority calculating equivalent mass-per-day limitations under paragraph (c)(2) of this section shall calculate such limitations by multiplying the limits in the Standard by the Industrial User's average rate of production. This average rate of production shall be based not upon the designed production capacity but rather upon a reasonable measure of the Industrial User's actual long-term daily production, such as the average daily production during a representative year. For new sources, actual production shall be estimated using projected production.

(4) A Control Authority calculating equivalent concentration limitations under paragraph (c)(2) of this section shall calculate such limitations by dividing the mass limitations derived under paragraph (c)(3) of this section by the average daily flow rate of the Industrial User's regulated process wastewater. This average daily flow rate shall be based upon a reasonable measure of the Industrial User's actual long-term average flow rate, such as the average daily flow rate during the representative year.

(5) When the limits in a categorical Pretreatment Standard are expressed only in terms of pollutant concentrations, an Industrial User may request that the Control Authority convert the limits to equivalent mass limits. The determination to convert concentration limits to mass limits is within the discretion of the Control Authority. The Control Authority may establish equivalent mass limits only if the Industrial User meets all the following conditions in paragraph (c)(5)(i)(A) through (c)(5)(i)(E) of this section.

(i) To be eligible for equivalent mass limits, the Industrial User must:

(A) Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its control mechanism;

(B) Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical Pretreatment Standard, and not have used dilution as a substitute for treatment;

(C) Provide sufficient information to establish the facility's actual average daily flow rate for all wastestreams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and long-term average production rate must be representative of current operating conditions;

(D) Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the Discharge; and

(E) Have consistently complied with all applicable categorical Pretreatment Standards during the period prior to the Industrial User's request for equivalent mass limits.

(ii) An Industrial User subject to equivalent mass limits must:

(A) Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

(B) Continue to record the facility's flow rates through the use of a continuous effluent flow monitoring device;

(C) Continue to record the facility's production rates and notify the Control Authority whenever production rates are expected to vary by more than 20 percent from its baseline production rates determined in paragraph (c)(5)(i)(C) of this section. Upon notification of a revised production rate, the Control Authority must reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and

(D) Continue to employ the same or comparable water conservation methods and technologies as those implemented pursuant to paragraph (c)(5)(i)(A) of this section so long as it discharges under an equivalent mass limit.

(iii) A Control Authority which chooses to establish equivalent mass limits:

(A) Must calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process(es) of the Industrial User by the concentration-based daily maximum and monthly average Standard for the applicable categorical Pretreatment Standard and the appropriate unit conversion factor;

(B) Upon notification of a revised production rate, must reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility; and

(C) May retain the same equivalent mass limit in subsequent control mechanism terms if the Industrial User's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment pursuant to paragraph (d) of this section. The Industrial User must also be in compliance with §403.17 (regarding the prohibition of bypass).

(iv) The Control Authority may not express limits in terms of mass for pollutants such as pH, temperature, radiation, or other pollutants which cannot appropriately be expressed as mass.

(6) The Control Authority may convert the mass limits of the categorical Pretreatment Standards at 40 CFR parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual Industrial Users under the following conditions. When converting such limits to concentration limits, the Control Authority must use the concentrations listed in the applicable subparts of 40 CFR parts 414, 419, and 455 and document that dilution is not being substituted for treatment as prohibited by paragraph (d) of this section.

(7) Equivalent limitations calculated in accordance with paragraphs (c)(3), (c)(4), (c)(5) and (c)(6) of this section are deemed Pretreatment Standards for the purposes of section 307(d) of the Act and this part. The Control Authority must document how the equivalent limits were derived and make this information publicly available. Once incorporated into its control mechanism, the Industrial User must comply with the equivalent limitations in lieu of the promulgated categorical standards from which the equivalent limitations were derived.

(8) Many categorical Pretreatment Standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or 4-day average, limitations. Where such Standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

(9) Any Industrial User operating under a control mechanism incorporating equivalent mass or concentration limits calculated from a production based standard shall notify the Control Authority within two (2) business days after the User has a reasonable basis to know that the production level will significantly change within the next calendar month. Any User not notifying the Control Authority of such anticipated change will be required to meet the mass or concentration limits in its control mechanism that were based on the original estimate of the long term average production rate.

(d) *Dilution prohibited as substitute for treatment.* Except where expressly authorized to do so by an applicable Pretreatment Standard or Requirement, no Industrial User shall ever increase the use of process water, or in any other way attempt to dilute a Discharge as a partial or complete substitute for adequate treatment to achieve compliance with a Pretreatment Standard or Requirement. The Control Authority may impose mass limitations on Industrial Users which are using dilution to meet applicable Pretreatment Standards or Requirements, or in other cases where the imposition of mass limitations is appropriate.

(e) *Combined wastestream formula.* Where process effluent is mixed prior to treatment with wastewaters other than those generated by the regulated process, fixed alternative discharge limits may be derived by the Control Authority or by the Industrial User with the written concurrence of the Control Authority. These alternative limits shall be applied to the mixed effluent. When deriving alternative categorical limits, the Control Authority or Industrial User shall calculate both an alternative daily maximum value using the daily maximum value(s) specified in the appropriate categorical Pretreatment Standard(s) and an alternative consecutive sampling day average value using the monthly average value(s) specified in the appropriate categorical Pretreatment Standard(s). The Industrial User shall comply with the alternative daily maximum and monthly average limits fixed by the Control Authority until the Control Authority modifies the limits or approves an Industrial User modification request. Modification is authorized whenever there is a material or significant change in the values used in the calculation to fix alternative limits for the regulated pollutant. An Industrial User must immediately report any such material or significant change to the Control Authority. Where appropriate new alternative categorical limits shall be calculated within 30 days.

(1) *Alternative limit calculation.* For purposes of these formulas, the “average daily flow” means a reasonable measure of the average daily flow for a 30-day period. For new sources, flows shall be estimated using projected values. The alternative limit for a specified pollutant will be derived by the use of either of the following formulas:

(i) *Alternative concentration limit.*

$$C_T = \left(\frac{\sum_{i=1}^N C_i F_i}{\sum_{i=1}^N F_i} \right) \left(\frac{F_T - F_D}{F_T} \right)$$

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where

C_T = the alternative concentration limit for the combined wastestream.

C_i = the categorical Pretreatment Standard concentration limit for a pollutant in the regulated stream i .

F_i = the average daily flow (at least a 30-day average) of stream i to the extent that it is regulated for such pollutant.

F_D = the average daily flow (at least a 30-day average) from: (a) Boiler blowdown streams, non-contact cooling streams, stormwater streams, and demineralizer backwash streams; provided, however, that where such streams contain a significant amount of a pollutant, and the combination of such streams, prior to treatment, with an Industrial User's regulated process wastestream(s) will result in a substantial reduction of that pollutant, the Control Authority, upon application of the Industrial User, may exercise its discretion to determine whether such stream(s) should be classified as diluted or unregulated. In its application to the Control Authority, the Industrial User must provide engineering, production, sampling and analysis and such other information so that the Control Authority can make its determination; or (b) sanitary wastestreams where such streams are not regulated by a Categorical Pretreatment Standard; or (c) from any process wastestreams which were or could have been entirely exempted from categorical Pretreatment Standards pursuant to paragraph 8 of the *NRDC v. Costle* Consent Decree (12 ERC 1833) for one or more of the following reasons (see appendix D of this part):

(1) The pollutants of concern are not detectable in the effluent from the Industrial User (paragraph (8)(a)(iii));

(2) The pollutants of concern are present only in trace amounts and are neither causing nor likely to cause toxic effects (paragraph (8)(a)(iii));

(3) The pollutants of concern are present in amounts too small to be effectively reduced by technologies known to the Administrator (paragraph (8)(a)(iii)); or

(4) The wastestream contains only pollutants which are compatible with the POTW (paragraph (8)(b)(i)).

F_T = The average daily flow (at least a 30-day average) through the combined treatment facility (includes F_i , F_D and unregulated streams).

N = The total number of regulated streams.

(ii) *Alternative mass limit.*

$$M_T = \left(\sum_{i=1}^N M_i \right) \left(\frac{F_T - F_D}{\sum_{i=1}^N F_i} \right)$$

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where

M_T = the alternative mass limit for a pollutant in the combined wastestream.

M_i = the categorical Pretreatment Standard mass limit for a pollutant in the regulated stream i (the categorical pretreatment mass limit multiplied by the appropriate measure of production).

F_i = the average flow (at least a 30-day average) of stream i to the extent that it is regulated for such pollutant.

F_D = the average daily flow (at least a 30-day average) from: (a) Boiler blowdown streams, non-contact cooling streams, stormwater streams, and demineralizer backwash streams; provided, however, that where such streams contain a significant amount of a pollutant, and the combination of such streams, prior to treatment, with an Industrial User's regulated process wastestream(s) will result in a substantial reduction of that pollutant, the Control Authority, upon application of the Industrial User, may exercise its discretion to determine whether such stream(s) should be classified as diluted or unregulated. In its application to the Control Authority, the Industrial User must provide engineering, production, sampling and analysis and such other information so that the Control Authority can make its determination; or (b) sanitary wastestreams where such streams are not regulated by a categorical Pretreatment Standard; or (c) from any process wastestreams which were or could have been entirely exempted from categorical Pretreatment Standards pursuant to paragraph 8 of the *NRDC v. Costle* Consent Decree (12 ERC 1833) for one or more of the following reasons (see appendix D of this part):

- (1) The pollutants of concern are not detectable in the effluent from the Industrial User (paragraph (8)(a)(iii));
- (2) The pollutants of concern are present only in trace amounts and are neither causing nor likely to cause toxic effects (paragraph (8)(a)(iii));
- (3) The pollutants of concern are present in amounts too small to be effectively reduced by technologies known to the Administrator (paragraph (8)(a)(iii)); or
- (4) The wastestream contains only pollutants which are compatible with the POTW (paragraph (8)(b)(i)).

F_T = The average flow (at least a 30-day average) through the combined treatment facility (includes F_i , F_D and unregulated streams).

N = The total number of regulated streams.

(2) *Alternate limits below detection limit.* An alternative pretreatment limit may not be used if the alternative limit is below the analytical detection limit for any of the regulated pollutants.

(3) *Self-monitoring.* Self-monitoring required to insure compliance with the alternative categorical limit shall be conducted in accordance with the requirements of §403.12(g).

(4) *Choice of monitoring location.* Where a treated regulated process wastestream is combined prior to treatment with wastewaters other than those generated by the regulated process, the Industrial User may monitor either the segregated process wastestream or the combined wastestream for the purpose of determining compliance with applicable Pretreatment Standards. If the Industrial User chooses to monitor the segregated process wastestream, it shall apply the applicable categorical Pretreatment Standard. If the User chooses to monitor the combined wastestream, it shall apply an alternative discharge limit calculated using the combined wastestream formula as provided in this section. The Industrial User may change monitoring points only after receiving approval from the Control Authority. The Control Authority shall ensure that any change in an Industrial User's monitoring point(s) will not allow the User to substitute dilution for adequate treatment to achieve compliance with applicable Standards.

[46 FR 9439, Jan. 28, 1981, as amended at 49 FR 21037, May 17, 1984; 49 FR 31224, Aug. 3, 1984; 51 FR 20430, June 4, 1986; 51 FR 23760, July 1, 1986; 53 FR 40610, Oct. 17, 1988; 55 FR 30129, July 24, 1990; 58 FR 18017, Apr. 7, 1993; 70 FR 60192, Oct. 14, 2005]

[↑ Back to Top](#)

§403.7 Removal credits.

(a) *Introduction*—(1) *Definitions.* For the purpose of this section:

(i) *Removal* means a reduction in the amount of a pollutant in the POTW's effluent or alteration of the nature of a pollutant during treatment at the POTW. The reduction or alteration can be obtained by physical, chemical or biological means and may

be the result of specifically designed POTW capabilities or may be incidental to the operation of the treatment system. Removal as used in this subpart shall not mean dilution of a pollutant in the POTW.

(ii) *Sludge requirements* shall mean the following statutory provisions and regulations or permits issued thereunder (or more stringent State or local regulations): Section 405 of the Clean Water Act; the Solid Waste Disposal Act (SWDA) (including title II more commonly referred to as the Resource Conservation Recovery Act (RCRA) and State regulations contained in any State sludge management plan prepared pursuant to subtitle D of SWDA); the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research and Sanctuaries Act.

(2) *General.* Any POTW receiving wastes from an Industrial User to which a categorical Pretreatment Standard(s) applies may, at its discretion and subject to the conditions of this section, grant removal credits to reflect removal by the POTW of pollutants specified in the categorical Pretreatment Standard(s). The POTW may grant a removal credit equal to or, at its discretion, less than its consistent removal rate. Upon being granted a removal credit, each affected Industrial User shall calculate its revised discharge limits in accordance with paragraph (a)(4) of this section. Removal credits may only be given for indicator or surrogate pollutants regulated in a categorical Pretreatment Standard if the categorical Pretreatment Standard so specifies.

(3) *Conditions for authorization to give removal credits.* A POTW is authorized to give removal credits only if the following conditions are met:

(i) *Application.* The POTW applies for, and receives, authorization from the Approval Authority to give a removal credit in accordance with the requirements and procedures specified in paragraph (e) of this section.

(ii) *Consistent removal determination.* The POTW demonstrates and continues to achieve consistent removal of the pollutant in accordance with paragraph (b) of this section.

(iii) *POTW local pretreatment program.* The POTW has an approved pretreatment program in accordance with and to the extent required by part 403; provided, however, a POTW which does not have an approved pretreatment program may, pending approval of such a program, conditionally give credits as provided in paragraph (d) of this section.

(iv) *Sludge requirements.* The granting of removal credits will not cause the POTW to violate the local, State and Federal Sludge Requirements which apply to the sludge management method chosen by the POTW. Alternatively, the POTW can demonstrate to the Approval Authority that even though it is not presently in compliance with applicable Sludge Requirements, it will be in compliance when the Industrial User(s) to whom the removal credit would apply is required to meet its categorical Pretreatment Standard(s) as modified by the removal credit. If granting removal credits forces a POTW to incur greater sludge management costs than would be incurred in the absence of granting removal credits, the additional sludge management costs will not be eligible for EPA grant assistance. Removal credits may be made available for the following pollutants.

(A) For any pollutant listed in appendix G section I of this part for the use or disposal practice employed by the POTW, when the requirements in 40 CFR part 503 for that practice are met.

(B) For any pollutant listed in appendix G section II of this part for the use or disposal practice employed by the POTW when the concentration for a pollutant listed in appendix G section II of this part in the sewage sludge that is used or disposed does not exceed the concentration for the pollutant in appendix G section II of this part.

(C) For any pollutant in sewage sludge when the POTW disposes all of its sewage sludge in a municipal solid waste landfill unit that meets the criteria in 40 CFR part 258.

(v) *NPDES permit limitations.* The granting of removal credits will not cause a violation of the POTW's permit limitations or conditions. Alternatively, the POTW can demonstrate to the Approval Authority that even though it is not presently in compliance with applicable limitations and conditions in its NPDES permit, it will be in compliance when the Industrial User(s) to whom the removal credit would apply is required to meet its categorical Pretreatment Standard(s), as modified by the removal credit provision.

(4) *Calculation of revised discharge limits.* Revised discharge limits for a specific pollutant shall be derived by use of the following formula:

$$y = \frac{x}{1 - r}$$

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where:

x = pollutant discharge limit specified in the applicable categorical Pretreatment Standard

r = removal credit for that pollutant as established under paragraph (b) of this section (percentage removal expressed as a proportion, *i.e.*, a number between 0 and 1)

y = revised discharge limit for the specified pollutant (expressed in same units as x)

(b) Establishment of removal credits; demonstration of Consistent Removal—(1) Definition of Consistent Removal.

“Consistent Removal” shall mean the average of the lowest 50 percent of the removal measured according to paragraph (b)(2) of this section. All sample data obtained for the measured pollutant during the time period prescribed in paragraph (b)(2) of this section must be reported and used in computing Consistent Removal. If a substance is measurable in the influent but not in the effluent, the effluent level may be assumed to be the limit of measurement, and those data may be used by the POTW at its discretion and subject to approval by the Approval Authority. If the substance is not measurable in the influent, the data may not be used. Where the number of samples with concentrations equal to or above the limit of measurement is between 8 and 12, the average of the lowest 6 removals shall be used. If there are less than 8 samples with concentrations equal to or above the limit of measurement, the Approval Authority may approve alternate means for demonstrating Consistent Removal. The term “measurement” refers to the ability of the analytical method or protocol to quantify as well as identify the presence of the substance in question.

(2) Consistent Removal data. Influent and effluent operational data demonstrating Consistent Removal or other information, as provided for in paragraph (b)(1) of this section, which demonstrates Consistent Removal of the pollutants for which discharge limit revisions are proposed. This data shall meet the following requirements:

(i) Representative data; seasonal. The data shall be representative of yearly and seasonal conditions to which the POTW is subjected for each pollutant for which a discharge limit revision is proposed.

(ii) Representative data; quality and quantity. The data shall be representative of the quality and quantity of normal effluent and influent flow if such data can be obtained. If such data are unobtainable, alternate data or information may be presented for approval to demonstrate Consistent Removal as provided for in paragraph (b)(1) of this section.

(iii) Sampling procedures: Composite. (A) The influent and effluent operational data shall be obtained through 24-hour flow-proportional composite samples. Sampling may be done manually or automatically, and discretely or continuously. For discrete sampling, at least 12 aliquots shall be composited. Discrete sampling may be flow-proportioned either by varying the time interval between each aliquot or the volume of each aliquot. All composites must be flow-proportional to each stream flow at time of collection of influent aliquot or to the total influent flow since the previous influent aliquot. Volatile pollutant aliquots must be combined in the laboratory immediately before analysis.

(B)(1) Twelve samples shall be taken at approximately equal intervals throughout one full year. Sampling must be evenly distributed over the days of the week so as to include no-workdays as well as workdays. If the Approval Authority determines that this schedule will not be most representative of the actual operation of the POTW Treatment Plant, an alternative sampling schedule will be approved.

(2) In addition, upon the Approval Authority's concurrence, a POTW may utilize an historical data base amassed prior to the effective date of this section provide that such data otherwise meet the requirements of this paragraph. In order for the historical data base to be approved it must present a statistically valid description of daily, weekly and seasonal sewage treatment plant loadings and performance for at least one year.

(C) Effluent sample collection need not be delayed to compensate for hydraulic detention unless the POTW elects to include detention time compensation or unless the Approval Authority requires detention time compensation. The Approval Authority may require that each effluent sample be taken approximately one detention time later than the corresponding influent sample when failure to do so would result in an unrepresentative portrayal of actual POTW operation. The detention period is to be based on a 24-hour average daily flow value. The average daily flow used will be based upon the average of the daily flows during the same month of the previous year.

(iv) Sampling procedures: Grab. Where composite sampling is not an appropriate sampling technique, a grab sample(s) shall be taken to obtain influent and effluent operational data. Collection of influent grab samples should precede collection of effluent samples by approximately one detention period. The detention period is to be based on a 24-hour average daily flow value. The average daily flow used will be based upon the average of the daily flows during the same month of the previous year. Grab samples will be required, for example, where the parameters being evaluated are those, such as cyanide and phenol, which may not be held for any extended period because of biological, chemical or physical interactions which take place after sample collection and affect the results. A grab sample is an individual sample collected over a period of time not exceeding 15 minutes.

(v) Analytical methods. The sampling referred to in paragraphs (b)(2) (i) through (iv) of this section and an analysis of these samples shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and amendments thereto. Where 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the Administrator determines that the part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and

analysis shall be performed using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the POTW or other parties, approved by the Administrator.

(vi) *Calculation of removal.* All data acquired under the provisions of this section must be submitted to the Approval Authority. Removal for a specific pollutant shall be determined either, for each sample, by measuring the difference between the concentrations of the pollutant in the influent and effluent of the POTW and expressing the difference as a percent of the influent concentration, or, where such data cannot be obtained, Removal may be demonstrated using other data or procedures subject to concurrence by the Approval Authority as provided for in paragraph (b)(1) of this section.

(c) *Provisional credits.* For pollutants which are not being discharged currently (i.e., new or modified facilities, or production changes) the POTW may apply for authorization to give removal credits prior to the initial discharge of the pollutant. Consistent removal shall be based provisionally on data from treatability studies or demonstrated removal at other treatment facilities where the quality and quantity of influent are similar. Within 18 months after the commencement of discharge of pollutants in question, consistent removal must be demonstrated pursuant to the requirements of paragraph (b) of this section. If, within 18 months after the commencement of the discharge of the pollutant in question, the POTW cannot demonstrate consistent removal pursuant to the requirements of paragraph (b) of this section, the authority to grant provisional removal credits shall be terminated by the Approval Authority and all Industrial Users to whom the revised discharge limits had been applied shall achieve compliance with the applicable categorical Pretreatment Standard(s) within a reasonable time, not to exceed the period of time prescribed in the applicable categorical Pretreatment Standard(s), as may be specified by the Approval Authority.

(d) *Exception to POTW Pretreatment Program Requirement.* A POTW required to develop a local pretreatment program by §403.8 may conditionally give removal credits pending approval of such a program in accordance with the following terms and conditions:

(1) All Industrial Users who are currently subject to a categorical Pretreatment Standard and who wish conditionally to receive a removal credit must submit to the POTW the information required in §403.12(b)(1) through (7) (except new or modified industrial users must only submit the information required by §403.12(b)(1) through (6)), pertaining to the categorical Pretreatment Standard as modified by the removal credit. The Industrial Users shall indicate what additional technology, if any, will be needed to comply with the categorical Pretreatment Standard(s) as modified by the removal credit;

(2) The POTW must have submitted to the Approval Authority an application for pretreatment program approval meeting the requirements of §§403.8 and 403.9 in a timely manner, not to exceed the time limitation set forth in a compliance schedule for development of a pretreatment program included in the POTW's NPDES permit, but in no case later than July 1, 1983, where no permit deadline exists;

(3) The POTW must:

(i) Compile and submit data demonstrating its consistent removal in accordance with paragraph (b) of this section;

(ii) Comply with the conditions specified in paragraph (a)(3) of this section; and

(iii) Submit a complete application for removal credit authority in accordance with paragraph (e) of this section;

(4) If a POTW receives authority to grant conditional removal credits and the Approval Authority subsequently makes a final determination, after appropriate notice, that the POTW failed to comply with the conditions in paragraphs (d)(2) and (3) of this section, the authority to grant conditional removal credits shall be terminated by the Approval Authority and all Industrial Users to whom the revised discharge limits had been applied shall achieve compliance with the applicable categorical Pretreatment Standard(s) within a reasonable time, not to exceed the period of time prescribed in the applicable categorical Pretreatment Standard(s), as may be specified by the Approval Authority.

(5) If a POTW grants conditional removal credits and the POTW or the Approval Authority subsequently makes a final determination, after appropriate notice, that the Industrial User(s) failed to comply with the conditions in paragraph (d)(1) of this section, the conditional credit shall be terminated by the POTW or the Approval Authority for the non-complying Industrial User(s) and the Industrial User(s) to whom the revised discharge limits had been applied shall achieve compliance with the applicable categorical Pretreatment Standard(s) within a reasonable time, not to exceed the period of time prescribed in the applicable categorical Pretreatment Standard(s), as may be specified by the Approval Authority. The conditional credit shall not be terminated where a violation of the provisions of this paragraph results from causes entirely outside of the control of the Industrial User(s) or the Industrial User(s) had demonstrated substantial compliance.

(6) The Approval Authority may elect not to review an application for conditional removal credit authority upon receipt of such application, in which case the conditionally revised discharge limits will remain in effect until reviewed by the Approval Authority. This review may occur at any time in accordance with the procedures of §403.11, but in no event later than the time of any pretreatment program approval or any NPDES permit reissuance thereunder.

(e) *POTW application for authorization to give removal credits and Approval Authority review*—(1) *Who must apply.* Any POTW that wants to give a removal credit must apply for authorization from the Approval Authority.

(2) *To whom application is made.* An application for authorization to give removal credits (or modify existing ones) shall be submitted by the POTW to the Approval Authority.

(3) *When to apply.* A POTW may apply for authorization to give or modify removal credits at any time.

(4) *Contents of the application.* An application for authorization to give removal credits must be supported by the following information:

(i) *List of pollutants.* A list of pollutants for which removal credits are proposed.

(ii) *Consistent Removal data.* The data required pursuant to paragraph (b) of this section.

(iii) *Calculation of revised discharge limits.* Proposed revised discharge limits for each affected subcategory of Industrial Users calculated in accordance with paragraph (a)(4) of this section.

(iv) *Local Pretreatment Program Certification.* A certification that the POTW has an approved local pretreatment program or qualifies for the exception to this requirement found at paragraph (d) of this section.

(v) *Sludge management certification.* A specific description of the POTW's current methods of using or disposing of its sludge and a certification that the granting of removal credits will not cause a violation of the sludge requirements identified in paragraph (a)(3)(iv) of this section.

(vi) *NPDES permit limit certification.* A certification that the granting of removal credits will not cause a violation of the POTW's NPDES permit limits and conditions as required in paragraph (a)(3)(v) of this section.

(5) *Approval Authority review.* The Approval Authority shall review the POTW's application for authorization to give or modify removal credits in accordance with the procedures of §403.11 and shall, in no event, have more than 180 days from public notice of an application to complete review.

(6) *EPA review of State removal credit approvals.* Where the NPDES State has an approved pretreatment program, the Regional Administrator may agree in the Memorandum of Agreement under 40 CFR 123.24(d) to waive the right to review and object to submissions for authority to grant removal credits. Such an agreement shall not restrict the Regional Administrator's right to comment upon or object to permits issued to POTW's except to the extent 40 CFR 123.24(d) allows such restriction.

(7) Nothing in these regulations precludes an Industrial User or other interested party from assisting the POTW in preparing and presenting the information necessary to apply for authorization.

(f) *Continuation and withdrawal of authorization*—(1) *Effect of authorization.* (i) Once a POTW has received authorization to grant removal credits for a particular pollutant regulated in a categorical Pretreatment Standard it may automatically extend that removal credit to the same pollutant when it is regulated in other categorical standards, unless granting the removal credit will cause the POTW to violate the sludge requirements identified in paragraph (a)(3)(iv) of this section or its NPDES permit limits and conditions as required by paragraph (a)(3)(v) of this section. If a POTW elects at a later time to extend removal credits to a certain categorical Pretreatment Standard, industrial subcategory or one or more Industrial Users that initially were not granted removal credits, it must notify the Approval Authority.

(2) *Inclusion in POTW permit.* Once authority is granted, the removal credits shall be included in the POTW's NPDES Permit as soon as possible and shall become an enforceable requirement of the POTW's NPDES permit. The removal credits will remain in effect for the term of the POTW's NPDES permit, provided the POTW maintains compliance with the conditions specified in paragraph (f)(4) of this section.

(3) *Compliance monitoring.* Following authorization to give removal credits, a POTW shall continue to monitor and report on (at such intervals as may be specified by the Approval Authority, but in no case less than once per year) the POTW's removal capabilities. A minimum of one representative sample per month during the reporting period is required, and all sampling data must be included in the POTW's compliance report.

(4) *Modification or withdrawal of removal credits*—(i) *Notice of POTW.* The Approval Authority shall notify the POTW if, on the basis of pollutant removal capability reports received pursuant to paragraph (f)(3) of this section or other relevant information available to it, the Approval Authority determines:

(A) That one or more of the discharge limit revisions made by the POTW, of the POTW itself, no longer meets the requirements of this section, or

(B) That such discharge limit revisions are causing a violation of any conditions or limits contained in the POTW's NPDES Permit.

(ii) *Corrective action.* If appropriate corrective action is not taken within a reasonable time, not to exceed 60 days unless the POTW or the affected Industrial Users demonstrate that a longer time period is reasonably necessary to undertake the appropriate corrective action, the Approval Authority shall either withdraw such discharge limits or require modifications in the revised discharge limits.

(iii) *Public notice of withdrawal or modification.* The Approval Authority shall not withdraw or modify revised discharge limits unless it shall first have notified the POTW and all Industrial Users to whom revised discharge limits have been applied, and made public, in writing, the reasons for such withdrawal or modification, and an opportunity is provided for a hearing. Following such notice and withdrawal or modification, all Industrial Users to whom revised discharge limits had been applied, shall be subject to the modified discharge limits or the discharge limits prescribed in the applicable categorical Pretreatment Standards, as appropriate, and shall achieve compliance with such limits within a reasonable time (not to exceed the period of time prescribed in the applicable categorical Pretreatment Standard(s) as may be specified by the Approval Authority.

(g) *Removal credits in State-run pretreatment programs under §403.10(e).* Where an NPDES State with an approved pretreatment program elects to implement a local pretreatment program in lieu of requiring the POTW to develop such a program (as provided in §403.10(e)), the POTW will not be required to develop a pretreatment program as a precondition to obtaining authorization to give removal credits. The POTW will, however, be required to comply with the other conditions of paragraph (a)(3) of this section.

(h) *Compensation for overflow.* "Overflow" means the intentional or unintentional diversion of flow from the POTW before the POTW Treatment Plant. POTWs which at least once annually Overflow untreated wastewater to receiving waters may claim Consistent Removal of a pollutant only by complying with either paragraphs (h)(1) or (h)(2) of this section. However, paragraph (h) of this section shall not apply where Industrial User(s) can demonstrate that Overflow does not occur between the Industrial User(s) and the POTW Treatment Plant;

(1) The Industrial User provides containment or otherwise ceases or reduces Discharges from the regulated processes which contain the pollutant for which an allowance is requested during all circumstances in which an Overflow event can reasonably be expected to occur at the POTW or at a sewer to which the Industrial User is connected. Discharges must cease or be reduced, or pretreatment must be increased, to the extent necessary to compensate for the removal not being provided by the POTW. Allowances under this provision will only be granted where the POTW submits to the Approval Authority evidence that:

(i) All Industrial Users to which the POTW proposes to apply this provision have demonstrated the ability to contain or otherwise cease or reduce, during circumstances in which an Overflow event can reasonably be expected to occur, Discharges from the regulated processes which contain pollutants for which an allowance is requested;

(ii) The POTW has identified circumstances in which an Overflow event can reasonably be expected to occur, and has a notification or other viable plan to insure that Industrial Users will learn of an impending Overflow in sufficient time to contain, cease or reduce Discharging to prevent untreated Overflows from occurring. The POTW must also demonstrate that it will monitor and verify the data required in paragraph (h)(1)(iii) of this section, to insure that Industrial Users are containing, ceasing or reducing operations during POTW System Overflow; and

(iii) All Industrial Users to which the POTW proposes to apply this provision have demonstrated the ability and commitment to collect and make available, upon request by the POTW, State Director or EPA Regional Administrator, daily flow reports or other data sufficient to demonstrate that all Discharges from regulated processes containing the pollutant for which the allowance is requested were contained, reduced or otherwise ceased, as appropriate, during all circumstances in which an Overflow event was reasonably expected to occur; or

(2)(i) The Consistent Removal claimed is reduced pursuant to the following equation:

$$r_c = r_m \frac{8760 - Z}{8760}$$

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Where:

r_m = POTW's Consistent Removal rate for that pollutant as established under paragraphs (a)(1) and (b)(2) of this section

r_c = removal corrected by the Overflow factor

Z = hours per year that Overflows occurred between the Industrial User(s) and the POTW Treatment Plant, the hours either to be shown in the POTW's current NPDES permit application or the hours, as demonstrated by verifiable techniques, that a particular Industrial

User's Discharge Overflows between the Industrial User and the POTW Treatment Plant; and

(ii) The POTW is complying with all NPDES permit requirements and any additional requirements in any order or decree, issued pursuant to the Clean Water Act affecting combined sewer overflows. These requirements include, but are not limited to, any combined sewer overflow requirements that conform to the Combined Sewer Overflow Control Policy.

[49 FR 31221, Aug. 3, 1984, as amended at 51 FR 20430, June 4, 1986; 53 FR 42435, Nov. 5, 1987; 58 FR 9386, Feb. 19, 1993; 58 FR 18017, Apr. 7, 1993; 70 FR 60193, Oct. 14, 2005]

[Back to Top](#)

§403.8 Pretreatment Program Requirements: Development and Implementation by POTW.

(a) *POTWs required to develop a pretreatment program.* Any POTW (or combination of POTWs operated by the same authority) with a total design flow greater than 5 million gallons per day (mgd) and receiving from Industrial Users pollutants which Pass Through or Interfere with the operation of the POTW or are otherwise subject to Pretreatment Standards will be required to establish a POTW Pretreatment Program unless the NPDES State exercises its option to assume local responsibilities as provided for in §403.10(e). The Regional Administrator or Director may require that a POTW with a design flow of 5 mgd or less develop a POTW Pretreatment Program if he or she finds that the nature or volume of the industrial influent, treatment process upsets, violations of POTW effluent limitations, contamination of municipal sludge, or other circumstances warrant in order to prevent Interference with the POTW or Pass Through.

(b) *Deadline for Program Approval.* A POTW which meets the criteria of paragraph (a) of this section must receive approval of a POTW Pretreatment Program no later than 3 years after the reissuance or modification of its existing NPDES permit but in no case later than July 1, 1983. POTWs whose NPDES permits are modified under section 301(h) of the Act shall have a Pretreatment Program within three (3) years as provided for in 40 CFR part 125, subpart G. POTWs identified after July 1, 1983 as being required to develop a POTW Pretreatment Program under paragraph (a) of this section shall develop and submit such a program for approval as soon as possible, but in no case later than one year after written notification from the Approval Authority of such identification. The POTW Pretreatment Program shall meet the criteria set forth in paragraph (f) of this section and shall be administered by the POTW to ensure compliance by Industrial Users with applicable Pretreatment Standards and Requirements.

(c) *Incorporation of approved programs in permits.* A POTW may develop an appropriate POTW Pretreatment Program any time before the time limit set forth in paragraph (b) of this section. The POTW's NPDES Permit will be reissued or modified by the NPDES State or EPA to incorporate the approved Program as enforceable conditions of the Permit. The modification of a POTW's NPDES Permit for the purposes of incorporating a POTW Pretreatment Program approved in accordance with the procedure in §403.11 shall be deemed a minor Permit modification subject to the procedures in 40 CFR 122.63.

(d) *Incorporation of compliance schedules in permits.* [Reserved]

(e) *Cause for reissuance or modification of Permits.* Under the authority of section 402(b)(1)(C) of the Act, the Approval Authority may modify, or alternatively, revoke and reissue a POTW's Permit in order to:

(1) Put the POTW on a compliance schedule for the development of a POTW Pretreatment Program where the addition of pollutants into a POTW by an Industrial User or combination of Industrial Users presents a substantial hazard to the functioning of the treatment works, quality of the receiving waters, human health, or the environment;

(2) Coordinate the issuance of a section 201 construction grant with the incorporation into a permit of a compliance schedule for POTW Pretreatment Program;

(3) Incorporate a modification of the permit approved under section 301(h) or 301(i) of the Act;

(4) Incorporate an approved POTW Pretreatment Program in the POTW permit; or

(5) Incorporate a compliance schedule for the development of a POTW pretreatment program in the POTW permit.

(6) Incorporate the removal credits (established under §403.7) in the POTW permit.

(f) *POTW pretreatment requirements.* A POTW pretreatment program must be based on the following legal authority and include the following procedures. These authorities and procedures shall at all times be fully and effectively exercised and implemented.

(1) *Legal authority.* The POTW shall operate pursuant to legal authority enforceable in Federal, State or local courts, which authorizes or enables the POTW to apply and to enforce the requirements of sections 307 (b) and (c), and 402(b)(8) of the Act and any regulations implementing those sections. Such authority may be contained in a statute, ordinance, or series of

contracts or joint powers agreements which the POTW is authorized to enact, enter into or implement, and which are authorized by State law. At a minimum, this legal authority shall enable the POTW to:

(i) Deny or condition new or increased contributions of pollutants, or changes in the nature of pollutants, to the POTW by Industrial Users where such contributions do not meet applicable Pretreatment Standards and Requirements or where such contributions would cause the POTW to violate its NPDES permit;

(ii) Require compliance with applicable Pretreatment Standards and Requirements by Industrial Users;

(iii) Control through Permit, order, or similar means, the contribution to the POTW by each Industrial User to ensure compliance with applicable Pretreatment Standards and Requirements. In the case of Industrial Users identified as significant under §403.3(v), this control shall be achieved through individual permits or equivalent individual control mechanisms issued to each such User except as follows.

(A)(1) At the discretion of the POTW, this control may include use of general control mechanisms if the following conditions are met. All of the facilities to be covered must:

(i) Involve the same or substantially similar types of operations;

(ii) Discharge the same types of wastes;

(iii) Require the same effluent limitations;

(iv) Require the same or similar monitoring; and

(v) In the opinion of the POTW, are more appropriately controlled under a general control mechanism than under individual control mechanisms.

(2) To be covered by the general control mechanism, the Significant Industrial User must file a written request for coverage that identifies its contact information, production processes, the types of wastes generated, the location for monitoring all wastes covered by the general control mechanism, any requests in accordance with §403.12(e)(2) for a monitoring waiver for a pollutant neither present nor expected to be present in the Discharge, and any other information the POTW deems appropriate. A monitoring waiver for a pollutant neither present nor expected to be present in the Discharge is not effective in the general control mechanism until after the POTW has provided written notice to the Significant Industrial User that such a waiver request has been granted in accordance with §403.12(e)(2). The POTW must retain a copy of the general control mechanism, documentation to support the POTW's determination that a specific Significant Industrial User meets the criteria in paragraphs (f)(1)(iii)(A)(1) through (5) of this section, and a copy of the User's written request for coverage for 3 years after the expiration of the general control mechanism. A POTW may not control a Significant Industrial User through a general control mechanism where the facility is subject to production-based categorical Pretreatment Standards or categorical Pretreatment Standards expressed as mass of pollutant discharged per day or for Industrial Users whose limits are based on the Combined Wastestream Formula or Net/Gross calculations (§§403.6(e) and 403.15).

(B) Both individual and general control mechanisms must be enforceable and contain, at a minimum, the following conditions:

(1) Statement of duration (in no case more than five years);

(2) Statement of non-transferability without, at a minimum, prior notification to the POTW and provision of a copy of the existing control mechanism to the new owner or operator;

(3) Effluent limits, including Best Management Practices, based on applicable general Pretreatment Standards in part 403 of this chapter, categorical Pretreatment Standards, local limits, and State and local law;

(4) Self-monitoring, sampling, reporting, notification and recordkeeping requirements, including an identification of the pollutants to be monitored (including the process for seeking a waiver for a pollutant neither present nor expected to be present in the Discharge in accordance with §403.12(e)(2), or a specific waived pollutant in the case of an individual control mechanism), sampling location, sampling frequency, and sample type, based on the applicable general Pretreatment Standards in part 403 of this chapter, categorical Pretreatment Standards, local limits, and State and local law;

(5) Statement of applicable civil and criminal penalties for violation of Pretreatment Standards and requirements, and any applicable compliance schedule. Such schedules may not extend the compliance date beyond applicable federal deadlines;

(6) Requirements to control Slug Discharges, if determined by the POTW to be necessary.

(iv) Require (A) the development of a compliance schedule by each Industrial User for the installation of technology required to meet applicable Pretreatment Standards and Requirements and (B) the submission of all notices and self-monitoring reports from Industrial Users as are necessary to assess and assure compliance by Industrial Users with Pretreatment Standards and Requirements, including but not limited to the reports required in §403.12.

(v) Carry out all inspection, surveillance and monitoring procedures necessary to determine, independent of information supplied by Industrial Users, compliance or noncompliance with applicable Pretreatment Standards and Requirements by Industrial Users. Representatives of the POTW shall be authorized to enter any premises of any Industrial User in which a Discharge source or treatment system is located or in which records are required to be kept under §403.12(o) to assure compliance with Pretreatment Standards. Such authority shall be at least as extensive as the authority provided under section 308 of the Act;

(vi)(A) Obtain remedies for noncompliance by any Industrial User with any Pretreatment Standard and Requirement. All POTW's shall be able to seek injunctive relief for noncompliance by Industrial Users with Pretreatment Standards and Requirements. All POTWs shall also have authority to seek or assess civil or criminal penalties in at least the amount of \$1,000 a day for each violation by Industrial Users of Pretreatment Standards and Requirements.

(B) Pretreatment requirements which will be enforced through the remedies set forth in paragraph (f)(1)(vi)(A) of this section, will include but not be limited to, the duty to allow or carry out inspections, entry, or monitoring activities; any rules, regulations, or orders issued by the POTW; any requirements set forth in control mechanisms issued by the POTW; or any reporting requirements imposed by the POTW or these regulations in this part. The POTW shall have authority and procedures (after informal notice to the discharger) immediately and effectively to halt or prevent any discharge of pollutants to the POTW which reasonably appears to present an imminent endangerment to the health or welfare of persons. The POTW shall also have authority and procedures (which shall include notice to the affected industrial users and an opportunity to respond) to halt or prevent any discharge to the POTW which presents or may present an endangerment to the environment or which threatens to interfere with the operation of the POTW. The Approval Authority shall have authority to seek judicial relief and may also use administrative penalty authority when the POTW has sought a monetary penalty which the Approval Authority believes to be insufficient.

(vii) Comply with the confidentiality requirements set forth in §403.14.

(2) *Procedures.* The POTW shall develop and implement procedures to ensure compliance with the requirements of a Pretreatment Program. At a minimum, these procedures shall enable the POTW to:

(i) Identify and locate all possible Industrial Users which might be subject to the POTW Pretreatment Program. Any compilation, index or inventory of Industrial Users made under this paragraph shall be made available to the Regional Administrator or Director upon request;

(ii) Identify the character and volume of pollutants contributed to the POTW by the Industrial Users identified under paragraph (f)(2)(i) of this section. This information shall be made available to the Regional Administrator or Director upon request;

(iii) Notify Industrial Users identified under paragraph (f)(2)(i) of this section, of applicable Pretreatment Standards and any applicable requirements under sections 204(b) and 405 of the Act and subtitles C and D of the Resource Conservation and Recovery Act. Within 30 days of approval pursuant to 40 CFR 403.8(f)(6), of a list of significant industrial users, notify each significant industrial user of its status as such and of all requirements applicable to it as a result of such status.

(iv) Receive and analyze self-monitoring reports and other notices submitted by Industrial Users in accordance with the self-monitoring requirements in §403.12;

(v) Randomly sample and analyze the effluent from Industrial Users and conduct surveillance activities in order to identify, independent of information supplied by Industrial Users, occasional and continuing noncompliance with Pretreatment Standards. Inspect and sample the effluent from each Significant Industrial User at least once a year, except as otherwise specified below:

(A) Where the POTW has authorized the Industrial User subject to a categorical Pretreatment Standard to forego sampling of a pollutant regulated by a categorical Pretreatment Standard in accordance with §403.12(e)(3), the POTW must sample for the waived pollutant(s) at least once during the term of the Categorical Industrial User's control mechanism. In the event that the POTW subsequently determines that a waived pollutant is present or is expected to be present in the Industrial User's wastewater based on changes that occur in the User's operations, the POTW must immediately begin at least annual effluent monitoring of the User's Discharge and inspection.

(B) Where the POTW has determined that an Industrial User meets the criteria for classification as a Non-Significant Categorical Industrial User, the POTW must evaluate, at least once per year, whether an Industrial User continues to meet the

criteria in §403.3(v)(2).

(C) In the case of Industrial Users subject to reduced reporting requirements under §403.12(e)(3), the POTW must randomly sample and analyze the effluent from Industrial Users and conduct inspections at least once every two years. If the Industrial User no longer meets the conditions for reduced reporting in §403.12(e)(3), the POTW must immediately begin sampling and inspecting the Industrial User at least once a year.

(vi) Evaluate whether each such Significant Industrial User needs a plan or other action to control Slug Discharges. For Industrial Users identified as significant prior to November 14, 2005, this evaluation must have been conducted at least once by October 14, 2006; additional Significant Industrial Users must be evaluated within 1 year of being designated a Significant Industrial User. For purposes of this subsection, a Slug Discharge is any Discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch Discharge, which has a reasonable potential to cause Interference or Pass Through, or in any other way violate the POTW's regulations, local limits or Permit conditions. The results of such activities shall be available to the Approval Authority upon request. Significant Industrial Users are required to notify the POTW immediately of any changes at its facility affecting potential for a Slug Discharge. If the POTW decides that a slug control plan is needed, the plan shall contain, at a minimum, the following elements:

(A) Description of discharge practices, including non-routine batch Discharges;

(B) Description of stored chemicals;

(C) Procedures for immediately notifying the POTW of Slug Discharges, including any Discharge that would violate a prohibition under §403.5(b) with procedures for follow-up written notification within five days;

(D) If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response;

(vii) Investigate instances of noncompliance with Pretreatment Standards and Requirements, as indicated in the reports and notices required under §403.12, or indicated by analysis, inspection, and surveillance activities described in paragraph (f)(2)(v) of this section. Sample taking and analysis and the collection of other information shall be performed with sufficient care to produce evidence admissible in enforcement proceedings or in judicial actions; and

(viii) Comply with the public participation requirements of 40 CFR part 25 in the enforcement of National Pretreatment Standards. These procedures shall include provision for at least annual public notification in a newspaper(s) of general circulation that provides meaningful public notice within the jurisdiction(s) served by the POTW of Industrial Users which, at any time during the previous 12 months, were in significant noncompliance with applicable Pretreatment requirements. For the purposes of this provision, a Significant Industrial User (or any Industrial User which violates paragraphs (f)(2)(viii)(C), (D), or (H) of this section) is in significant noncompliance if its violation meets one or more of the following criteria:

(A) Chronic violations of wastewater Discharge limits, defined here as those in which 66 percent or more of all of the measurements taken for the same pollutant parameter during a 6-month period exceed (by any magnitude) a numeric Pretreatment Standard or Requirement, including instantaneous limits, as defined by 40 CFR 403.3(l);

(B) Technical Review Criteria (TRC) violations, defined here as those in which 33 percent or more of all of the measurements taken for the same pollutant parameter during a 6-month period equal or exceed the product of the numeric Pretreatment Standard or Requirement including instantaneous limits, as defined by 40 CFR 403.3(l) multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH);

(C) Any other violation of a Pretreatment Standard or Requirement as defined by 40 CFR 403.3(l) (daily maximum, long-term average, instantaneous limit, or narrative Standard) that the POTW determines has caused, alone or in combination with other Discharges, Interference or Pass Through (including endangering the health of POTW personnel or the general public);

(D) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under paragraph (f)(1)(vi)(B) of this section to halt or prevent such a discharge;

(E) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;

(F) Failure to provide, within 45 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(G) Failure to accurately report noncompliance;

(H) Any other violation or group of violations, which may include a violation of Best Management Practices, which the POTW determines will adversely affect the operation or implementation of the local Pretreatment program.

(3) *Funding.* The POTW shall have sufficient resources and qualified personnel to carry out the authorities and procedures described in paragraphs (f) (1) and (2) of this section. In some limited circumstances, funding and personnel may be delayed where (i) the POTW has adequate legal authority and procedures to carry out the Pretreatment Program requirements described in this section, and (ii) a limited aspect of the Program does not need to be implemented immediately (see §403.9(b)).

(4) *Local limits.* The POTW shall develop local limits as required in §403.5(c)(1), or demonstrate that they are not necessary.

(5) The POTW shall develop and implement an enforcement response plan. This plan shall contain detailed procedures indicating how a POTW will investigate and respond to instances of industrial user noncompliance. The plan shall, at a minimum:

(i) Describe how the POTW will investigate instances of noncompliance;

(ii) Describe the types of escalating enforcement responses the POTW will take in response to all anticipated types of industrial user violations and the time periods within which responses will take place;

(iii) Identify (by title) the official(s) responsible for each type of response;

(iv) Adequately reflect the POTW's primary responsibility to enforce all applicable pretreatment requirements and standards, as detailed in 40 CFR 403.8 (f)(1) and (f)(2).

(6) The POTW shall prepare and maintain a list of its Industrial Users meeting the criteria in §403.3(v)(1). The list shall identify the criteria in §403.3(v)(1) applicable to each Industrial User and, where applicable, shall also indicate whether the POTW has made a determination pursuant to §403.3(v)(2) that such Industrial User should not be considered a Significant Industrial User. The initial list shall be submitted to the Approval Authority pursuant to §403.9 or as a non-substantial modification pursuant to §403.18(d). Modifications to the list shall be submitted to the Approval Authority pursuant to §403.12(i) (1).

(g) A POTW that chooses to receive electronic documents must satisfy the requirements of 40 CFR part 3—(Electronic reporting).

[46 FR 9439, Jan. 28, 1981, as amended at 49 FR 31224, Aug. 3, 1984; 51 FR 20429, 20430, June 4, 1986; 51 FR 23759, July 1, 1986; 53 FR 40612, Oct. 17, 1988; 55 FR 30129, July 24, 1990; 58 FR 18017, Apr. 7, 1993; 60 FR 33932, June 29, 1995; 62 FR 38414, July 17, 1997; 70 FR 59889, Oct. 13, 2005; 70 FR 60193, Oct. 14, 2005]

[Back to Top](#)

§403.9 POTW pretreatment programs and/or authorization to revise pretreatment standards: Submission for approval.

(a) *Who approves Program.* A POTW requesting approval of a POTW Pretreatment Program shall develop a program description which includes the information set forth in paragraphs (b)(1) through (4) of this section. This description shall be submitted to the Approval Authority which will make a determination on the request for program approval in accordance with the procedures described in §403.11.

(b) *Contents of POTW program submission.* The program description must contain the following information:

(1) A statement from the City Solicitor or a city official acting in a comparable capacity (or the attorney for those POTWs which have independent legal counsel) that the POTW has authority adequate to carry out the programs described in §403.8. This statement shall:

(i) Identify the provision of the legal authority under §403.8(f)(1) which provides the basis for each procedure under §403.8(f)(2);

(ii) Identify the manner in which the POTW will implement the program requirements set forth in §403.8, including the means by which Pretreatment Standards will be applied to individual Industrial Users (e.g., by order, permit, ordinance, etc.); and,

(iii) Identify how the POTW intends to ensure compliance with Pretreatment Standards and Requirements, and to enforce them in the event of noncompliance by Industrial Users;

(2) A copy of any statutes, ordinances, regulations, agreements, or other authorities relied upon by the POTW for its administration of the Program. This Submission shall include a statement reflecting the endorsement or approval of the local boards or bodies responsible for supervising and/or funding the POTW Pretreatment Program if approved;

(3) A brief description (including organization charts) of the POTW organization which will administer the Pretreatment Program. If more than one agency is responsible for administration of the Program the responsible agencies should be identified, their respective responsibilities delineated, and their procedures for coordination set forth; and

(4) A description of the funding levels and full- and part-time manpower available to implement the Program;

(c) *Conditional POTW program approval.* The POTW may request conditional approval of the Pretreatment Program pending the acquisition of funding and personnel for certain elements of the Program. The request for conditional approval must meet the requirements set forth in paragraph (b) of this section except that the requirements of paragraph (b) of this section, may be relaxed if the Submission demonstrates that:

(1) A limited aspect of the Program does not need to be implemented immediately;

(2) The POTW had adequate legal authority and procedures to carry out those aspects of the Program which will not be implemented immediately; and

(3) Funding and personnel for the Program aspects to be implemented at a later date will be available when needed. The POTW will describe in the Submission the mechanism by which this funding will be acquired. Upon receipt of a request for conditional approval, the Approval Authority will establish a fixed date for the acquisition of the needed funding and personnel. If funding is not acquired by this date, the conditional approval of the POTW Pretreatment Program and any removal allowances granted to the POTW, may be modified or withdrawn.

(d) *Content of removal allowance submission.* The request for authority to revise categorical Pretreatment Standards must contain the information required in §403.7(d).

(e) *Approval authority action.* Any POTW requesting POTW Pretreatment Program approval shall submit to the Approval Authority three copies of the Submission described in paragraph (b), and if appropriate, (d) of this section. Within 60 days after receiving the Submission, the Approval Authority shall make a preliminary determination of whether the Submission meets the requirements of paragraph (b) and, if appropriate, (d) of this section. If the Approval Authority makes the preliminary determination that the Submission meets these requirements, the Approval Authority shall:

(1) Notify the POTW that the Submission has been received and is under review; and

(2) Commence the public notice and evaluation activities set forth in §403.11.

(f) *Notification where submission is defective.* If, after review of the Submission as provided for in paragraph (e) of this section, the Approval Authority determines that the Submission does not comply with the requirements of paragraph (b) or (c) of this section, and, if appropriate, paragraph (d), of this section, the Approval Authority shall provide notice in writing to the applying POTW and each person who has requested individual notice. This notification shall identify any defects in the Submission and advise the POTW and each person who has requested individual notice of the means by which the POTW can comply with the applicable requirements of paragraphs (b), (c) of this section, and, if appropriate, paragraph (d) of this section.

(g) *Consistency with water quality management plans.* (1) In order to be approved the POTW Pretreatment Program shall be consistent with any approved water quality management plan developed in accordance with 40 CFR parts 130, 131, as revised, where such 208 plan includes Management Agency designations and addresses pretreatment in a manner consistent with 40 CFR part 403. In order to assure such consistency the Approval Authority shall solicit the review and comment of the appropriate 208 Planning Agency during the public comment period provided for in §403.11(b)(1)(ii) prior to approval or disapproval of the Program.

(2) Where no 208 plan has been approved or where a plan has been approved but lacks Management Agency designations and/or does not address pretreatment in a manner consistent with this regulation, the Approval Authority shall nevertheless solicit the review and comment of the appropriate 208 planning agency.

[53 FR 9439, Jan. 28, 1981, as amended at 53 FR 40612, Oct. 17, 1988; 58 FR 18017, Apr. 7, 1993]

[↑ Back to Top](#)

§403.10 Development and submission of NPDES State pretreatment programs.

(a) *Approval of State Programs.* No State NPDES program shall be approved under section 402 of the Act after the effective date of these regulations unless it is determined to meet the requirements of paragraph (f) of this section.

Notwithstanding any other provision of this regulation, a State will be required to act upon those authorities which it currently possesses before the approval of a State Pretreatment Program.

(b) [Reserved]

(c) *Failure to request approval.* Failure of an NPDES State with a permit program approved under section 402 of the Act prior to December 27, 1977, to seek approval of a State Pretreatment Program and failure of an approved State to administer its State Pretreatment Program in accordance with the requirements of this section constitutes grounds for withdrawal of NPDES program approval under section 402(c)(3) of the Act.

(d) [Reserved]

(e) *State Program in lieu of POTW Program.* Notwithstanding the provision of §403.8(a), a State with an approved Pretreatment Program may assume responsibility for implementing the POTW Pretreatment Program requirements set forth in §403.8(f) in lieu of requiring the POTW to develop a Pretreatment Program. However, this does not preclude POTW's from independently developing Pretreatment Programs.

(f) *State Pretreatment Program requirements.* In order to be approved, a request for State Pretreatment Program Approval must demonstrate that the State Pretreatment Program has the following elements:

(1) *Legal authority.* The Attorney General's Statement submitted in accordance with paragraph (g)(1)(i) of this section shall certify that the Director has authority under State law to operate and enforce the State Pretreatment Program to the extent required by this part and by 40 CFR 123.27. At a minimum, the Director shall have the authority to:

(i) Incorporate POTW Pretreatment Program conditions into permits issued to POTW's; require compliance by POTW's with these incorporated permit conditions; and require compliance by Industrial Users with Pretreatment Standards;

(ii) Ensure continuing compliance by POTW's with pretreatment conditions incorporated into the POTW Permit through review of monitoring reports submitted to the Director by the POTW in accordance with §403.12 and ensure continuing compliance by Industrial Users with Pretreatment Standards through the review of self-monitoring reports submitted to the POTW or to the Director by the Industrial Users in accordance with §403.12;

(iii) Carry out inspection, surveillance and monitoring procedures which will determine, independent of information supplied by the POTW, compliance or noncompliance by the POTW with pretreatment conditions incorporated into the POTW Permit; and carry out inspection, surveillance and monitoring procedures which will determine, independent of information supplied by the Industrial User, whether the Industrial User is in compliance with Pretreatment Standards;

(iv) Seek civil and criminal penalties, and injunctive relief, for noncompliance by the POTW with pretreatment conditions incorporated into the POTW Permit and for noncompliance with Pretreatment Standards by Industrial Users as set forth in §403.8(f)(1)(vi). The Director shall have authority to seek judicial relief for noncompliance by Industrial Users even when the POTW has acted to seek such relief (e.g., if the POTW has sought a penalty which the Director finds to be insufficient);

(v) Approve and deny requests for approval of POTW Pretreatment Programs submitted by a POTW to the Director;

(vi) Deny and recommend approval of (but not approve) requests for Fundamentally Different Factors variances submitted by Industrial Users in accordance with the criteria and procedures set forth in §403.13; and

(vii) Approve and deny requests for authority to modify categorical Pretreatment Standards to reflect removals achieved by the POTW in accordance with the criteria and procedures set forth in §§403.7, 403.9 and 403.11.

(2) *Procedures.* The Director shall have developed procedures to carry out the requirements of sections 307 (b) and (c), and 402(b)(1), 402(b)(2), 402(b)(8), and 402(b)(9) of the Act. At a minimum, these procedures shall enable the Director to:

(i) Identify POTW's required to develop Pretreatment Programs in accordance with §403.8(a) and notify these POTW's of the need to develop a POTW Pretreatment Program. In the absence of a POTW Pretreatment Program, the State shall have procedures to carry out the activities set forth in §403.8(f)(2);

(ii) Provide technical and legal assistance to POTW's in developing Pretreatment Programs;

(iii) Develop compliance schedules for inclusion in POTW Permits which set forth the shortest reasonable time schedule for the completion of tasks needed to implement a POTW Pretreatment Program. The final compliance date in these schedules shall be no later than July 1, 1983;

(iv) Sample and analyze:

(A) Influent and effluent of the POTW to identify, independent of information supplied by the POTW, compliance or noncompliance with pollutant removal levels set forth in the POTW permit (see §403.7); and

(B) The contents of sludge from the POTW and methods of sludge disposal and use to identify, independent of information supplied by the POTW, compliance or noncompliance with requirements applicable to the selected method of sludge management;

(v) Investigate evidence of violations of pretreatment conditions set forth in the POTW Permit by taking samples and acquiring other information as needed. This data acquisition shall be performed with sufficient care as to produce evidence admissible in an enforcement proceeding or in court;

(vi) Review and approve requests for approval of POTW Pretreatment Programs and authority to modify categorical Pretreatment Standards submitted by a POTW to the Director; and

(vii) Consider requests for Fundamentally Different Factors variances submitted by Industrial Users in accordance with the criteria and procedures set forth in §403.13.

(viii) Regularly notify all Control Authorities of electronic submission requirements of 40 CFR part 127.

(3) *Funding.* The Director shall assure that funding and qualified personnel are available to carry out the authorities and procedures described in paragraphs (f)(1) and (2) of this section.

(g) *Content of State Pretreatment Program submission.* The request for State Pretreatment Program approval will consist of:

(1)(i) A statement from the State Attorney General (or the Attorney for those State agencies which have independent legal counsel) that the laws of the State provide adequate authority to implement the requirements of this part. The authorities cited by the Attorney General in this statement shall be in the form of lawfully adopted State statutes or regulations which shall be effective by the time of approval of the State Pretreatment Program; and

(ii) Copies of all State statutes and regulations cited in the above statement;

(iii) States with approved Pretreatment Programs shall establish Pretreatment regulations by November 16, 1989, unless the State would be required to enact or amend statutory provision, in which case, such regulations must be established by November 16, 1990.

(2) A description of the funding levels and full- and part-time personnel available to implement the program; and

(3) Any modifications or additions to the Memorandum of Agreement (required by 40 CFR 123.24) which may be necessary for EPA and the State to implement the requirements of this part.

(h) *EPA Action.* Any approved NPDES State requesting State Pretreatment Program approval shall submit to the Regional Administrator three copies of the Submission described in paragraph (g) of this section. Upon a preliminary determination that the Submission meets the requirements of paragraph (g) the Regional Administrator shall:

(1) Notify the Director that the Submission has been received and is under review; and

(2) Commence the program revision process set out in 40 CFR 123.62. For purposes of that section all requests for approval of State Pretreatment Programs shall be deemed substantial program modifications. A comment period of at least 30 days and the opportunity for a hearing shall be afforded the public on all such proposed program revisions.

(i) *Notification where submission is defective.* If, after review of the Submission as provided for in paragraph (h) of this section, EPA determines that the Submission does not comply with the requirements of paragraph (f) or (g) of this section EPA shall so notify the applying NPDES State in writing. This notification shall identify any defects in the Submission and advise the NPDES State of the means by which it can comply with the requirements of this part.

[46 FR 9439, Jan. 28, 1981, as amended at 51 FR 20429, June 4, 1986; 53 FR 40612, Oct. 17, 1988; 55 FR 30131, July 24, 1990; 58 FR 18017, Apr. 7, 1993; 60 FR 33932, June 29, 1995; 80 FR 64156, Oct. 22, 2015]

[↑ Back to Top](#)

§403.11 Approval procedures for POTW pretreatment programs and POTW granting of removal credits.

The following procedures shall be adopted in approving or denying requests for approval of POTW Pretreatment Programs and applications for removal credit authorization:

(a) *Deadline for review of submission.* The Approval Authority shall have 90 days from the date of public notice of any Submission complying with the requirements of §403.9(b) and, where removal credit authorization is sought with §§403.7(e) and 403.9(d), to review the Submission. The Approval Authority shall review the Submission to determine compliance with the requirements of §403.8 (b) and (f), and, where removal credit authorization is sought, with §403.7. The Approval Authority may have up to an additional 90 days to complete the evaluation of the Submission if the public comment period provided for in paragraph (b)(1)(ii) of this section is extended beyond 30 days or if a public hearing is held as provided for in paragraph (b)(2) of this section. In no event, however, shall the time for evaluation of the Submission exceed a total of 180 days from the date of public notice of a Submission meeting the requirements of §403.9(b) and, in the case of a removal credit application, §§403.7(e) and 403.9(b).

(b) *Public notice and opportunity for hearing.* Upon receipt of a Submission the Approval Authority shall commence its review. Within 20 work days after making a determination that a Submission meets the requirements of §403.9(b) and, where removal allowance approval is sought, §§403.7(d) and 403.9(d), the Approval Authority shall:

(1) Issue a public notice of request for approval of the Submission;

(i) This public notice shall be circulated in a manner designed to inform interested and potentially interested persons of the Submission. Procedures for the circulation of public notice shall include:

(A) Mailing notices of the request for approval of the Submission to designated 208 planning agencies, Federal and State fish, shellfish and wildfish resource agencies (unless such agencies have asked not to be sent the notices); and to any other person or group who has requested individual notice, including those on appropriate mailing lists; and

(B) Publication of a notice of request for approval of the Submission in a newspaper(s) of general circulation within the jurisdiction(s) served by the POTW that meaningful public notice.

(ii) The public notice shall provide a period of not less than 30 days following the date of the public notice during which time interested persons may submit their written views on the Submission.

(iii) All written comments submitted during the 30 day comment period shall be retained by the Approval Authority and considered in the decision on whether or not to approve the Submission. The period for comment may be extended at the discretion of the Approval Authority; and

(2) Provide an opportunity for the applicant, any affected State, any interested State or Federal agency, person or group of persons to request a public hearing with respect to the Submission.

(i) This request for public hearing shall be filed within the 30 day (or extended) comment period described in paragraph (b) (1)(ii) of this section and shall indicate the interest of the person filing such request and the reasons why a hearing is warranted.

(ii) The Approval Authority shall hold a hearing if the POTW so requests. In addition, a hearing will be held if there is a significant public interest in issues relating to whether or not the Submission should be approved. Instances of doubt should be resolved in favor of holding the hearing.

(iii) Public notice of a hearing to consider a Submission and sufficient to inform interested parties of the nature of the hearing and the right to participate shall be published in the same newspaper as the notice of the original request for approval of the Submission under paragraph (b)(1)(i)(B) of this section. In addition, notice of the hearing shall be sent to those persons requesting individual notice.

(c) *Approval authority decision.* At the end of the 30 day (or extended) comment period and within the 90 day (or extended) period provided for in paragraph (a) of this section, the Approval Authority shall approve or deny the Submission based upon the evaluation in paragraph (a) of this section and taking into consideration comments submitted during the comment period and the record of the public hearing, if held. Where the Approval Authority makes a determination to deny the request, the Approval Authority shall so notify the POTW and each person who has requested individual notice. This notification shall include suggested modifications and the Approval Authority may allow the requestor additional time to bring the Submission into compliance with applicable requirements.

(d) *EPA objection to Director's decision.* No POTW pretreatment program or authorization to grant removal allowances shall be approved by the Director if following the 30 day (or extended) evaluation period provided for in paragraph (b)(1)(ii) of this section and any hearing held pursuant to paragraph (b)(2) of this section the Regional Administrator sets forth in writing objections to the approval of such Submission and the reasons for such objections. A copy of the Regional Administrator's objections shall be provided to the applicant, and each person who has requested individual notice. The Regional Administrator shall provide an opportunity for written comments and may convene a public hearing on his or her objections. Unless retracted, the Regional Administrator's objections shall constitute a final ruling to deny approval of a POTW pretreatment program or authorization to grant removal allowances 90 days after the date the objections are issued.

(e) *Notice of decision.* The Approval Authority shall notify those persons who submitted comments and participated in the public hearing, if held, of the approval or disapproval of the Submission. In addition, the Approval Authority shall cause to be published a notice of approval or disapproval in the same newspapers as the original notice of request for approval of the Submission was published. The Approval Authority shall identify in any notice of POTW Pretreatment Program approval any authorization to modify categorical Pretreatment Standards which the POTW may make, in accordance with §403.7, for removal of pollutants subject to Pretreatment Standards.

(f) *Public access to submission.* The Approval Authority shall ensure that the Submission and any comments upon such Submission are available to the public for inspection and copying.

[46 FR 9439, Jan. 28, 1981, as amended at 49 FR 31224, Aug. 3, 1984; 51 FR 20429, June 4, 1986; 53 FR 40613, Oct. 17, 1988; 62 FR 38414, July 17, 1997]

[↑ Back to Top](#)

§403.12 Reporting requirements for POTW's and industrial users.

(a) [Reserved]

(b) *Reporting requirements for industrial users upon effective date of categorical pretreatment standard—baseline report.* Within 180 days after the effective date of a categorical Pretreatment Standard, or 180 days after the final administrative decision made upon a category determination submission under §403.6(a)(4), whichever is later, existing Industrial Users subject to such categorical Pretreatment Standards and currently discharging to or scheduled to discharge to a POTW shall be required to submit to the Control Authority a report which contains the information listed in paragraphs (b)(1)-(7) of this section. At least 90 days prior to commencement of discharge, New Sources, and sources that become Industrial Users subsequent to the promulgation of an applicable categorical Standard, shall be required to submit to the Control Authority a report which contains the information listed in paragraphs (b)(1)-(5) of this section. New sources shall also be required to include in this report information on the method of pretreatment the source intends to use to meet applicable pretreatment standards. New Sources shall give estimates of the information requested in paragraphs (b) (4) and (5) of this section:

(1) *Identifying information.* The User shall submit the name and address of the facility including the name of the operator and owners;

(2) *Permits.* The User shall submit a list of any environmental control permits held by or for the facility;

(3) *Description of operations.* The User shall submit a brief description of the nature, average rate of production, and Standard Industrial Classification of the operation(s) carried out by such Industrial User. This description should include a schematic process diagram which indicates points of Discharge to the POTW from the regulated processes.

(4) *Flow measurement.* The User shall submit information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from each of the following:

(i) Regulated process streams; and

(ii) Other streams as necessary to allow use of the combined wastestream formula of §403.6(e). (See paragraph (b)(5)(iv) of this section.)

The Control Authority may allow for verifiable estimates of these flows where justified by cost or feasibility considerations.

(5) *Measurement of pollutants.* (i) The user shall identify the Pretreatment Standards applicable to each regulated process;

(ii) In addition, the User shall submit the results of sampling and analysis identifying the nature and concentration (or mass, where required by the Standard or Control Authority) of regulated pollutants in the Discharge from each regulated process. Both daily maximum and average concentration (or mass, where required) shall be reported. The sample shall be representative of daily operations. In cases where the Standard requires compliance with a Best Management Practice or pollution prevention alternative, the User shall submit documentation as required by the Control Authority or the applicable Standards to determine compliance with the Standard;

(iii) The User shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this paragraph.

(iv) Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the User should measure the flows and concentrations necessary to allow use of the combined wastestream formula of §403.6(e) in order to evaluate compliance with the Pretreatment Standards. Where an alternate concentration or

mass limit has been calculated in accordance with §403.6(e) this adjusted limit along with supporting data shall be submitted to the Control Authority;

(v) Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and amendments thereto. Where 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the Administrator determines that the part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the POTW or other parties, approved by the Administrator;

(vi) The Control Authority may allow the submission of a baseline report which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures;

(vii) The baseline report shall indicate the time, date and place, of sampling, and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant Discharges to the POTW;

(6) *Certification.* A statement, reviewed by an authorized representative of the Industrial User (as defined in paragraph (l) of this section) and certified to by a qualified professional, indicating whether Pretreatment Standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O and M) and/or additional Pretreatment is required for the Industrial User to meet the Pretreatment Standards and Requirements; and

(7) *Compliance schedule.* If additional pretreatment and/or O and M will be required to meet the Pretreatment Standards; the shortest schedule by which the Industrial User will provide such additional pretreatment and/or O and M. The completion date in this schedule shall not be later than the compliance date established for the applicable Pretreatment Standard.

(i) Where the Industrial User's categorical Pretreatment Standard has been modified by a removal allowance (§403.7), the combined wastestream formula (§403.6(e)), and/or a Fundamentally Different Factors variance (§403.13) at the time the User submits the report required by paragraph (b) of this section, the information required by paragraphs (b)(6) and (7) of this section shall pertain to the modified limits.

(ii) If the categorical Pretreatment Standard is modified by a removal allowance (§403.7), the combined wastestream formula (§403.6(e)), and/or a Fundamentally Different Factors variance (§403.13) after the User submits the report required by paragraph (b) of this section, any necessary amendments to the information requested by paragraphs (b)(6) and (7) of this section shall be submitted by the User to the Control Authority within 60 days after the modified limit is approved.

(c) *Compliance schedule for meeting categorical Pretreatment Standards.* The following conditions shall apply to the schedule required by paragraph (b)(7) of this section:

(1) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the Industrial User to meet the applicable categorical Pretreatment Standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.).

(2) No increment referred to in paragraph (c)(1) of this section shall exceed 9 months.

(3) Not later than 14 days following each date in the schedule and the final date for compliance, the Industrial User shall submit a progress report to the Control Authority including, at a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the Industrial User to return the construction to the schedule established. In no event shall more than 9 months elapse between such progress reports to the Control Authority.

(d) *Report on compliance with categorical pretreatment standard deadline.* Within 90 days following the date for final compliance with applicable categorical Pretreatment Standards or in the case of a New Source following commencement of the introduction of wastewater into the POTW, any Industrial User subject to Pretreatment Standards and Requirements shall submit to the Control Authority a report containing the information described in paragraphs (b) (4)-(6) of this section. For Industrial Users subject to equivalent mass or concentration limits established by the Control Authority in accordance with the procedures in §403.6(c), this report shall contain a reasonable measure of the User's long term production rate. For all other Industrial Users subject to categorical Pretreatment Standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the User's actual production during the appropriate sampling period.

(e) *Periodic reports on continued compliance.* (1) Any Industrial User subject to a categorical Pretreatment Standard (except a Non-Significant Categorical User as defined in §403.3(v)(2)), after the compliance date of such Pretreatment Standard, or, in the case of a New Source, after commencement of the discharge into the POTW, shall submit to the Control Authority during the months of June and December, unless required more frequently in the Pretreatment Standard or by the

Control Authority or the Approval Authority, a report indicating the nature and concentration of pollutants in the effluent which are limited by such categorical Pretreatment Standards. In addition, this report shall include a record of measured or estimated average and maximum daily flows for the reporting period for the Discharge reported in paragraph (b)(4) of this section except that the Control Authority may require more detailed reporting of flows. In cases where the Pretreatment Standard requires compliance with a Best Management Practice (or pollution prevention alternative), the User shall submit documentation required by the Control Authority or the Pretreatment Standard necessary to determine the compliance status of the User. At the discretion of the Control Authority and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the Control Authority may modify the months during which the above reports are to be submitted. For Industrial Users for which EPA or the authorized state, tribe, or territory is the Control Authority, as of December 21, 2020 all reports submitted in compliance with this section must be submitted electronically by the industrial user to the Control Authority or initial recipient, as defined in 40 CFR 127.2(b), in compliance with this section and 40 CFR part 3 (including, in all cases, subpart D to part 3), 40 CFR 122.22, and 40 CFR part 127. Part 127 is not intended to undo existing requirements for electronic reporting. Prior to this date, and independent of part 127, the Industrial Users for which EPA or the authorized state, tribe, or territory is the Control Authority may be required to report electronically if specified by a particular control mechanism or if required to do so by state law.

(2) The Control Authority may authorize the Industrial User subject to a categorical Pretreatment Standard to forego sampling of a pollutant regulated by a categorical Pretreatment Standard if the Industrial User has demonstrated through sampling and other technical factors that the pollutant is neither present nor expected to be present in the Discharge, or is present only at background levels from intake water and without any increase in the pollutant due to activities of the Industrial User. This authorization is subject to the following conditions:

(i) The Control Authority may authorize a waiver where a pollutant is determined to be present solely due to sanitary wastewater discharged from the facility provided that the sanitary wastewater is not regulated by an applicable categorical Standard and otherwise includes no process wastewater.

(ii) The monitoring waiver is valid only for the duration of the effective period of the Permit or other equivalent individual control mechanism, but in no case longer than 5 years. The User must submit a new request for the waiver before the waiver can be granted for each subsequent control mechanism.

(iii) In making a demonstration that a pollutant is not present, the Industrial User must provide data from at least one sampling of the facility's process wastewater prior to any treatment present at the facility that is representative of all wastewater from all processes.

The request for a monitoring waiver must be signed in accordance with paragraph (l) of this section and include the certification statement in §403.6(a)(2)(ii). Non-detectable sample results may only be used as a demonstration that a pollutant is not present if the EPA approved method from 40 CFR part 136 with the lowest minimum detection level for that pollutant was used in the analysis.

(iv) Any grant of the monitoring waiver by the Control Authority must be included as a condition in the User's control mechanism. The reasons supporting the waiver and any information submitted by the User in its request for the waiver must be maintained by the Control Authority for 3 years after expiration of the waiver.

(v) Upon approval of the monitoring waiver and revision of the User's control mechanism by the Control Authority, the Industrial User must certify on each report with the statement below, that there has been no increase in the pollutant in its wastestream due to activities of the Industrial User:

Based on my inquiry of the person or persons directly responsible for managing compliance with the Pretreatment Standard for 40 CFR _____ [specify applicable National Pretreatment Standard part(s)], I certify that, to the best of my knowledge and belief, there has been no increase in the level of _____ [list pollutant(s)] in the wastewaters due to the activities at the facility since filing of the last periodic report under 40 CFR 403.12(e)(1).

(vi) In the event that a waived pollutant is found to be present or is expected to be present based on changes that occur in the User's operations, the User must immediately: Comply with the monitoring requirements of paragraph (e)(1) of this section or other more frequent monitoring requirements imposed by the Control Authority; and notify the Control Authority.

(vii) This provision does not supersede certification processes and requirements established in categorical Pretreatment Standards, except as otherwise specified in the categorical Pretreatment Standard.

(3) The Control Authority may reduce the requirement in paragraph (e)(1) of this section to a requirement to report no less frequently than once a year, unless required more frequently in the Pretreatment Standard or by the Approval Authority, where the Industrial User meets all of the following conditions:

(i) The Industrial User's total categorical wastewater flow does not exceed any of the following:

(A) 0.01 percent of the design dry weather hydraulic capacity of the POTW, or 5,000 gallons per day, whichever is smaller, as measured by a continuous effluent flow monitoring device unless the Industrial User discharges in batches;

(B) 0.01 percent of the design dry weather organic treatment capacity of the POTW; and

(C) 0.01 percent of the maximum allowable headworks loading for any pollutant regulated by the applicable categorical Pretreatment Standard for which approved local limits were developed by a POTW in accordance with §403.5(c) and paragraph (d) of this section;

(ii) The Industrial User has not been in significant noncompliance, as defined in §403.8(f)(2)(viii), for any time in the past two years;

(iii) The Industrial User does not have daily flow rates, production levels, or pollutant levels that vary so significantly that decreasing the reporting requirement for this Industrial User would result in data that are not representative of conditions occurring during the reporting period pursuant to paragraph (g)(3) of this section;

(iv) The Industrial User must notify the Control Authority immediately of any changes at its facility causing it to no longer meet conditions of paragraphs (e)(3)(i) or (ii) of this section. Upon notification, the Industrial User must immediately begin complying with the minimum reporting in paragraph (e)(1) of this section; and

(v) The Control Authority must retain documentation to support the Control Authority's determination that a specific Industrial User qualifies for reduced reporting requirements under paragraph (e)(3) of this section for a period of 3 years after the expiration of the term of the control mechanism.

(4) For Industrial Users subject to equivalent mass or concentration limits established by the Control Authority in accordance with the procedures in §403.6(c), the report required by paragraph (e)(1) shall contain a reasonable measure of the User's long term production rate. For all other Industrial Users subject to categorical Pretreatment Standards expressed only in terms of allowable pollutant discharge per unit of production (or other measure of operation), the report required by paragraph (e)(1) shall include the User's actual average production rate for the reporting period.

(f) *Notice of potential problems, including slug loading.* All categorical and non-categorical Industrial Users shall notify the POTW immediately of all discharges that could cause problems to the POTW, including any slug loadings, as defined by §403.5(b), by the Industrial User.

(g) *Monitoring and analysis to demonstrate continued compliance.* (1) Except in the case of Non-Significant Categorical Users, the reports required in paragraphs (b), (d), (e), and (h) of this section shall contain the results of sampling and analysis of the Discharge, including the flow and the nature and concentration, or production and mass where requested by the Control Authority, of pollutants contained therein which are limited by the applicable Pretreatment Standards. This sampling and analysis may be performed by the Control Authority in lieu of the Industrial User. Where the POTW performs the required sampling and analysis in lieu of the Industrial User, the User will not be required to submit the compliance certification required under paragraphs (b)(6) and (d) of this section. In addition, where the POTW itself collects all the information required for the report, including flow data, the Industrial User will not be required to submit the report.

(2) If sampling performed by an Industrial User indicates a violation, the User shall notify the Control Authority within 24 hours of becoming aware of the violation. The User shall also repeat the sampling and analysis and submit the results of the repeat analysis to the Control Authority within 30 days after becoming aware of the violation. Where the Control Authority has performed the sampling and analysis in lieu of the Industrial User, the Control Authority must perform the repeat sampling and analysis unless it notifies the User of the violation and requires the User to perform the repeat analysis. Resampling is not required if:

(i) The Control Authority performs sampling at the Industrial User at a frequency of at least once per month; or

(ii) The Control Authority performs sampling at the User between the time when the initial sampling was conducted and the time when the User or the Control Authority receives the results of this sampling.

(3) The reports required in paragraphs (b), (d), (e) and (h) of this section must be based upon data obtained through appropriate sampling and analysis performed during the period covered by the report, which data are representative of conditions occurring during the reporting period. The Control Authority shall require that frequency of monitoring necessary to assess and assure compliance by Industrial Users with applicable Pretreatment Standards and Requirements. Grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. For all other pollutants, 24-hour composite samples must be obtained through flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the Control Authority. Where time-proportional composite sampling or grab sampling is authorized by the Control Authority, the samples must be representative of the Discharge and the decision to allow the alternative sampling must be documented in the Industrial User file for that facility or facilities. Using

protocols (including appropriate preservation) specified in 40 CFR part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: For cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil & grease the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the Control Authority, as appropriate.

(4) For sampling required in support of baseline monitoring and 90-day compliance reports required in paragraphs (b) and (d) of this section, a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the Control Authority may authorize a lower minimum. For the reports required by paragraphs (e) and (h) of this section, the Control Authority shall require the number of grab samples necessary to assess and assure compliance by Industrial Users with Applicable Pretreatment Standards and Requirements.

(5) All analyses shall be performed in accordance with procedures established by the Administrator pursuant to section 304(h) of the Act and contained in 40 CFR part 136 and amendments thereto or with any other test procedures approved by the Administrator. (See, §§136.4 and 136.5.) Sampling shall be performed in accordance with the techniques approved by the Administrator. Where 40 CFR part 136 does not include sampling or analytical techniques for the pollutants in question, or where the Administrator determines that the part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed using validated analytical methods or any other sampling and analytical procedures, including procedures suggested by the POTW or other parties, approved by the Administrator.

(6) If an Industrial User subject to the reporting requirement in paragraph (e) or (h) of this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by the Control Authority, using the procedures prescribed in paragraph (g)(5) of this section, the results of this monitoring shall be included in the report.

(h) *Reporting requirements for Industrial Users not subject to categorical Pretreatment Standards.* The Control Authority must require appropriate reporting from those Industrial Users with Discharges that are not subject to categorical Pretreatment Standards. Significant Non-categorical Industrial Users must submit to the Control Authority at least once every six months (on dates specified by the Control Authority) a description of the nature, concentration, and flow of the pollutants required to be reported by the Control Authority. In cases where a local limit requires compliance with a Best Management Practice or pollution prevention alternative, the User must submit documentation required by the Control Authority to determine the compliance status of the User. These reports must be based on sampling and analysis performed in the period covered by the report, and in accordance with the techniques described in part 136 of this chapter and amendments thereto. This sampling and analysis may be performed by the Control Authority in lieu of the significant non-categorical Industrial User. For Industrial Users for which EPA or the authorized state, tribe, or territory is the Control Authority, as of December 21, 2020 all reports submitted in compliance with this section must be submitted electronically by the industrial user to the Control Authority or initial recipient, as defined in 40 CFR 127.2(b), in compliance with this section and 40 CFR part 3 (including, in all cases, subpart D to part 3), 40 CFR 122.22, and 40 CFR part 127. Part 127 is not intended to undo existing requirements for electronic reporting. Prior to this date, and independent of part 127, the Industrial Users for which EPA or the authorized state, tribe, or territory is the Control Authority may be required to report electronically if specified by a particular control mechanism or if required to do so by state law.

(i) *Annual POTW reports.* POTWs with approved Pretreatment Programs shall provide the Approval Authority with a report that briefly describes the POTW's program activities, including activities of all participating agencies, if more than one jurisdiction is involved in the local program. The report required by this section shall be submitted no later than one year after approval of the POTW's Pretreatment Program, and at least annually thereafter, and must include, at a minimum, the applicable required data in appendix A to 40 CFR part 127. The report required by this section must also include a summary of changes to the POTW's pretreatment program that have not been previously reported to the Approval Authority and any other relevant information requested by the Approval Authority. As of December 21, 2020 all annual reports submitted in compliance with this section must be submitted electronically by the POTW Pretreatment Program to the Approval Authority or initial recipient, as defined in 40 CFR 127.2(b), in compliance with this section and 40 CFR part 3 (including, in all cases, subpart D to part 3), 40 CFR 122.22, and 40 CFR part 127. Part 127 is not intended to undo existing requirements for electronic reporting. Prior to this date, and independent of part 127, the Approval Authority may also require POTW Pretreatment Programs to electronically submit annual reports under this section if specified by a particular permit or if required to do so by state law.

(1) An updated list of the POTW's Industrial Users, including their names and addresses, or a list of deletions and additions keyed to a previously submitted list. The POTW shall provide a brief explanation of each deletion. This list shall identify which Industrial Users are subject to categorical Pretreatment Standards and specify which Standards are applicable to each Industrial User. The list shall indicate which Industrial Users are subject to local standards that are more stringent than the categorical Pretreatment Standards. The POTW shall also list the Industrial Users that are subject only to local Requirements. The list must also identify Industrial Users subject to categorical Pretreatment Standards that are subject to reduced reporting requirements under paragraph (e)(3), and identify which Industrial Users are Non-Significant Categorical Industrial Users.

(2) A summary of the status of Industrial User compliance over the reporting period;

(3) A summary of compliance and enforcement activities (including inspections) conducted by the POTW during the reporting period;

(4) A summary of changes to the POTW's pretreatment program that have not been previously reported to the Approval Authority; and

(5) Any other relevant information requested by the Approval Authority.

(j) *Notification of changed Discharge.* All Industrial Users shall promptly notify the Control Authority (and the POTW if the POTW is not the Control Authority) in advance of any substantial change in the volume or character of pollutants in their Discharge, including the listed or characteristic hazardous wastes for which the Industrial User has submitted initial notification under paragraph (p) of this section.

(k) *Compliance schedule for POTW's.* The following conditions and reporting requirements shall apply to the compliance schedule for development of an approvable POTW Pretreatment Program required by §403.8.

(1) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the development and implementation of a POTW Pretreatment Program (e.g., acquiring required authorities, developing funding mechanisms, acquiring equipment);

(2) No increment referred to in paragraph (k)(1) of this section shall exceed nine months;

(3) Not later than 14 days following each date in the schedule and the final date for compliance, the POTW shall submit a progress report to the Approval Authority including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps taken by the POTW to return to the schedule established. In no event shall more than nine months elapse between such progress reports to the Approval Authority.

(l) *Signatory requirements for Industrial User reports.* The reports required by paragraphs (b), (d), and (e) of this section shall include the certification statement as set forth in §403.6(a)(2)(ii), and shall be signed as follows:

(1) By a responsible corporate officer, if the Industrial User submitting the reports required by paragraphs (b), (d), and (e) of this section is a corporation. For the purpose of this paragraph, a responsible corporate officer means:

(i) a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or

(ii) The manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) By a general partner or proprietor if the Industrial User submitting the reports required by paragraphs (b), (d), and (e) of this section is a partnership, or sole proprietorship respectively.

(3) By a duly authorized representative of the individual designated in paragraph (l)(1) or (l)(2) of this section if:

(i) The authorization is made in writing by the individual described in paragraph (l)(1) or (l)(2);

(ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the Industrial Discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company; and

(iii) the written authorization is submitted to the Control Authority.

(4) If an authorization under paragraph (l)(3) of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of paragraph (l)(3) of this section must be submitted to the Control Authority prior to or together with any reports to be signed by an authorized representative.

(m) *Signatory requirements for POTW reports.* Reports submitted to the Approval Authority by the POTW in accordance with paragraph (i) of this section must be signed by a principal executive officer, ranking elected official or other duly authorized employee. The duly authorized employee must be an individual or position having responsibility for the overall operation of the facility or the Pretreatment Program. This authorization must be made in writing by the principal executive officer or ranking elected official, and submitted to the Approval Authority prior to or together with the report being submitted.

(n) *Provisions Governing Fraud and False Statements:* The reports and other documents required to be submitted or maintained under this section shall be subject to:

(1) The provisions of 18 U.S.C. section 1001 relating to fraud and false statements;

(2) The provisions of sections 309(c)(4) of the Act, as amended, governing false statements, representation or certification; and

(3) The provisions of section 309(c)(6) regarding responsible corporate officers.

(o) *Record-keeping requirements.* (1) Any Industrial User and POTW subject to the reporting requirements established in this section shall maintain records of all information resulting from any monitoring activities required by this section, including documentation associated with Best Management Practices. Such records shall include for all samples:

(i) The date, exact place, method, and time of sampling and the names of the person or persons taking the samples;

(ii) The dates analyses were performed;

(iii) Who performed the analyses;

(iv) The analytical techniques/methods use; and

(v) The results of such analyses.

(2) Any Industrial User or POTW subject to the reporting requirements established in this section (including documentation associated with Best Management Practices) shall be required to retain for a minimum of 3 years any records of monitoring activities and results (whether or not such monitoring activities are required by this section) and shall make such records available for inspection and copying by the Director and the Regional Administrator (and POTW in the case of an Industrial User). This period of retention shall be extended during the course of any unresolved litigation regarding the Industrial User or POTW or when requested by the Director or the Regional Administrator.

(3) Any POTW to which reports are submitted by an Industrial User pursuant to paragraphs (b), (d), (e), and (h) of this section shall retain such reports for a minimum of 3 years and shall make such reports available for inspection and copying by the Director and the Regional Administrator. This period of retention shall be extended during the course of any unresolved litigation regarding the discharge of pollutants by the Industrial User or the operation of the POTW Pretreatment Program or when requested by the Director or the Regional Administrator.

(p)(1) The Industrial User shall notify the POTW, the EPA Regional Waste Management Division Director, and State hazardous waste authorities in writing of any discharge into the POTW of a substance, which, if otherwise disposed of, would be a hazardous waste under 40 CFR part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the Industrial User discharges more than 100 kilograms of such waste per calendar month to the POTW, the notification shall also contain the following information to the extent such information is known and readily available to the Industrial User: An identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following twelve months. All notifications must take place within 180 days of the effective date of this rule. Industrial users who commence discharging after the effective date of this rule shall provide the notification no later than 180 days after the discharge of the listed or characteristic hazardous waste. Any notification under this paragraph need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges must be submitted under 40 CFR 403.12 (j). The notification requirement in this section does not apply to pollutants already reported under the self-monitoring requirements of 40 CFR 403.12 (b), (d), and (e).

(2) Dischargers are exempt from the requirements of paragraph (p)(1) of this section during a calendar month in which they discharge no more than fifteen kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than fifteen kilograms of non-acute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e), requires a one-time notification.

Subsequent months during which the Industrial User discharges more than such quantities of any hazardous waste do not require additional notification.

(3) In the case of any new regulations under section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the Industrial User must notify the POTW, the EPA Regional Waste Management Waste Division Director, and State hazardous waste authorities of the discharge of such substance within 90 days of the effective date of such regulations.

(4) In the case of any notification made under paragraph (p) of this section, the Industrial User shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(q) *Annual certification by Non-Significant Categorical Industrial Users.* A facility determined to be a Non-Significant Categorical Industrial User pursuant to §403.3(v)(2) must annually submit the following certification statement, signed in accordance with the signatory requirements in paragraph (l) of this section. This certification must accompany any alternative report required by the Control Authority:

Based on my inquiry of the person or persons directly responsible for managing compliance with the categorical Pretreatment Standards under 40 CFR _____, I certify that, to the best of my knowledge and belief that during the period from _____, to _____, ____ [month, days, year]:

(a) The facility described as _____ [facility name] met the definition of a non-significant categorical Industrial User as described in §403.3(v)(2); (b) the facility complied with all applicable Pretreatment Standards and requirements during this reporting period; and (c) the facility never discharged more than 100 gallons of total categorical wastewater on any given day during this reporting period. This compliance certification is based upon the following information:

(r) The Control Authority that chooses to receive electronic documents must satisfy the requirements of 40 CFR part 3—(Electronic reporting).

[46 FR 9439, Jan. 28, 1981, as amended at 49 FR 31225, Aug. 3, 1984; 51 FR 20429, June 4, 1986; 53 FR 40613, Oct. 17, 1988; 55 FR 30131, July 24, 1990; 58 FR 18017, Apr. 7, 1993; 60 FR 33932, June 29, 1995; 62 FR 38414, July 17, 1997; 70 FR 59889, Oct. 13, 2005; 70 FR 60195, Oct. 14, 2005; 80 FR 64157 Oct. 22, 2015]

[↑ Back to Top](#)

§403.13 Variances from categorical pretreatment standards for fundamentally different factors.

(a) *Definition.* The term *Requester* means an Industrial User or a POTW or other interested person seeking a variance from the limits specified in a categorical Pretreatment Standard.

(b) *Purpose and scope.* In establishing categorical Pretreatment Standards for existing sources, the EPA will take into account all the information it can collect, develop and solicit regarding the factors relevant to pretreatment standards under section 307(b). In some cases, information which may affect these Pretreatment Standards will not be available or, for other reasons, will not be considered during their development. As a result, it may be necessary on a case-by-case basis to adjust the limits in categorical Pretreatment Standards, making them either more or less stringent, as they apply to a certain Industrial User within an industrial category or subcategory. This will only be done if data specific to that Industrial User indicates it presents factors fundamentally different from those considered by EPA in developing the limit at issue. Any interested person believing that factors relating to an Industrial User are fundamentally different from the factors considered during development of a categorical Pretreatment Standard applicable to that User and further, that the existence of those factors justifies a different discharge limit than specified in the applicable categorical Pretreatment Standard, may request a fundamentally different factors variance under this section or such a variance request may be initiated by the EPA.

(c) *Criteria—(1) General criteria.* A request for a variance based upon fundamentally different factors shall be approved only if:

(i) There is an applicable categorical Pretreatment Standard which specifically controls the pollutant for which alternative limits have been requested; and

(ii) Factors relating to the discharge controlled by the categorical Pretreatment Standard are fundamentally different from the factors considered by EPA in establishing the Standards; and

(iii) The request for a variance is made in accordance with the procedural requirements in paragraphs (g) and (h) of this section.

(2) *Criteria applicable to less stringent limits.* A variance request for the establishment of limits less stringent than required by the Standard shall be approved only if:

(i) The alternative limit requested is no less stringent than justified by the fundamental difference;

(ii) The alternative limit will not result in a violation of prohibitive discharge standards prescribed by or established under §403.5;

(iii) The alternative limit will not result in a non-water quality environmental impact (including energy requirements) fundamentally more adverse than the impact considered during development of the Pretreatment Standards; and

(iv) Compliance with the Standards (either by using the technologies upon which the Standards are based or by using other control alternatives) would result in either:

(A) A removal cost (adjusted for inflation) wholly out of proportion to the removal cost considered during development of the Standards; or

(B) A non-water quality environmental impact (including energy requirements) fundamentally more adverse than the impact considered during development of the Standards.

(3) *Criteria applicable to more stringent limits.* A variance request for the establishment of limits more stringent than required by the Standards shall be approved only if:

(i) The alternative limit request is no more stringent than justified by the fundamental difference; and

(ii) Compliance with the alternative limit would not result in either:

(A) A removal cost (adjusted for inflation) wholly out of proportion to the removal cost considered during development of the Standards; or

(B) A non-water quality environmental impact (including energy requirements) fundamentally more adverse than the impact considered during development of the Standards.

(d) *Factors considered fundamentally different.* Factors which may be considered fundamentally different are:

(1) The nature or quality of pollutants contained in the raw waste load of the User's process wastewater;

(2) The volume of the User's process wastewater and effluent discharged;

(3) Non-water quality environmental impact of control and treatment of the User's raw waste load;

(4) Energy requirements of the application of control and treatment technology;

(5) Age, size, land availability, and configuration as they relate to the User's equipment or facilities; processes employed; process changes; and engineering aspects of the application of control technology;

(6) Cost of compliance with required control technology.

(e) *Factors which will not be considered fundamentally different.* A variance request or portion of such a request under this section may not be granted on any of the following grounds:

(1) The feasibility of installing the required waste treatment equipment within the time the Act allows;

(2) The assertion that the Standards cannot be achieved with the appropriate waste treatment facilities installed, if such assertion is not based on factors listed in paragraph (d) of this section;

(3) The User's ability to pay for the required waste treatment; or

(4) The impact of a Discharge on the quality of the POTW's receiving waters.

(f) *State or local law.* Nothing in this section shall be construed to impair the right of any state or locality under section 510 of the Act to impose more stringent limitations than required by Federal law.

(g) *Application deadline.* (1) Requests for a variance and supporting information must be submitted in writing to the Director or to the Administrator (or his delegate), as appropriate.

(2) In order to be considered, a request for a variance must be submitted no later than 180 days after the date on which a categorical Pretreatment Standard is published in the FEDERAL REGISTER.

(3) Where the User has requested a categorical determination pursuant to §403.6(a), the User may elect to await the results of the category determination before submitting a variance request under this section. Where the User so elects, he or she must submit the variance request within 30 days after a final decision has been made on the categorical determination pursuant to §403.6(a)(4).

(h) *Contents submission*. Written submissions for variance requests, whether made to the Administrator (or his delegate) or the Director, must include:

(1) The name and address of the person making the request;

(2) Identification of the interest of the Requester which is affected by the categorical Pretreatment Standard for which the variance is requested;

(3) Identification of the POTW currently receiving the waste from the Industrial User for which alternative discharge limits are requested;

(4) Identification of the categorical Pretreatment Standards which are applicable to the Industrial User;

(5) A list of each pollutant or pollutant parameter for which an alternative discharge limit is sought;

(6) The alternative discharge limits proposed by the Requester for each pollutant or pollutant parameter identified in paragraph (h)(5) of this section;

(7) A description of the Industrial User's existing water pollution control facilities;

(8) A schematic flow representation of the Industrial User's water system including water supply, process wastewater systems, and points of Discharge; and

(9) A Statement of facts clearly establishing why the variance request should be approved, including detailed support data, documentation, and evidence necessary to fully evaluate the merits of the request, e.g., technical and economic data collected by the EPA and used in developing each pollutant discharge limit in the Pretreatment Standard.

(i) *Deficient requests*. The Administrator (or his delegate) or the Director will only act on written requests for variances that contain all of the information required. Persons who have made incomplete submissions will be notified by the Administrator (or his delegate) or the Director that their requests are deficient and unless the time period is extended, will be given up to thirty days to remedy the deficiency. If the deficiency is not corrected within the time period allowed by the Administrator (or his delegate) or the Director, the request for a variance shall be denied.

(j) *Public notice*. Upon receipt of a complete request, the Administrator (or his delegate) or the Director will provide notice of receipt, opportunity to review the submission, and opportunity to comment.

(1) The public notice shall be circulated in a manner designed to inform interested and potentially interested persons of the request. Procedures for the circulation of public notice shall include mailing notices to:

(i) The POTW into which the Industrial User requesting the variance discharges;

(ii) Adjoining States whose waters may be affected; and

(iii) Designated 208 planning agencies, Federal and State fish, shellfish and wildlife resource agencies; and to any other person or group who has requested individual notice, including those on appropriate mailing lists.

(2) The public notice shall provide for a period not less than 30 days following the date of the public notice during which time interested persons may review the request and submit their written views on the request.

(3) Following the comment period, the Administrator (or his delegate) or the Director will make a determination on the request taking into consideration any comments received. Notice of this final decision shall be provided to the requester (and the Industrial User for which the variance is requested if different), the POTW into which the Industrial User discharges and all persons who submitted comments on the request.

(k) *Review of requests by state*. (1) Where the Director finds that fundamentally different factors do not exist, he may deny the request and notify the requester (and Industrial User where they are not the same) and the POTW of the denial.

(2) Where the Director finds that fundamentally different factors do exist, he shall forward the request, with a recommendation that the request be approved, to the Administrator (or his delegate).

(l) *Review of requests by EPA.* (1) Where the Administrator (or his delegate) finds that fundamentally different factors do not exist, he shall deny the request for a variance and send a copy of his determination to the Director, to the POTW, and to the requester (and to the Industrial User, where they are not the same).

(2) Where the Administrator (or his delegate) finds that fundamentally different factors do exist, and that a partial or full variance is justified, he will approve the variance. In approving the variance, the Administrator (or his delegate) will:

(i) Prepare recommended alternative discharge limits for the Industrial User either more or less stringent than those prescribed by the applicable categorical Pretreatment Standard to the extent warranted by the demonstrated fundamentally different factors;

(ii) Provide the following information in his written determination:

(A) The recommended alternative discharge limits for the Industrial User concerned;

(B) The rationale for the adjustment of the Pretreatment Standard (including the reasons for recommending that the variance be granted) and an explanation of how the recommended alternative discharge limits were derived;

(C) The supporting evidence submitted to the Administrator (or his delegate); and

(D) Other information considered by the Administrator (or his delegate) in developing the recommended alternative discharge limits;

(iii) Notify the Director and the POTW of his or her determination; and

(iv) Send the information described in paragraphs (l)(2) (i) and (ii) of this section to the Requestor (and to the Industrial User where they are not the same).

(m) *Request for hearing.* (1) Within 30 days following the date of receipt of the notice of the decision of the Administrator's delegate on a variance request, the requester or any other interested person may submit a petition to the Regional Administrator for a hearing to reconsider or contest the decision. If such a request is submitted by a person other than the Industrial User the person shall simultaneously serve a copy of the request on the Industrial User.

(2) If the Regional Administrator declines to hold a hearing and the Regional Administrator affirms the findings of the Administrator's delegate the requester may submit a petition for a hearing to the Environmental Appeals Board (which is described in §1.25 of this title) within 30 days of the Regional Administrator's decision.

[46 FR 9439, Jan. 28, 1981, as amended at 49 FR 5132, Feb. 10, 1984; 50 FR 38811, Sept. 25, 1985; 51 FR 16030, Apr. 30, 1986; 54 FR 258, Jan. 4, 1989; 57 FR 5347, Feb. 13, 1992; 58 FR 18017, Apr. 7, 1993; 60 FR 33932, June 29, 1995; 70 FR 60198, Oct. 14, 2005]

[↑ Back to Top](#)

§403.14 Confidentiality.

(a) *EPA authorities.* In accordance with 40 CFR part 2, any information submitted to EPA pursuant to these regulations may be claimed as confidential by the submitter. Any such claim must be asserted at the time of submission in the manner prescribed on the application form or instructions, or, in the case of other submissions, by stamping the words "confidential business information" on each page containing such information. If no claim is made at the time of submission, EPA may make the information available to the public without further notice. If a claim is asserted, the information will be treated in accordance with the procedures in 40 CFR part 2 (Public Information).

(b) *Effluent data.* Information and data provided to the Control Authority pursuant to this part which is effluent data shall be available to the public without restriction.

(c) *State or POTW.* All other information which is submitted to the State or POTW shall be available to the public at least to the extent provided by 40 CFR 2.302.

[↑ Back to Top](#)

§403.15 Net/Gross calculation.

(a) *Application.* Categorical Pretreatment Standards may be adjusted to reflect the presence of pollutants in the Industrial User's intake water in accordance with this section. Any Industrial User wishing to obtain credit for intake pollutants must make

application to the Control Authority. Upon request of the Industrial User, the applicable Standard will be calculated on a “net” basis (*i.e.*, adjusted to reflect credit for pollutants in the intake water) if the requirements of paragraph (b) of this section are met.

(b) *Criteria.* (1) Either:

(i) The applicable categorical Pretreatment Standards contained in 40 CFR subchapter N specifically provide that they shall be applied on a net basis; or

(ii) The Industrial User demonstrates that the control system it proposes or uses to meet applicable categorical Pretreatment Standards would, if properly installed and operated, meet the Standards in the absence of pollutants in the intake waters.

(2) Credit for generic pollutants such as biochemical oxygen demand (BOD), total suspended solids (TSS), and oil and grease should not be granted unless the Industrial User demonstrates that the constituents of the generic measure in the User's effluent are substantially similar to the constituents of the generic measure in the intake water or unless appropriate additional limits are placed on process water pollutants either at the outfall or elsewhere.

(3) Credit shall be granted only to the extent necessary to meet the applicable categorical Pretreatment Standard(s), up to a maximum value equal to the influent value. Additional monitoring may be necessary to determine eligibility for credits and compliance with Standard(s) adjusted under this section.

(4) Credit shall be granted only if the User demonstrates that the intake water is drawn from the same body of water as that into which the POTW discharges. The Control Authority may waive this requirement if it finds that no environmental degradation will result.

[70 FR 60198, Oct. 14, 2005]

[↑ Back to Top](#)

§403.16 Upset provision.

(a) *Definition.* For the purposes of this section, *Upset* means an exceptional incident in which there is unintentional and temporary noncompliance with categorical Pretreatment Standards because of factors beyond the reasonable control of the Industrial User. An Upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

(b) *Effect of an upset.* An Upset shall constitute an affirmative defense to an action brought for noncompliance with categorical Pretreatment Standards if the requirements of paragraph (c) are met.

(c) *Conditions necessary for a demonstration of upset.* An Industrial User who wishes to establish the affirmative defense of Upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

(1) An Upset occurred and the Industrial User can identify the cause(s) of the Upset;

(2) The facility was at the time being operated in a prudent and workman-like manner and in compliance with applicable operation and maintenance procedures;

(3) The Industrial User has submitted the following information to the POTW and Control Authority within 24 hours of becoming aware of the Upset (if this information is provided orally, a written submission must be provided within five days):

(i) A description of the Indirect Discharge and cause of noncompliance;

(ii) The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue;

(iii) Steps being taken and/or planned to reduce, eliminate and prevent recurrence of the noncompliance.

(d) *Burden of proof.* In any enforcement proceeding the Industrial User seeking to establish the occurrence of an Upset shall have the burden of proof.

(e) *Reviewability of agency consideration of claims of upset.* In the usual exercise of prosecutorial discretion, Agency enforcement personnel should review any claims that non-compliance was caused by an Upset. No determinations made in the course of the review constitute final Agency action subject to judicial review. Industrial Users will have the opportunity for a judicial determination on any claim of Upset only in an enforcement action brought for noncompliance with categorical Pretreatment Standards.

(f) *User responsibility in case of upset.* The Industrial User shall control production or all Discharges to the extent necessary to maintain compliance with categorical Pretreatment Standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails.

[46 FR 9439, Jan. 28, 1981, as amended at 53 FR 40615, Oct. 17, 1988]

[↑ Back to Top](#)

§403.17 Bypass.

(a) *Definitions.* (1) *Bypass* means the intentional diversion of wastestreams from any portion of an Industrial User's treatment facility.

(2) *Severe property damage* means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(b) *Bypass not violating applicable Pretreatment Standards or Requirements.* An Industrial User may allow any bypass to occur which does not cause Pretreatment Standards or Requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of paragraphs (c) and (d) of this section.

(c) *Notice.* (1) If an Industrial User knows in advance of the need for a bypass, it shall submit prior notice to the Control Authority, if possible at least ten days before the date of the bypass.

(2) An Industrial User shall submit oral notice of an unanticipated bypass that exceeds applicable Pretreatment Standards to the Control Authority within 24 hours from the time the Industrial User becomes aware of the bypass. A written submission shall also be provided within 5 days of the time the Industrial User becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The Control Authority may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.

(d) *Prohibition of bypass.* (1) Bypass is prohibited, and the Control Authority may take enforcement action against an Industrial User for a bypass, unless;

(i) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(ii) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

(iii) The Industrial User submitted notices as required under paragraph (c) of this section.

(2) The Control Authority may approve an anticipated bypass, after considering its adverse effects, if the Control Authority determines that it will meet the three conditions listed in paragraph (d)(1) of this section.

[53 FR 40615, Oct. 17, 1988, as amended at 58 FR 18017, Apr. 7, 1993]

[↑ Back to Top](#)

§403.18 Modification of POTW pretreatment programs.

(a) *General.* Either the Approval Authority or a POTW with an approved POTW Pretreatment Program may initiate program modification at any time to reflect changing conditions at the POTW. Program modification is necessary whenever there is a significant change in the operation of a POTW Pretreatment Program that differs from the information in the POTW's submission, as approved under §403.11.

(b) *Substantial modifications defined.* Substantial modifications include:

(1) Modifications that relax POTW legal authorities (as described in §403.8(f)(1)), except for modifications that directly reflect a revision to this part 403 or to 40 CFR chapter I, subchapter N, and are reported pursuant to paragraph (d) of this section;

(2) Modifications that relax local limits, except for the modifications to local limits for pH and reallocations of the Maximum Allowable Industrial Loading of a pollutant that do not increase the total industrial loadings for the pollutant, which are reported pursuant to paragraph (d) of this section. Maximum Allowable Industrial Loading means the total mass of a pollutant that all Industrial Users of a POTW (or a subgroup of Industrial Users identified by the POTW) may discharge pursuant to limits developed under §403.5(c);

(3) Changes to the POTW's control mechanism, as described in §403.8(f)(1)(iii);

(4) A decrease in the frequency of self-monitoring or reporting required of industrial users;

(5) A decrease in the frequency of industrial user inspections or sampling by the POTW;

(6) Changes to the POTW's confidentiality procedures; and

(7) Other modifications designated as substantial modifications by the Approval Authority on the basis that the modification could have a significant impact on the operation of the POTW's Pretreatment Program; could result in an increase in pollutant loadings at the POTW; or could result in less stringent requirements being imposed on Industrial Users of the POTW.

(c) *Approval procedures for substantial modifications.* (1) The POTW shall submit to the Approval Authority a statement of the basis for the desired program modification, a modified program description (see §403.9(b)), or such other documents the Approval Authority determines to be necessary under the circumstances.

(2) The Approval Authority shall approve or disapprove the modification based on the requirements of §403.8(f) and using the procedures in §403.11(b) through (f), except as provided in paragraphs (c) (3) and (4) of this section. The modification shall become effective upon approval by the Approval Authority.

(3) The Approval Authority need not publish a notice of decision under §403.11(e) provided: The notice of request for approval under §403.11(b)(1) states that the request will be approved if no comments are received by a date specified in the notice; no substantive comments are received; and the request is approved without change.

(4) Notices required by §403.11 may be performed by the POTW provided that the Approval Authority finds that the POTW notice otherwise satisfies the requirements of §403.11.

(d) *Approval procedures for non-substantial modifications.* (1) The POTW shall notify the Approval Authority of any non-substantial modification at least 45 days prior to implementation by the POTW, in a statement similar to that provided for in paragraph (c)(1) of this section.

(2) Within 45 days after the submission of the POTW's statement, the Approval Authority shall notify the POTW of its decision to approve or disapprove the non-substantial modification.

(3) If the Approval Authority does not notify the POTW within 45 days of its decision to approve or deny the modification, or to treat the modification as substantial under paragraph (b)(7) of this section, the POTW may implement the modification.

(e) *Incorporation in permit.* All modifications shall be incorporated into the POTW's NPDES permit upon approval. The permit will be modified to incorporate the approved modification in accordance with 40 CFR 122.63(g).

[62 FR 38414, July 17, 1997]

[↑ Back to Top](#)

§403.19 Provisions of specific applicability to the Owatonna Waste Water Treatment Facility.

(a) For the purposes of this section, the term "Participating Industrial Users" includes the following Industrial Users in the City of Owatonna, Minnesota: Crown Cork and Seal Company, Inc.; Cybex International Inc.; Josten's Inc.—Southtown Facility; SPx Corporation, Service Solutions Division; Truth Hardware Corporation; and Uber Tanning Company.

(b) For a Participating Industrial User discharging to the Owatonna Waste Water Treatment Facility in Owatonna, Minnesota, when a categorical Pretreatment Standard is expressed in terms of pollutant concentration the City of Owatonna may convert the limit to a mass limit by multiplying the five-year, long-term average process flows of the Participating Industrial User (or a shorter period if production has significantly increased or decreased during the five year period) by the concentration-based categorical Pretreatment Standard. Participating Industrial Users must notify the City in the event production rates are expected to vary by more than 20 percent from a baseline production rate determined by Owatonna when it establishes a Participating Industrial User's initial mass limit. To remain eligible to receive equivalent mass limits the Participating Industrial User must maintain at least the same level of treatment as at the time the equivalent mass limit is established. Upon notification of a revised production rate from a Participating Industrial User, the City will reassess the appropriateness of the mass limit.

Owatonna shall reestablish the concentration-based limit if a Participating Industrial User does not maintain at least the same level of treatment as when the equivalent mass limit was established.

(c) If a categorical Participating Industrial User of the Owatonna Waste Water Treatment Facility has demonstrated through sampling and other technical factors, including a comparison of three years of effluent data with background data, that pollutants regulated through categorical Pretreatment Standards, other than 40 CFR part 414, are not expected to be present in quantities greater than the background influent concentration to the industrial process, the City of Owatonna may reduce the sampling frequency specified in §403.8(f)(2)(v) to once during the term of the categorical Participating Industrial User's permit.

(d) If a Participating Industrial User is discharging to the Owatonna Waste Water Treatment Facility in Owatonna, Minnesota and is subject to a categorical Pretreatment Standard other than one codified at 40 CFR part 414, the City of Owatonna may authorize the Participating Industrial User to forego sampling of a pollutant if the Participating Industrial User has demonstrated through sampling and other technical factors, including a comparison of three years of effluent data with background data, that the pollutant is not expected to be present in quantities greater than the background influent concentration to the industrial process, and the Participating Industrial User certifies on each report, with the following statement, that there has been no increase in the pollutant in its wastestream due to activities of the Participating Industrial User. The following statement is to be included as a comment to the periodic reports required by §403.12(e):

"Based on my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for 40 CFR ___, I certify that, to the best of my knowledge and belief, the raw materials, industrial processes, and potential by-products have not contributed this pollutant to the wastewaters since filing of the last periodic report under 40 CFR 403.12(e)."

(e) If the average daily loading from the Participating Industrial Users to the Owatonna Waste Water Treatment Facility is equal to or less than 0.68 pounds per day of chromium, 0.25 pounds per day of copper, 1.17 pounds per day of nickel, and 1.01 pounds per day of zinc, Owatonna may authorize a categorical Participating Industrial User to satisfy the reporting requirements of §403.12(e) with an annual report provided on a date specified by Owatonna, provided that the Participating Industrial User has no reasonable potential to violate a Pretreatment Standard for any pollutant for which reduced monitoring is being allowed, and has not been in Significant Noncompliance within the previous three years.

(f) The Owatonna Waste Water Treatment Facility in Owatonna, Minnesota shall post public notice of all Significant Noncompliance subject to the publication requirement in §403.8(f)(2)(vii) at the Minnesota Pollution Control Agency website for a period of one year, as soon as practicable upon identifying the violations. In addition, the Owatonna Waste Water Treatment Facility shall post an explanation of how Significant Noncompliance is determined, and a contact name and phone number for information regarding other, non-Significant Noncompliance violations. If a violation is not corrected within thirty (30) calendar days or results in pass through or interference at the Owatonna Waste Water Treatment Facility, publication must also be made in the format specified in §403.8(f)(2)(vii).

(g) The provisions of this section shall expire on October 6, 2005.

[65 FR 59747, Oct. 6, 2000]

[↑ Back to Top](#)

§403.20 Pretreatment Program Reinvention Pilot Projects Under Project XL.

The Approval Authority may allow any publicly owned treatment works (POTW) that has a final "Project XL" agreement to implement a Pretreatment Program that includes legal authorities and requirements that are different than the administrative requirements otherwise applicable under this part. The POTW must submit any such alternative requirements as a substantial program modification in accordance with the procedures outlined in §403.18. The approved modified program must be incorporated as an enforceable part of the POTW's NPDES permit. The Approval Authority must include a reopener clause in the POTW's NPDES permit that directs the POTW to discontinue implementing the approved alternative requirements and resume implementation of its previously approved pretreatment program if the Approval Authority determines that the primary objectives of the Local Pilot Pretreatment Program are not being met or the "Project XL" agreement expires or is otherwise terminated.

[66 FR 50339, Oct. 3, 2001]

[↑ Back to Top](#)

Appendixes A-C to Part 403 [Reserved]

[↑ Back to Top](#)

Appendix D to Part 403—Selected Industrial Subcategories Considered Dilute for Purposes of the Combined Wastestream Formula

The following industrial subcategories are considered to have dilute wastestreams for purposes of the combined wastestream formula. They either were or could have been excluded from categorical pretreatment standards pursuant to paragraph 8 of the Natural Resources Defense Council, Inc., et al. v. Costle Consent Decree for one or more of the following four reasons: (1) The pollutants of concern are not detectable in the effluent from the industrial user (paragraph 8(a)(iii)); (2) the pollutants of concern are present only in trace amounts and are neither causing nor likely to cause toxic effects (paragraph 8(a)(iii)); (3) the pollutants of concern are present in amounts too small to be effectively reduced by technologies known to the Administrator (paragraph 8(a)(iii)); or (4) the wastestream contains only pollutants which are compatible with the POTW (paragraph 8(b)(i)). In some instances, different rationales were given for exclusion under paragraph 8. However, EPA has reviewed these subcategories and has determined that exclusion could have occurred due to one of the four reasons listed above.

This list is complete as of October 9, 1986. It will be updated periodically for the convenience of the reader.

Auto and Other Laundries (40 CFR part 444)

- Carpet and Upholstery Cleaning
- Coin-Operated Laundries and Dry Cleaning
- Diaper Services
- Dry Cleaning Plants except Rug Cleaning
- Industrial Laundries
- Laundry and Garment Services, Not Elsewhere Classified
- Linen Supply
- Power Laundries, Family and Commercial

*Electrical and Electronic Components*¹ (40 CFR part 469)

¹The Paragraph 8 exemption for the manufacture of products in the Electrical and Electronic Components Category is for operations not covered by Electroplating/Metal Finishing pretreatment regulations (40 CFR parts 413/433).

- Capacitors (Fluid Fill)
- Carbon and Graphite Products
- Dry Transformers
- Ferrite Electronic Devices
- Fixed Capacitors
- Fluorescent Lamps
- Fuel Cells
- Incandescent Lamps
- Magnetic Coatings
- Mica Paper Dielectric
- Motors, Generators, Alternators
- Receiving and Transmitting Tubes
- Resistance Heaters
- Resistors
- Switchgear
- Transformer (Fluid Fill)

Metal Molding and Casting (40 CFR part 464)

- Nickel Casting
- Tin Casting

Titanium Casting

Gum and Wood Chemicals (40 CFR part 454)

Char and Charcoal Briquets

Inorganic Chemicals Manufacturing (40 CFR part 415)

Ammonium Chloride

Ammonium Hydroxide

Barium Carbonate

Calcium Carbonate

Carbon Dioxide

Carbon Monoxide and Byproduct Hydrogen

Hydrochloric Acid

Hydrogen Peroxide (Organic Process)

Nitric Acid

Oxygen and Nitrogen

Potassium Iodide

Sodium Chloride (Brine Mining Process)

Sodium Hydrosulfide

Sodium Hydrosulfite

Sodium Metal

Sodium Silicate

Sodium Thiosulfate

Sulfur Dioxide

Sulfuric Acid

Leather (40 CFR part 425)

Gloves

Luggage

Paving and Roofing (40 CFR part 443)

Asphalt Concrete

Asphalt Emulsion

Linoleum

Printed Asphalt Felt

Roofing

Pulp, Paper, and Paperboard, and Builders' Paper and Board Mills (40 CFR parts 430 and 431)

Groundwood-Chemi-Mechanical

Rubber Manufacturing (40 CFR part 428)

Tire and Inner Tube Plants

Emulsion Crumb Rubber

Solution Crumb Rubber

Latex Rubber

Small-sized General Molded, Extruded and Fabricated Rubber Plants,²

²Footnote: Except for production attributed to lead-sheathed hose manufacturing operations.

Medium-sized General Molded, Extruded and Fabricated Rubber Plants²

Large-sized General Molded, Extruded and Fabricated Rubber Plants²

Wet Digestion Reclaimed Rubber

Pan, Dry Digestion, and Mechanical Reclaimed Rubber

Latex Dipped, Latex-Extruded, and Latex-Molded Rubber³

³Footnote: Except for production attributed to chromic acid form-cleaning operations.

Latex Foam⁴

⁴Footnote: Except for production that generates zinc as a pollutant in discharge.

Soap and Detergent Manufacturing (40 CFR part 417)

Soap Manufacture by Batch Kettle

Fatty Acid Manufacture by Fat Splitting

Soap Manufacture by Fatty Acid

Neutralization

Glycerine Concentration

Glycerine Distillation

Manufacture of Soap Flakes and Powders

Manufacture of Bar Soaps

Manufacture of Liquid Soaps

Manufacture of Spray Dried Detergents

Manufacture of Liquid Detergents

Manufacture of Dry Blended Detergents

Manufacture of Drum Dried Detergents

Manufacture of Detergent Bars and Cakes

Textile Mills (40 CFR part 410)

Apparel manufacturing

Cordage and Twine

Padding and Upholstery Filling

Timber Products Processing (40 CFR part 429)

Barking Process

Finishing Processes

Hardboard—Dry Process

[51 FR 36372, Oct. 9, 1986]

[↑ Back to Top](#)

Appendix E to Part 403—Sampling Procedures

I. COMPOSITE METHOD

A. It is recommended that influent and effluent operational data be obtained through 24-hour flow proportional composite samples. Sampling may be done manually or automatically, and discretely or continuously. If discrete sampling is employed, at least 12 aliquots should be composited. Discrete sampling may be flow proportioned either by varying the time interval between each aliquot or the volume of each aliquot. All composites should be flow proportional to either the stream flow at the time of collection of the influent aliquot or to the total influent flow since the previous influent aliquot. Volatile pollutant aliquots must be combined in the laboratory immediately before analysis.

B. Effluent sample collection need not be delayed to compensate for hydraulic detention unless the POTW elects to include detention time compensation or unless the Approval Authority requires detention time compensation. The Approval Authority may require that each effluent sample is taken approximately one detention time later than the corresponding influent sample when failure to do so would result in an unrepresentative portrayal of actual POTW operation. The detention period should be based on a 24-hour average daily flow value. The average daily flow should in turn be based on the average of the daily flows during the same month of the previous year.

II. GRAB METHOD

If composite sampling is not an appropriate technique, grab samples should be taken to obtain influent and effluent operational data. A grab sample is an individual sample collected over a period of time not exceeding 15 minutes. The collection of influent grab samples should precede the collection of effluent samples by approximately one detention period except that where the detention period is greater than 24 hours such staggering of the sample collection may not be necessary or appropriate. The detention period should be based on a 24-hour average daily flow value. The average daily flow should in turn be based upon the average of the daily flows during the same month of the previous year. Grab sampling should be employed where the pollutants being evaluated are those, such as cyanide and phenol, which may not be held for an extended period because of biological, chemical or physical interaction which take place after sample collection and affect the results.

[49 FR 31225, Aug. 3, 1984]

[↑ Back to Top](#)

Appendix F to Part 403 [Reserved]

[↑ Back to Top](#)

Appendix G to Part 403—Pollutants Eligible for a Removal Credit

I. REGULATED POLLUTANTS IN PART 503 ELIGIBLE FOR A REMOVAL CREDIT

Pollutants	Use or disposal practice		
	LA	SD	I
Arsenic	X	X	X
Beryllium			X
Cadmium	X		X
Chromium		X	X
Copper	X		
Lead	X		X
Mercury	X		X
Molybdenum	X		
Nickel	X	X	X
Selenium	X		
Zinc	X		
Total hydrocarbons			X ¹

Key:

LA—land application.

SD—surface disposal site without a liner and leachate collection system.

I—firing of sewage sludge in a sewage sludge incinerator.

¹The following organic pollutants are eligible for a removal credit if the requirements for total hydrocarbons (or carbon monoxide) in subpart E in 40 CFR part 503 are met when sewage sludge is fired in a sewage sludge incinerator: Acrylonitrile, Idrin/Dieldrin(total), Benzene, Benzidine, Benzo(a)pyrene, Bis(2-chloroethyl)ether, Bis(2-ethylhexyl)phthalate, Bromodichloromethane, Bromoethane, Bromoform, Carbon tetrachloride, Chlordane, Chloroform, Chloromethane, DDD, DDE, DDT, Dibromochloromethane, Dibutyl phthalate, 1,2-dichloroethane, 1,1-dichloroethylene, 2,4-dichlorophenol, 1,3-dichloropropene, Diethyl phthalate, 2,4-dinitrophenol, 1,2-diphenylhydrazine, Din-butyl phthalate, Endosulfan, Endrin,

Ethylbenzene, Heptachlor, Heptachlor epoxide, Hexachlorobutadiene, Alphahexachlorocyclohexane, Beta-hexachlorocyclohexane, Hexachlorocyclopentadiene, Hexachloroethane, Hydrogen cyanide, Isophorone, Lindane, Methylene chloride, Nitrobenzene, N-Nitrosodimethylamine, N-Nitrosodi-n-propylamine, Pentachlorophenol, Phenol, Polychlorinated biphenyls, 2,3,7,8-tetrachlorodibenzo-p-dioxin, 1,1,2,2,-tetrachloroethane, Tetrachloroethylene, Toluene, Toxaphene, Trichloroethylene, 1,2,4-Trichlorobenzene, 1,1,1-Trichloroethane, 1,1,2-Trichloroethane, and 2,4,6-Trichlorophenol.

II. ADDITIONAL POLLUTANTS ELIGIBLE FOR A REMOVAL CREDIT

[Milligrams per kilogram—dry weight basis]

Pollutant	Use or disposal practice			
	LA	Surface disposal		I
		Unlined ¹	Lined ²	
Arsenic			³ 100	
Aldrin/Dieldrin (Total)	2.7			
Benzene	³ 16	140	3400	
Benzo(a)pyrene	15	³ 100	³ 100	
Bis(2-ethylhexyl)phthalate		³ 100	³ 100	
Cadmium		³ 100	³ 100	
Chlordane	86	³ 100	³ 100	
Chromium (total)	³ 100		³ 100	
Copper		³ 46	100	1400
DDD, DDE, DDT (Total)	1.2	2000	2000	
2,4 Dichlorophenoxy-acetic acid		7	7	
Fluoride	730			
Heptachlor	7.4			
Hexachlorobenzene	29			
Hexachlorobutadiene	600			
Iron	³ 78			
Lead		³ 100	³ 100	
Lindane	84	³ 28	³ 28	
Malathion		0.63	0.63	
Mercury		³ 100	³ 100	
Molybdenum		40	40	
Nickel			³ 100	
N-Nitrosodimethylamine	2.1	0.088	0.088	
Pentachlorophenol	30			
Phenol		82	82	
Polychlorinated biphenyls	4.6	<50	<50	
Selenium		4.8	4.8	4.8
Toxaphene	10	³ 26	³ 26	
Trichloroethylene	³ 10	9500	³ 10	
Zinc		4500	4500	4500

¹Active sewage sludge unit without a liner and leachate collection system.

²Active sewage sludge unit with a liner and leachate collection system.

³Value expressed in grams per kilogram—dry weight basis.

KEY: LA—land application.

I—incineration.

[60 FR 54768, Oct. 25, 1995, as amended at 65 FR 42567, Aug. 4, 1999; 70 FR 60198, Oct. 14, 2005]

[↑ Back to Top](#)

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APPENDIX B: MI PART 23 RULES

DEPARTMENT OF ENVIRONMENTAL QUALITY

ENVIRONMENTAL RESPONSE DIVISION

GENERAL RULES

(By authority conferred on the water resources commission by sections 2 and 5 of Act No. 245 of the Public Acts of 1929, as amended, sections 33 and 63 of Act No. 306 of the Public Acts of 1969, as amended, and Executive Order No. 1976-8a, being §§323.2, 323.5, 24.233, and 24.263 of the Michigan Compiled Laws)

PART 23. PRETREATMENT

R 323.2301 Purpose and applicability.

Rule 1. (1) These rules are promulgated to implement the pretreatment responsibilities under the clean water act and the act. These rules establish responsibilities of state and local government, industry, and the public to control pollutants which pass-through or interfere with treatment processes in publicly owned treatment works, which may contaminate sewage sludge, or which cause publicly owned treatment works' worker health and safety problems.

(2) These rules apply to nondomestic users that discharge pollutants to a publicly owned treatment works either directly or indirectly, including by truck, rail, or any other means of discharge, and apply to publicly owned treatment works that receive pollutants from nondomestic users which are subject to pretreatment standards.

History: 1995 AACs.

R 323.2302 Definitions.

Rule 2. As used in this part:

(a) "Act" means sections 3101 to 3119 of Act No. 451 of the Public Acts of 1994, as amended, being §§324.3101 to 324.3119 of the Michigan Compiled Laws.

(b) "Approval authority" means the department of natural resources.

(c) "Approved program" or "approved pretreatment program" or "publicly owned treatment works' pretreatment program" means a program administered by a publicly owned treatment works which meets the criteria established in R 323.2306 and which has been approved by the approval authority in accordance with R 323.2308.

(d) "Average daily flow" means a reasonable measure of the average daily flow for a 30-day period.

(e) "Bypass" means the intentional diversion of wastestreams from any portion of an industrial user's treatment facility needed for compliance with pretreatment standards.

(f) "Categorical industrial user" means all nondomestic users subject to categorical pretreatment standards.

(g) "Categorical pretreatment standard" or "categorical standard" means any regulation containing pollutant discharge limits promulgated by the E.P.A. in accordance with sections 307(b) and (c) of the clean water act, 33 U.S.C. §1317, which apply to a specific category of nondomestic users and which appear in 40 C.F.R. chapter I, subchapter N (1990), parts 405-471.

(h) "Clean water act" means the federal water pollution control act, 33 U.S.C. §1251 et seq., as amended.

(i) "Composite sample" means a collection of individual samples which are obtained at regular intervals, collected on a time-proportional or flow-proportional basis, over a specific time period and which provides a representative sample of the average stream during the sampling period.

(j) "Control authority" means the publicly owned treatment works if it has an approved program or means the approval authority until the publicly owned treatment works' program is approved.

(k) "Department" means the director of the department of natural resources or his or her designee.

(l) "Discharge" means any direct or indirect discharge of any waste, waste effluent, wastewater, pollutant, or any combination into any of the waters of the state or upon the ground.

(m) "E.P.A." means the United States environmental protection agency.

(n) "Grab sample" means a sample is taken from a wastestream on a 1-time basis over a period of time of not more than 15 minutes without regard to the flow in the wastestream.

(o) "Interference" means a discharge, alone or in conjunction with a discharge or discharges from other sources, to which both of the following provisions apply:

(i) The discharge inhibits or disrupts the publicly owned treatment works, its treatment processes or operations, or its sludge processes, use, or disposal.

(ii) Pursuant to paragraph (i) of this subdivision, the discharge is a cause of a violation of any requirement of the publicly owned treatment works' permit, including an increase in the magnitude or duration of a violation, or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder, or more stringent state or local regulations:

(A) Section 405 of the clean water act.

(B) The solid waste disposal act, 42 U.S.C. §6901 et seq., including title II, more commonly referred to as the resource conservation and recovery act, and including state regulations contained in any state

sludge management plan prepared pursuant to subtitle D of the solid waste disposal act.

(C) The clean air act, 42 U.S.C. §7401 et seq.

(D) The toxic substances control act, 15 U.S.C. §2601 et seq.

(E) The marine protection, research, and sanctuaries act, 33 U.S.C. §1401 et seq.

(p) "Local limit" means a specific prohibition or limit set by a publicly owned treatment works on discharges by a nondomestic user.

(q) "Municipality" means a county, city, village, township, district, association, or other public body created by or under state law, or an agency or instrumentality of any of them, having jurisdiction over the disposal of wastewater.

(r) "New source" means any building, structure, facility, or installation from which there is or may be a discharge and for which construction commenced after the publication of proposed pretreatment

standards under section 307(c) of the clean water act will be applicable to the source if the standards are thereafter promulgated in accordance with section 307(c), and if any of the following provisions apply:

(i) The building, structure, facility, or installation is constructed at a site at which no other source is located.

(ii) The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source.

(iii) The production of wastewater-generating processes of the building, structure, facility, or installation is substantially independent of an existing source at the same site. The extent to which the new facility is engaged in the same general type of activity as the existing source and the extent of integration of the new facility with the existing plant should be considered in determining whether the process is substantially independent.

(s) "Nondomestic user" means an industry, commercial establishment, or other entity that discharges wastewater to a publicly owned treatment works other than, or in addition to, sanitary sewage.

(t) "Pass-through" means a discharge that exits a publicly owned treatment works into state waters in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, cause a violation of any requirement of the act.

(u) "Permit" means an authorization, license, or equivalent control document and includes any of the following:

(i) A nondomestic user permit, which is a control document issued by the publicly owned treatment works that controls the wastewater discharges from nondomestic users into the publicly owned treatment works.

(ii) A national pollutant discharge elimination system, which is a permit issued pursuant to section 3112(1) of the act to control wastewater discharges to the surface waters.

(iii) A state permit, which is a permit issued pursuant to section 3112(1) of the act to control wastewater discharges of publicly owned treatment works to the groundwaters.

(v) "Pollutant" means any of the following:

(i) Substances regulated by categorical standards.

(ii) Substances discharged to publicly owned treatment works that are required to be monitored, are limited in the publicly owned treatment works' permit, or are to be identified in the publicly owned treatment works' permit application.

(iii) Substances for which control measures on nondomestic users are necessary to avoid restricting the publicly owned treatment works' approved residuals management program.

(iv) Substances for which control measures on nondomestic users are necessary to avoid operational problems at the publicly owned treatment works.

(v) Substances for which control measures on nondomestic sources are necessary to avoid worker health and safety problems in publicly owned treatment works.

(w) "Pretreatment" means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater before or instead of discharging or otherwise introducing the pollutants into a publicly owned treatment works. The reduction or alteration may be obtained by physical, chemical, or biological processes; process changes; or other means, except for the use of dilution, unless expressly authorized by an applicable pretreatment standard or requirement.

(x) "Pretreatment program" means a nondomestic user waste control program which is required in a publicly owned treatment works' wastewater discharge permit or order of the department and which is developed in accordance with R 323.2306.

(y) "Pretreatment requirements" means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard, imposed on a nondomestic user.

(z) "Pretreatment standard" means any regulation containing pollutant discharge limits promulgated in accordance with section 307(b) and (c) of the clean water act and the act. This term includes prohibited discharges and local limits defined in R 323.2303 and categorical standards.

(aa) "Publicly owned treatment works" means a treatment works that is owned by a municipality and includes any devices and systems used in the storage, treatment, recycling, and reclamation of municipal sewage or industrial wastes of a liquid nature. The term also includes sewers, pipes, and other conveyances if they convey wastewater to a publicly owned treatment works. The term also means the municipality that has jurisdiction over the indirect discharges to, and the discharges from, a treatment works.

(bb) "Sanitary sewage" means water-carried wastes from toilet, kitchen, laundry, bathing, or other facilities used for household purposes.

(cc) "Significant industrial user" means either of the following:

(i) A nondomestic user subject to categorical pretreatment standards under 40 C.F.R. §403 (1992) and 40 C.F.R. chapter I, subchapter N (1990).

(ii) A nondomestic user to which 1 of the following provisions applies:

(A) The user discharges an average of 25,000 gallons per day or more of process wastewater to the publicly owned treatment works, excluding sanitary, noncontact cooling, and boiler blowdown wastewater.

(B) The user contributes a process wastestream that makes up 5% or more of the average dry weather hydraulic or organic capacity of the publicly owned treatment works.

(C) The user is designated as a significant industrial user by the control authority on the basis that the user has a reasonable potential for adversely affecting the publicly owned treatment works' operation or

for violating any pretreatment standard or requirement.

(iii) Upon a finding that a nondomestic user meeting the criteria in paragraph (ii) of this subdivision has no reasonable potential for adversely affecting the publicly owned treatment works' operation or for violating any pretreatment standard or requirement, the control authority may, at any time, on its own initiative or in response to a petition received from a nondomestic user or publicly owned treatment works, determine that a nondomestic user is not a significant nondomestic user.

(dd) "Significant noncompliance" means any of the following:

(i) Chronic violations of wastewater discharge limits, defined as results of analyses in which 66% or more of all of the measurements taken during a 6-month period exceed, by any magnitude, the daily maximum limit or the average limit for the same pollutant parameter.

(ii) Technical review criteria violations, defined as results of analyses in which 33% or more of all of the measurements for each pollutant parameter taken during a 6-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable technical review criteria. Technical review criteria equals 1.4 for conventional pollutants and 1.2 for all other pollutants, except pH.

(iii) Any other violation of a pretreatment effluent limit, daily maximum, or longer-term average that the control authority determines has caused, alone or in combination with other discharges, interference or pass-through, including endangering the health of publicly owned treatment works' personnel or the general public.

(iv) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or the environment or has resulted in the publicly owned treatment works' exercise of its emergency authority under R 323.2306(a)(vi) to halt or prevent the discharge.

(v) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.

(vi) Failure to provide, within 30 days after the due date, required reports, such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules.

(vii) Failure to accurately report noncompliance.

(viii) Any other violation or group of violations that the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

(ee) "Slug discharge" means any discharge of a nonroutine, episodic nature, including an accidental spill or noncustomary batch discharge.

(ff) "Trade secret" means the whole or any portion or phase of any manufacturing proprietary process or method which is not patented, which is secret, which is useful in compounding an article of trade having a commercial value, and the secrecy of which the owner has taken reasonable measure to prevent from becoming available to persons other than those selected by the owner to have access for limited purposes. Trade secret shall not be construed, for purposes of these rules, to include any information regarding the quantum or character of waste products or their constituents discharged, or sought to be discharged, into the publicly owned treatment works.

(gg) "Upset" means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the nondomestic user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

(hh) "Wastewater" means water resulting from industrial and commercial processes and municipal operations, including liquid or water-carried process waste, cooling and condensing waters, and sanitary sewage.

History: 1995 AACCS.

R 323.2303 Pretreatment standards.

Rule 3. (1) A nondomestic user may not introduce into any publicly owned treatment works any pollutant that causes pass-through or interference. The control authority shall investigate instances of pass-through or interference and take appropriate enforcement action and inform the responsible nondomestic user of the impact. The general prohibitions of this subrule and the specific prohibitions in subrule (2) of this rule apply to each nondomestic user introducing pollutants into a publicly owned treatment works whether or not the nondomestic user is subject to any other national, state, or local pretreatment standards or requirements.

(2) In addition to the requirements of subrule (1) of this rule, the following substances shall not be introduced into a publicly owned treatment works:

(a) Pollutants that create a fire or explosion hazard in the publicly owned treatment works, including wastestreams that have a closed cup flashpoint of less than 140 degrees Fahrenheit or 60 degrees Centigrade using the test methods specified in 40 C.F.R. §261.21 (1990).

(b) Pollutants that will cause corrosive structural damage to the publicly owned treatment works. Discharges that have a pH lower than 5.0 shall not be discharged, unless the publicly owned treatment works is specifically designed to accommodate the discharges and has been approved by the approval authority.

(c) Solid or viscous pollutants in amounts that will cause obstruction to the flow in the publicly owned treatment works resulting in interference.

(d) Any pollutant, including oxygen-demanding pollutants, released in a discharge at a flow rate or pollutant concentration that will cause interference with the publicly owned treatment works.

(e) Heat that will inhibit biological activity in the publicly owned treatment works resulting in interference, and in no case heat that produces a temperature at the publicly owned treatment works of more than 40 degrees Celsius (104 degrees Fahrenheit), unless the approval authority, at the request of the publicly owned treatment works, approves alternate temperature limits as part of the approved program.

(f) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass-through.

(g) Pollutants that result in the presence of toxic gases, vapors, or fumes within the publicly owned treatment works in a quantity that may cause acute worker health or safety problems.

(h) Any trucked or hauled pollutants, except at discharge points designated by the publicly owned treatment works, but only when trucked or hauled in compliance with the state and federal hazardous waste and liquid industrial waste laws.

(3) A nondomestic user shall have an affirmative defense in any action brought against it alleging a violation of the general prohibitions established in subrule (1) of

this rule and the specific prohibitions in subrule (2)(c), (d), (e), and (f) of this rule if the user can demonstrate both of the following:

(a) It did not know or have reason to know that its discharge, alone or in conjunction with a discharge or discharges from other sources, would cause pass-through or interference.

(b) A local limit designed to prevent pass-through or interference was developed in accordance with subrule (4) of this rule for each pollutant in the user's discharge that caused pass-through or interference, and the user was in compliance with each local limit directly before and during the pass-through or interference, or if a local limit designed to prevent pass-through or interference has not been developed in accordance with subrule (4) of this rule for the pollutant that caused the pass-through or interference, the user's discharge directly before and during the pass-through or interference did not change substantially in nature or constituents from the user's prior discharge activity when the publicly owned treatment works was regularly in compliance with its national pollutant discharge elimination system permit requirements and, in the case of interference, applicable requirements for sewage sludge use or disposal.

(4) All of the following provisions apply to local limits:

(a) Publicly owned treatment works required by permit to develop a pretreatment program shall develop and enforce local limits to implement the prohibitions listed in subrules (1) and (2) of this rule. Each publicly owned treatment works that has an approved pretreatment program shall review and update the local limits, as follows:

(i) When new pollutants are introduced.

(ii) When new pollutants that are previously unevaluated are identified.

(iii) When substantial increases of pollutants are proposed as required in the notification of new or increased uses in accordance with the provisions of 40 C.F.R. §122.42 (1990).

(iv) As required in a national pollutant discharge elimination system permit application in accordance with the provisions of 40 C.F.R. §122.21(j)(4) (1990).

(b) In addition to the requirements of subdivision (a) of this subrule, each publicly owned treatment works shall evaluate the need for local limits for all pollutants of concern. At a minimum, the publicly owned treatment works shall evaluate the following parameters for local limits: arsenic, cadmium, chromium, copper, cyanide, lead, mercury, nickel, silver, and zinc. Sufficient representative data shall be obtained for determining the limits by performing any of the following monitoring plans:

(i) One sample each per month for a year of wastewater treatment plant influent, effluent, sludge, discharges at other locations, as appropriate, and sanitary sewage, with not less than 2 separate sampling events each weekday, Monday to Friday.

(ii) Six samples each taken over a 4-week period of wastewater treatment plant influent, effluent, sludge, discharges at other locations, as appropriate, and sanitary sewage, with at least 1 sampling event each weekday, Monday to Friday.

(iii) An alternative plan, which may include historical data, which is approved by the approval authority.

(c) Local limits shall not be adopted without public notice and an opportunity to respond.

(d) Where local limits are developed by a publicly owned treatment works in accordance with this subrule, the limits shall be deemed pretreatment standards.

(5) The department retains the right to issue orders or may take other direct enforcement action against nondomestic users. The department shall notify the control authority of any action.

(6) The control authority or any agent duly appointed by the department shall have the right to enter the property of any nondomestic user at reasonable times for the purpose of inspection and sampling. The control authority or the agent shall be allowed access at reasonable times to facilities and records required to be kept by the nondomestic user for the purpose of gathering information to determine applicability, compliance, or noncompliance with these rules.

History: 1995 AACCS.

R 323.2304 Effect of rules on local law.

Rule 4. Nothing in these rules is intended to affect any pretreatment standards and requirements established by local law if the local standards and requirements are at least as stringent as any standards and requirements set forth in national pretreatment standards or any other requirements or prohibitions established under the clean water act or the act.

History: 1995 AACCS.

R 323.2305 Pretreatment program applicability.

Rule 5. (1) A state permit or national pollutant discharge elimination system permit issued to a publicly owned treatment works shall contain requirements for pretreatment program development and implementation when the department determines that it is necessary to control the introduction of pollutants into the publicly owned treatment works from nondomestic users.

(2) A publicly owned treatment works shall develop and implement its pretreatment program according to the following criteria if required by order of the department or by its permit:

(a) A publicly owned treatment works which has a total design flow of more than 5 million gallons per day and which receives, from nondomestic users, pollutants that may pass-through or interfere with the operation of the publicly owned treatment works or are otherwise subject to categorical pretreatment standards is subject to the federal industrial pretreatment program as set forth in R 323.2306.

(b) A publicly owned treatment works which has a total design flow of 5 million gallons per day or less and which receives from nondomestic users, pollutants that may pass-through or interfere with the operation of the publicly owned treatment works or are otherwise subject to categorical pretreatment standards is subject to the Michigan industrial pretreatment program, unless the department requires a federal industrial pretreatment program, as set forth in R 323.2306.

(c) A publicly owned treatment works which has a state permit issued under the act to discharge to the groundwater and which has nondomestic users that may cause interference with the publicly owned treatment works or permit violations or has

nondomestic users that are otherwise subject to categorical pretreatment standards is subject to the Michigan industrial pretreatment program as set forth in R 323.2306.

(3) A publicly owned treatment works that is required by order of the department or discharge permit to develop an industrial pretreatment program shall submit an approvable program not later than 1 year after written notification.

History: 1995 AACCS.

R 323.2306 Industrial pretreatment program requirements; legal authority.

Rule 6. A publicly owned treatment works subject to industrial pretreatment program requirements in accordance with R 323.2305(2) shall develop a pretreatment program based, at a minimum, on the following legal authority and procedures:

(a) The publicly owned treatment works shall operate pursuant to legal authority enforceable in federal or state courts that authorizes or enables the publicly owned treatment works to apply and to enforce the requirements of section 3109 of the act and sections 307(b) and (c) and 402(b)(8) of the clean water act and any rules or regulations implementing those sections within its service area. The authority may be contained in a statute, ordinance, or series of contracts or interjurisdictional agreements which the publicly owned treatment works is authorized to

enact, enter into, or implement and which are authorized by state law. At a minimum, the legal authority shall enable the publicly owned treatment works to do all of the following:

(i) Deny or condition new or increased contributions of pollutants, or changes in the nature of pollutants, to the publicly owned treatment works by nondomestic users where the contributions do not meet applicable pretreatment standards and requirements or where the contributions would cause the publicly owned treatment works to violate its national pollutant discharge elimination system permit.

(ii) Require compliance with applicable pretreatment standards and requirements by nondomestic users.

(iii) Control, through permit, the contribution to the publicly owned treatment works by each significant industrial user to ensure compliance with applicable pretreatment standards and requirements. Permits shall be enforceable and contain, at a minimum, the following conditions:

(A) A statement of the duration of the permit, which shall not be more than 5 years.

(B) A statement of permit nontransferability without prior notification to the publicly owned treatment works and provision of a copy of the existing permit to the new owner or operator.

(C) Effluent limits based on applicable general pretreatment standards, categorical pretreatment standards, local limits, and state and local law.

(D) Self-monitoring, sampling, reporting, notification, and recordkeeping requirements, including identification of the pollutants to be monitored, sampling location, sampling frequency, and sample type, based on the applicable general pretreatment standards, categorical pretreatment standards, local limits, and state and local law.

(E) A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements and any applicable compliance schedule. The schedule may not extend the compliance date beyond applicable federal deadlines.

(iv) Require the development of a compliance schedule by each nondomestic user for the installation of technology required to meet applicable pretreatment standards and requirements and require the submission of all notices and self-monitoring reports from nondomestic users that are necessary to assess and assure compliance by nondomestic users with pretreatment standards and requirements, including the reports required in R 323.2310.

(v) Carry out all inspection, surveillance, and monitoring procedures necessary to determine, independent of information supplied by nondomestic users, compliance or noncompliance with applicable pretreatment standards and requirements by nondomestic users. Representatives of the publicly owned treatment works shall be authorized to enter any premises of any nondomestic user in which a discharge source or treatment system is located or in which records are required to be kept under R 323.2310 to assure compliance with pretreatment standards. The authority shall be at least as extensive as the authority provided under section 308 of the clean water act and section 3105 of the act.

(vi) Obtain remedies for noncompliance by any nondomestic user with any pretreatment standard and requirement. All publicly owned treatment works shall be able to seek injunctive relief for noncompliance by nondomestic users with pretreatment standards and requirements. All publicly owned treatment works shall also have authority to seek or assess civil or criminal penalties as authorized by state law for each violation by nondomestic users of pretreatment standards and requirements. Pretreatment requirements that will be enforced through the remedies in this subrule include the following:

(A) The duty to allow or carry out inspections, entry, or monitoring activities.

(B) Any rules, regulations, or orders issued by the publicly owned treatment works.

(C) Any requirements set forth in permits issued by the publicly owned treatment works.

(D) Any reporting requirements imposed by the publicly owned treatment works or these rules. The publicly owned treatment works shall have authority and procedures, after informal notice to the discharger, to immediately and effectively halt or prevent any discharge of pollutants to the publicly owned treatment works that reasonably appears to present an imminent endangerment to the health or welfare of persons. The publicly owned treatment works shall also have authority and procedures, which shall include notice to the affected nondomestic users and an opportunity to respond, to halt or prevent any discharge to the publicly owned treatment works which presents or may present an endangerment to the environment or which threatens to interfere with the operation of the publicly owned treatment works.

(vii) Comply with the confidentiality requirements set forth in R 323.2314.

(b) All local units of government that collect wastewater from nondomestic sources shall be responsible for the development and implementation of a pretreatment program that effectively controls the introduction of pollutants into the

sewer system consistent with the program developed by the permittee where the permittee is required to develop or implement a pretreatment program by its permit.

(c) The publicly owned treatment works shall develop and implement procedures to ensure compliance with the requirements of a pretreatment program. At a minimum, these procedures shall enable the publicly owned treatment works to do all of the following:

(i) Identify and locate all possible nondomestic users that might be subject to the publicly owned treatment works' pretreatment program. Any compilation, index, or inventory of nondomestic users made under this paragraph shall be made available to the approval authority upon request.

(ii) Identify the character and volume of pollutants contributed to the publicly owned treatment works by the nondomestic users identified under subdivision (b)(i) of this rule. The information shall be made available to the approval authority upon request.

(iii) Notify nondomestic users identified under subdivision (b)(i) of this rule of applicable pretreatment standards and any applicable requirements under sections 204(b) and 405 of the clean water act and subtitles C and D of the resource conservation and recovery act of 1976, as amended, 42 U.S.C. §6901 et seq. Publicly owned treatment works subject to a Michigan industrial pretreatment program are not required to inform nondomestic users of subtitles C and D of the resource conservation and recovery act requirements. Within 30 days of approval of a list of significant industrial users pursuant to subdivision (h) of this rule, the publicly owned treatment works shall notify each significant industrial user of its status and of all requirements applicable to the user as a result of its status.

(iv) Receive and analyze self-monitoring reports and other notices submitted by nondomestic users in accordance with the self-monitoring requirements in R 323.2310.

(v) Randomly sample and analyze the effluent from nondomestic users and conduct surveillance activities to identify, independent of information supplied by nondomestic users, compliance or noncompliance with pretreatment standards. Inspect and sample the effluent from each significant industrial user at least once a year. Evaluate, at least once every 2 years, whether each significant industrial user needs a plan to control slug discharges. Publicly owned treatment works subject to a Michigan industrial pretreatment program are not required to evaluate whether significant industrial users need a plan to control slug discharges. The results of the activities shall be available to the approval authority upon request. If the publicly owned treatment works decides that a slug control plan is needed, the plan shall contain, at a minimum, the following elements:

(A) A description of discharge practices, including nonroutine batch discharges.

(B) A description of stored chemicals.

(C) Procedures for immediately notifying the publicly owned treatment works of slug discharges, including any discharge that would violate a prohibition under R 323.2303(2), with procedures for follow-up written notification within 5 days.

(D) If necessary, procedures to prevent an adverse impact from accidental spills, including any of the following:

(1) Inspection and maintenance of storage areas.

- (2) Handling and transfer of materials.
- (3) Loading and unloading operations.
- (4) Control of plant site runoff.
- (5) Worker training.
- (6) Building of containment structures or equipment.
- (7) Measures for containing toxic organic pollutants, including solvents.
- (8) Measures and equipment necessary for emergency response.

(vi) Investigate instances of noncompliance with pretreatment standards and requirements as indicated in the reports and notices required under R 323.2310, or indicated by analysis, inspection, and surveillance activities described in subdivision (b)(v) of this rule. Sample taking and analysis and the collection of other information shall be performed with sufficient care to produce evidence admissible in enforcement proceedings or in judicial actions.

(d) Publicly owned treatment works that have pretreatment programs required by these rules shall comply with public participation requirements. The public participation requirements shall include provision for at least annual public notification, in the largest newspaper circulated in the municipality in which the publicly owned treatment works is located, of nondomestic users that, at any time during the previous 12 months, were in significant noncompliance, as defined in R 323.2302(dd), with applicable pretreatment requirements. However, publicly owned treatment works subject to a Michigan industrial pretreatment program shall annually publish only categorical industrial users that are in significant noncompliance.

(e) The publicly owned treatment works shall have sufficient resources and qualified personnel to carry out the authorities and procedures described in subrules (a), (b), (c), and (d) of this rule.

(f) The publicly owned treatment works shall develop local limits as required in R 323.2303(4) or demonstrate that local limits are not necessary.

(g) The publicly owned treatment works shall develop and implement an enforcement response plan. The plan shall contain detailed procedures indicating how a publicly owned treatment works will investigate and respond to instances of nondomestic user noncompliance. The plan shall, at a minimum, be in compliance with all of the following provisions:

(i) Describe how the publicly owned treatment works will investigate instances of noncompliance.

(ii) Describe the types of escalating enforcement responses the publicly owned treatment works will take in response to all anticipated types of nondomestic user violations and the time periods within which responses will take place.

(iii) Identify, by title, the official responsible for each type of response.

(iv) Adequately reflect the publicly owned treatment works' primary responsibility to enforce all applicable pretreatment requirements and standards.

(h) The publicly owned treatment works shall prepare a list of its nondomestic users that meet the user criteria in R 323.2302(cc). The list shall identify the criteria in R 323.2302(cc) applicable to each nondomestic user and, for nondomestic users that meet the criteria in R 323.2302(cc)(ii), shall also indicate whether the publicly owned treatment works has made a determination pursuant to R 323.2302(cc)(iii) that the nondomestic user should not be considered a significant industrial user. The list and any

subsequent modifications shall be submitted to the approval authority as a nonsubstantial program modification pursuant to R 323.2309. Discretionary designations or de-designations by the control authority shall be deemed to be approved by the approval authority 90 days after submission of the list or modifications, unless the approval authority determines that a modification is a substantial modification. Unless otherwise noted, the provisions specified in this rule apply to both the federal and the Michigan industrial pretreatment programs. Subdivisions (c)(iii) and (v) and (d) of this rule provide exceptions to program requirements for the Michigan industrial pretreatment program.

History: 1995 AACs.

R 323.2307 Publicly owned treatment works' pretreatment programs; submissions for approval.

Rule 7. (1) A publicly owned treatment works shall submit a complete pretreatment program to the approval authority as required by its permit or by order of the department. The pretreatment program shall contain all of the following information:

(a) A statement from the municipal attorney or a city official acting in a comparable capacity, or the attorney for a publicly owned treatment works that has independent legal counsel, that the publicly owned treatment works has adequate authority to carry out the program described in R 323.2306. The statement shall identify all of the following:

(i) The provision of legal authority under R 323.2306(a) that provides the basis for each procedure under R 323.2306(b).

(ii) The manner in which the publicly owned treatment works will implement the program requirements set forth in R 323.2306(a), including the means by which pretreatment standards will be applied to individual nondomestic users by permit.

(iii) How the publicly owned treatment works intends to ensure compliance with pretreatment standards and requirements and to enforce them in the event of noncompliance by nondomestic users.

(b) A copy of any statutes, ordinances, regulations, agreements, or other authorities relied upon by the publicly owned treatment works for its administration of the program. The submission shall include a statement reflecting the endorsement or approval of the local boards or bodies responsible for supervising or funding the publicly owned treatment works' pretreatment program if approved.

(c) A brief description, including organization charts, of the publicly owned treatment works' organization that will administer the pretreatment program. If more than 1 agency is responsible for administration of the program, the responsible agencies shall be identified, their respective responsibilities delineated, and their procedures for coordination set forth.

(d) A description of the funding levels and full- and part-time manpower available to implement the program.

(2) A request for authority to revise categorical pretreatment standards for removal credits shall contain the information required in R 323.2313(a).

(3) Any publicly owned treatment works requesting publicly owned treatment works' pretreatment program approval shall submit to the approval authority 3 copies

of the submission described in subrule (1) and, if appropriate, subrule (2) of this rule. Within 60 days after receiving the submission, the approval authority shall make a preliminary determination of whether the submission meets the requirements of subrule (1) and, if appropriate, subrule (2) of this rule. If the approval authority makes the preliminary determination that the submission meets these requirements, the approval authority shall do both of the following:

(a) Notify the publicly owned treatment works that the submission has been received and is under review.

(b) Commence the public notice and evaluation activities set forth in R 323.2308.

(4) If, after review of the submission as provided for in subrule (3) of this rule, the approval authority determines that the submission does not comply with the requirements of subrule (1) and, if appropriate, subrule (2) of this rule, the approval authority shall provide notice, in writing, to the applying publicly owned treatment works and each person who has requested individual notice. The notification shall identify any defects in the submission and advise the publicly owned treatment works and each person who has requested individual notice of the means by which the publicly owned treatment works can comply with the applicable requirements of subrule (1) and, if appropriate, subrule (2) of this rule.

History: 1995 AACs.

R 323.2308 Approval procedures for publicly owned treatment works' pretreatment programs.

Rule 8. (1) The following procedures shall apply to approvals or denials of publicly owned treatment works' pretreatment programs and applications for removal credit authorization:

(a) The approval authority shall have 90 days from the date of public notice of any submission complying with the requirements of R 323.2307 and, where removal credit authorization is sought, complying with R 323.2307 and R 323.2313(a) to review the submission. The approval authority shall review the submission to determine compliance with the requirements of R 323.2306 and, where removal credit authorization is sought, with R 323.2313(a). The approval authority may have up to an additional 90 days to complete the evaluation of the submission if the public comment period provided for in this rule is extended beyond 30 days or if a public hearing is held as provided for in subdivision (b)(ii) of this subrule. The time for evaluation of the submission shall not be more than a total of 180 days from the date of public notice of a submission meeting the requirements of R 323.2307 and, in the case of a removal credit application, R 323.2307 and R 323.2313(a).

(b) Upon receipt of a submission, the approval authority shall commence its review. Within 20 work days after making a determination that a submission meets the requirements of R 323.2307 and, where removal allowance approval is sought, R 323.2307 and R 323.2313(a), the approval authority shall do both of the following:

(i) Issue a public notice of request for approval of the submission. The public notice shall be circulated in a manner designed to inform interested and potentially interested persons of the submission.

Procedures for the circulation of public notice shall include all of the following:

(A) Mailing notices of the request for approval of the submission to any person or group who has requested individual notice, including those on appropriate mailing lists.

(B) Publication of a notice of request for approval of the submission in a newspaper circulated within the jurisdiction served by the publicly owned treatment works.

(C) The public notice shall provide a period of not less than 30 days following the date of the public notice during which interested persons may submit their written views on the submission.

(D) All written comments submitted during the 30-day comment period shall be retained by the approval authority and considered in the decision on whether or not to approve the submission. The period for comment may be extended at the discretion of the approval authority.

(ii) Provide an opportunity for the applicant, any interested state or federal agency, or person or group of persons to request a public hearing with respect to the submission. The request for public hearing shall be filed within the 30-day comment period or the extended comment period provided in this rule and shall indicate the interest of the person filing the request and the reasons why a hearing is warranted. The approval authority shall hold a hearing if the publicly owned treatment works requests a hearing. In addition, a hearing will be held if there is a significant public interest in issues relating to whether or not the submission should be approved and a request for a hearing has been made. Instances of doubt shall be resolved in favor of holding the hearing. Public notice of a hearing to consider a submission and sufficient to inform interested parties of the nature of the hearing and the right to participate shall be published in the same newspaper as the notice of the original request for approval of the submission under this rule. In addition, notice of the hearing shall be sent to persons who request individual notice.

(2) At the end of the 30-day comment period or an extended comment period as specified in subrule (1)(b)(i)(C) and (D) of this rule and within the 90-day period or the extended comment period provided for in this rule, the approval authority shall approve or deny the submission based upon the evaluation in accordance with this rule and taking into consideration comments submitted during the comment period and the record of the public hearing, if held. Where the approval authority makes a determination to deny the request, the approval authority shall notify the publicly owned treatment works and each person who has requested individual notice of the denial. The notification shall include suggested modifications and the approval authority may allow the requestor additional time to bring the submission into compliance with applicable requirements.

(3) The approval authority shall notify persons who submitted comments and participated in the public hearing, if held, of the approval or disapproval of the submission. In addition, the approval authority shall cause to be published a notice of its decision in a newspaper circulated within the jurisdiction served by the publicly owned treatment works and of incorporation of the approved pretreatment program into the publicly owned treatment works' permit. The approval authority shall identify, in any notice of a publicly owned treatment works' pretreatment program approval, any authorization to modify categorical pretreatment standards for removal credits in accordance with R 323.2313(a).

R 323.2309 Modification of publicly owned treatment works' pretreatment programs.

Rule 9. (1) Either the approval authority or a publicly owned treatment works that has an approved publicly owned treatment works' pretreatment program may initiate program modification at any time to reflect changes. Program modification is necessary when there is a significant change in the operation in the publicly owned treatment works' pretreatment program that differs from the information in the publicly owned treatment works' submission, as approved under R 323.2308.

(2) Publicly owned treatment works' pretreatment program modifications shall be accomplished as follows:

(a) For substantial modifications, as defined in subrule (3) of this rule, the following provisions shall be complied with:

(i) The publicly owned treatment works shall submit, to the approval authority, a statement of the basis for the desired modification, a modified program description (see R 323.2307(1)), or other documents that the approval authority determines to be necessary under the circumstances.

(ii) The approval authority shall approve or disapprove the federal industrial pretreatment program modification based on the requirements of R 323.2306 following the procedures in R 323.2308. The approval authority shall approve or disapprove the Michigan industrial pretreatment program modification.

(iii) The federal industrial pretreatment program modification shall be incorporated into the publicly owned treatment works' national pollutant discharge elimination system permit after approval. The permit will be modified to incorporate the approved modification in accordance with 40 C.F.R. §122.63(g) (1990). Michigan industrial pretreatment program modifications will be incorporated at the time of permit reissuance or modification.

(iv) The modification shall become effective upon approval by the approval authority. Notice of the federal industrial pretreatment program approval shall be published in the same newspaper as the notice of the original request for approval of the modification under R 323.2308(3).

(b) The publicly owned treatment works shall notify, in a statement similar to that provided for in subdivision (a)(i) of this subrule, the approval authority of any other nonsubstantial modifications to its federal industrial pretreatment program not less than 30 days before they are to be implemented by the publicly owned treatment works. The nonsubstantial program modifications shall be deemed to be approved by the approval authority 90 days after the submission of the publicly owned treatment works' statement, unless the approval authority determines that a modification submitted is a substantial modification. Following approval by the approval authority, the modifications shall be incorporated into the publicly owned treatment works' permit in accordance with 40 C.F.R. §122.63(g) (1990). If the approval authority determines that a modification reported by a publicly owned treatment works in its statement is a substantial modification, the approval authority shall notify the publicly owned treatment works and initiate the procedures in subdivision (a) of this rule.

(3) The following are substantial modifications for purposes of this section:

- (a) Changes to the publicly owned treatment works' legal authorities.
 - (b) Changes to local limits that result in less stringent local limits.
 - (c) Change to the publicly owned treatment works' nondomestic user permit procedure, as described in R 323.2306(a)(iii).
 - (d) Changes to the publicly owned treatment works' method for implementing categorical pretreatment standards.
 - (e) A decrease in the frequency of self-monitoring or reporting required of nondomestic users.
 - (f) A decrease in the frequency of nondomestic user inspections or sampling by the publicly owned treatment works.
 - (g) Changes to the publicly owned treatment works' confidentiality procedures.
 - (h) Significant reductions in the publicly owned treatment works' pretreatment program resources, including personnel commitments, equipment, and funding levels.
 - (i) Changes in the publicly owned treatment works' sludge disposal and management practices.
- (4) The approval authority may designate other specific modifications, in addition to those listed in subrule (3) of this rule, as substantial modifications.
- (5) A modification that is not included in subrule (3) of this rule is a substantial modification for purposes of this rule if any of the following provisions apply to the modification:
- (a) It would have a significant impact on the operation of the publicly owned treatment works' pretreatment program.
 - (b) It would result in an increase in pollutant loadings at the publicly owned treatment works.
 - (c) It would result in less stringent requirements being imposed on nondomestic users of the publicly owned treatment works.

History: 1995 AACs.

R 323.2310 Reporting requirements for publicly owned treatment works and nondomestic users.

Rule 10. (1) The control authority may require the submission of data in a standardized format.

(2) Within 180 days after the effective date of a categorical pretreatment standard, or 180 days after the final administrative decision made upon a category determination submission under R 323.2311(2), whichever is later, existing nondomestic users subject to the categorical pretreatment standards and currently discharging, or scheduled to discharge, to a publicly owned treatment works shall be required to submit, to the control authority, a report that contains all of the information listed in this rule. Where reports containing this information already have been submitted to the approval authority or E.P.A. in compliance with the requirements of 40 C.F.R. §128.140(b) (1977), the nondomestic user will not be required to submit the information again. Not less than 90 days before the commencement of a discharge, sources that become nondomestic users subsequent to the promulgation of an applicable categorical standard and new sources shall be

required to submit, to the control authority, a report that contains the information listed in subdivisions (a) to (e) of this subrule. New sources shall also be required to include in this report information on the method of pretreatment the source intends to use to meet applicable pretreatment standards. New sources shall give estimates of the information requested in subdivisions (d) and (e) of this rule. All of the following information shall be submitted pursuant to this rule:

(a) The nondomestic user shall submit the name and address of the facility including the name of the operator and owners.

(b) The nondomestic user shall submit a list of any environmental control permits held by or for the facility.

(c) The nondomestic user shall submit a brief description of the nature, average rate of production, and standard industrial classification of the operation or operations carried out by the nondomestic user. The description should include a facility drawing and schematic process diagram that indicates points of discharge to the publicly owned treatment works and from which processes the discharges originate.

(d) The nondomestic user shall submit information showing the measured average daily and maximum daily flow, in gallons per day, to the publicly owned treatment works from each of the following:

(i) Regulated process streams.

(ii) Other streams as necessary to allow use of the combined wastestream formula specified in R 323.2311(6). The control authority may allow for verifiable estimates of these flows where justified by cost or feasibility considerations.

(e) All of the following information shall be provided with respect to the measurement of pollutants:

(i) The nondomestic user shall identify the pretreatment standards, including state or local standards, applicable to each regulated process.

(ii) In addition, the nondomestic user shall submit the results of sampling and analysis identifying the nature and concentration or mass, where required by the standard or control authority, of regulated pollutants in the discharge from each regulated process. Both daily maximum and average concentration or mass, where required, shall be reported. The sample shall be representative of daily operations.

(iii) A minimum of 4 grab samples shall be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organics. For all other pollutants, 24-hour composite samples shall be obtained through flow-proportional composite sampling techniques where feasible. The control authority may waive flow-proportional composite sampling for any nondomestic user that demonstrates that flow-proportional sampling is infeasible. In such cases, samples may be obtained through time-proportional composite sampling techniques or through a minimum of 4 grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged.

(iv) With the exception of the pollutants specified in paragraph (iii) of this subdivision, the user shall take a minimum of 1 representative sample to compile the data necessary to comply with the requirements of this subrule.

(v) Samples should be taken immediately downstream from pretreatment facilities if the facilities exist or immediately downstream from the regulated process if pretreatment facilities do not exist. If other wastewaters are mixed with the regulated

wastewater before pretreatment, the nondomestic user should measure the flows and concentrations necessary to allow use of the combined wastestream formula specified in R 323.2311(7) to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with R 323.2311(5), the adjusted limit and supporting data shall be submitted to the control authority.

(vi) Sampling and analysis shall be performed in accordance with the techniques prescribed in 40 C.F.R. part 136 (1992). Where 40 C.F.R. part 136 (1992) does not contain sampling or analytical techniques for the pollutant in question, or where the E.P.A. determines that the part 136 (1992) sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the publicly owned treatment works or other parties, approved by the E.P.A.

(vii) The control authority may allow the submission of a baseline report that utilizes only historical data if the data provides information sufficient to determine the need for industrial pretreatment measures.

(viii) The baseline report shall indicate the time, date, and place of sampling and the methods of analysis and shall certify that the sampling and analysis is representative of normal work cycles and expected pollutant discharges to the publicly owned treatment works.

(f) A statement, reviewed by an authorized representative of the nondomestic user and certified to by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance or additional pretreatment is required for the nondomestic user to meet the pretreatment standards and requirements.

(g) If additional pretreatment or operation and maintenance will be required to meet the pretreatment standards, the shortest schedule by which the nondomestic user will provide such additional pretreatment or operation and maintenance. The completion date in the schedule shall not be later than the compliance date established for the applicable pretreatment standard. All of the following conditions shall apply to compliance schedules:

(i) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the nondomestic user to meet the applicable categorical pretreatment standards. The events may include any of the following:

- (A) The hiring of an engineer.
- (B) Completing preliminary plans.
- (C) Completing final plans.
- (D) Executing contracts for major components.
- (E) Commencing construction.
- (F) Completing construction.
- (G) Other similar major events.

(ii) An increment referred to in this subrule shall not be more than 9 months.

(iii) Not later than 14 days following each date in the schedule and the final date for compliance, the nondomestic user shall submit a progress report to the control authority, including, at a minimum, whether or not the user complied with the increment of progress to be met on a particular date and, if not, the date on which the user expects to comply with the increment of progress, the reason for delay, and the steps being taken by the nondomestic user to return the construction to the schedule established. Not more than 9 months shall elapse between progress reports to the control authority.

(h) Where the nondomestic user's categorical pretreatment standard has been modified by a removal allowance under R 323.2313(a), the combined wastestream formula under R 323.2311(7) or a fundamentally different factors variance under R 323.2313(b) at the time the nondomestic user submits the report required by this rule, the information required by subdivisions (f) and (g) of this subrule shall pertain to the modified limits.

(i) Any changes to information requested under subdivisions (a) to (e) of this subrule shall be submitted by the nondomestic user to the control authority within 60 days.

(3) Within 90 days following the date for final compliance with applicable categorical pretreatment standards or, in the case of a new source, following commencement of the introduction of wastewater into the publicly owned treatment works, any nondomestic user subject to pretreatment standards and requirements shall submit, to the control authority, a report containing the information described in subrule (2)(d) to (f) of this rule. For industrial users subject to equivalent mass or concentration limits established by the control authority in accordance with the procedures in R 323.2311(5), the report shall contain a reasonable measure of the nondomestic user's long-term production rate. For all other nondomestic users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production, or other measure of operation, the report shall include the nondomestic user's actual production during the appropriate sampling period.

(4) All of the following provisions apply to periodic reports on continued compliance:

(a) Any nondomestic user subject to a categorical pretreatment standard after the compliance date of the pretreatment standard or, in the case of a new source, after commencement of the discharge into the publicly owned treatment works shall submit, to the control authority semiannually, unless required more frequently in the pretreatment standard or by the control authority or the approval authority, a report indicating the nature and concentration of pollutants in the effluent that are limited by the categorical pretreatment standards. In addition, the report shall include a record of measured or appropriately estimated average and maximum daily flows for the reporting period for the discharge reported in subrule (2)(d) of this rule, except that the control authority may require more detailed reporting of flows.

(b) Where the control authority has imposed mass limitations on nondomestic users as provided for by R 323.2311(5), the report required by subdivision (a) of this subrule shall indicate the mass of pollutants regulated by pretreatment standards in the discharge from the nondomestic user.

(c) For nondomestic users subject to equivalent mass or concentration limits established by the control authority in accordance with the procedures in R

323.2311(5), the report required by subdivision (a) of this subrule shall contain a reasonable measure of the nondomestic user's long-term production rate. For all other nondomestic users subject to categorical pretreatment standards expressed only in terms of allowable pollutant discharge per unit of production, or other measure of operation, the report required by subdivision (a) of this subrule shall include the nondomestic user's actual average production rate for the reporting period.

(5) All categorical and non-categorical nondomestic users shall notify the publicly owned treatment works immediately of all discharges that could cause problems to the publicly owned treatment works, including any slug loadings.

(6) All of the following provisions apply to monitoring and analysis to demonstrate continued compliance:

(a) The reports required in subrules (2), (3), and (4) of this rule shall contain the results of sampling and analysis of the discharge, including the flow and the nature and concentration, or production and

mass where requested by the control authority, of pollutants contained in the discharge that are limited by the applicable pretreatment standards. The sampling and analysis may be performed by the control authority instead of the nondomestic user. Where the publicly owned treatment works elects to perform the required sampling and analysis instead of the nondomestic user, the nondomestic user will not be required to submit the compliance certification required under subrules (2)(f) and (3) of this rule. In addition, where the publicly owned treatment works collects all the information required for the report, including flow data, the nondomestic user will not be required to submit the report. The publicly owned treatment works shall provide, to the nondomestic user, within 10 days after the results are available, the results of any sampling the publicly owned treatment works performs for nondomestic user self-monitoring that show a violation of any pretreatment standard. Any certification required by a categorical pretreatment standard shall be included with the semiannual compliance reports.

(b) If sampling performed by a nondomestic user indicates a violation of pretreatment standards, the nondomestic user shall notify the control authority within 24 hours of becoming aware of the violation. The nondomestic user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the control authority within 30 days after becoming aware of the violation; however, the nondomestic user is not required to resample if the control authority performs sampling at the nondomestic user at a frequency of at least once per month or if the control authority performs sampling at the nondomestic user between the time when the nondomestic user performs its initial sampling and the time when the nondomestic user receives the results of the sampling.

(c) The reports required in subrule (4) of this rule shall be based upon data obtained through appropriate sampling and analysis performed during the period covered by the report, which data is representative of conditions occurring during the reporting period. The control authority shall require a frequency of monitoring that is necessary to assess and assure compliance by nondomestic users with applicable pretreatment standards and requirements.

(d) All analyses shall be performed in accordance with procedures established by the E.P.A. pursuant to section 304(h) of the clean water act and contained in 40

C.F.R. part 136 (1992) or with any other test procedures approved by the E.P.A. Sampling shall be performed in accordance with the techniques approved by the E.P.A. Where the provisions of 40 C.F.R. part 136 (1992) do not include sampling or analytical techniques for the pollutants in question, or where the United States E.P.A. determines that the part 136 (1992) sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed using validated analytical methods or any other sampling and analytical procedures, including procedures suggested by the publicly owned treatment works or other parties and approved by the E.P.A.

(e) If a nondomestic user monitors any pollutant more frequently than required by the control authority using the procedures prescribed in subdivision (d) of this subrule, the results of the monitoring shall be included in the report.

(7) The control authority shall require appropriate reporting from nondomestic users that have discharges which are not subject to categorical pretreatment standards. Significant noncategorical industrial users shall submit, to the control authority, at least semiannually, a description of the nature, concentration, and flow of the pollutants required to be reported by the control authority. The reports shall be based on sampling and analysis performed in the period covered by the report and performed in accordance with the techniques described in 40 C.F.R. part 136 (1992). Where the provisions of 40 C.F.R. part 136 (1992) do not contain sampling or analytical techniques for the pollutant in question, or where the E.P.A. determines that the part 136 (1992) sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the publicly owned treatment works or other persons and approved by the E.P.A. The sampling and analysis may be performed by the control authority instead of the significant noncategorical industrial user. Where the publicly owned treatment works collects all of the information required for the report, the noncategorical significant industrial user will not be required to submit the report. The publicly owned treatment works shall provide, to the nondomestic user, within 10 days after the results are available, the results of any sampling it performs for nondomestic user self-monitoring that show a violation of any pretreatment standard.

(8) Publicly owned treatment works that have approved pretreatment programs shall provide the approval authority with a report that briefly describes the publicly owned treatment works' program activities, including activities of all participating agencies, if more than 1 jurisdiction is involved in the local program. The report required by this subrule shall be submitted not later than 1 year after approval of the publicly owned treatment works' pretreatment program and at least annually thereafter and shall include, at a minimum, the following information:

(a) An updated list of the publicly owned treatment works' nondomestic users, including their names and addresses, or a list of deletions and additions keyed to a previously submitted list. The publicly owned treatment works shall provide a brief explanation of each deletion. The list shall identify which nondomestic users are subject to categorical pretreatment standards and specify which standards are applicable to each nondomestic user. The list shall indicate which nondomestic users are subject to local standards that are more stringent than the categorical pretreatment standards.

The publicly owned treatment works shall also list the nondomestic users that are subject only to local requirements.

(b) A summary of the status of nondomestic user compliance over the reporting period.

(c) A summary of compliance and enforcement activities, including inspections, conducted by the publicly owned treatment works during the reporting period.

(d) A summary of toxics monitored of influent, sludge, and effluent.

(e) Any other relevant information requested by the approval authority.

(9) Both of the following provisions apply to the notification of a changed discharge:

(a) A nondomestic user shall promptly notify the publicly owned treatment works in advance of any substantial change in the volume or character of pollutants in its discharge, including all of the following, if applicable:

(i) Groundwaters that are purged for remedial action programs.

(ii) Groundwaters containing pollutants that infiltrate into the sewers.

(iii) The listed or characteristic hazardous wastes for which the nondomestic user has submitted initial notification under subrule (15) of this rule.

(b) Publicly owned treatment works shall evaluate all new or changed discharges with respect to general and specific prohibitions contained in R 323.2303 before acceptance by the publicly owned treatment works.

(10) Publicly owned treatment works shall notify the approval authority of any substantial change in the volume or character of pollutants discharged to or from the publicly owned treatment works as required by 40 C.F.R. §122.42 (1990), or as contained in the notification requirements of the publicly owned treatment works' permit.

(11) The reports required by subrules (2), (3), (4), and (7) of this rule shall include the certification statement as set forth in R 323.2311(2)(b)(ii) and shall be signed as follows:

(a) By a responsible corporate officer if the industrial user submitting the reports required by subrules (2), (3), (4), and (7) of this rule is a corporation. For the purpose of this subrule, a responsible corporate officer means a president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function or any other person who performs similar policy- or decision-making functions for the corporation or means the principal manager of 1 or more manufacturing, production, or operation facilities employing more than 250 persons or having gross annual sales or expenditures of more than \$25,000,000.00, in second-quarter 1980 dollars, if authority to sign the documents has been assigned or delegated to the manager in accordance with corporate procedures.

(b) By a general partner or proprietor if the industrial user submitting the reports required by subrules (2), (3), (4), and (7) of this rule is a partnership or sole proprietorship, respectively.

(c) By a duly authorized representative of the individual designated in this subrule if all of the following provisions apply:

(i) The authorization is made in writing by the individual described in subdivision (a) or (b) of this subrule.

(ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge

originates, such as the position of plant manager, operator of a well or well field, or superintendent or a position of equivalent responsibility or that has overall responsibility for environmental matters for the company.

(iii) The written authorization is submitted to the control authority. If an authorization is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this subrule shall be submitted to the control authority before or together with any reports to be signed by an authorized representative.

(12) Reports submitted to the approval authority by the publicly owned treatment works in accordance with subrule (8) of this rule shall be signed by a principal executive officer, ranking elected official, or other duly authorized employee if the employee is responsible for the overall operation of the publicly owned treatment works.

(13) The reports and other documents required to be submitted or maintained under this rule shall be subject to all of the following provisions:

(a) 18 U.S.C. section §1001 relating to fraud and false statements.

(b) Section 309(c)(4) of the clean water act, as amended, governing false statements, representation or certification.

(c) Section 309(c)(6) regarding responsible corporate officers.

(d) Section 3115 of the act.

(14) All of the following provisions apply to recordkeeping requirements:

(a) A nondomestic user and publicly owned treatment works subject to the reporting requirements established in this rule shall maintain records of all information resulting from any monitoring activities required by this rule. The records shall include all of the following information for all samples:

(i) The date, exact place, method, and time of sampling and the names of the person or persons taking the samples.

(ii) The dates analyses were performed.

(iii) Who performed the analyses.

(iv) The analytical techniques and methods used.

(v) The results of the analyses.

(b) A nondomestic user or publicly owned treatment works subject to the reporting requirements established in this rule shall be required to retain, for a minimum of 3 years, any records of monitoring activities and results, whether or not the monitoring activities are required by this rule, and shall make the records available for inspection and copying by the approval authority and the E.P.A. regional administrator and in the case of a nondomestic user, the publicly owned treatment works. The period of retention shall be extended during the course of any pending litigation regarding the nondomestic user or publicly owned treatment works or when requested by the approval authority or the E.P.A. regional administrator.

(c) A publicly owned treatment works to which reports are submitted by a nondomestic user pursuant to subrules (2), (3), (4), and (7) of this rule shall retain the reports for a minimum of 3 years and shall make the reports available for inspection and copying by the approval authority and the E.P.A. regional administrator. The period of retention shall be extended during the course of any pending litigation

regarding the discharge of pollutants by the nondomestic user or the operation of the publicly owned treatment works' pretreatment program or when requested by the approval authority or the regional administrator.

(15) All of the following provisions apply to hazardous waste notification:

(a) The nondomestic user shall notify the publicly owned treatment works, the E.P.A. regional waste management division chief, and the department, in writing, of any discharge into the publicly owned treatment works of a substance which, if otherwise disposed of, would be a hazardous waste under 40 C.F.R. part 261 (1990). The notification shall include the name of the hazardous waste as set forth in 40 C.F.R. part 261 (1990), the E.P.A. hazardous waste number, and the type of discharge (continuous, batch, or other). If the nondomestic user discharges more than 100 kilograms of the waste per calendar month to the publicly owned treatment works, the notification shall also contain all of the following information to the extent the information is known and readily available to the nondomestic user:

(i) An identification of the hazardous constituents contained in the wastes.

(ii) An estimation of the mass and concentration of the constituents in the wastestream discharged during that calendar month.

(iii) An estimation of the mass of constituents in the wastestream expected to be discharged during the following 12 months. Nondomestic users who commence discharging after the effective date of this rule shall provide the notification not later than 180 days after the discharge of the listed or characteristic hazardous waste. Any notification under this subdivision need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges shall be submitted under subrule (9) of this rule. The notification requirement in this rule does not apply to pollutants already reported under the self-monitoring requirements of this rule.

(b) Dischargers are exempt from the requirements of subdivision (a) of this subrule during a calendar month in which they discharge 15 kilograms or less of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 C.F.R. 261.30(d) and 261.33(e) (1990). Discharge of more than 15 kilograms of nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 C.F.R. 261.30(d) and 261.33(e) (1990), requires a 1-time notification. Discharges in subsequent months of more than the quantities of any hazardous waste specified in this subdivision do not require additional notification.

(c) If new regulations under section 3001 of the resource conservation recovery act of 42 U.S.C. §6901 et seq., identify additional characteristics of hazardous waste or list any additional substance as a hazardous waste, the nondomestic user shall notify the publicly owned treatment works, the E.P.A. regional waste management division chief, and state hazardous waste authorities of the discharge of the substance within 90 days of the effective date of the regulations.

(d) If notification is made under subdivision (a) of this subrule, the nondomestic user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

History: 1995 AACs.

R 323.2311 National pretreatment standards; categorical standards.

Rule 11. (1) National pretreatment standards specifying quantities or concentrations of pollutants or pollutant properties that may be discharged to a publicly owned treatment works by existing or new nondomestic users in specific industrial subcategories will be established by E.P.A. as separate regulations under the appropriate subpart of 40 C.F.R. chapter I, subchapter N (1990). The standards, unless specifically noted otherwise, shall be in addition to all applicable pretreatment standards and requirements set forth in these rules.

(2) All of the following provisions apply to category determination request:

(a) Within 60 days after the effective date of a pretreatment standard for a subcategory under which a nondomestic user may be included, the nondomestic user or publicly owned treatment works may request that the approval authority, as appropriate, provide written certification on whether the nondomestic user falls within that particular subcategory. If an existing nondomestic user adds or changes a process or operation that may be included in a subcategory, the existing nondomestic user shall request the certification before commencing to discharge from the added or changed processes or operation. A new source shall request the certification before commencing to discharge. Where a certification is submitted by a publicly owned treatment works, the publicly owned treatment works shall notify any affected nondomestic user of the submission. The nondomestic user may provide written comments on the publicly owned treatment works submission to the approval authority within 30 days of notification.

(b) Each request shall contain both of the following:

(i) A statement describing which subcategories might be applicable.

(ii) A statement citing evidence and reasons why a particular subcategory is applicable and why others are not applicable. Any person signing the application statement submitted pursuant to this subdivision shall make the following certification: I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

(c) The approval authority will only act on written requests for determinations that contain all of the information required. Persons who have made incomplete submissions will be notified by the approval authority that their requests are deficient and, unless the time period is extended, will be given 30 days to correct the deficiency. If the deficiency is not corrected within 30 days or within an extended period allowed by the approval authority, the request for a determination shall be denied.

(d) When the approval authority receives a submittal, the authority will, after determining that it contains all of the information required by subdivision (b) of this subrule, consider the submission, any additional evidence that may have been requested, and any other available information relevant to the request. The E.P.A. has the opportunity to review any information and make a final determination in

accordance with 40 C.F.R. §403.6(a)(4) (1992). The approval authority will then make a written determination of the applicable subcategory and state the reasons for the determination. The approval authority shall send a copy of the determination to the affected nondomestic user and the publicly owned treatment works.

(e) Within 30 days following the date of receipt of notice of the final determination as provided for by subdivision (d) of this subrule, the requester may submit a petition to reconsider or contest the decision to the E.P.A. regional administrator, who shall act on the petition expeditiously and state the reasons for his or her determination in writing.

(3) Compliance by existing sources with categorical pretreatment standards shall be attained within 3 years of the date the standard is effective, unless a shorter compliance time is specified in the appropriate subpart of 40 C.F.R. chapter I, subchapter N (1990). Direct dischargers that have had national pollutant discharge elimination system permits modified or reissued to provide a variance pursuant to section 301(i)(2) of the clean water act shall be required to meet compliance dates set in any applicable categorical pretreatment standard. Existing sources that become nondomestic users subsequent to the promulgation of an applicable categorical pretreatment standard shall be considered existing nondomestic users, except where the sources meet the definition of a new source as defined in R 323.2302(r).

(4) New sources shall install, have in operating condition, and start up all pollution control equipment required to meet applicable pretreatment standards before beginning to discharge. Within the shortest feasible time, but not more than 90 days, new sources shall meet all applicable pretreatment standards. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of R 323.2302(r)(ii) or (iii), but otherwise alters, replaces, or adds to existing process or production equipment. Construction of a new source as defined in R 323.2302(r) has commenced if the owner or operator has done either of the following:

(a) Begun, or caused to begin, as part of a continuous onsite construction program, either of the following:

(i) Any placement, assembly, or installation of facilities or equipment.

(ii) Significant site preparation work, including clearing, excavation, or removal of existing buildings, structures, or facilities that is necessary for the placement, assembly, or installation of new source facilities or equipment.

(b) Entered into a binding contractual obligation for the purchase of facilities or equipment that is intended to be used in the operation within a reasonable time. Options to purchase or contracts that can be terminated or modified without substantial loss and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subdivision.

(5) All of the following provisions apply to concentration and mass limits:

(a) Pollutant discharge limits in categorical pretreatment standards will be expressed either as concentration or mass limits. Where possible, where concentration limits are specified in standards, equivalent mass limits will be provided so that local, state, or federal authorities responsible for enforcement may use either concentration or mass limits. Limits in categorical pretreatment standards shall apply to the effluent of the process regulated by the standard or as otherwise specified by the standard.

(b) When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the control authority may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual nondomestic users.

(c) A control authority calculating equivalent mass-per-day limitations under subdivision (b) of this subrule shall calculate the limitations by multiplying the limits in the standard by the nondomestic user's average rate of production. The average rate of production shall be based not upon the designed production capacity, but rather upon a reasonable measure of the nondomestic user's actual long-term daily production, such as the average daily production during a representative year. For new sources, actual production shall be estimated using projected production.

(d) A control authority calculating equivalent concentration limitations under subdivision (b) of this subrule shall calculate the limitations by dividing the mass limitations derived under subdivision (c) of this subrule by the average daily flow rate of the nondomestic user's regulated process wastewater. The average daily flow rate shall be based upon a reasonable measure of the nondomestic user's actual long-term average flow rate, such as the average daily flow rate during the representative year.

(e) Equivalent limitations calculated in accordance with subdivisions (c) and (d) of this subrule shall be deemed pretreatment standards for the purposes of these rules. Nondomestic users will be required to comply with the equivalent limitations instead of the promulgated categorical standards from which the equivalent limitations were derived.

(f) Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or 4-day average, limitations. Where the standards being applied specify the different limits set forth in this subdivision, the same production of flow figure shall be used in calculating both types of equivalent limitations.

(g) A nondomestic user operating under a permit incorporating equivalent mass or concentration limits calculated from a production based standard shall notify the control authority within 2 business days after the nondomestic user has a reasonable basis to know that the production level will significantly change within the next calendar month. A nondomestic user that does not notify the control authority of the anticipated change will be required to meet the mass or concentration limits in its permit that were based on the original estimate of the long-term average production rate.

(6) Except where expressly authorized to do so by an applicable pretreatment standard or requirement, a nondomestic user shall not increase the use of process water or in any other way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with a pretreatment standard or requirement. The control authority may impose mass limitations on nondomestic users that are using dilution to meet applicable pretreatment standards or requirements and in other cases where the imposition of mass limitations is appropriate.

(7) Where process effluent is mixed before treatment with wastewaters other than those generated by the nondomestic user regulated process, fixed alternative discharge limits may be derived by the control authority or by the nondomestic user with the written concurrence of the control authority. These alternative limits shall be

applied to the mixed effluent. When deriving alternative categorical limits, the control authority or nondomestic user shall calculate both an alternative daily

maximum value using the daily maximum value or values specified in the appropriate categorical pretreatment standard or standards and an alternative consecutive sampling day average value using the monthly average value or values specified in the appropriate categorical pretreatment standard or standards. The nondomestic user shall comply with the alternative daily maximum and monthly average limits fixed by the control authority until the control authority modifies the limits or approves a nondomestic user modification request. Modification is authorized if there is a material or significant change in the values used in the calculation to fix alternative limits for the regulated pollutant. A nondomestic user shall immediately report the material or significant change to the control authority. Where appropriate, new alternative categorical limits shall be calculated within 30 days. For new sources, flows shall be estimated using projected values. The alternative limit for a specified pollutant will be derived by the use of either of the following formulas:

(a) Alternative concentration limit.

$$C_T = \left(\frac{\sum_{i=1}^N C_i F_i}{\sum_{i=1}^N F_i} \right) \left(\frac{F_T - F_D}{F_T} \right)$$

where

CT = the alternative concentration limit for the combined wastestream.

Ci = the categorical pretreatment standard concentration limit for a pollutant in the regulated stream i.

Fi = the average daily flow of stream i to the extent that it is regulated for the pollutant.

FD = the average daily flow from boiler blowdown streams, noncontact cooling streams, stormwater streams, and demineralizer backwash streams; provided, however, that where the streams contain a significant amount of a pollutant and the combination of the streams, before treatment, with a nondomestic user's regulated process wastestream will result in a substantial reduction of the pollutant, the control authority, upon application of the nondomestic user, may exercise its discretion to determine whether the streams should be classified as diluted or unregulated. In its application to the control authority, the nondomestic user shall provide engineering, production, sampling, analysis, and other necessary information so that the control authority can make its determination or equals the average daily flow from sanitary wastestreams where the streams are not regulated by a categorical pretreatment standard for 1 or more of the following reasons (see R 323.2312):

(i) The pollutants of concern are not detectable in the effluent from the nondomestic user.

(ii) The pollutants of concern are present only in trace amounts and are neither causing nor likely to cause toxic effects.

(iii) The pollutants of concern are present in amounts too small to be effectively reduced by technologies known to the E.P.A.

(iv) The wastestream contains only pollutants that are compatible with the publicly owned treatment works.

FT = The average daily flow through the combined treatment facility, includes Fi, FD, and unregulated streams.

N = The total number of regulated streams.

(b) Alternative mass limit.

$$M_T = \left[\sum_{i=1}^N M_i \right] \left[\frac{F_T - F_D}{\sum_{i=1}^N F_i} \right]$$

where

MT = the alternative mass limit for a pollutant in the combined wastestream.

Mi = the categorical pretreatment standard mass limit for a pollutant in the regulated stream i (the categorical pretreatment mass limit multiplied by the appropriate measure of production).

Fi = the average flow of stream i to the extent that it is regulated for the pollutant.

FD = the average daily flow from boiler blowdown streams, noncontact cooling streams, stormwater streams, and demineralizer backwash streams; provided, however, that where the streams contain a significant amount of a pollutant and the combination of the streams, before treatment, with a nondomestic user's regulated process wastestream will result in a substantial reduction of the pollutant, the control authority, upon application of the nondomestic user, may exercise its discretion to determine whether the streams should be classified as diluted or unregulated. In its application to the control authority, the nondomestic user shall provide engineering, production, sampling, analysis, and other necessary information so that the control authority can make its determination or equals the average daily flow from sanitary wastestreams where the streams are not regulated by a categorical pretreatment standard or equals the average daily flow from any process wastestreams that were or could have been entirely exempted from categorical pretreatment standards for 1 or more of the following reasons (see R 323.2312):

(i) The pollutants of concern are not detectable in the effluent from the nondomestic user.

(ii) The pollutants of concern are present only in trace amounts and are neither causing nor likely to cause toxic effects.

(iii) The pollutants of concern are present in amounts too small to be effectively reduced by technologies known to the E.P.A.

(iv) The wastestream contains only pollutants that are compatible with the publicly owned treatment works.

FT = The average flow through the combined treatment facility, includes Fi, FD, and unregulated streams.

N = The total number of regulated streams. An alternative pretreatment limit may not be used if the alternative limit is below the analytical detection limit for any of the regulated pollutants. Self-monitoring required to ensure compliance with the alternative categorical limit shall be conducted in accordance with the requirements of R 323.2310(6). Where a treated regulated process wastestream is combined before treatment with wastewaters other than those generated by the regulated process, the nondomestic user may monitor either the segregated process wastestream or the combined wastestream for the purpose of determining compliance with applicable pretreatment standards. If the nondomestic user chooses to monitor the segregated process wastestream, it shall apply the applicable categorical pretreatment standard. If the nondomestic user chooses to monitor the combined wastestream, it shall apply an alternative discharge limit calculated using the combined wastestream formula as provided in this rule. The nondomestic user may change monitoring points only after receiving approval from the control authority. The control authority shall ensure that any change in a nondomestic user's monitoring point or points will not allow the user to substitute dilution for adequate treatment to achieve compliance with applicable standards.

History: 1995 AACCS.

R 323.2312 Industrial subcategories considered dilute.

Rule 12. The industrial subcategories listed in appendix D of 40 C.F.R. part 403 (1986) are considered dilute wastestreams for purposes of applying the combined wastestream formula.

History: 1995 AACCS.

R 323.2313 Alternative categorical limits.

Rule 13. Categorical pretreatment standards shall apply to a nondomestic user subject to categorical standards, unless an enforceable alternative limit to the corresponding national categorical standards is derived using any of the following methods:

(a) 40 C.F.R. §403.7 (1993) contains the requirements for removal credits that reflect the removal of pollutants by a publicly owned treatment works discharged by the nondomestic user.

(b) 40 C.F.R. §403.13 (1992) contains the requirements for a fundamentally different factor variance to reflect the existence of data and information that was not considered or available when the national categorical pretreatment standard was promulgated.

(c) 40 C.F.R. §403.15 (1992) contains the requirements for a net/gross calculation to reflect the presence of pollutants in the intake water of a nondomestic user.

(d) R 323.2311(5) contains the requirements for equivalent mass per day limitations.

(e) R 323.2311(7) contains the requirements for combined wastestream formula alternative limitations.

History: 1995 AACCS.

R 323.2314 Confidentiality.

Rule 14. (1) In accordance with Act No. 442 of the Public Acts of 1976, as amended, being §15.231 et seq. of the Michigan Compiled Laws, and Act No. 306 of the Public Acts of 1969, as amended, being §24.201 et seq. of the Michigan Compiled Laws, any information submitted to the approval authority pursuant to these acts that is a trade secret may be claimed as confidential, if so marked at the time of submission.

(2) All discharge information in the possession of the control authority pursuant to these rules shall be available to the public without restriction.

History: 1995 AACCS.

R 323.2315 Upset provision.

Rule 15. (1) An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the provisions of subrule (2) of this rule are met.

(2) A nondomestic user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence, that all of the following provisions apply:

(a) An upset occurred and the nondomestic user can identify the cause or causes of the upset.

(b) The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures.

(c) The nondomestic user has submitted the following information to the publicly owned treatment works within 24 hours of becoming aware of the upset:

(i) A description of the indirect discharge and cause of noncompliance.

(ii) The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue.

(iii) Steps being taken or planned to reduce, eliminate, and prevent a recurrence of the noncompliance.

If this information is provided orally, a written submission shall be provided within 5 days of becoming aware of the upset.

(3) In any enforcement proceeding, the nondomestic user seeking to establish the occurrence of an upset shall have the burden of proof.

(4) In the usual exercise of prosecutorial discretion, agency enforcement personnel should review any claims that noncompliance was caused by an upset. A determination made in the course of the review does not constitute final agency action subject to judicial review. Industrial users will have the opportunity for a judicial

determination on any claim of upset only in an enforcement action brought for noncompliance with categorical pretreatment standards.

(5) The nondomestic user shall control production or all discharges to the extent necessary to maintain compliance with categorical pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in a situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

History: 1995 AACs.

R 323.2316 Bypass.

Rule 16. (1) A nondomestic user may allow a bypass to occur if the bypass does not cause pretreatment standards or requirements to be violated, but only if the bypass is also for essential maintenance to assure efficient operation. A bypass is not subject to the provisions of subrules (2) and (3) of this rule.

(2) If a nondomestic user knows in advance of the need for a bypass, it shall submit prior notice to the publicly owned treatment works, if possible, not less than 10 days before the date of the bypass. A

nondomestic user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the publicly owned treatment works within 24 hours of the time the nondomestic user becomes aware of the bypass. A written submission shall also be provided to the control authority within 5 days of the time the nondomestic user becomes aware of the bypass. The written submission shall contain all of the following:

(a) A description of the bypass and its cause.

(b) The duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue.

(c) Steps taken or planned to reduce, eliminate, and prevent a reoccurrence of the bypass.

(3) Bypass is prohibited, and the control authority may take enforcement action against a nondomestic user for a bypass, unless all of the following provisions apply:

(a) Bypass was unavoidable to prevent a loss of life, personal injury, or severe property damage.

(b) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventative maintenance.

(c) The nondomestic user submitted notices as required under subrule (2) of this rule.

(4) The control authority may approve an anticipated bypass after considering its adverse effects if the control authority determines that the provisions listed in subrule (3) of this rule will apply.

R 323.2317 Federal regulations; adoption by reference.

Rule 17. The following standards are adopted by reference in these rules. Copies are available for inspection at the Lansing office of the department of natural resources and may be obtained from the Superintendent of Documents, Government Printing Office, Washington, DC 20402, at a cost, as of the time of adoption of these rules of \$36.00, or from the Department of Natural Resources, Surface Water Quality Division, P.O. Box 30028, Lansing, Michigan 48909, at a cost as of the time of adoption of these rules of 20 cents per page:

- (a) Aluminum forming, 40 C.F.R. part 467 (1988).
- (b) Asbestos manufacturing, 40 C.F.R. part 427 (1979).
- (c) Battery manufacturing, 40 C.F.R. part 461 (1986).
- (d) Builder's paper and board mills, 40 C.F.R. part 431 (1986).
- (e) Carbon black manufacturing, 40 C.F.R. part 458 (1978).
- (f) Coil coating, 40 C.F.R. part 465 (1985).
- (g) Copper forming, 40 C.F.R. part 468 (1986).
- (h) Electrical and electronic components, 40 C.F.R. part 469 (1985).
- (i) Electroplating, 40 C.F.R. part 413 (1986).
- (j) Feedlots, 40 C.F.R. part 412 (1986).
- (k) Ferroalloy manufacturing, 40 C.F.R. part 424 (1986).
- (l) Fertilizer manufacturing, 40 C.F.R. part 418 (1987).
- (m) Glass manufacturing, 40 C.F.R. part 426 (1986).
- (n) Grain mills, 40 C.F.R. part 406 (1986).
- (o) Ink formulating, 40 C.F.R. part 447 (1975).
- (p) Inorganic chemicals, 40 C.F.R. part 415 (1984).
- (q) Iron and steel manufacturing, 40 C.F.R. part 420 (1984).
- (r) Leather tanning and finishing, 40 C.F.R. part 425 (1988).
- (s) Metal finishing, 40 C.F.R. part 433 (1986).
- (t) Metal molding and casting, 40 C.F.R. part 464 (1986).
- (u) Nonferrous metals forming and metal powders, 40 C.F.R. part 471 (1989).
- (v) Nonferrous metals manufacturing, 40 C.F.R. part 421 (1990).
- (w) Organic chemicals, plastics, synthetic fibers, 40 C.F.R. part 414 (1993).
- (x) Paint formulating, 40 C.F.R. part 446 (1975).
- (y) Paving and roofing materials, 40 C.F.R. part 443 (1975).
- (z) Pesticide chemicals, 40 C.F.R. part 455 (1993).
- (aa) Petroleum refining, 40 C.F.R. part 419 (1985).
- (bb) Pharmaceutical manufacturing, 40 C.F.R. part 439 (1986).
- (cc) Porcelain enameling, 40 C.F.R. part 466 (1985).
- (dd) Pulp, paper, and paperboard, 40 C.F.R. part 430 (1986).
- (ee) Rubber manufacturing, 40 C.F.R. part 428 (1978).
- (ff) Soap and detergent manufacturing, 40 C.F.R. part 417 (1975).
- (gg) Steam electric power generating, 40 C.F.R. part 423 (1983).
- (hh) Sugar processing, 40 C.F.R. part 409 (1986).
- (ii) Timber products processing, 40 C.F.R. part 429 (1982).

(jj) 40 C.F.R. chapter I, subchapter N (1990).
(kk) 40 C.F.R. S 25 (1979).
(ll) 40 C.F.R. S 122 (1990).
(mm) 40 C.F.R. S 128.140(b) (1977).
(nn) 40 C.F.R. S 136 (1992).
(oo) 40 C.F.R. S 261 (1990).
(pp) 40 C.F.R. S 403 (1992).
(qq) 40 C.F.R. S 403.7 (1993).

History: 1995 AACCS.

APPENDIX C: CADILLAC NPDES PERMIT

PERMIT NO. MI0020257

STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENT, GREAT LAKES,
AND ENERGY

**AUTHORIZATION TO DISCHARGE UNDER THE
NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM**

In compliance with the provisions of the Federal Water Pollution Control Act, 33 U.S.C., Section 1251 *et seq.*, as amended; Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA); Part 41, Sewerage Systems, of the NREPA; and Michigan Executive Order 2019-06,

City of Cadillac
200 North Lake Street
Cadillac, MI 49601

is authorized to discharge from the **Cadillac Wastewater Treatment Plant** located at

1121 Plett Road
Cadillac, MI 49601

designated as **Cadillac WWTP**

to the receiving water named the Clam River in accordance with effluent limitations, monitoring requirements, and other conditions set forth in this permit.

This permit is based on a complete application submitted on April 3, 2017, as amended through May 11, 2017.

This permit takes effect on September 1, 2019. The provisions of this permit are severable. After notice and opportunity for a hearing, this permit may be modified, suspended, or revoked in whole or in part during its term in accordance with applicable laws and rules. On its effective date, this permit shall supersede National Pollutant Discharge Elimination System (NPDES) Permit No. MI0020257 (expiring October 1, 2017).

This permit and the authorization to discharge shall expire at midnight on **October 1, 2022**. In order to receive authorization to discharge beyond the date of expiration, the permittee shall submit an application that contains such information, forms, and fees as are required by the Michigan Department of Environment, Great Lakes, and Energy (Department) by **April 4, 2022**.

Issued: August 30, 2019.

Original signed by Christine Alexander
Christine Alexander, Manager
Permits Section
Water Resources Division

PERMIT FEE REQUIREMENTS

In accordance with Section 324.3120 of the NREPA, the permittee shall make payment of an annual permit fee to the Department for each October 1 the permit is in effect regardless of occurrence of discharge. The permittee shall submit the fee in response to the Department's annual notice. The fee shall be postmarked by January 15 for notices mailed by December 1. The fee is due no later than 45 days after receiving the notice for notices mailed after December 1.

Annual Permit Fee Classification: Municipal Major, less than 10 MGD (Individual Permit)

In accordance with Section 324.3132 of the NREPA, the permittee shall make payment of an annual biosolids land application fee to the Department if the permittee land applies biosolids. In response to the Department's annual notice, the permittee shall submit the fee, which shall be postmarked no later than January 31 of each year.

CONTACT INFORMATION

Unless specified otherwise, all contact with the Department required by this permit shall be made to the Cadillac District Office of the Water Resources Division. The Cadillac District Office is located at 120 West Chapin Street, Cadillac, MI 49601-2158, Telephone: 231-775-3960, Fax: 231-775-1511.

CONTESTED CASE INFORMATION

Any person who is aggrieved by this permit may file a sworn petition with the Michigan Administrative Hearing System within the Michigan Department of Licensing and Regulatory Affairs, c/o the Michigan Department of Environment, Great Lakes, and Energy, setting forth the conditions of the permit which are being challenged and specifying the grounds for the challenge. The Department of Licensing and Regulatory Affairs may reject any petition filed more than 60 days after issuance as being untimely.

PART I**Section A. Limitations and Monitoring Requirements****1. Final Effluent Limitations, Monitoring Point 001A**

During the period beginning on the effective date of this permit and lasting until the expiration date of this permit, the permittee is authorized to discharge treated municipal wastewater from Monitoring Point 001A through Outfall 001. Outfall 001 discharges to the Clam River at Latitude 44.2657, Longitude -85.3985. Such discharge shall be limited and monitored by the permittee as specified below.

Parameter	Maximum Limits for Quantity or Loading				Maximum Limits for Quality or Concentration				Monitoring Frequency	Sample Type
	Monthly	7-Day	Daily	Units	Monthly	7-Day	Daily	Units		
Flow	(report)	---	(report)	MGD	---	---	---	---	Daily	Report Total Daily Flow
Carbonaceous Biochemical Oxygen Demand (CBOD ₅)										
June – September	190	270	(report)	lbs/day	7	---	10	mg/l	5x Weekly	24-Hr Composite
October – November	290	480	(report)	lbs/day	11	---	17	mg/l	5x Weekly	24-Hr Composite
December – March	670	910	(report)	lbs/day	25	---	34	mg/l	5x Weekly	24-Hr Composite
April – May	450	670	(report)	lbs/day	17	---	25	mg/l	5x Weekly	24-Hr Composite
Total Suspended Solids (TSS)										
June – September	530	800	(report)	lbs/day	20	30	(report)	mg/l	5x Weekly	24-Hr Composite
October – May	800	1200	(report)	lbs/day	30	45	(report)	mg/l	5x Weekly	24-Hr Composite
Ammonia Nitrogen (as N)										
June – September	24	53	(report)	lbs/day	0.9	---	2.0	mg/l	5x Weekly	24-Hr Composite
October – November	88	---	(report)	lbs/day	1.6	---	2.8	mg/l	5x Weekly	24-Hr Composite
December – March	99	---	(report)	lbs/day	3.7	---	(report)	mg/l	5x Weekly	24-Hr Composite
April – May	130	---	(report)	lbs/day	4.8	---	(report)	mg/l	5x Weekly	24-Hr Composite
Total Phosphorus (as P)										
May – March	13	---	(report)	lbs/day	0.5	---	(report)	mg/l	5x Weekly	24-Hr Composite
April	17	---	(report)	lbs/day	0.65	---	(report)	mg/l	5x Weekly	24-Hr Composite
Fecal Coliform Bacteria	---	---	---	---	200	400	(report)	cts/100 ml	5x Weekly	Grab
Perfluorooctane sulfonate (PFOS)	(report)	---	(report)	lbs/day	(report)	---	(report)	ng/l	2x Annually	Grab
Perfluorooctanoic acid (PFOA)	(report)	---	(report)	lbs/day	(report)	---	(report)	ng/l	2x Annually	Grab
Total Copper	0.3	---	0.82	lbs/day	11	---	31	ug/l	Weekly	24-Hr Composite
Total Nickel	(report)	---	(report)	lbs/day	(report)	---	(report)	ug/l	Quarterly	24-Hr Composite
Total Selenium	0.15	---	(report)	lbs/day	5.7	---	(report)	ug/l	Monthly	24-Hr Composite
Bis(2-ethylhexyl)phthalate	0.82	---	(report)	lbs/day	31	---	(report)	ug/l	Monthly	24-Hr Composite
Total Mercury										
Corrected	(report)	---	(report)	lbs/day	(report)	---	(report)	ng/l	Quarterly	Calculation
Uncorrected	---	---	---	---	---	---	(report)	ng/l	Quarterly	Grab
Field Duplicate	---	---	---	---	---	---	(report)	ng/l	Quarterly	Grab
Field Blank	---	---	---	---	---	---	(report)	ng/l	Quarterly	Preparation

PART I**Section A. Limitations and Monitoring Requirements**

<u>Parameter</u>							<u>Daily</u>	<u>Units</u>	<u>Monitoring Frequency</u>	<u>Sample Type</u>
Laboratory Method Blank	---	---	---	---	---	---	(report)	ng/l	Quarterly	Preparation
	12-Month Rolling Avg				12-Month Rolling Avg					
Total Mercury	0.000053	---	---	lbs/day	2.0	---	---	ng/l	Quarterly	Calculation
					Minimum % Monthly		Minimum % Daily			
TSS Minimum % Removal										
October – May	---	---	---	---	85	---	(report)	%	Monthly	Calculation
					Minimum Daily		Maximum Daily			
pH	---	---	---	---	6.5	---	9.0	S.U.	5x Weekly	Grab
Dissolved Oxygen										
May – November	---	---	---	---	6.0	---	---	mg/l	5x Weekly	Grab
December – April	---	---	---	---	5.0	---	---	mg/l	5x Weekly	Grab

The following design flow was used in determining the above limitations, but is not to be considered a limitation or actual capacity: 3.2 MGD.

- a. **Narrative Standard**
The receiving water shall contain no turbidity, color, oil films, floating solids, foams, settleable solids, or deposits as a result of this discharge in unnatural quantities which are or may become injurious to any designated use.
- b. **Sampling Locations**
Samples for Carbonaceous Biochemical Oxygen Demand (CBOD₅), Total Suspended Solids (TSS), Ammonia Nitrogen (as N), Total Phosphorus (as P), Total Copper, Total Nickel, Total Selenium, and Bis(2-ethylhexyl)phthalate shall be taken prior to disinfection. Samples for Fecal Coliform Bacteria, Total Mercury, pH and Dissolved Oxygen shall be taken after disinfection. The Department may approve alternate sampling locations that are demonstrated by the permittee to be representative of the effluent.
- c. **Quarterly and 2x Annual Monitoring**
Quarterly samples shall be taken during the months of January, April, July, and October. 2x Annual samples shall be taken during the months of April and October. If the facility does not discharge during these months, the permittee shall sample the next discharge occurring during the period in question. If the facility does not discharge during the period in question, a sample is not required for that period. For any month in which a sample is not taken, the permittee shall enter "*"G" on the Discharge Monitoring Report (DMR). (For purposes of reporting on the Daily tab of the DMR, the permittee shall enter "*"G" on the first day of the month only).
- d. **Ultraviolet Disinfection**
It is understood that ultraviolet light will be used to achieve compliance with the fecal coliform limitations. If disinfection other than ultraviolet light will be used, the permittee shall notify the Department in accordance with Part II.C.12. of this permit.
- e. **Percent Removal Requirements**
These requirements shall be calculated based on the monthly (30-day) effluent TSS concentrations and the monthly influent concentrations for approximately the same period.

PART I**Section A. Limitations and Monitoring Requirements**

- f. **Analytical Method(s) and Quantification Level for Total Copper**
The sampling procedures, preservation and handling, and analytical protocol for compliance monitoring for total copper shall be in accordance with an EPA Method listed in Title 40 of the Code of Federal Regulations (CFR), Part 136. The quantification level for total copper shall be 10 ug/l unless a higher level is appropriate because of sample matrix interference. Justification for higher quantification levels shall be submitted to the Department within 30 days of such determination. Upon approval from the Department, the permittee may use alternate analytical methods (for parameters with methods specified in Title 40 of the CFR, Part 136, the alternate methods are restricted to those listed in 40 CFR, Part 136).
- g. **Analytical Method(s) and Quantification Level for Total Selenium**
The sampling procedures, preservation and handling, and analytical protocol for compliance monitoring for total selenium shall be in accordance with an EPA Method listed in Title 40 of the Code of Federal Regulations (CFR), Part 136. The quantification level for total selenium shall be 2 ug/l unless a higher level is appropriate because of sample matrix interference. Justification for higher quantification levels shall be submitted to the Department within 30 days of such determination. Upon approval from the Department, the permittee may use alternate analytical methods (for parameters with methods specified in Title 40 of the CFR, Part 136, the alternate methods are restricted to those listed in 40 CFR, Part 136).
- h. **Monitoring Frequency Reduction for Total Selenium, and Bis(2-ethylhexyl)phthalate**
After the submittal of 12 months of data, the permittee may request, in writing, Department approval for a reduction in monitoring frequency for total selenium, and bis(2-ethylhexyl)phthalate. This request shall contain an explanation as to why the reduced monitoring is appropriate. Upon receipt of written approval and consistent with such approval, the permittee may reduce the monitoring frequency indicated in Part I.A.1. of this permit. The monitoring frequency for total selenium, and bis(2-ethylhexyl)phthalate shall not be reduced to less than quarterly. The Department may revoke the approval for reduced monitoring at any time upon notification to the permittee.
- i. **Monitoring Frequency Reduction for Perfluorooctane Sulfonate (PFOS) and/or Perfluorooctanoic Acid (PFOA)**
After the submittal of at least 10 equally spaced data points over a minimum of 3 months, the permittee may request, in writing, Department approval of a reduction in monitoring frequency for PFOS and/or PFOA. This request shall contain an explanation as to why the reduced monitoring is appropriate. Upon receipt of written approval and consistent with such approval, the permittee may reduce the monitoring frequency indicated in Part I.A.1. of this permit. The monitoring frequency for PFOS and/or PFOA shall not be reduced to less than annually. The Department may revoke the approval for reduced monitoring at any time upon notification to the permittee.
- j. **Final Effluent Limitation for Total Mercury**
The final limit for total mercury is the Discharge Specific Level Currently Achievable (LCA) based on a multiple discharger variance from the WQBEL of 1.3 ng/l, pursuant to Rule 1103(9) of the Water Quality Standards. Compliance with the LCA shall be determined as a 12-month rolling average, the calculation of which may be done using blank-corrected sample results. The 12-month rolling average shall be determined by adding the present monthly average result to the preceding 11 monthly average results then dividing the sum by 12. For facilities with quarterly monitoring requirements for total mercury, quarterly monitoring shall be equivalent to three (3) months of monitoring in calculating the 12-month rolling average. Facilities that monitor more frequently than monthly for total mercury must determine the monthly average result, which is the sum of the results of all data obtained in a given month divided by the total number of samples taken, in order to calculate the 12-month rolling average. If the 12-month rolling average for any quarter is less than or equal to the LCA, the permittee will be considered to be in compliance for total mercury for that quarter, provided the permittee is also in full compliance with the Pollutant Minimization Program for Total Mercury, set forth in Part I.A.4. of this permit.

PART I**Section A. Limitations and Monitoring Requirements****k. Total Mercury Testing and Additional Reporting Requirements**

The analytical protocol for total mercury shall be in accordance with EPA Method 1631, Revision E, "Mercury in Water by Oxidation, Purge and Trap, and Cold Vapor Atomic Fluorescence Spectrometry." The quantification level for total mercury shall be 0.5 ng/l, unless a higher level is appropriate because of sample matrix interference. Justification for higher quantification levels shall be submitted to the Department within 30 days of such determination.

The use of clean technique sampling procedures is required unless the permittee can demonstrate to the Department that an alternate sampling procedure is representative of the discharge. Guidance for clean technique sampling is contained in EPA Method 1669, Sampling Ambient Water for Trace Metals at EPA Water Quality Criteria Levels (Sampling Guidance), EPA-821-R96-001, July 1996. Information and data documenting the permittee's sampling and analytical protocols and data acceptability shall be submitted to the Department upon request.

In order to demonstrate compliance with EPA Method 1631E and EPA Method 1669, the permittee shall report, on the daily sheet, the analytical results of all field blanks and field duplicates collected in conjunction with each sampling event, as well as laboratory method blanks when used for blank correction. The permittee shall collect at least one (1) field blank and at least one (1) field duplicate per sampling event. If more than ten (10) samples are collected during a sampling event, the permittee shall collect at least one (1) additional field blank AND field duplicate for every ten (10) samples collected. Only field blanks or laboratory method blanks may be used to calculate a concentration lower than the actual sample analytical results (i.e., a blank correction). Only one (1) blank (field OR laboratory method) may be used for blank correction of a given sample result, and only if the blank meets the quality control acceptance criteria. If blank correction is not performed on a given sample analytical result, the permittee shall report under "Total Mercury – Corrected" the same value reported under "Total Mercury – Uncorrected." The field duplicate is for quality control purposes only; its analytical result shall not be averaged with the sample result.

PART I**Section A. Limitations and Monitoring Requirements****2. Quantification Levels and Analytical Methods for Selected Parameters**

Quantification levels (QLs) are specified for selected parameters in the table below. These QLs shall be considered the maximum acceptable unless a higher QL is appropriate because of sample matrix interference. Justification for higher QLs shall be submitted to the Department within 30 days of such determination. Where necessary to help ensure that the QLs specified can be achieved, analytical methods may also be specified in the table below. The sampling procedures, preservation and handling, and analytical protocol for all monitoring conducted in compliance with this permit, including monitoring conducted to meet the requirements of the application for permit reissuance, shall be in accordance with the methods specified in the table below, or in accordance with Part II.B.2. of this permit if no method is specified in the table below, unless an alternate method is approved by the Department. With the exception of total mercury, all units are in ug/l. The table is continued on the following page:

Parameter	QL	Units	Analytical Method
1,2-Diphenylhydrazine (as Azobenzene)	3.0	ug/l	
2,4,6-Trichlorophenol	5.0	ug/l	
2,4-Dinitrophenol	19	ug/l	
3,3'-Dichlorobenzidine	1.5	ug/l	EPA Method 605
4-Chloro-3-methylphenol	5.0	ug/l	
4,4'-DDD	0.05	ug/l	EPA Method 608
4,4'-DDE	0.01	ug/l	EPA Method 608
4,4'-DDT	0.01	ug/l	EPA Method 608
Acrylonitrile	1.0	ug/l	
Aldrin	0.01	ug/l	EPA Method 608
Alpha-Hexachlorocyclohexane	0.01	ug/l	EPA Method 608
Antimony, Total	1	ug/l	
Arsenic, Total	1	ug/l	
Barium, Total	5	ug/l	
Benzidine	0.1	ug/l	EPA Method 605
Beryllium, Total	1	ug/l	
Beta-Hexachlorocyclohexane	0.01	ug/l	EPA Method 608
Bis (2-Chloroethyl) Ether	1.0	ug/l	
Boron, Total	20	ug/l	
Cadmium, Total	0.2	ug/l	
Chlordane	0.01	ug/l	EPA Method 608
Chromium, Hexavalent	5	ug/l	
Chromium, Total	10	ug/l	
Cyanide, Available	2	ug/l	EPA Method OIA 1677
Cyanide, Total	5	ug/l	
Delta-Hexachlorocyclohexane	0.01	ug/l	EPA Method 608
Dieldrin	0.01	ug/l	EPA Method 608
Di-N-Butyl Phthalate	9.0	ug/l	
Endosulfan I	0.01	ug/l	EPA Method 608
Endosulfan II	0.01	ug/l	EPA Method 608
Endosulfan Sulfate	0.01	ug/l	EPA Method 608
Endrin	0.01	ug/l	EPA Method 608
Endrin Aldehyde	0.01	ug/l	EPA Method 608
Fluoranthene	1.0	ug/l	
Heptachlor	0.01	ug/l	EPA Method 608
Heptachlor Epoxide	0.01	ug/l	EPA Method 608

PART I**Section A. Limitations and Monitoring Requirements**

Parameter	QL	Units	Analytical Method
Hexachlorobenzene	0.01	ug/l	EPA Method 612
Hexachlorobutadiene	0.01	ug/l	EPA Method 612
Hexachlorocyclopentadiene	0.01	ug/l	EPA Method 612
Hexachloroethane	5.0	ug/l	
Lead, Total	1	ug/l	
Lindane	0.01	ug/l	EPA Method 608
Lithium, Total	10	ug/l	
Mercury, Total	0.5	ng/l	EPA Method 1631E
Nickel, Total	5	ug/l	
PCB-1016	0.1	ug/l	EPA Method 608
PCB-1221	0.1	ug/l	EPA Method 608
PCB-1232	0.1	ug/l	EPA Method 608
PCB-1242	0.1	ug/l	EPA Method 608
PCB-1248	0.1	ug/l	EPA Method 608
PCB-1254	0.1	ug/l	EPA Method 608
PCB-1260	0.1	ug/l	EPA Method 608
Pentachlorophenol	1.8	ug/l	
Perfluorooctane sulfonate (PFOS)	2.0	ng/l	ASTM D7979 or an isotope dilution method (sometimes referred to as Method 537 modified)
Perfluorooctanoic acid (PFOA)	2.0	ng/l	ASTM D7979 or an isotope dilution method (sometimes referred to as Method 537 modified)
Phenanthrene	1.0	ug/l	
Silver, Total	0.5	ug/l	
Strontium, Total	1000	ug/l	
Sulfides, Dissolved	20	ug/l	
Thallium, Total	1	ug/l	
Toxaphene	0.1	ug/l	EPA Method 608
Vinyl Chloride	0.25	ug/l	
Zinc, Total	10	ug/l	

3. Additional Monitoring Requirements

As a condition of this permit, the permittee shall monitor the discharge from monitoring point 001A for the constituents listed below. This monitoring is an application requirement of 40 CFR 122.21(j), effective December 2, 1999. Testing shall be conducted in October 2019, May 2020, March 2021, and August 2021. Grab samples shall be collected for available cyanide, total phenols, and the Volatile Organic Compounds identified below. For all other parameters, 24-hour composite samples shall be collected.

Test species for whole effluent toxicity monitoring shall include fathead minnow **and** *Ceriodaphnia dubia*, for a total of four (4) tests on each species. Testing and reporting procedures shall follow procedures contained in EPA-821-R-02-013, "Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Freshwater Organisms" (Fourth Edition). When the effluent ammonia nitrogen (as N) concentration is greater than 3 mg/l, the pH of the toxicity test shall be maintained at a pH of 8 Standard Units. Acute and chronic toxicity data shall be included in the reporting for the toxicity test results. Toxicity test data acceptability is contingent upon the validation of the test method by the testing laboratory. Such validation shall be submitted to the Department upon request.

PART I

Section A. Limitations and Monitoring Requirements

The results of such additional monitoring shall be submitted with the application for reissuance (see the cover page of this permit for the application due date). The permittee shall notify the Department within 14 days of completing the monitoring for each month specified above in accordance with Part II.C.5. Additional reporting requirements are specified in Part II.C.11. The permittee shall report to the Department any whole effluent toxicity test results greater than 1.0 TU_A or 1.0 TU_C within five (5) days of becoming aware of the result. If, upon review of the analysis, it is determined that additional requirements are needed to protect the receiving waters in accordance with applicable water quality standards, the permit may then be modified by the Department in accordance with applicable laws and rules.

Whole Effluent Toxicity

acute toxicity chronic toxicity

Hardness

calcium carbonate

Metals (Total Recoverable), Cyanide and Total Phenols

antimony	arsenic	available cyanide	barium
beryllium	boron	cadmium	chromium
lead	silver	thallium	zinc
total phenolic compounds			

Volatile Organic Compounds

acrolein	acrylonitrile	benzene	bromoform
carbon tetrachloride	chlorobenzene	chlorodibromomethane	chloroethane
2-chloroethylvinyl ether	chloroform	dichlorobromomethane	1,1-dichloroethane
1,2-dichloroethane	trans-1,2-dichloroethylene	1,1-dichloroethylene	1,2-dichloropropane
1,3-dichloropropylene	ethylbenzene	methyl bromide	methyl chloride
methylene chloride	1,1,2,2-tetrachloroethane	tetrachloroethylene	toluene
1,1,1-trichloroethane	1,1,2-trichloroethane	trichloroethylene	vinyl chloride

Acid-Extractable Compounds

4-chloro-3-methylphenol	2-chlorophenol	2,4-dichlorophenol	2,4-dimethylphenol
4,6-dinitro-o-cresol	2,4-dinitrophenol	2-nitrophenol	4-nitrophenol
Pentachlorophenol	phenol	2,4,6-trichlorophenol	

Base/Neutral Compounds

acenaphthene	acenaphthylene	anthracene	benzidine
benzo(a)anthracene	benzo(a)pyrene	3,4-benzofluoranthene	benzo(ghi)perylene
benzo(k)fluoranthene	bis(2-chloroethoxy)methane	bis(2-chloroethyl)ether	bis(2-chloroisopropyl)ether
4-bromophenyl phenyl ether	butyl benzyl phthalate	2-chloronaphthalene	4-chlorophenyl phenyl ether
chrysene	di-n-butyl phthalate	di-n-octyl phthalate	dibenzo(a,h)anthracene
1,2-dichlorobenzene	1,3-dichlorobenzene	1,4-dichlorobenzene	3,3'-dichlorobenzidine
diethyl phthalate	dimethyl phthalate	2,4-dinitrotoluene	2,6-dinitrotoluene
1,2-diphenylhydrazine	fluoranthene	fluorene	Hexachlorobenzene
hexachlorobutadiene	hexachlorocyclo-pentadiene	hexachloroethane	indeno(1,2,3-cd)pyrene
isophorone	naphthalene	nitrobenzene	n-nitrosodi-n-propylamine
n-nitrosodimethylamine	n-nitrosodiphenylamine	phenanthrene	pyrene
1,2,4-trichlorobenzene			

PART I**Section A. Limitations and Monitoring Requirements****4. Pollutant Minimization Program for Total Mercury**

The goal of the Pollutant Minimization Program is to maintain the effluent concentration of total mercury at or below 1.3 ng/l. The permittee shall continue to implement the Pollutant Minimization Program approved on May 17, 2005, and modifications thereto, to proceed toward the goal. The Pollutant Minimization Program includes the following:

- a. an annual review and semi-annual monitoring of potential sources of mercury entering the wastewater collection system;
- b. a program for quarterly monitoring of influent and periodic monitoring of sludge for mercury; and
- c. implementation of reasonable cost-effective control measures when sources of mercury are discovered. Factors to be considered include significance of sources, economic considerations, and technical and treatability considerations.

On or before March 31 of each year, the permittee shall submit a status report for the previous calendar year to the Department that includes 1) the monitoring results for the previous year, 2) an updated list of potential mercury sources, and 3) a summary of all actions taken to reduce or eliminate identified sources of mercury.

Any information generated as a result of the Pollutant Minimization Program set forth in this permit may be used to support a request to modify the approved program or to demonstrate that the Pollutant Minimization Program requirement has been completed satisfactorily.

A request for modification of the approved program and supporting documentation shall be submitted in writing to the Department for review and approval. The Department may approve modifications to the approved program (approval of a program modification does not require a permit modification), including a reduction in the frequency of the requirements under items a. and b.

This permit may be modified in accordance with applicable laws and rules to include additional mercury conditions and/or limitations as necessary.

5. Pollutant Minimization and Source Evaluation Program for Perfluorooctane Sulfonate (PFOS) and/or Perfluorooctanoic Acid (PFOA)

The goal of the Pollutant Minimization and Source Evaluation Program is to identify and address sources of PFOS and/or PFOA and to reduce and maintain the effluent concentrations of PFOS and/or PFOA at or below the water quality-based effluent limitations (WQBELs). The WQBELs are 12 ng/L for PFOS and 20 ug/L for PFOA.

Within 90 days of written notification by the Department or after the permittee notifies the Department that the final effluent concentration of PFOS and/or PFOA has exceeded the WQBELs, the permittee shall submit to the Department an approvable Pollutant Minimization and Source Evaluation Program for PFOS and/or PFOA to proceed toward the goal. The Pollutant Minimization and Source Evaluation Program shall continue work under the IPP Interim Initiative and shall include the following at a minimum:

- a. identification of and strategies to identify any additional potential and probable PFOS and/or PFOA sources;
- b. monitoring plan for the permitted facility's influent and effluent and effluent from potential sources;
- c. implemented measures thus far to eliminate, reduce, and/or control sources, and an assessment of the degree of success and the strategies used to measure success; and
- d. proposed measures and implementation schedules for elimination, control, and/or reduction of the identified sources (prioritizing highest loadings and concentrations), and the strategies that will be used to measure success.

The Pollutant Minimization and Source Evaluation Program shall be implemented upon approval by the Department.

PART I**Section A. Limitations and Monitoring Requirements**

On or before May 1 of each year following Pollutant Minimization and Source Evaluation Program implementation, the permittee shall submit to the Department a status report for the previous calendar year. Upon written notification by the Department, the permittee may be required to submit more frequent status reports. Status reports at a minimum shall include:

- a. complete listing of PFOS and/or PFOA sources;
- b. summary of influent and effluent monitoring data;
- c. summary of monitoring data from known or potential sources;
- d. history and compliance status for sources;
- e. implemented measures to eliminate, reduce, or control sources, (prioritizing highest loadings and concentrations), and an assessment of the degree of success and the strategies used to measure success;
- f. proposed measures and schedules for elimination, control, or reduction of any newly identified PFOS and/or PFOA sources (prioritizing highest loadings and concentrations), and the strategies that will be used to measure success;
- g. barriers to implementation and revisions to the implementation schedule; and
- h. laboratory reports, if not previously supplied.

Any information generated as a result of the Pollutant Minimization and Source Evaluation Program set forth in this permit may be used to support a request to modify the Pollutant Minimization and Source Evaluation Program or to demonstrate that the requirement has been completed satisfactorily.

A request for modification of the approved Pollutant Minimization and Source Evaluation Program shall be submitted in writing to the Department along with supporting documentation for review and approval. The Department may approve modifications to the approved Pollutant Minimization and Source Evaluation Program, including a reduction in the frequency of the influent and known or potential source monitoring requirements. Approval of a Pollutant Minimization and Source Evaluation Program modification does not require a permit modification.

This permit may be modified in accordance with applicable laws and rules to include additional PFOS and/or PFOA conditions and/or limitations as necessary.

6. Untreated or Partially Treated Sewage Discharge Reporting and Testing Requirements

In accordance with Section 324.3112a of the NREPA, if untreated or partially treated sewage is directly or indirectly discharged from a sewer system onto land or into the waters of the state, the permittee shall immediately, but not more than 24 hours after the discharge begins, notify local health departments, a daily newspaper of general circulation in the county in which the permittee is located, and a daily newspaper of general circulation in the county or counties in which the municipalities whose waters may be affected by the discharge are located, that the discharge is occurring. The permittee shall also notify the Department via its MiWaters system on the form entitled "Report of Discharge (CSO\SSO\RTB)." The MiWaters website is located at <https://miwaters.deq.state.mi.us>. At the conclusion of the discharge, the permittee shall make all such notifications specified in, and in accordance with, Section 324.3112a of the NREPA, and shall notify the Department via its MiWaters system on the form entitled "Report of Discharge (CSO\SSO\RTB)."

The permittee shall also annually contact municipalities, including the superintendent of a public drinking water supply with potentially affected intakes, whose waters may be affected by the permittee's discharge of untreated or partially treated sewage, and if those municipalities wish to be notified in the same manner as specified above, the permittee shall provide such notification.

PART I**Section A. Limitations and Monitoring Requirements**

Additionally, in accordance with Section 324.3112a of the NREPA, each time a discharge of untreated or partially treated sewage occurs, the permittee shall test the affected waters for *Escherichia coli* to assess the risk to the public health as a result of the discharge and shall provide the test results to the affected local county health departments and to the Department. The results of this testing shall be submitted to the Department via MiWaters as part of the notification specified above, or, if the results are not yet available, submitted as soon as they become available. This testing is not required if it has been waived by the local health department, or if the discharge(s) did not affect surface waters. The testing shall be done at locations specified by each affected local county health department but shall not exceed 10 tests for each separate discharge event. The affected local county health department may waive this testing requirement if it determines that such testing is not needed to assess the risk to the public health as a result of the discharge event.

Permittees accepting sanitary or municipal sewage from other sewage collection systems are encouraged to notify the owners of those systems of the above reporting and testing requirements.

7. Facility Contact

The "Facility Contact" was specified in the application. The permittee may replace the facility contact at any time, and shall notify the Department in writing within 10 days after replacement (including the name, address and telephone number of the new facility contact).

- a. The facility contact shall be (or a duly authorized representative of this person):
 - for a corporation, a principal executive officer of at least the level of vice president; or a designated representative if the representative is responsible for the overall operation of the facility from which the discharge originates, as described in the permit application or other NPDES form,
 - for a partnership, a general partner,
 - for a sole proprietorship, the proprietor, or
 - for a municipal, state, or other public facility, either a principal executive officer, the mayor, village president, city or village manager or other duly authorized employee.
- b. A person is a duly authorized representative only if:
 - the authorization is made in writing to the Department by a person described in paragraph a. of this section; and
 - the authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the facility (a duly authorized representative may thus be either a named individual or any individual occupying a named position).

Nothing in this section releases the permittee from properly submitting reports and forms as required by law.

PART I

Section A. Limitations and Monitoring Requirements

8. Monthly Operating Reports

Part 41 of Act 451 of 1994 as amended, specifically Section 324.4106 and associated R 299.2953, requires that the permittee file with the Department, on forms prescribed by the Department, operating reports showing the effectiveness of the treatment facility operation and the quantity and quality of liquid wastes discharged into waters of the state.

Within 30 days of the effective date of this permit, the permittee shall submit to the Department a revised treatment facility monitoring program to address monitoring requirement changes reflected in this permit, or submit justification explaining why monitoring requirement changes reflected in this permit do not necessitate revisions to the treatment facility monitoring program. The permittee shall implement the revised treatment facility monitoring program upon approval from the Department. Applicable forms and guidance are available on the Department's web site at http://www.michigan.gov/deq/0,1607,7-135-3313_44117---,00.html. The permittee may use alternate forms if they are consistent with the approved treatment facility monitoring program. Unless the Department provides written notification to the permittee that monthly submittal of operating reports is required, operating reports that result from implementation of the approved treatment facility monitoring program shall be maintained on site for a minimum of three (3) years and shall be made available to the Department for review upon request.

9. Asset Management

The permittee shall at all times properly operate and maintain all facilities (i.e., the sewer system and treatment works as defined in Part 41 of the NREPA), and control systems installed or used by the permittee to operate the sewer system and treatment works and achieve and maintain compliance with the conditions of this permit (also see Part II.D.3 of this permit). The requirements of an Asset Management Program function to achieve the goals of effective performance, adequate funding, and adequate operator staffing and training. Asset management is a planning process for ensuring that optimum value is gained for each asset and that financial resources are available to rehabilitate and replace those assets when necessary. Asset management is centered on a framework of five (5) core elements: the current state of the assets; the required sustainable level of service; the assets critical to sustained performance; the minimum life-cycle costs; and the best long-term funding strategy.

a. Asset Management Program Requirements

On or before December 1, 2019, the permittee shall submit to the Department an Asset Management Plan for review and approval. An approvable Asset Management Plan shall contain a schedule for the development and implementation of an Asset Management Program that meets the requirements outlined below in 1) – 4). A copy of any Asset Management Program requirements already completed by the permittee should be submitted as part of the Asset Management Plan. Upon approval by the Department the permittee shall implement the Asset Management Plan. (The permittee may choose to include the Operation and Maintenance Manual required under Part II.C.14. of this permit as part of their Asset Management Program).

1) *Maintenance Staff.* The permittee shall provide an adequate staff to carry out the operation, maintenance, repair, and testing functions required to ensure compliance with the terms and conditions of this permit. The level of staffing needed shall be determined by taking into account the work involved in operating the sewer system and treatment works, planning for and conducting maintenance, and complying with this permit.

2) *Collection System Map.* The permittee shall complete a map of the sewer collection system it owns and operates. The map shall be of sufficient detail and at a scale to allow easy interpretation. The collection system information shown on the map shall be based on current conditions and shall be kept up-to-date and available for review by the Department. **Note: Items below referencing combined sewer systems are not applicable to separate sewer systems.** Such map(s) shall include but not be limited to the following:

PART I**Section A. Limitations and Monitoring Requirements**

- a) all sanitary sewer lines and related manholes;
 - b) all combined sewer lines, related manholes, catch basins and CSO regulators;
 - c) all known or suspected connections between the sanitary sewer or combined sewer and storm drain systems;
 - d) all outfalls, including the treatment plant outfall(s), combined sewer treatment facility outfalls, untreated CSOs, and any known SSOs;
 - e) all pump stations and force mains;
 - f) the wastewater treatment facility(ies), including all treatment processes;
 - g) all surface waters (labeled);
 - h) other major appurtenances such as inverted siphons and air release valves;
 - i) a numbering system which uniquely identifies manholes, catch basins, overflow points, regulators and outfalls;
 - j) the scale and a north arrow;
 - k) the pipe diameter, date of installation, type of material, distance between manholes, and the direction of flow; and
 - l) the manhole interior material, rim elevation (optional), and invert elevations.
- 3) *Inventory and assessment of fixed assets.* The permittee shall complete an inventory and assessment of operations-related fixed assets. Fixed assets are assets that are normally stationary (e.g., pumps, blowers, and buildings). The inventory and assessment shall be based on current conditions and shall be kept up-to-date and available for review by the Department.
- a) The fixed asset inventory shall include the following:
 - (1) a brief description of the fixed asset, its design capacity (e.g., pump: 120 gallons per minute), its level of redundancy, and its tag number if applicable;
 - (2) the location of the fixed asset;
 - (3) the year the fixed asset was installed;
 - (4) the present condition of the fixed asset (e.g., excellent, good, fair, poor); and
 - (5) the current fixed asset (replacement) cost in dollars for year specified in accordance with approved schedules;
 - b) The fixed asset assessment shall include a "Business Risk Evaluation" that combines the probability of failure of the fixed asset and the criticality of the fixed asset, as follows:
 - (1) Rate the probability of failure of the fixed asset on a scale of 1-5 (low to high) using criteria such as maintenance history, failure history, and remaining percentage of useful life (or years remaining);
 - (2) Rate the criticality of the fixed asset on a scale of 1-5 (low to high) based on the consequence of failure versus the desired level of service for the facility; and

PART I**Section A. Limitations and Monitoring Requirements**

(3) Compute the Business Risk Factor of the fixed asset by multiplying the failure rating from (1) by the criticality rating from (2).

4) *Operation, Maintenance & Replacement (OM&R) Budget and Rate Sufficiency for the Sewer System and Treatment Works.* The permittee shall complete an assessment of its user rates and replacement fund, including the following:

- a) beginning and end dates of fiscal year;
- b) name of the department, committee, board, or other organization that sets rates for the operation of the sewer system and treatment works;
- c) amount in the permittee's replacement fund in dollars for year specified in accordance with approved schedules;
- d) replacement fund strategy of all assets with a useful life of 20 years or less;
- e) expenditures for maintenance, corrective action and capital improvement taken during the fiscal year;
- f) OM&R budget for the fiscal year; and
- g) rate calculation demonstrating sufficient revenues to cover OM&R expenses. If the rate calculation shows there are insufficient revenues to cover OM&R expenses, the permittee shall document, within three (3) fiscal years after submittal of the Asset Management Plan, that there is at least one rate adjustment that reduces the revenue gap by at least 10 percent. The permittee may prepare and submit an alternate plan, subject to Department approval, for addressing the revenue gap. The ultimate goal of the Asset Management Program is to ensure sufficient revenues to cover OM&R expenses.

b. Reporting

Following Department approval of the permittee's Asset Management Plan, the permittee shall develop a written report that summarizes asset management activities completed during the previous year and planned for the upcoming year. The written report shall be submitted to the Department on or before July 31 of each year. The written report shall include:

- 1) a description of the staffing levels maintained during the year;
- 2) a description of inspections and maintenance activities conducted and corrective actions taken during the previous year;
- 3) expenditures for collection system maintenance activities, treatment works maintenance activities, corrective actions, and capital improvement during the previous year;
- 4) a summary of assets/areas identified for inspection/action (including capital improvement) in the upcoming year based on the five (5) core elements and the Business Risk Factors;
- 5) a maintenance budget and capital improvement budget for the upcoming year that take into account implementation of an effective Asset Management Program that meets the five (5) core elements;
- 6) an updated asset inventory based on the original submission; and
- 7) an updated OM&R budget with an updated rate schedule that includes the amount of insufficient revenues, if any.

PART I**Section A. Limitations and Monitoring Requirements****10. Discharge Monitoring Report – Quality Assurance Study Program**

The permittee shall participate in the Discharge Monitoring Report – Quality Assurance (DMR-QA) Study Program. The purpose of the DMR-QA Study Program is to annually evaluate the proficiency of all in-house and/or contract laboratory(ies) that perform, on behalf of the facility authorized to discharge under this permit, the analytical testing required under this permit. In accordance with Section 308 of the Clean Water Act (33 U.S.C. § 1318); and R 323.2138 and R 323.2154 of Part 21, Wastewater Discharge Permits, promulgated under Part 31 of the NREPA, participation in the DMR-QA Study Program is required for all major facilities, and for minor facilities selected for participation by the Department.

Annually and in accordance with DMR-QA Study Program requirements and submittal due dates, the permittee shall submit to the Michigan DMR-QA Study Program state coordinator all documentation required by the DMR-QA Study. DMR-QA Study Program participation is required only for the analytes required under this permit and only when those analytes are also identified in the DMR-QA Study.

If the permitted facility's status as a major facility should change, participation in the DMR-QA Study Program may be reevaluated. Questions concerning participation in the DMR-QA Study Program should be directed to the Michigan DMR-QA Study Program state coordinator.

All forms and instructions required for participation in the DMR-QA Study Program, including submittal due dates and state coordinator contact information, can be found at <http://www.epa.gov/compliance/discharge-monitoring-report-quality-assurance-study-program>.

PART I

Section B. Storm Water Pollution Prevention

Section B. Storm Water Pollution Prevention is not required for this permit.

PART I**Section C. Industrial Waste Pretreatment Program****1. Michigan Industrial Pretreatment Program**

- a. The permittee shall implement the Michigan Industrial Pretreatment Program (MIPP) approved on July 23, 1985, and any subsequent modifications approved up to the issuance of this permit.
- b. The permittee shall comply with R 323.2301 through R 323.2317 of the Michigan Administrative Code (Part 23 Rules) and the approved MIPP.
- c. The permittee shall have the legal authority and necessary interjurisdictional agreements that provide the basis for the implementation and enforcement of the approved MIPP throughout the service area. The legal authority and necessary interjurisdictional agreements shall include, at a minimum, the authority to carry out the activities specified in R 323.2306(a).
- d. The permittee shall develop procedures which describe, in sufficient detail, program commitments which enable implementation of the approved MIPP and the Part 23 Rules in accordance with R 323.2306(c).
- e. The permittee shall establish an interjurisdictional agreement (or comparable document) with all tributary governmental jurisdictions. Each interjurisdictional agreement shall contain, at a minimum, the following:
 - 1) identification of the agency responsible for the implementation and enforcement of the approved MIPP within the tributary governmental jurisdiction's boundaries; and
 - 2) the provision of the legal authority which provides the basis for the implementation and enforcement of the approved MIPP within the tributary governmental jurisdiction's boundaries.
- f. The permittee shall prohibit discharges that:
 - 1) cause, in whole or in part, the permittee's failure to comply with any condition of this permit or the NREPA;
 - 2) restrict, in whole or in part, the permittee's management of biosolids;
 - 3) cause, in whole or in part, operational problems at the treatment facility or in its collection system;
 - 4) violate any of the general or specific prohibitions identified in R 323.2303(1) and (2);
 - 5) violate categorical standards identified in R 323.2311; and
 - 6) violate local limits established in accordance with R 323.2303(4).
- g. The permittee shall maintain a list of its nondomestic users that meet the criteria of a significant industrial user as identified in R 323.2302(cc).
- h. The permittee shall develop an enforcement response plan which describes, in sufficient detail, program commitments which will enable the enforcement of the approved MIPP and the Part 23 Rules in accordance with R 323.2306(g).
- i. The Department may require modifications to the approved MIPP which are necessary to ensure compliance with the Part 23 Rules in accordance with R 323.2309.
- j. The permittee shall not implement changes or modifications to the approved MIPP without notification to the Department.

PART I**Section C. Industrial Waste Pretreatment Program**

- k. The permittee shall maintain an adequate revenue structure and staffing level for effective implementation of the approved MIPP.
- l. The permittee shall develop and maintain, for a minimum of three (3) years, all records and information necessary to determine nondomestic user compliance with the Part 23 Rules and the approved MIPP. This period of retention shall be extended during the course of any unresolved enforcement action or litigation regarding a nondomestic user or when requested by the Department or the United States Environmental Protection Agency. All of the aforementioned records and information shall be made available upon request for inspection and copying by the Department and the United States Environmental Protection Agency.
- m. The permittee shall evaluate the approved MIPP for compliance with the Part 23 Rules and the prohibitions set forth in item f. above. Based upon this evaluation, the permittee shall propose to the Department all necessary changes or modifications to the approved MIPP no later than the next Industrial Pretreatment Program Annual Report due date (see item o. below).
- n. The permittee shall develop and enforce local limits to implement the prohibitions set forth in item f. above. Local limits shall be based upon data representative of actual conditions demonstrated in a maximum allowable headworks loading analysis.
- o. On or before April 1 of each year, the permittee shall submit to the Department, as required by R 323.2310(8), an Industrial Pretreatment Program Annual Report on the status of program implementation and enforcement activities. The reporting period shall begin on January 1 and end on December 31. At a minimum, the Industrial Pretreatment Program Annual Report shall include:
 - 1) the Pretreatment Program Reports data identified in Appendix A to 40 CFR Part 127 – NPDES Electronic Reporting;
 - 2) a summary of changes to the approved MIPP that have not been previously reported to the Department;
 - 3) a summary of results of all the sampling and analyses performed of the wastewater treatment plant's influent, effluent, and biosolids conducted in accordance with approved methods during the reporting period. The summary shall include the monthly average, daily maximum, quantification level, and number of samples analyzed for each pollutant. At a minimum, the results of analyses for all locally limited parameters for at least one monitoring event that tests influent, effluent and biosolids during the reporting period shall be submitted with each report, unless otherwise required by the Department. Sample collection shall be at intervals sufficient to provide pollutant removal rates, unless the pollutant is not measurable; and
 - 4) any other relevant information requested by the Department.
- p. The permittee is required under this permit and R 323.2303(4) of the Michigan Administrative Code to review and update their local limits when:
 - 1) New pollutants are introduced
 - 2) New pollutants that were previously unevaluated are identified
 - 3) New water quality or biosolids standards are established or additional information becomes available about the nature of pollutants, such as removal rates and accumulation in biosolids.
 - 4) Substantial increases of pollutants are proposed as required in the notification of new or increased uses in accordance with the provisions of 40 CFR 122.42.

PART I**Section D. Residuals Management Program****1. Residuals Management Program for Land Application of Biosolids**

The permittee is authorized to land-apply bulk biosolids or prepare bulk biosolids for land application in accordance with the permittee's approved Residuals Management Program (RMP) approved on May 6, 2002, and approved modifications thereto, in accordance with the requirements established in R 323.2401 through R 323.2418 of the Michigan Administrative Code (Part 24 Rules). The approved RMP, and any approved modifications thereto, are enforceable requirements of this permit. Incineration, landfilling and other residual disposal activities shall be conducted in accordance with Part II.D.7. of this permit. The Part 24 Rules can be obtained via the internet (<http://www.michigan.gov/deq/> and on the left side of the screen click on Water, Biosolids & Industrial Pretreatment, Biosolids then click on Biosolids Laws and Rules Information which is under the Laws & Rules banner in the center of the screen).

a. Annual Report

On or before October 30 of each year, the permittee shall submit an annual report to the Department for the previous fiscal year of October 1 through September 30. The report shall be submitted electronically via the Department's MiWaters system at <https://miwaters.deq.state.mi.us>. At a minimum, the report shall contain:

- 1) a certification that current residuals management practices are in accordance with the approved RMP, or a proposal for modification to the approved RMP; and
- 2) a completed Biosolids Annual Report Form, available at <https://miwaters.deq.state.mi.us>.

b. Modifications to the Approved RMP

Prior to implementation of modifications to the RMP, the permittee shall submit proposed modifications to the Department for approval. The approved modification shall become effective upon the date of approval. Upon written notification, the Department may impose additional requirements and/or limitations to the approved RMP as necessary to protect public health and the environment from any adverse effect of a pollutant in the biosolids.

c. Record Keeping

Records required by the Part 24 Rules shall be kept for a minimum of five years. However, the records documenting cumulative loading for sites subject to cumulative pollutant loading rates shall be kept as long as the site receives biosolids.

d. Contact Information

RMP-related submittals shall be made to the Department.

PART II

Part II may include terms and /or conditions not applicable to discharges covered under this permit.

Section A. Definitions

Acute toxic unit (TU_A) means 100/LC₅₀ where the LC₅₀ is determined from a whole effluent toxicity (WET) test which produces a result that is statistically or graphically estimated to be lethal to 50% of the test organisms.

Annual monitoring frequency refers to a calendar year beginning on January 1 and ending on December 31. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Authorized public agency means a state, local, or county agency that is designated pursuant to the provisions of section 9110 of Part 91 of the NREPA to implement soil erosion and sedimentation control requirements with regard to construction activities undertaken by that agency.

Best management practices (BMPs) means structural devices or nonstructural practices that are designed to prevent pollutants from entering into storm water, to direct the flow of storm water, or to treat polluted storm water.

Bioaccumulative chemical of concern (BCC) means a chemical which, upon entering the surface waters, by itself or as its toxic transformation product, accumulates in aquatic organisms by a human health bioaccumulation factor of more than 1000 after considering metabolism and other physiochemical properties that might enhance or inhibit bioaccumulation. The human health bioaccumulation factor shall be derived according to R 323.1057(5). Chemicals with half-lives of less than 8 weeks in the water column, sediment, and biota are not BCCs. The minimum bioaccumulation concentration factor (BAF) information needed to define an organic chemical as a BCC is either a field-measured BAF or a BAF derived using the biota-sediment accumulation factor (BSAF) methodology. The minimum BAF information needed to define an inorganic chemical as a BCC, including an organometal, is either a field-measured BAF or a laboratory-measured bioconcentration factor (BCF). The BCCs to which these rules apply are identified in Table 5 of R 323.1057 of the Water Quality Standards.

Biosolids are the solid, semisolid, or liquid residues generated during the treatment of sanitary sewage or domestic sewage in a treatment works. This includes, but is not limited to, scum or solids removed in primary, secondary, or advanced wastewater treatment processes and a derivative of the removed scum or solids.

Bulk biosolids means biosolids that are not sold or given away in a bag or other container for application to a lawn or home garden.

Certificate of Coverage (COC) is a document, issued by the Department, which authorizes a discharge under a general permit.

Chronic toxic unit (TU_C) means 100/MATC or 100/IC₂₅, where the maximum acceptable toxicant concentration (MATC) and IC₂₅ are expressed as a percent effluent in the test medium.

Class B biosolids refers to material that has met the Class B pathogen reduction requirements or equivalent treatment by a Process to Significantly Reduce Pathogens (PSRP) in accordance with the Part 24 Rules. Processes include aerobic digestion, composting, anaerobic digestion, lime stabilization and air drying.

Combined sewer system is a sewer system in which storm water runoff is combined with sanitary wastes.

PART II

Section A. Definitions

Daily concentration is the sum of the concentrations of the individual samples of a parameter divided by the number of samples taken during any calendar day. The daily concentration will be used to determine compliance with any maximum and minimum daily concentration limitations (except for pH and dissolved oxygen). When required by the permit, report the maximum calculated daily concentration for the month in the "MAXIMUM" column under "QUALITY OR CONCENTRATION" on the Discharge Monitoring Reports (DMRs).

For pH, report the maximum value of any *individual* sample taken during the month in the "MAXIMUM" column under "QUALITY OR CONCENTRATION" on the DMRs and the minimum value of any *individual* sample taken during the month in the "MINIMUM" column under "QUALITY OR CONCENTRATION" on the DMRs. For dissolved oxygen, report the minimum concentration of any *individual* sample in the "MINIMUM" column under "QUALITY OR CONCENTRATION" on the DMRs.

Daily loading is the total discharge by weight of a parameter discharged during any calendar day. This value is calculated by multiplying the daily concentration by the total daily flow and by the appropriate conversion factor. The daily loading will be used to determine compliance with any maximum daily loading limitations. When required by the permit, report the maximum calculated daily loading for the month in the "MAXIMUM" column under "QUANTITY OR LOADING" on the DMRs.

Daily monitoring frequency refers to a 24-hour day. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Department means the Michigan Department of Environment, Great Lakes, and Energy.

Detection level means the lowest concentration or amount of the target analyte that can be determined to be different from zero by a single measurement at a stated level of probability.

Discharge means the addition of any waste, waste effluent, wastewater, pollutant, or any combination thereof to any surface water of the state.

EC₅₀ means a statistically or graphically estimated concentration that is expected to cause 1 or more specified effects in 50% of a group of organisms under specified conditions.

Fecal coliform bacteria monthly

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – Fecal coliform bacteria monthly is the geometric mean of all daily concentrations determined during a discharge event. Days on which no daily concentration is determined shall not be used to determine the calculated monthly value. The calculated monthly value will be used to determine compliance with the maximum monthly fecal coliform bacteria limitations. When required by the permit, report the calculated monthly value in the "AVERAGE" column under "QUALITY OR CONCENTRATION" on the DMR. If the period in which the discharge event occurred was partially in each of two months, the calculated monthly value shall be reported on the DMR of the month in which the last day of discharge occurred.

FOR ALL OTHER DISCHARGES – Fecal coliform bacteria monthly is the geometric mean of all daily concentrations determined during a reporting month. Days on which no daily concentration is determined shall not be used to determine the calculated monthly value. The calculated monthly value will be used to determine compliance with the maximum monthly fecal coliform bacteria limitations. When required by the permit, report the calculated monthly value in the "AVERAGE" column under "QUALITY OR CONCENTRATION" on the DMR.

PART II**Section A. Definitions****Fecal coliform bacteria 7-day**

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – Fecal coliform bacteria 7-day is the geometric mean of the daily concentrations determined during any 7 consecutive days of discharge during a discharge event. If the number of daily concentrations determined during the discharge event is less than 7 days, the number of actual daily concentrations determined shall be used for the calculation. Days on which no daily concentration is determined shall not be used to determine the value. The calculated 7-day value will be used to determine compliance with the maximum 7-day fecal coliform bacteria limitations. When required by the permit, report the maximum calculated 7-day geometric mean value for the month in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMRs. If the 7-day period was partially in each of two months, the value shall be reported on the DMR of the month in which the last day of discharge occurred.

FOR ALL OTHER DISCHARGES – Fecal coliform bacteria 7-day is the geometric mean of the daily concentrations determined during any 7 consecutive days in a reporting month. If the number of daily concentrations determined is less than 7, the actual number of daily concentrations determined shall be used for the calculation. Days on which no daily concentration is determined shall not be used to determine the value. The calculated 7-day value will be used to determine compliance with the maximum 7-day fecal coliform bacteria limitations. When required by the permit, report the maximum calculated 7-day geometric mean for the month in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMRs. The first calculation shall be made on day 7 of the reporting month, and the last calculation shall be made on the last day of the reporting month.

Flow-proportioned sample is a composite sample with the sample volume proportional to the effluent flow.

General permit means a National Pollutant Discharge Elimination System permit issued authorizing a category of similar discharges.

Geometric mean is the average of the logarithmic values of a base 10 data set, converted back to a base 10 number.

Grab sample is a single sample taken at neither a set time nor flow.

IC₂₅ means the toxicant concentration that would cause a 25% reduction in a nonquantal biological measurement for the test population.

Illicit connection means a physical connection to a municipal separate storm sewer system that primarily conveys non-storm water discharges other than uncontaminated groundwater into the storm sewer; or a physical connection not authorized or permitted by the local authority, where a local authority requires authorization or a permit for physical connections.

Illicit discharge means any discharge to, or seepage into, a municipal separate storm sewer system that is not composed entirely of storm water or uncontaminated groundwater. Illicit discharges include non-storm water discharges through pipes or other physical connections; dumping of motor vehicle fluids, household hazardous wastes, domestic animal wastes, or litter; collection and intentional dumping of grass clippings or leaf litter; or unauthorized discharges of sewage, industrial waste, restaurant wastes, or any other non-storm water waste directly into a separate storm sewer.

Individual permit means a site-specific NPDES permit.

Inlet means a catch basin, roof drain, conduit, drain tile, retention pond riser pipe, sump pump, or other point where storm water or wastewater enters into a closed conveyance system prior to discharge off site or into waters of the state.

PART II

Section A. Definitions

Interference is a discharge which, alone or in conjunction with a discharge or discharges from other sources, both: 1) inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; and 2) therefore, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation) or, of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (including Title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the SWDA), the Clean Air Act, the Toxic Substances Control Act, and the Marine Protection, Research and Sanctuaries Act. [This definition does not apply to sample matrix interference].

Land application means spraying or spreading biosolids or a biosolids derivative onto the land surface, injecting below the land surface, or incorporating into the soil so that the biosolids or biosolids derivative can either condition the soil or fertilize crops or vegetation grown in the soil.

LC₅₀ means a statistically or graphically estimated concentration that is expected to be lethal to 50% of a group of organisms under specified conditions.

Maximum acceptable toxicant concentration (MATC) means the concentration obtained by calculating the geometric mean of the lower and upper chronic limits from a chronic test. A lower chronic limit is the highest tested concentration that did not cause the occurrence of a specific adverse effect. An upper chronic limit is the lowest tested concentration which did cause the occurrence of a specific adverse effect and above which all tested concentrations caused such an occurrence.

Maximum extent practicable means implementation of best management practices by a public body to comply with an approved storm water management program as required by a national permit for a municipal separate storm sewer system, in a manner that is environmentally beneficial, technically feasible, and within the public body's legal authority.

MGD means million gallons per day.

Monthly concentration is the sum of the daily concentrations determined during a reporting period divided by the number of daily concentrations determined. The calculated monthly concentration will be used to determine compliance with any maximum monthly concentration limitations. Days with no discharge shall not be used to determine the value. When required by the permit, report the calculated monthly concentration in the "AVERAGE" column under "QUALITY OR CONCENTRATION" on the DMR.

For minimum percent removal requirements, the monthly influent concentration and the monthly effluent concentration shall be determined. The calculated monthly percent removal, which is equal to 100 times the quantity [1 minus the quantity (monthly effluent concentration divided by the monthly influent concentration)], shall be reported in the "MINIMUM" column under "QUALITY OR CONCENTRATION" on the DMRs.

Monthly loading is the sum of the daily loadings of a parameter divided by the number of daily loadings determined during a reporting period. The calculated monthly loading will be used to determine compliance with any maximum monthly loading limitations. Days with no discharge shall not be used to determine the value. When required by the permit, report the calculated monthly loading in the "AVERAGE" column under "QUANTITY OR LOADING" on the DMR.

Monthly monitoring frequency refers to a calendar month. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Municipal separate storm sewer means a conveyance or system of conveyances designed or used for collecting or conveying storm water which is not a combined sewer and which is not part of a publicly-owned treatment works as defined in the Code of Federal Regulations at 40 CFR 122.2.

PART II

Section A. Definitions

Municipal separate storm sewer system (MS4) means all separate storm sewers that are owned or operated by the United States, a state, city, village, township, county, district, association, or other public body created by or pursuant to state law, having jurisdiction over disposal of sewage, industrial wastes, storm water, or other wastes, including special districts under state law, such as a sewer district, flood control district, or drainage district, or similar entity, or a designated or approved management agency under Section 208 of the Federal Act that discharges to the waters of the state. This term includes systems similar to separate storm sewer systems in municipalities, such as systems at military bases, large hospital or prison complexes, and highways and other thoroughfares. The term does not include separate storm sewers in very discrete areas, such as individual buildings.

National Pretreatment Standards are the regulations promulgated by or to be promulgated by the Federal Environmental Protection Agency pursuant to Section 307(b) and (c) of the Federal Act. The standards establish nationwide limits for specific industrial categories for discharge to a POTW.

No observed adverse effect level (NOAEL) means the highest tested dose or concentration of a substance which results in no observed adverse effect in exposed test organisms where higher doses or concentrations result in an adverse effect.

Noncontact cooling water is water used for cooling which does not come into direct contact with any raw material, intermediate product, by-product, waste product or finished product.

Nondomestic user is any discharger to a POTW that discharges wastes other than or in addition to water-carried wastes from toilet, kitchen, laundry, bathing or other facilities used for household purposes.

Outfall is the location at which a point source discharge enters the surface waters of the state.

Part 91 agency means an agency that is designated by a county board of commissioners pursuant to the provisions of section 9105 of Part 91 of the NREPA; an agency that is designated by a city, village, or township in accordance with the provisions of section 9106 of Part 91 of the NREPA; or the Department for soil erosion and sedimentation activities under Part 615, Part 631, or Part 632 pursuant to the provisions of section 9115 of Part 91 of the NREPA.

Part 91 permit means a soil erosion and sedimentation control permit issued by a Part 91 agency pursuant to the provisions of Part 91 of the NREPA.

Partially treated sewage is any sewage, sewage and storm water, or sewage and wastewater, from domestic or industrial sources that is treated to a level less than that required by the permittee's National Pollutant Discharge Elimination System permit, or that is not treated to national secondary treatment standards for wastewater, including discharges to surface waters from retention treatment facilities.

Point of discharge is the location of a point source discharge where storm water is discharged directly into a separate storm sewer system.

Point source discharge means a discharge from any discernible, confined, discrete conveyance, including but not limited to any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, or rolling stock. Changing the surface of land or establishing grading patterns on land will result in a point source discharge where the runoff from the site is ultimately discharged to waters of the state.

Polluting material means any material, in solid or liquid form, identified as a polluting material under the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code).

POTW is a publicly owned treatment work.

PART II

Section A. Definitions

Pretreatment is reducing the amount of pollutants, eliminating pollutants, or altering the nature of pollutant properties to a less harmful state prior to discharge into a public sewer. The reduction or alteration can be by physical, chemical, or biological processes, process changes, or by other means. Dilution is not considered pretreatment unless expressly authorized by an applicable National Pretreatment Standard for a particular industrial category.

Public (as used in the MS4 individual permit) means all persons who potentially could affect the authorized storm water discharges, including, but not limited to, residents, visitors to the area, public employees, businesses, industries, and construction contractors and developers.

Public body means the United States; the state of Michigan; a city, village, township, county, school district, public college or university, or single-purpose governmental agency; or any other body which is created by federal or state statute or law.

Qualified Personnel means an individual who meets qualifications acceptable to the Department and who is authorized by an Industrial Storm Water Certified Operator to collect the storm water sample.

Qualifying storm event means a storm event causing greater than 0.1 inch of rainfall and occurring at least 72 hours after the previous measurable storm event that also caused greater than 0.1 inch of rainfall. Upon request, the Department may approve an alternate definition meeting the condition of a qualifying storm event.

Quantification level means the measurement of the concentration of a contaminant obtained by using a specified laboratory procedure calculated at a specified concentration above the detection level. It is considered the lowest concentration at which a particular contaminant can be quantitatively measured using a specified laboratory procedure for monitoring of the contaminant.

Quarterly monitoring frequency refers to a three month period, defined as January through March, April through June, July through September, and October through December. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

Regional Administrator is the Region 5 Administrator, U.S. EPA, located at R-19J, 77 W. Jackson Blvd., Chicago, Illinois 60604.

Regulated area means the permittee's urbanized area, where urbanized area is defined as a place and its adjacent densely-populated territory that together have a minimum population of 50,000 people as defined by the United States Bureau of the Census and as determined by the latest available decennial census.

Secondary containment structure means a unit, other than the primary container, in which significant materials are packaged or held, which is required by State or Federal law to prevent the escape of significant materials by gravity into sewers, drains, or otherwise directly or indirectly into any sewer system or to the surface or ground waters of this state.

Separate storm sewer system means a system of drainage, including, but not limited to, roads, catch basins, curbs, gutters, parking lots, ditches, conduits, pumping devices, or man-made channels, which is not a combined sewer where storm water mixes with sanitary wastes, and is not part of a POTW.

Significant industrial user is a nondomestic user that: 1) is subject to Categorical Pretreatment Standards under 40 CFR 403.6 and 40 CFR Chapter I, Subchapter N; or 2) discharges an average of 25,000 gallons per day or more of process wastewater to a POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater); contributes a process waste stream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or is designated as such by the permittee as defined in 40 CFR 403.12(a) on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's treatment plant operation or violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6)).

PART II

Section A. Definitions

Significant materials Significant Materials means any material which could degrade or impair water quality, including but not limited to: raw materials; fuels; solvents, detergents, and plastic pellets; finished materials such as metallic products; hazardous substances designated under Section 101(14) of Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA) (see 40 CFR 372.65); any chemical the facility is required to report pursuant to Section 313 of Emergency Planning and Community Right-to-Know Act (EPCRA); polluting materials as identified under the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code); Hazardous Wastes as defined in Part 111 of the NREPA; fertilizers; pesticides; and waste products such as ashes, slag, and sludge that have the potential to be released with storm water discharges.

Significant spills and significant leaks means any release of a polluting material reportable under the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code).

Special-use area means secondary containment structures required by state or federal law; lands on Michigan's List of Sites of Environmental Contamination pursuant to Part 201, Environmental Remediation, of the NREPA; and/or areas with other activities that may contribute pollutants to the storm water for which the Department determines monitoring is needed.

Stoichiometric means the quantity of a reagent calculated to be necessary and sufficient for a given chemical reaction.

Storm water means storm water runoff, snow melt runoff, surface runoff and drainage, and non-storm water included under the conditions of this permit.

Storm water discharge point is the location where the point source discharge of storm water is directed to surface waters of the state or to a separate storm sewer. It includes the location of all point source discharges where storm water exits the facility, including *outfalls* which discharge directly to surface waters of the state, and *points of discharge* which discharge directly into separate storm sewer systems.

SWPPP means the Storm Water Pollution Prevention Plan prepared in accordance with this permit.

Tier I value means a value for aquatic life, human health or wildlife calculated under R 323.1057 of the Water Quality Standards using a tier I toxicity database.

Tier II value means a value for aquatic life, human health or wildlife calculated under R 323.1057 of the Water Quality Standards using a tier II toxicity database.

Total maximum daily loads (TMDLs) are required by the Federal Act for waterbodies that do not meet water quality standards. TMDLs represent the maximum daily load of a pollutant that a waterbody can assimilate and meet water quality standards, and an allocation of that load among point sources, nonpoint sources, and a margin of safety.

Toxicity reduction evaluation (TRE) means a site-specific study conducted in a stepwise process designed to identify the causative agents of effluent toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in effluent toxicity.

Water Quality Standards means the Part 4 Water Quality Standards promulgated pursuant to Part 31 of the NREPA, being R 323.1041 through R 323.1117 of the Michigan Administrative Code.

Weekly monitoring frequency refers to a calendar week which begins on Sunday and ends on Saturday. When required by this permit, an analytical result, reading, value or observation shall be reported for that period if a discharge occurs during that period.

WWSL is a wastewater stabilization lagoon.

WWSL discharge event is a discrete occurrence during which effluent is discharged to the surface water up to 10 days of a consecutive 14 day period.

PART II

Section A. Definitions

3-portion composite sample is a sample consisting of three equal-volume grab samples collected at equal intervals over an 8-hour period.

7-day concentration

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – The 7-day concentration is the sum of the daily concentrations determined during any 7 consecutive days of discharge during a WWSL discharge event divided by the number of daily concentrations determined. If the number of daily concentrations determined during the WWSL discharge event is less than 7 days, the number of actual daily concentrations determined shall be used for the calculation. The calculated 7-day concentration will be used to determine compliance with any maximum 7-day concentration limitations. When required by the permit, report the maximum calculated 7-day concentration for the WWSL discharge event in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMR. If the WWSL discharge event was partially in each of two months, the value shall be reported on the DMR of the month in which the last day of discharge occurred.

FOR ALL OTHER DISCHARGES – The 7-day concentration is the sum of the daily concentrations determined during any 7 consecutive days in a reporting month divided by the number of daily concentrations determined. If the number of daily concentrations determined is less than 7, the actual number of daily concentrations determined shall be used for the calculation. The calculated 7-day concentration will be used to determine compliance with any maximum 7-day concentration limitations in the reporting month. When required by the permit, report the maximum calculated 7-day concentration for the month in the “MAXIMUM” column under “QUALITY OR CONCENTRATION” on the DMR. The first 7-day calculation shall be made on day 7 of the reporting month, and the last calculation shall be made on the last day of the reporting month.

7-day loading

FOR WWSLs THAT COLLECT AND STORE WASTEWATER AND ARE AUTHORIZED TO DISCHARGE ONLY IN THE SPRING AND/OR FALL ON AN INTERMITTENT BASIS – The 7-day loading is the sum of the daily loadings determined during any 7 consecutive days of discharge during a WWSL discharge event divided by the number of daily loadings determined. If the number of daily loadings determined during the WWSL discharge event is less than 7 days, the number of actual daily loadings determined shall be used for the calculation. The calculated 7-day loading will be used to determine compliance with any maximum 7-day loading limitations. When required by the permit, report the maximum calculated 7-day loading for the WWSL discharge event in the “MAXIMUM” column under “QUANTITY OR LOADING” on the DMR. If the WWSL discharge event was partially in each of two months, the value shall be reported on the DMR of the month in which the last day of discharge occurred

FOR ALL OTHER DISCHARGES – The 7-day loading is the sum of the daily loadings determined during any 7 consecutive days in a reporting month divided by the number of daily loadings determined. If the number of daily loadings determined is less than 7, the actual number of daily loadings determined shall be used for the calculation. The calculated 7-day loading will be used to determine compliance with any maximum 7-day loading limitations in the reporting month. When required by the permit, report the maximum calculated 7-day loading for the month in the “MAXIMUM” column under “QUANTITY OR LOADING” on the DMR. The first 7-day calculation shall be made on day 7 of the reporting month, and the last calculation shall be made on the last day of the reporting month.

24-hour composite sample is a flow-proportioned composite sample consisting of hourly or more frequent portions that are taken over a 24-hour period. A time-proportioned composite sample may be used upon approval of the Department if the permittee demonstrates it is representative of the discharge.

PART II

Section B. Monitoring Procedures

1. Representative Samples

Samples and measurements taken as required herein shall be representative of the volume and nature of the monitored discharge.

2. Test Procedures

Test procedures for the analysis of pollutants shall conform to regulations promulgated pursuant to Section 304(h) of the Federal Act (40 CFR Part 136 – Guidelines Establishing Test Procedures for the Analysis of Pollutants), unless specified otherwise in this permit. **Test procedures used shall be sufficiently sensitive to determine compliance with applicable effluent limitations.** Requests to use test procedures not promulgated under 40 CFR Part 136 for pollutant monitoring required by this permit shall be made in accordance with the Alternate Test Procedures regulations specified in 40 CFR 136.4. These requests shall be submitted to the Manager of the Permits Section, Water Resources Division, Michigan Department of Environment, Great Lakes, and Energy, P.O. Box 30458, Lansing, Michigan, 48909-7958. The permittee may use such procedures upon approval.

The permittee shall periodically calibrate and perform maintenance procedures on all analytical instrumentation at intervals to ensure accuracy of measurements. The calibration and maintenance shall be performed as part of the permittee's laboratory Quality Control/Quality Assurance program.

3. Instrumentation

The permittee shall periodically calibrate and perform maintenance procedures on all monitoring instrumentation at intervals to ensure accuracy of measurements.

4. Recording Results

For each measurement or sample taken pursuant to the requirements of this permit, the permittee shall record the following information: 1) the exact place, date, and time of measurement or sampling; 2) the person(s) who performed the measurement or sample collection; 3) the dates the analyses were performed; 4) the person(s) who performed the analyses; 5) the analytical techniques or methods used; 6) the date of and person responsible for equipment calibration; and 7) the results of all required analyses.

5. Records Retention

All records and information resulting from the monitoring activities required by this permit including all records of analyses performed and calibration and maintenance of instrumentation and recordings from continuous monitoring instrumentation shall be retained for a minimum of three (3) years, or longer if requested by the Regional Administrator or the Department.

PART II**Section C. Reporting Requirements****1. Start-up Notification**

If the permittee will not discharge during the first 60 days following the effective date of this permit, the permittee shall notify the Department within 14 days following the effective date of this permit, and then 60 days prior to the commencement of the discharge.

2. Submittal Requirements for Self-Monitoring Data

Part 31 of the NREPA (specifically Section 324.3110(7)); and R 323.2155(2) of Part 21, Wastewater Discharge Permits, promulgated under Part 31 of the NREPA, allow the Department to specify the forms to be utilized for reporting the required self-monitoring data. Unless instructed on the effluent limitations page to conduct "Retained Self-Monitoring," the permittee shall submit self-monitoring data via the Department's MiWaters system.

The permittee shall utilize the information provided on the MiWaters website, located at <https://miwaters.deq.state.mi.us>, to access and submit the electronic forms. Both monthly summary and daily data shall be submitted to the Department no later than the 20th day of the month following each month of the authorized discharge period(s). The permittee may be allowed to submit the electronic forms after this date if the Department has granted an extension to the submittal date.

3. Retained Self-Monitoring Requirements

If instructed on the effluent limits page (or otherwise authorized by the Department in accordance with the provisions of this permit) to conduct retained self-monitoring, the permittee shall maintain a year-to-date log of retained self-monitoring results and, upon request, provide such log for inspection to the staff of the Department. Retained self-monitoring results are public information and shall be promptly provided to the public upon request.

The permittee shall certify, in writing, to the Department, on or before January 10th (April 1st for animal feeding operation facilities) of each year, that: 1) all retained self-monitoring requirements have been complied with and a year-to-date log has been maintained; and 2) the application on which this permit is based still accurately describes the discharge. With this annual certification, the permittee shall submit a summary of the previous year's monitoring data. The summary shall include maximum values for samples to be reported as daily maximums and/or monthly maximums and minimum values for any daily minimum samples.

Retained self-monitoring may be denied to a permittee by notification in writing from the Department. In such cases, the permittee shall submit self-monitoring data in accordance with Part II.C.2., above. Such a denial may be rescinded by the Department upon written notification to the permittee. Reissuance or modification of this permit or reissuance or modification of an individual permittee's authorization to discharge shall not affect previous approval or denial for retained self-monitoring unless the Department provides notification in writing to the permittee.

4. Additional Monitoring by Permittee

If the permittee monitors any pollutant at the location(s) designated herein more frequently than required by this permit, using approved analytical methods as specified above, the results of such monitoring shall be included in the calculation and reporting of the values required in the Discharge Monitoring Report. Such increased frequency shall also be indicated.

Monitoring required pursuant to Part 41 of the NREPA or Rule 35 of the Mobile Home Park Commission Act (Act 96 of the Public Acts of 1987) for assurance of proper facility operation shall be submitted as required by the Department.

PART II**Section C. Reporting Requirements****5. Compliance Dates Notification**

Within 14 days of every compliance date specified in this permit, the permittee shall submit a *written* notification to the Department indicating whether or not the particular requirement was accomplished. If the requirement was not accomplished, the notification shall include an explanation of the failure to accomplish the requirement, actions taken or planned by the permittee to correct the situation, and an estimate of when the requirement will be accomplished. If a written report is required to be submitted by a specified date and the permittee accomplishes this, a separate written notification is not required.

6. Noncompliance Notification

Compliance with all applicable requirements set forth in the Federal Act, Parts 31 and 41 of the NREPA, and related regulations and rules is required. All instances of noncompliance shall be reported as follows:

- a. **24-Hour Reporting**
Any noncompliance which may endanger health or the environment (including maximum and/or minimum daily concentration discharge limitation exceedances) shall be reported, verbally, within 24 hours from the time the permittee becomes aware of the noncompliance. A written submission shall also be provided within five (5) days.
- b. **Other Reporting**
The permittee shall report, in writing, all other instances of noncompliance not described in a. above at the time monitoring reports are submitted; or, in the case of retained self-monitoring, within five (5) days from the time the permittee becomes aware of the noncompliance.

Written reporting shall include: 1) a description of the discharge and cause of noncompliance; and 2) the period of noncompliance, including exact dates and times, or, if not yet corrected, the anticipated time the noncompliance is expected to continue, and the steps taken to reduce, eliminate and prevent recurrence of the noncomplying discharge.

7. Spill Notification

The permittee shall immediately report any release of any polluting material which occurs to the surface waters or groundwaters of the state, unless the permittee has determined that the release is not in excess of the threshold reporting quantities specified in the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code), by calling the Department at the number indicated on the second page of this permit (or, if this is a general permit, on the COC); or, if the notice is provided after regular working hours, call the Department's 24-hour Pollution Emergency Alerting System telephone number, 1-800-292-4706 (calls from **out-of-state** dial 1-517-373-7660).

Within ten (10) days of the release, the permittee shall submit to the Department a full written explanation as to the cause of the release, the discovery of the release, response (clean-up and/or recovery) measures taken, and preventive measures taken or a schedule for completion of measures to be taken to prevent reoccurrence of similar releases.

PART II**Section C. Reporting Requirements****8. Upset Noncompliance Notification**

If a process "upset" (defined as an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the permittee) has occurred, the permittee who wishes to establish the affirmative defense of upset, shall notify the Department by telephone within 24 hours of becoming aware of such conditions; and within five (5) days, provide in writing, the following information:

- a. that an upset occurred and that the permittee can identify the specific cause(s) of the upset;
- b. that the permitted wastewater treatment facility was, at the time, being properly operated and maintained (note that an upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation); and
- c. that the permittee has specified and taken action on all responsible steps to minimize or correct any adverse impact in the environment resulting from noncompliance with this permit.

No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review.

In any enforcement proceedings, the permittee, seeking to establish the occurrence of an upset, has the burden of proof.

9. Bypass Prohibition and Notification

- a. Bypass Prohibition
Bypass is prohibited, and the Department may take an enforcement action, unless:
 - 1) bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;
 - 2) there were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass; and
 - 3) the permittee submitted notices as required under 9.b. or 9.c. below.
- b. Notice of Anticipated Bypass
If the permittee knows in advance of the need for a bypass, it shall submit prior notice to the Department, if possible at least ten (10) days before the date of the bypass, and provide information about the anticipated bypass as required by the Department. The Department may approve an anticipated bypass, after considering its adverse effects, if it will meet the three (3) conditions listed in 9.a. above.
- c. Notice of Unanticipated Bypass
The permittee shall submit notice to the Department of an unanticipated bypass by calling the Department at the number indicated on the second page of this permit (if the notice is provided after regular working hours, use the following number: 1-800-292-4706) as soon as possible, but no later than 24 hours from the time the permittee becomes aware of the circumstances.

PART II**Section C. Reporting Requirements**

- d. **Written Report of Bypass**
A written submission shall be provided within five (5) working days of commencing any bypass to the Department, and at additional times as directed by the Department. The written submission shall contain a description of the bypass and its cause; the period of bypass, including exact dates and times, and if the bypass has not been corrected, the anticipated time it is expected to continue; steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass; and other information as required by the Department.
- e. **Bypass Not Exceeding Limitations**
The permittee may allow any bypass to occur which does not cause effluent limitations to be exceeded, but only if it also is for essential maintenance to ensure efficient operation. These bypasses are not subject to the provisions of 9.a., 9.b., 9.c., and 9.d., above. This provision does not relieve the permittee of any notification responsibilities under Part II.C.11. of this permit.
- f. **Definitions**
 - 1) Bypass means the intentional diversion of waste streams from any portion of a treatment facility.
 - 2) Severe property damage means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

10. Bioaccumulative Chemicals of Concern (BCC)

Consistent with the requirements of R 323.1098 and R 323.1215 of the Michigan Administrative Code, the permittee is prohibited from undertaking any action that would result in a lowering of water quality from an increased loading of a BCC unless an increased use request and antidegradation demonstration have been submitted and approved by the Department.

11. Notification of Changes in Discharge

The permittee shall notify the Department, in writing, as soon as possible but no later than 10 days of knowing, or having reason to believe, that any activity or change has occurred or will occur which would result in the discharge of: 1) detectable levels of chemicals on the current Michigan Critical Materials Register, priority pollutants or hazardous substances set forth in 40 CFR 122.21, Appendix D, or the Pollutants of Initial Focus in the Great Lakes Water Quality Initiative specified in 40 CFR 132.6, Table 6, which were not acknowledged in the application or listed in the application at less than detectable levels; 2) detectable levels of any other chemical not listed in the application or listed at less than detection, for which the application specifically requested information; or 3) any chemical at levels greater than five times the average level reported in the complete application (see the first page of this permit, for the date(s) the complete application was submitted). Any other monitoring results obtained as a requirement of this permit shall be reported in accordance with the compliance schedules.

PART II**Section C. Reporting Requirements****12. Changes in Facility Operations**

Any anticipated action or activity, including but not limited to facility expansion, production increases, or process modification, which will result in new or increased loadings of pollutants to the receiving waters must be reported to the Department by a) submission of an increased use request (application) and all information required under R 323.1098 (Antidegradation) of the Water Quality Standards or b) by notice if the following conditions are met: 1) the action or activity will not result in a change in the types of wastewater discharged or result in a greater quantity of wastewater than currently authorized by this permit; 2) the action or activity will not result in violations of the effluent limitations specified in this permit; 3) the action or activity is not prohibited by the requirements of Part II.C.10.; and 4) the action or activity will not require notification pursuant to Part II.C.11. Following such notice, the permit or, if applicable, the facility's COC may be modified according to applicable laws and rules to specify and limit any pollutant not previously limited.

13. Transfer of Ownership or Control

In the event of any change in control or ownership of facilities from which the authorized discharge emanates, the permittee shall submit to the Department 30 days prior to the actual transfer of ownership or control a written agreement between the current permittee and the new permittee containing: 1) the legal name and address of the new owner; 2) a specific date for the effective transfer of permit responsibility, coverage and liability; and 3) a certification of the continuity of or any changes in operations, wastewater discharge, or wastewater treatment.

If the new permittee is proposing changes in operations, wastewater discharge, or wastewater treatment, the Department may propose modification of this permit in accordance with applicable laws and rules.

14. Operations and Maintenance Manual

For wastewater treatment facilities that serve the public (and are thus subject to Part 41 of the NREPA), Section 4104 of Part 41 and associated Rule 2957 of the Michigan Administrative Code allow the Department to require an Operations and Maintenance (O&M) Manual from the facility. An up-to-date copy of the O&M Manual shall be kept at the facility and shall be provided to the Department upon request. The Department may review the O&M Manual in whole or in part at its discretion and require modifications to it if portions are determined to be inadequate.

At a minimum, the O&M Manual shall include the following information: permit standards; descriptions and operation information for all equipment; staffing information; laboratory requirements; record keeping requirements; a maintenance plan for equipment; an emergency operating plan; safety program information; and copies of all pertinent forms, as-built plans, and manufacturer's manuals.

Certification of the existence and accuracy of the O&M Manual shall be submitted to the Department at least sixty days prior to start-up of a new wastewater treatment facility. Recertification shall be submitted sixty days prior to start-up of any substantial improvements or modifications made to an existing wastewater treatment facility.

PART II**Section C. Reporting Requirements****15. Signatory Requirements**

All applications, reports, or information submitted to the Department in accordance with the conditions of this permit and that require a signature shall be signed and certified as described in the Federal Act and the NREPA.

The Federal Act provides that any person who knowingly makes any false statement, representation, or certification in any record or other document submitted or required to be maintained under this permit, including monitoring reports or reports of compliance or noncompliance, shall, upon conviction, be punished by a fine of not more than \$10,000 per violation, or by imprisonment for not more than 6 months per violation, or by both.

The NREPA (Section 3115(2)) provides that a person who at the time of the violation knew or should have known that he or she discharged a substance contrary to this part, or contrary to a permit, COC, or order issued or rule promulgated under this part, or who intentionally makes a false statement, representation, or certification in an application for or form pertaining to a permit or COC or in a notice or report required by the terms and conditions of an issued permit or COC, or who intentionally renders inaccurate a monitoring device or record required to be maintained by the Department, is guilty of a felony and shall be fined not less than \$2,500.00 or more than \$25,000.00 for each violation. The court may impose an additional fine of not more than \$25,000.00 for each day during which the unlawful discharge occurred. If the conviction is for a violation committed after a first conviction of the person under this subsection, the court shall impose a fine of not less than \$25,000.00 per day and not more than \$50,000.00 per day of violation. Upon conviction, in addition to a fine, the court in its discretion may sentence the defendant to imprisonment for not more than 2 years or impose probation upon a person for a violation of this part. With the exception of the issuance of criminal complaints, issuance of warrants, and the holding of an arraignment, the circuit court for the county in which the violation occurred has exclusive jurisdiction. However, the person shall not be subject to the penalties of this subsection if the discharge of the effluent is in conformance with and obedient to a rule, order, permit, or COC of the Department. In addition to a fine, the attorney general may file a civil suit in a court of competent jurisdiction to recover the full value of the injuries done to the natural resources of the state and the costs of surveillance and enforcement by the state resulting from the violation.

16. Electronic Reporting

Upon notice by the Department that electronic reporting tools are available for specific reports or notifications, the permittee shall submit electronically all such reports or notifications as required by this permit, on forms provided by the Department.

PART II**Section D. Management Responsibilities****1. Duty to Comply**

All discharges authorized herein shall be consistent with the terms and conditions of this permit. The discharge of any pollutant identified in this permit, more frequently than, or at a level in excess of, that authorized, shall constitute a violation of the permit.

It is the duty of the permittee to comply with all the terms and conditions of this permit. Any noncompliance with the Effluent Limitations, Special Conditions, or terms of this permit constitutes a violation of the NREPA and/or the Federal Act and constitutes grounds for enforcement action; for permit or Certificate of Coverage (COC) termination, revocation and reissuance, or modification; or denial of an application for permit or COC renewal.

It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit.

2. Operator Certification

The permittee shall have the waste treatment facilities under direct supervision of an operator certified at the appropriate level for the facility certification by the Department, as required by Sections 3110 and 4104 of the NREPA. Permittees authorized to discharge storm water shall have the storm water treatment and/or control measures under direct supervision of a storm water operator certified by the Department, as required by Section 3110 of the NREPA.

3. Facilities Operation

The permittee shall, at all times, properly operate and maintain all treatment or control facilities or systems installed or used by the permittee to achieve compliance with the terms and conditions of this permit. Proper operation and maintenance includes adequate laboratory controls and appropriate quality assurance procedures.

4. Power Failures

In order to maintain compliance with the effluent limitations of this permit and prevent unauthorized discharges, the permittee shall either:

- a. provide an alternative power source sufficient to operate facilities utilized by the permittee to maintain compliance with the effluent limitations and conditions of this permit; or
- b. upon the reduction, loss, or failure of one or more of the primary sources of power to facilities utilized by the permittee to maintain compliance with the effluent limitations and conditions of this permit, the permittee shall halt, reduce or otherwise control production and/or all discharge in order to maintain compliance with the effluent limitations and conditions of this permit.

5. Adverse Impact

The permittee shall take all reasonable steps to minimize or prevent any adverse impact to the surface waters or groundwaters of the state resulting from noncompliance with any effluent limitation specified in this permit including, but not limited to, such accelerated or additional monitoring as necessary to determine the nature and impact of the discharge in noncompliance.

PART II**Section D. Management Responsibilities****6. Containment Facilities**

The permittee shall provide facilities for containment of any accidental losses of polluting materials in accordance with the requirements of the Part 5 Rules (R 324.2001 through R 324.2009 of the Michigan Administrative Code). For a Publicly Owned Treatment Work (POTW), these facilities shall be approved under Part 41 of the NREPA.

7. Waste Treatment Residues

Residuals (i.e. solids, sludges, biosolids, filter backwash, scrubber water, ash, grit, or other pollutants or wastes) removed from or resulting from treatment or control of wastewaters, including those that are generated during treatment or left over after treatment or control has ceased, shall be disposed of in an environmentally compatible manner and according to applicable laws and rules. These laws may include, but are not limited to, the NREPA, Part 31 for protection of water resources, Part 55 for air pollution control, Part 111 for hazardous waste management, Part 115 for solid waste management, Part 121 for liquid industrial wastes, Part 301 for protection of inland lakes and streams, and Part 303 for wetlands protection. Such disposal shall not result in any unlawful pollution of the air, surface waters or groundwaters of the state.

8. Right of Entry

The permittee shall allow the Department, any agent appointed by the Department, or the Regional Administrator, upon the presentation of credentials and, for animal feeding operation facilities, following appropriate biosecurity protocols:

- a. to enter upon the permittee's premises where an effluent source is located or any place in which records are required to be kept under the terms and conditions of this permit; and
- b. at reasonable times to have access to and copy any records required to be kept under the terms and conditions of this permit; to inspect process facilities, treatment works, monitoring methods and equipment regulated or required under this permit; and to sample any discharge of pollutants.

9. Availability of Reports

Except for data determined to be confidential under Section 308 of the Federal Act and Rule 2128 (R 323.2128 of the Michigan Administrative Code), all reports prepared in accordance with the terms of this permit, shall be available for public inspection at the offices of the Department and the Regional Administrator. As required by the Federal Act, effluent data shall not be considered confidential. Knowingly making any false statement on any such report may result in the imposition of criminal penalties as provided for in Section 309 of the Federal Act and Sections 3112, 3115, 4106 and 4110 of the NREPA.

10. Duty to Provide Information

The permittee shall furnish to the Department, within a reasonable time, any information which the Department may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this permit or the facility's COC, or to determine compliance with this permit. The permittee shall also furnish to the Department, upon request, copies of records required to be kept by this permit.

Where the permittee becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any report to the Department, it shall promptly submit such facts or information.

PART II**Section E. Activities Not Authorized by This Permit****1. Discharge to the Groundwaters**

This permit does not authorize any discharge to the groundwaters. Such discharge may be authorized by a groundwater discharge permit issued pursuant to the NREPA.

2. POTW Construction

This permit does not authorize or approve the construction or modification of any physical structures or facilities at a POTW. Approval for the construction or modification of any physical structures or facilities at a POTW shall be by permit issued under Part 41 of the NREPA.

3. Civil and Criminal Liability

Except as provided in permit conditions on "Bypass" (Part II.C.9. pursuant to 40 CFR 122.41(m)), nothing in this permit shall be construed to relieve the permittee from civil or criminal penalties for noncompliance, whether or not such noncompliance is due to factors beyond the permittee's control, such as accidents, equipment breakdowns, or labor disputes.

4. Oil and Hazardous Substance Liability

Nothing in this permit shall be construed to preclude the institution of any legal action or relieve the permittee from any responsibilities, liabilities, or penalties to which the permittee may be subject under Section 311 of the Federal Act except as are exempted by federal regulations.

5. State Laws

Nothing in this permit shall be construed to preclude the institution of any legal action or relieve the permittee from any responsibilities, liabilities, or penalties established pursuant to any applicable state law or regulation under authority preserved by Section 510 of the Federal Act.

6. Property Rights

The issuance of this permit does not convey any property rights in either real or personal property, or any exclusive privileges, nor does it authorize violation of any federal, state or local laws or regulations, nor does it obviate the necessity of obtaining such permits, including any other Department of Environment, Great Lakes, and Energy permits, or approvals from other units of government as may be required by law.

APPENDIX D: ENFORCEMENT RESPONSE PLAN

**CITY OF CADILLAC
WASTEWATER TREATMENT PLANT
CONTROL AUTHORITY ENFORCEMENT RESPONSE PLAN**

1. CRITERIA FOR ESTABLISHING SIGNIFICANT NONCOMPLIANCE AND SIGNIFICANT VIOLATIONS

A. **Significant Noncompliance and Significant Violation:** any violation of pretreatment requirements (limits, sampling, analysis, reporting and meeting schedules, and regulatory deadlines) is an instance of noncompliance for which the non-domestic user is liable for enforcement including penalties. However, it is necessary to identify violations or patterns of violations by non-domestic users that are instances of significant noncompliance allowing for the establishment of priorities for formal enforcement actions. Instances of **Significant Noncompliance (SNC)** are non-domestic user violations which meet one or more of the following criteria:

I. **Violation of Wastewater Discharge Limits:**

a. **Chronic Violations:** sixty-six (66) percent or more of the measurements exceed the same daily maximum limit or the same average limit in a six (6) month period (any magnitude of exceedance).

b. **Technical Review Criteria (TRC) Violations:** thirty-three (33) percent or more of the measurements exceed the same daily maximum limit or the same average limit by **more than the TRC** in a six (6) month period. There are two (2) groups of TRCs:

Group I – Conventional Pollutants
(BOD, TSS, Grease and Oils)

TRC = 1.4

Group II- All Other Pollutants
TRC x Limit = TRC Limit

TRC = 1.2

c. Any other violation(s) of an effluent limit (average or daily maximum) that the Control Authority believes has caused, alone or in combination with other discharges, interference, pass through, or *endangered the health of POTW personnel or the public*.

d. Any discharge of a pollutant that has caused imminent danger to human health and welfare or to the environment and has resulted in the POTW's terminating service to an industrial user.

II. **Compliance Schedule Milestones:** violations of compliance schedule milestones, contained in a local control mechanism or enforcement order for starting construction, completing construction, and attaining final compliance by ninety (90) days or more after the scheduled date.

III. **Reports:** failure to provide reports for compliance schedules, self-monitoring data, or categorical standards (baseline monitoring reports, 90-day compliance reports, and periodic reports) within 30 days from the due date.

IV. Failure to accurately report noncompliance (of any magnitude).

V. Any other violation or group of violations that the Control Authority considers to be significant.

VI. For an industrial user that is in SNC the Control Authority (City of Cadillac) is directed to:

a. Report information to EGLE as part of the Pretreatment Performance Summary of non-domestic user noncompliance.

b. **List the industrial user in the newspaper as having significant violations.**

c. Address SNC through appropriate enforcement action, or document in a timely manner the **reasons for withholding enforcement.**

2. PENALTIES. Penalties for violations cited in the **Control Authority Enforcement Response Guide (CAERG)** fall into three (3) major categories.

- A. Each act of violation and each separate day of violation constitutes a separate violation of the City of Cadillac SUO and the Industrial Users Permit. Each separate violation is punishable up to the maximum allowed.
- B. The ordinance in Chapter 42 Sections 502 provides for immediate termination of services if a violation is found that threatens immediate harm to any portion of the wastewater system or if it has created an immediate health hazard. This termination action would be in effect until such time that there were adequate assurances supplied to the City that any and all violations had been corrected.
- C. Any damages to the City of Cadillac **WRP**, the collection systems, fines imposed upon the City as a result of a violation, plus any costs of enforcement are recoverable under **Section 45.527** of the Ordinance. Prosecution and civil suits may also be used against the company(s), and/or individual(s) that caused the violations responsible for such damages.
- D. Enforcement against a violator located within a jurisdiction having a service agreement with the City of Cadillac can be handled in either of the following alternatives:
 - 1. If the jurisdiction does not have adequate enforcement action against violators, the City of Cadillac can file a lawsuit for damages and/or obtain a court order to require the jurisdiction to properly enforce.
 - 2. If a violation(s) occurring anywhere in the service area damages City property, or causes the City to be in violation of its permit, direct action against the violator (either a company or an individual or both) can be taken. This would include the filing of a lawsuit, court order, criminal prosecution, and/or fine.
- E. The City has the legal ability to impose a **Civil Administrative Fine** at least \$500.00 per day per violation on any violator, can require such violator to pay the full cost of correcting the violation, and can take steps needed to halt or prevent violations.

3. RESPONSE GUIDE TABLE

A. Sampling, Monitoring, and Reporting.

NONCOMPLIANCE	CIRCUMSTANCES	RANGE OF RESPONSE
Failure to sample, monitor, or report	Isolated or infrequent	Phone call, letter requesting response within 10 days. If no response is given, issue a NOV.
Failure to sample, monitor, or report	IU does not respond to phone call or letter, does not follow through on verbal or written agreement, or frequent violation. SNC	Notice of Violation, Order and/or Administrative Fine if no response is received.
Failure to notify of effluent limit violation or slug discharge	Isolated or infrequent	Phone call, Letter requesting response within 10 days. If no response is given issue a NOV.
Failure to notify of effluent limit violation or slug discharge	IU does not respond to phone call or letter, does not follow through on verbal or written agreement, or frequent violation. SNC	Notice of Violation, Order and/or Administrative Fine if no response is received.
Minor sampling, monitoring or reporting deficiency (computational or typing errors)	Isolated or infrequent.	Phone call or letter. Corrections to be made on next submittal. Notice of Violation if continued.
Major or gross sampling monitoring or reporting deficiencies (missing information, late reports).	Isolated or infrequent.	Notice of Violations and/or Order
Major or gross sampling monitoring or reporting deficiencies (missing information, late reports).	Remains uncorrected after 15 days. SNC	Notice of Violation , Order and/or Administrative Fine. If no response request a show cause hearing.
Reporting false information	Any instance SNC	Notice of Violation, Administrative Fine. Show Cause Hearing, Termination of Service, Criminal Investigation.

B. Compliance Schedules (Construction Phases or Planning)

NONCOMPLIANCE	CIRCUMSTANCES	RANGE OF RESPONSE
Reporting false information	Any instance SNC	Notice of Violation, Administrative Fine. Show Cause Hearing, Termination of Service, Criminal Investigation.
Missed interim date.	Will not cause late final or other interim dates	Phone call, Letter, Notice of Violation
Missed interim date.	Will result in other missed interim dates. Violation for good or valid reason.	Phone call, Letter, Notice of Violation
Missed interim date.	Will result in other missed interim dates. No or valid reason. SNC	Notice of Violation, Order and/or Administrative Fine.
Missed final date.	Violation due to forces beyond control of user	Contact user and require documentation of good and valid reason. If no response, Notice of Violation, Order
Missed final date.	90 days or more outstanding. Failure to comply without good or valid cause. SNC	Notice of Violation, Order, Administrative Fine, Show Cause Hearing
Failure to install monitoring equipment	Continued. SNC	Notice of Violation, Order to install, (using outside contractor, if necessary) Temporary Termination of Service.
Exceeding limits	Isolated minor violation	Phone call, Letter, Notice of Violation.
Exceeding limits	Isolated major violation (exceeded TRC)	Notice of Violation and/or Administrative Fine if Environmental Harm
Exceeding limits	Violations that are SNC	Notice of Violation, Order, Administrative Fine
Reported slug load.	Isolated w/o known damage	Letter, Notice of Violation
Reported slug load.	Isolated with known interference, pass through or damage SNC	Notice of Violation, Order, Administrative Fine
Discharge w/o a permit (when required)	One time only w/o known damage	Notice of Violation, Order
Discharge w/o a permit (when required)	On time with known damage or continuing violation SNC	Notice of Violation, Order, Administrative Fine, Termination of Service, Request Criminal Investigation

C. Noncompliance Detected Through Inspections and/or Field Work

NONCOMPLIANCE	CIRCUMSTANCES	RANGE OF RESPONSE
Minor violation of analytical procedures	Any instances.	Phone call, Letter, Notice of Violation
Major violation of analytical procedures	No evidence of intent.	Notice of Violation, Order.
Major violation of analytical procedures	Evidence of negligence or intent. Possible SNC	Notice of Violation, Order, Administrative Fine, Criminal Action
Minor violation of permit.	No evidence of intent or negligence	Phone call, Letter, Notice of Violation, Order (Immediate Correction Required)
Minor violation of permit.	Evidence of intent or negligence. SNC	Notice of Violation, Order, Administrative Fine, Show Cause Hearing
Major violation of permit.	With or without evidence of intent. SNC	Notice of Violation, Order, Administrative Fine, Show Cause Hearing, Termination of Service, Criminal Action
Entry denial	Entry denied, consent withdrawn, or copies of records denied	Notice of Violation, Order, Administrative Fine, Obtain warrant and return to industry

D. General Rules for All Violations

- I. Effluent analysis shall be repeated on all test(s) showing violation. Results of this shall be reported to the Control Authority within 30 days. Analysis shall continue until the effluent is back in compliance for a period equal to the period of noncompliance, up to a maximum of one hundred eighty (180) days.
- II. All NOV's require a written response by the recipient within ten (10) days of receipt. If no response is received a Consent Order will be issued.
- III. The City can ~~purse~~ judicial action at any time a situation arises that is best suited for this action.
- IV. The City of Cadillac must publish at least annually a list of non domestic users that were in Significant Noncompliance during the previous reporting period, usually twelve (12) months.
- V. All significant violations of effluent limits will also receive Immediate Cease and Desist Orders.
- VI. All violations will be identified and documented within five (5) days of receiving compliance information.
- VII. Initial enforcement response (involving contact with the industrial user and requesting information on corrective or preventative actions or reactions) will occur within fifteen (15) days of violation detection.
- VIII. Follow up actions for continuing or reoccurring will be taken within sixty (60) days of initial enforcement response. For all continuing violations, the response shall include a compliance schedule.
- IX. Violations that threaten health, property, or environmental quality are considered emergencies and will receive immediate responses such as halting the discharge or terminating services.
- X. All violations meeting the criteria for significant noncompliance will be addressed with an enforceable order within thirty (30) days of the identification of significant noncompliance.

4. TABLE FOR COMPARING SIGNIFICANT NONCOMPLIANCE AND SIGNIFICANT VIOLATION

SIGNIFICANT VIOLATION	SIGNIFICANT NONCOMPLIANCE
A violation that remains forty-five (45) days after notification or noncompliance	
A violation that is part of a pattern of noncompliance over a twelve (12) month period.	Chronic violations: 66% or more of the measurements exceed the same daily maximum limit in a six (6) month period
	TRC Violations: 33% or more of the measurements exceed the same daily maximum limit or the same average limit by more than the TRC in a six (6) month period.
A violation that involves a failure to accurately report noncompliance	Failure to provide reports for compliance schedules, self-monitoring data, permit applications, application data, or categorical standards (BMR – 90 day compliance reports, and periodic report) within thirty (30) days from the due date.
A violation that resulted in the POTW issuing an Immediate Cease and Desist Order.	Any discharge of a pollutant that has caused imminent danger to human health and welfare and has resulted in termination of services.
	Any other violation(s) of an effluent limit that the Control Authority believes has caused alone or in combination with other discharges, pass-through, interference, or endangered the health of the POTW personnel or the public.
	Violations of compliance schedule milestones contained in a local control mechanism or enforcement order for starting construction, and attaining final compliance by ninety (90) days or more after the schedule date.
	Any other violations or group of violations that the Superintendent considers to be significant.
Any violation during the previous twelve (12) months that resulted in an industrial user being in Significant Noncompliance is considered a Significant Violation.	

APPENDIX F: BASELINE MONITORING REPORT

U.S. EPA I.D. NO. _____
USER FEDERAL I.D. NO. _____
FACILITY PERMIT NO . _____

City of Cadillac

Baseline Monitoring Report

SECTION I. GENERAL INFORMATION

1. Parent Company: _____
Address: _____

2. Facility Name: _____
Address: _____

3. Authorized Contact Person:

Name	Title	Phone
------	-------	-------
4. Nature of Business: _____

5. Standard Industrial Classification (SIC) Code (s): _____
6. What types of waste (s) will you discharge to the sanitary sewer:
 - A. Sanitary _____
 - B. Contact Cooling _____
 - C. Noncontact Cooling _____
 - D. Storm Water _____
 - E. Onsite Wastewater Pretreatment _____
 - F. Air Pollution Control _____
 - G. Groundwater Remediation _____
 - H. Process _____
 - I. Cafeteria _____
 - J. Photo Lab _____
 - K. Others, describe _____
7. Will you use, store, or discharge any acids or bases or priority pollutants as established by the U.S. EPA, or materials listed in the Michigan Critical Materials Registry (see attached Critical Materials list)?
Yes _____ No _____

8. Schedule of Operation:
- A. Number of Employees: _____
- B. Hours/Day: _____ Shifts/Day: _____
- Days/Week: _____ Days/Year: _____

9. Source of Water Supply:
- A. Municipal Quantity (max.) _____ gpd
- B. Private Well Quantity (max.) _____ gpd
- C. Other, describe: _____ Quantity (max.) _____ gpd

10. Facility Water Usage:
- A. Process Quantity (max.) _____ gpd
- B. Noncontact Cooling Quantity (max.) _____ gpd
- C. Sanitary Quantity (max.) _____ gpd
- D. Other, describe: _____ Quantity (max.) _____ gpd

11. Description:
- Provide a brief description of the water flow through your facility or proposed facility from intake to discharge. briefly describe all operations contributing wastewater, including process and production areas, sanitary flows, cooling water, and storm water. Describe all significant losses of water to products, atmosphere, and discharge:
- _____
- _____
- _____
- _____
- _____
- _____

12. Include a complete set of blueprints and a site plan for your facility.

SECTION II. PROCESS AND PRODUCTS

Flow Diagram:

1. Provide a line diagram of the water flow through your facility or proposed facility from intake to discharge. Show all operations contributing wastewater, including process and production areas, sanitary flows, cooling water, and storm water. Show all significant losses of water to products, atmosphere, and discharge:

2. Process Streams Contributing to this Discharge:

For each separate process provide the following information (flow estimations appropriate for new sources):

A. Name of Process Contributing to discharge: _____

B. Process Schedule (yearly average): Hours/Day _____
 Days/Year _____

C. Process volume flow rate Total Yearly_____gallons
 Daily Minimum _____gallons
 Daily Maximum _____gallons

D. Type of Discharge: Batch _____Continuous _____

E. Process production rate: _____

F. U.S. EPA Regulated Category/ Subpart: _____

G. SIC Code: _____

A. Name of Process Contributing to discharge: _____

B. Process Schedule (yearly average): Hours/Day _____
 Days/Year _____

C. Process volume flow rate Total Yearly_____gallons
 Daily Minimum _____gallons
 Daily Maximum _____gallons

D. Type of Discharge: Batch _____Continuous _____

E. Process production rate: _____

F. U.S. EPA Regulated Category/ Subpart: _____

G. SIC Code: _____

A. Name of Process Contributing to discharge: _____

B. Process Schedule (yearly average): Hours/Day _____
 Days/Year _____

C. Process volume flow rate Total Yearly_____gallons
 Daily Minimum _____gallons
 Daily Maximum _____gallons

D. Type of Discharge: Batch _____Continuous _____

E. Process production rate: _____

F. U.S. EPA Regulated Category/ Subpart: _____

G. SIC Code: _____

A. Name of Process Contributing to discharge: _____

B. Process Schedule (yearly average): Hours/Day _____
Days/Year _____

Total Yearly _____gallons

Daily Minimum _____gallons

Daily Maximum _____gallons

D. Type of Discharge: Batch _____ Continuous _____

E. Process production rate: _____

F. U.S. EPA Regulated Category/ Subpart: _____

G. SIC Code: _____

A. Name of Process Contributing to discharge: _____

B. Process Schedule (yearly average): Hours/Day _____

Days/Year _____

C. Process volume flow rate Total Yearly_____gallons

Daily Minimum _____gallons

Daily Maximum _____gallons

D. Type of Discharge: Batch _____ Continuous _____

E. Process production rate: _____

F. U.S. EPA Regulated Category/ Subpart: _____

G. SIC Code: _____

3. Briefly describe the wastewater pretreatment system (if any):

SECTION III. EXPECTED WASTEWATER CHARACTERISTICS

1. **Expected Wastewater Characteristics:**

A. Conventional Parameters:

CONCENTRATION (mg/l)

Parameter	Average	Maximum	No. of Analyses	Sample Type
BOD ₅				
COD				
TOC				
TOX				
Ammonia Nitrogen (as N)				
Total Suspended Solids				
Total Phosphorus as P				

pH - minimum _____ maximum _____

B. Other Characteristics (Specify):

CONCENTRATION (mg/l)

Parameter	Average	Maximum	No. of Analyses	Sample Type
Total Toxic Organics				

Explain the following regarding the concentrations indicated in Section III:

Time, Date and Place of Sampling:

Name(s) of Person(s) obtaining samples (attach **statement from laboratory performing the analyses** certifying the results):

Report all pollutants or materials contained in the Michigan Critical Materials Register and U.S. EPA Priority Pollutant Listing that are used, manufactured, or stored that may be present in the discharge from your facility.

Name of Substance	Name of Substance

Report any other pollutants or materials that may be present in the discharge from your facility not listed in A, B, or D above.

Name of Substance	Name of Substance

SECTION IV. RESIDUALS, SLUDGES AND RESIDUES

1. Are sludges, residuals, or critical materials produced as a result of treatment or control of your wastewater discharge? Yes _____ No _____
2. Is the sludge treated before disposal? Yes _____ No _____
3. If yes, indicate type of treatment: _____

4. Amount of sludge produced: _____
Amount Units/Time
5. Indicate type of residual storage, if any: _____

6. Is the sludge considered to be hazardous? Yes _____ No _____
7. Physical Characteristics: Physical State _____
Percent Solids _____
8. Does your facility dispose of the sludge itself? Yes _____ No _____
9. List name(s) and address(es) of all public and private landfills or land application sites where you dispose of the sludge.

10. List name(s) and address(es) of all commercial waste hauler(s) who transport the sludge.

SECTION V. SPILL PREVENTION AND CONTAINMENT

1. Does your facility have a Spill Prevention Control and Counter Measures Program (SPCC) as required by Title 40 Code of Federal Regulations Part 112 or a Pollutant Incident Prevention Plan (PIPP) as required by the Michigan Water Resources Commission Act 245, P.A. of 1929, Part 5 Rules.

Yes _____ Date Completed: _____

No _____

2. Has your SPCC or PIPP been approved?

Yes _____ Approval Date: _____

No _____

3. List bulk material stored on site (liquid and solid).

Material	Description or Containment Structure	Volume Stored

4. Is separate containment provided for each bulk material?

Yes _____ No _____ Some _____

5. Has separate storage been provided for those chemicals which cause hazardous reactions (i.e., acids with cyanide or acids and bases)?

Yes _____ No _____

SECTION VI. ENVIRONMENTAL CONTROL PERMITS

Please list all existing and pending environmental control permits in effect at this facility. Give permit number and reason for permit.

EXISTING PERMITS

State	Local	U.S. EPA

PENDING PERMITS

State	Local	U.S. EPA

SECTION VII CERTIFICATION STATEMENT AND SIGNATURE

Is any of the enclosed information considered to be confidential?

Yes _____ No _____

If yes, explain what and why (all requests for confidentiality will be processed according to 40 CFR 2.302 and 40 CFR 403.14):

A. Qualified Professional Certification:

I hereby certify under penalty of law that this information was obtained in accordance with the applicable procedures and requirements as specified in the General Pretreatment Regulations and amendments thereto. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Name (print)	Signature	Title	Date
--------------	-----------	-------	------

B. Authorized Representative Statement:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who managed the system, or those persons directly responsible for gathering information, the information submitted is to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Name (print)	Signature	Title	Date
--------------	-----------	-------	------

FOR OFFICE USE ONLY

Date Received: _____ In compliance _____ Yes _____ No

Follow-up Action Necessary:

_____ Letter _____ Phone contact

_____ Sampling _____ Technical Meetings

_____ Inspection

Reviewed by: _____ Date: _____

APPENDIX G: 90 DAY COMPLIANCE REPORT

U.S. EPA I.D. NO. _____
USER FEDERAL I.D. NO. _____
FACILITY PERMIT NO . _____

City of Cadillac

90-Day Compliance Report

REGULATED CATEGORY: _____

SECTION I.

1.

A. Parent Company: _____

Address: _____

B. Facility Name: _____

Location: _____

(optional) Number of Employees: _____ Number of Shifts: _____

2.

A. Authorized Contact Person:

Name	Title	Phone
------	-------	-------

B. Nature of Business: _____

C. What type(s) of waste(s) will you discharge to the sanitary sewer:

- | | |
|-----------------------------------|-------|
| 1. Sanitary | _____ |
| 2. Contact Cooling | _____ |
| 3. Noncontact Cooling | _____ |
| 4. Storm Water | _____ |
| 5. Onsite Wastewater Pretreatment | _____ |
| 6. Air Pollution Control | _____ |
| 7. Groundwater Remediation | _____ |
| 8. Process | _____ |
| 9. Cafeteria | _____ |
| 10. Photo Lab | _____ |
| 11. Others, describe _____ | _____ |

3.

A. Total Plant Flow (gallons/day):

Average: _____ Maximum: _____

Type of Discharge: Batch _____ Continuous _____

Measured: _____ Estimated: _____

B. Individual Flows (gallons/day):

Name of Process Line (regulated)	Average	Maximum	Type of Discharge
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
(Nonregulated)			
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

4. Nature of Wastewater Discharged – report in concentration (mg/L) or mass (lb). Attach additional sheet if necessary. Are Categorical Pretreatment Standards being adjusted by employing the Combined Wastestream Formula (CWF)? _____ Yes _____ No. If you are reporting adjusted limits, please submit all appropriate calculations and flow data.

Regulated Process Line(s):

Regulated Category; Sub-Category: _____

Pollutant				
Maximum				
Average				

Sample Type (explain): _____

Number of Samples (explain): _____

Time, Date and Place of Sampling: _____

Name(s) of Person(s) Obtaining Samples: _____

Attach statement from laboratory performing the analyses certifying the results.

SECTION II.

1.

A. Compliance Schedule:

<u>Action Items</u>	<u>Completion Dates</u>
_____	_____
_____	_____
_____	_____
_____	_____

B. Total Toxic Organics (TTOs) (if applicable):

_____ I waive the certification statement. My Solvent Management Plan is attached.

_____ I monitored for Total Toxic Organics. My results are attached.

_____ I achieved compliance for Total Toxic Organics.

_____ I did not achieve compliance for Total Toxic Organics (see Item 1.A. above)

SECTION III.

1.

A. Periodic Progress Reports

_____ I submitted each required progress report to the following agency on the date(s) noted:

_____ I did not submit the required progress reports. My schedule is included in Section VIII.

_____ I have not complied with each action item described in Section VIII. My reasons for delay, as well as the necessary steps being taken to return to schedule are attached.

My revised schedule for achieving compliance is as follows:

<u>Action Items</u>	<u>Completion Dates</u>
_____	_____
_____	_____
_____	_____
_____	_____

B. Periodic Progress Reports:

_____ I achieved compliance. See Section I.

_____ I did not achieve compliance. See Section II.

SECTION IV.

To the extent allowed by 40 CFR 403.14 and 40 CFR Part 2.302, I request the information contained herein be considered confidential information.

_____ Yes

_____ No

SECTION V.

1.

A. **Qualified Professional Certification:**

I hereby certify under penalty of law that this information was obtained in accordance with the applicable procedures and requirements as specified in the General Pretreatment Regulations and amendments thereto. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Name (print)

Signature

Title

Date

B. Authorized Representative Statement:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who managed the system, or those persons directly responsible for gathering information, the information submitted is to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Name (print)

Signature

Title

Date

FOR OFFICE USE ONLY

Date Received: _____ In compliance _____ Yes _____ No

Follow-up Action Necessary:

_____ Letter _____ Phone contact

_____ Sampling _____ Technical Meetings

_____ Inspection

Reviewed by: _____ Date: _____

APPENDIX H: CONTINUING COMPLIANCE REPORT

U.S. EPA I.D. NO. _____
USER FEDERAL I.D. NO. _____
FACILITY PERMIT NO . _____

City of Cadillac

Industrial User Continuing Compliance Report

SECTION I.

1.
 - A. Name: _____
Address: _____

 - B. Facility Name: _____
Location: _____

 - C. Contact Person: _____
(optional) Number of Employees: _____ Number of Shifts: _____
2.
 - A. Baseline Monitoring Report(s) (BMR) _____ was _____ was not submitted. If not submitted, complete applicable sections or submit your own report.
 - B. The BMR was submitted to:
____ Local Municipality on _____
____ State Agency on _____
____ US EPA Region V on _____
____ Most recent updated BMR is attached.
 - C. Compliance Progress Reports (CPR) _____ were _____ were not submitted. If not submitted, complete applicable sections or submit your own report.
 - D. The Reports were submitted to:
____ Local Municipality on _____
____ State Agency on _____
____ US EPA Region V on _____
____ Most recent updated BMR is attached.
3.
 - A. Process Description

Nature of Operation	Production Rate	Subpart	SIC Code

B. Environmental Control Permits (attach additional sheets if needed):

	<u>State</u>	<u>Local</u>	<u>EPA</u>
Existing:	_____	_____	_____
Pending:	_____	_____	_____

4.

A. Total Plant Flow (gallons/day):

Average: _____ Maximum: _____
Type of Discharge: Batch _____ Continuous _____
Measured: _____ Estimated: _____

B. Individual Flows (gallons/day):

Name of Process Line (regulated)	Average	Maximum	Type of Discharge
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
(Nonregulated)			
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

5. Attach schematics showing all regulated processes, associated flows, and point(s) of discharge to the sewage system. Show location of treatment facilities.

6. Nature of Wastewater Discharged – report in concentration (mg/L) or mass (lb). Attach additional sheet if necessary. Are Categorical Pretreatment Standards being adjusted by employing the Combined Wastestream Formula (CWF)? _____ Yes _____ No. If you are reporting adjusted limits, please submit all appropriate calculations and flow data.

Regulated Process Line(s):

Regulated Category; Sub-Category: _____

Pollutant				
Maximum				
Average				

Sample Type (explain): _____

Number of Samples (explain): _____

Time, Date and Place of Sampling: _____

Name(s) of Person(s) Obtaining Samples: _____

Briefly describe wastewater treatment system: _____

Briefly describe disposal method of waste products (i.e., pretreatment sludges, chemical by-products, etc.):

Attach statement from laboratory performing the analyses certifying the results.

SECTION II.

1.

A. Compliance Schedule:

<u>Action Items</u>	<u>Completion Dates</u>

SECTION III.

1.

A. Periodic Progress Reports

___ I submitted each required progress report to the following agency on the date(s) noted:

___ I did not submit the required progress reports. My schedule is included in Section VIII.

___ I have not complied with each action item described in Section VIII. My reasons for delay, as well as the necessary steps being taken to return to schedule are attached.

My revised schedule for achieving compliance is as follows:

<u>Action Items</u>	<u>Completion Dates</u>

B. Periodic Progress Reports:

___ I achieved compliance. See Section I.

___ I did not achieve compliance. See Section II.

SECTION IV.

To the extent allowed by 40 CFR 403.14 and 40 CFR Part 2.302, I request the information contained herein be considered confidential information.

_____ Yes

_____ No

SECTION V.

1.

A. Qualified Professional Certification:

I hereby certify under penalty of law that this information was obtained in accordance with the applicable procedures and requirements as specified in the General Pretreatment Regulations and amendments thereto. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Name (print)	Signature	Title	Date
--------------	-----------	-------	------

B. Authorized Representative Statement:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gathered and evaluated the information submitted. Based on my inquiry of the person or persons who managed the system, or those persons directly responsible for gathering information, the information submitted is to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

Name (print)	Signature	Title	Date
--------------	-----------	-------	------

FOR OFFICE USE ONLY

Date Received: _____ In compliance _____ Yes _____ No

Follow-up Action Necessary:

_____ Letter _____ Phone contact

_____ Sampling _____ Technical Meetings

_____ Inspection

Reviewed by: _____ Date: _____

APPENDIX I: PERMIT APPLICATION

**CITY OF CADILLAC
INDUSTRIAL PRETREATMENT PROGRAM (IPP)**

PERMIT APPLICATION FORM

Note: Please read all attached instructions prior to completing this application.

SECTION A – GENERAL INFORMATION

1. Facility Name: _____

a. Operator Name: _____

b. Is the operator named above the owner of the facility? ☐ Yes ☐ No

If no, provide the name and address of the operator and submit a copy of the contract and/or other documents indicating the operator's scope of responsibility for this facility:

2. Facility Address: Street: _____

City: _____ State: _____ Zip: _____

3. Business Mailing Address: Street: _____

City: _____ State: _____ Zip: _____

4. **Designated signatory authority** of the facility (Attach similar information on each authorized representative):

Name: _____

Title: _____

Street: _____

City: _____ State: _____ Zip: _____

Phone: _____ Cell: _____

5. Designated facility contact:

Name: _____

Title: _____

Phone: _____ Cell: _____

SECTION B – BUSINESS ACTIVITY

1. If your facility employs or will be employing processes in any of the industrial categories or business activities listed below (regardless of whether they generated wastewater, waste sludge, or hazardous wastes), place a check beside the category of business activity (check all that apply):

Industrial Categories:

- | | |
|---|--|
| ☐ Aluminum Forming | ☐ Nonferrous Metals Manufacturing |
| ☐ Asbestos Manufacturing | ☐ Organic Chemicals Manufacturing |
| ☐ Battery Manufacturing | ☐ Paint and Ink Formulating |
| ☐ Can Making | ☐ Paving and Roofing Manufacturing |
| ☐ Carbon Black | ☐ Pesticides Manufacturing |
| ☐ Coal Mining | ☐ Petroleum Refining |
| ☐ Coil Coating | ☐ Pharmaceutical |
| ☐ Copper Forming | ☐ Plastic and Synthetic Materials Manufacturing |
| ☐ Electric and Electronic Components Manufacturing | ☐ Plastics Processing Manufacturing |
| ☐ Electroplating | ☐ Porcelain Enamel |
| ☐ Feedlots | ☐ Pulp, Paper, and Fiberboard Manufacturing |
| ☐ Fertilizer Manufacturing | ☐ Rubber |
| ☐ Foundries (Metal Molding and Casting) | ☐ Soap and Detergent Manufacturing |
| ☐ Glass Manufacturing | ☐ Steam Electric |
| ☐ Grain Mills | ☐ Sugar processing |
| ☐ Inorganic Chemicals | ☐ Textile Mills |
| ☐ Iron and Steel | ☐ Timber Products |
| ☐ Leather Tanning and Finishing | |
| ☐ Metal Finishing | |
| ☐ Nonferrous Metals Forming | |

A facility with processes inclusive in these business areas may be covered by Environmental Protection Agency's (EPA) categorical pretreatment standards. These facilities are termed "categorical users".

2. Give a brief description of all operations at this facility including primary products or services (attach sheets if necessary):

3. Indicate applicable Standard Industrial Classification (SIC) for all processes (if more than one applies, list in descending order of importance):

a. _____ d. _____

b. _____ e. _____

c. _____ f. _____

4. Product Volume:

[illegible]

SECTION C – WATER SUPPLY

1. Water Sources (check as many as are applicable):

- ☐ Private Well
- ☐ Surface Water
- ☐ Municipal Water Utility (Specify): _____
- ☐ Other (Specify): _____

2. Name and address on the water bill:

Name: _____

Street: _____

City: _____ State: _____ Zip: _____

3. Water service account number:

Number: _____

4. List average water usage on premises (new facilities may estimate):

	Type	Average Water Usage (GPD)	Indicate Estimated (E) or Measured (M)
a.	Contact cooling water		
b.	Non-contact cooling water		
c.	Boiler feed		
d.	Process		
e.	Sanitary		
f.	Air pollution control		
g.	Contained in product		
h.	Plant and equipment wash down		
i.	Irrigation and lawn watering		
j.	Other		
k.	TOTAL of A – J		

SECTION D – SEWER INFORMATION

1. a. For an existing business:

Is the building presently connected to the public sanitary sewer system?

☐ YES Sanitary sewer account number: _____

☐ NO Have you applied for a sanitary sewer hookup? ☐ Yes ☐ No

- b. For a new business:

1. Will you be occupying an existing vacant building (such as in an industrial park)? ☐ Yes ☐ No

2. Have you applied for a building permit if a new facility will be constructed? ☐ Yes ☐ No

3. Will you be connected to the public sanitary sewer system? ☐ Yes ☐ No

2. List size, descriptive location, and flow of each facility sewer that connects to the City's sewer system. (If more than three, attach additional information on another sheet).

Sewer Size	Descriptive Location of Sewer Connection or Discharge Point	Average Flow (GPD)

SECTION E – WASTEWATER DISCHARGE INFORMATION

1. Does (or will) this facility discharge any wastewater other than from restrooms to the City sewer?

☐ Yes ☐ No

If the answer is "Yes" to the question above, complete the remainder of the application.

If the answer is "No", skip to Section I.

2. Provide the following information on wastewater flow rates. (New facilities may estimate).

- a. Hours/Day Discharged (e.g., 8 hours/day):

M Tu W Th F Sat Sun

- b. Hours of Discharge (e.g., 9 AM to 5 PM)

AM	M	Tu	W	Th	F	Sat	Sun
PM	M	Tu	W	Th	F	Sat	Sun

- c. Peak flow rate (GPD) _____

- d. Maximum daily flow rate (GPD) _____

- e. Annual daily average (GPD) _____

3. If batch discharge occurs or will occur, indicate (new facilities may estimate):

- a. Number of batch discharges (per day): _____

- b. Average discharges per batch (GPD): _____

- c. Time of batch discharges: _____ (day of week) at _____ (hours per day)

- d. Flow rate (gpm): _____

- e. Percent of total discharge: _____

4. Schematic Flow Diagram – For each major activity in which wastewater is or will be generated, draw a diagram of the flow of materials, products, water and wastewater from the start of the activity to its completion, showing all unit processes. Indicate which processes use water and which generate waste streams. Include the average daily volume and maximum daily volume of each waste stream (new facilities may estimate). If estimates are used for flow data, this must be indicated. Number each unit process having wastewater discharges to the community sewer. Use these numbers when showing this unit processes in the building layout in Section H. A State Registered Professional Engineer must certify this drawing.

Facilities that checked activities in question 1 of Section B are considered Categorical Industrial Users and should skip to question 6.

5. For Non-Categorical Users Only: List average wastewater discharge, maximum discharge, and type of discharge (batch, continuous, or both) for each plant process. Include the reference number from the process schematic that corresponds to each process. (New facilities should provide estimates for each discharge).

No.	Process Description	Average Flow (GPD)	Maximum Flow (GPD)	Type of Discharge (batch, continuous, none)

ANSWER QUESTIONS 6 AND 7 ONLY IF YOU ARE SUBJECT TO CATEGORICAL PRETREATMENT STANDARDS.

6. For Categorical Users: Provide the wastewater discharge flows for each of your processes or proposed processes. Include the reference number from the process schematic that corresponds to each process. (New facilities should provide estimates for each discharge).

No.	Regulated Process	Average Flow (GPD)	Maximum Flow (GPD)	Type of Discharge (batch, continuous, none)

No.	Unregulated Process	Average Flow (GPD)	Maximum Flow (GPD)	Type of Discharge (batch, continuous, none)

No.	Dilution	Average Flow (GPD)	Maximum Flow (GPD)	Type of Discharge (batch, continuous, none)

7. For Categorical Users Subject to Total Toxic Organic (TTO) Requirements, provide the following TTO information:

- a. Does (or will) this facility use any of the toxic organics that are listed under the TTO standard of the applicable categorical pretreatment standards published by the EPA? ☐ Yes ☐ No
- b. Has a baseline monitoring report (BMR) been submitted which contains TTO information? ☐ Yes ☐ No
- c. Has a toxic organics management plan (TOMP) been developed? ☐ Yes ☐ No
If yes, please attach a copy

8. Do you have, or plan to have, automatic sampling equipment or continuous wastewater flow metering at this facility?

Current:

Flow Metering ☐ Yes ☐ No ☐ N/A

Sampling Equipment ☐ Yes ☐ No ☐ N/A

Planned:

Flow Metering ☐ Yes ☐ No ☐ N/A

Sampling Equipment ☐ Yes ☐ No ☐ N/A

If so, please indicate the present or future location of this equipment on the sewer schematic and describe the equipment below:

-
9. Are any process changes or expansions planned during the next three years that could alter wastewater volumes or characteristics? Consider production processes as well as air or water pollution treatment processes that may affect the discharge.

☐ Yes ☐ No

If No, skip question 10.

10. Briefly describe these changes and their effects on the wastewater volume and characteristics (attach additional sheets if needed):

-
11. Are any materials or water reclamation systems in use or planned?

☐ Yes ☐ No

If No, skip question 12.

12. Briefly describe recovery process, substance recovered, percent recovered, and the concentration in the spent solution. Submit a flow diagram for each process (attach additional sheets if needed):

SECTION F – CHARACTERISTICS OF DISCHARGE

All current industrial users are required to submit monitoring data on all pollutants that are regulated specific to each process. Use the tables provided in this section to report the analytical results. DO NOT LEAVE BLANKS. For all other (non-regulated) pollutants, indicate whether the pollutant is known to be present (P), suspected to be present (S), or known not to be present (O), by placing the appropriate letter in the column for average report values. Indicate on either the top of each table or on a separate sheet, if necessary, the sample location and type of analysis used. Be sure methods conform to 40 CFR Part 136; if they do not, indicate what method was used.

New dischargers should use the table to indicate what pollutants will be present or are suspected to be present in proposed waste streams by placing a P (expected to be present), S (may be present), or O (will not be present) under the average reported values.

	Detection	Maximum Daily Value		Average of Analysis		Number of
Pollutant	Level	mg/L	mg/L	mg/L	mg/L	Analysis
Acenaphthene						
Acrolein						
Acrylonitrile						
Benzene						
Benzidine						
Carbon tetrachloride						
Chlorobenzene						
1,2,4-Trichlorobenzene						
Hexachlorobenzene						
1,2-Dichloroethane						
1,1,1-Trichloroethane						
Hexachloroethane						
1,1-Dichloroethane						
1,1,2-Trichloroethane						
1,1,2,2-Tetrachloroethane						
Chloroethane						
Bis(2-chloroethyl) ether						
17 Bis(chloro methyl) ether						
2-Chloroethyl vinyl ether						
2-Chloroaphthalene						
2,4,6-Trichlorophenol						
Parachlorometa cresol						
Chloroform						

2-Chlorophenol						
1,2-Dichlorobenzene						
1,3-Dichlorobenzene						
1,4-Dichlorobenzene						
3,3-Dichlorobenzidine						
1,1-Dichloroethylene						
1,2-Trans-dichloroethylene						
2,4-Dichlorophenol						
1,2-Dichloropropane						
1,2-Dichloropropylene						
1,3-Dichloropropylene						
2,4-Diethylphenol						
2,4-Dinitrotoluene						
2,6-Dinitrotoluene						
1,2-Diphenylhydrazine						
Ethylbenzene						
Fluoranthene						
4-Chlorophenyl phenyl ether						
4-Bromophenyl phenyl ether						
Bis(2-chlorisopropyl) ether						
Bis(2-chloroethoxy) methane						
Methylene chloride						
Methyl chloride						
Methyl bromide						
Bromoform						
Dichlorobromomethane						
Chlorodibromomethane						
Hexachlorobutadiene						
Hexachlorocyclopentadiene						
Isophorone						
Naphthalene						
Nitrobenzene						
Nitrophenol						

2-Nitrophenol						
4-Nitrophenol						
2,4-Dinitrophenol						
4,6-Dinitro-o-cresol						
N-nitrosodimethylamine						
N-nitrosodiphenylamine						
N-nitrosodi-n-propylamine						
Pentachlorophenol						
Phenol						
Bis(2-ethylhexyl) phthalate						
Butyl benzyl phthalate						
Di-n-butyl phthalate						
Di-n-octyl phthalate						
Diethyl phthalate						
Dimethyl phthalate						
Benzo(a)anthracene						
Benzo(a)pyrene						
3,4-benzofluoranthene						
Benzo(k)fluoranthene						
Chrysene						
Acenaphthylene						
Anthracene						
Benzo(ghi)perylene						
Fluorene						
Phenanthrene						
Dibenzo(a,h)anthracene						
Indeno(1,2,3-cd)pyrene						
Pyrene						
Tetrachloroethylene						
Toluene						
Trichloroethylene						
Vinyl chloride						
Aldrin						
Dieldrin						

Chlordane						
4,4'-DDT						
4,4'-DDE						
4,4'-DDD						
Alpha-endosulfan						
Beta-endosulfan						
Endosulfan sulfate						
Endrin						
Endrin aldehyde						
Heptachlor						
Heptachlor epoxide						
Alpha-BHC						
Beta-BHC						
Gamma-BHC						
Delta-BHC						
PCB-1242						
PCB-1254						
PBC-1221						
PCB-1232						
PCB-1248						
PCB-1260						
PCB-1016						
Toxaphene						
(TCDD)						
Asbestos						
Acidity						
Alkalinity						
Bacteria						
BOD ₅						
COD						
Chloride						
Chlorine						
Fluoride						
Hardness						

Magnesium						
NH ₃ -N						
Oil & Grease						
TSS						
TOC						
Kjeldahl N						
Nitrate N						
Nitrite N						
Organic N						
Orthophosphate						
Phosphorous						
Sodium						
Specific Conductivity						
Sulfate (SO ₄)						
Sulfide (S)						
Sulfite (SO ₃)						
Antimony						
Arsenic						
Barium						
Beryllium						
Cadmium						
Chromium						
Copper						
Cyanide						
Lead						
Mercury						
Nickel						
Selenium						
Silver						
Thallium						
Zinc						

SECTION G – TREATMENT

1. Is any form of wastewater treatment (see list on next page) practiced at this facility?

☐ Yes ☐ No

2. Is any form of wastewater treatment (or changes to an existing wastewater treatment) planned for this facility within the next three years?

☐ Yes ☐ No If yes, describe:

3. Treatment devices or processes used or proposed for treating wastewater or sludge (check as many as appropriate):

- ☐ Air Flotation
☐ Centrifuge
☐ Chemical Precipitation
☐ Chlorination
☐ Cyclone
☐ Filtration
☐ Flow Equalization
☐ Grease or Oil Separation, type: _____
☐ Grease Trap
☐ Grinding Filter
☐ Grit Removal
☐ Ion Exchange
☐ Neutralization, pH correction
☐ Ozonation
☐ Reverse Osmosis
☐ Screen
☐ Sedimentation
☐ Septic Tank
☐ Solvent Separation
☐ Spill Protection
☐ Sump
☐ Biological Treatment, type: _____
☐ Rainwater diversion or storage

- ☐ Other Chemical Treatment, type: _____
- ☐ Other Physical Treatment, type: _____
- ☐ Other, type: _____

4. Describe the pollutant loadings, flow rates, design capacity, physical size, and operating procedures of each treatment facility checked above.

5. Attach a process flow diagram for each existing treatment system. Include process equipment, by-products, by-product disposal method, waste and by-product volumes, and design and operating conditions.

6. Describe any changes in treatment or disposal methods planned or under construction for the wastewater discharge to the sanitary sewer. Please include estimated completion dates.

7. Do you have a treatment operator? ☐ Yes ☐ No If Yes:

Name: _____

Title: _____

Phone: _____

Full Time (Specify hours): _____

Part Time (Specify hours): _____

8. Do you have a manual on the correct operation of your treatment equipment? ☐ Yes ☐ No

9. Do you have a written maintenance schedule for your treatment equipment? ☐ Yes ☐ No

SECTION H – FACILITY OPERATIONAL CHARACTERISTICS

1. Shift Information:

	MON	TUE	WED	THU	FRI	SAT	SUN
Work Days:							
Shifts/Day:							

Employees per Shift:

	MON	TUE	WED	THU	FRI	SAT	SUN
1 st Shift:							
2 nd Shift:							
3 rd Shift:							

Shift start and end times:

	Start Time	End Time
1 st Shift		
2 nd Shift		
3 rd Shift		

2. Indicate whether the business activity is:

☐ Continuous throughout the year

☐ Seasonal – Check the months of the year during which the business activity occurs:

Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec

Comments: _____

3. Indicate whether the facility discharge is:

☐ Continuous throughout the year

☐ Seasonal – Check the months of the year during which the business activity occurs:

Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec

Comments: _____

4. Does operation shut down for vacation, maintenance, or other reasons? ☐ Yes ☐ No
If yes, indicate reasons and period when shutdown occurs:

5. List types and amounts (mass or volume per day) of raw materials used or planned for use (attach list if needed):

6. List types and quantity of chemicals used or planned for use (attach list if needed). Include copies of Manufacturer's Safety Data Sheets (if available) for all chemicals identified:

<u>Chemical</u>	<u>Quantity</u>

7. Building Layout – Draw to scale the location of each building on the premises. Show map orientation and location of all water meters, storm drains, numbered unit processes (from schematic flow diagram), public sewers, and each facility sewer line connected to the public sewers. Number each sewer and show existing and proposed sampling locations. This drawing MUST be certified by a State Registered Professional Engineer.

A blueprint or drawing of the facilities showing the above items may be attached in lieu of submitting a drawing on this sheet.

SECTION I – SPILL PREVENTION

1. Do you have chemical storage containers, bins, or ponds at your facility?

☐ Yes ☐ No

If yes, please give a description of their location, contents, size, type and frequency and method of cleaning. Also indicate in a diagram or comment on the proximity of these containers to a sewer or storm drain. Indicate if buried metal containers have cathodic protection (please attach a copy, if applicable).

2. Do you have floor drains in your manufacturing chemical storage area(s)?

☐ Yes ☐ No

3. If you have chemical storage containers, bins or ponds in manufacturing area, could an accidental spill lead to a discharge to (check all that apply):

☐ An Onsite Disposal System

☐ Public Sanitary Sewer System (e.g., through a floor drain)

☐ Storm Drain

☐ To Ground

☐ Other, Specify: _____

☐ Not Applicable; no possible discharges to any of the above routes

4. Do you have an accidental spill prevention plan (ASPP) to prevent spills of chemicals or slug discharges from entering the Control Authority's collection system?

☐ Yes – (Please enclose a copy with the application)

☐ No

☐ N/A, since there are no floor drains and/or the facility discharges only domestic waste

5. Please describe below any previous spill events and remedial measures taken to prevent their reoccurrence.

SECTION J – NON-DISCHARGE WASTES

1. Are any waste liquids or sludges generated and not disposed of in the sanitary sewer system?

☐ Yes, please describe below

☐ No, skip the remainder of Section J

<u>Waste Generated</u>	<u>Quantity (per year)</u>	<u>Disposal Method</u>

2. Indicate which wastes identified above are disposed of at an off-site treatment facility and which are disposed of on-site.

3. If any of your wastes are sent to an off-site centralized waste treatment facility, identify the waste and the facility.

4. If an outside firm removes any of the above checked wastes, state the name(s) and address(es) of all waste haulers:

<u>Name</u>	<u>Address</u>	<u>Permit # (if applicable)</u>

5. Have you been issued any Federal, State, or Local environmental permits?

☐ Yes ☐ No If yes, please list the permit(s):

SECTION K – AUTHORIZED SIGNATURES

Compliance Certification:

1. Are all applicable Federal, State, or Local pretreatment standards and requirements being met on a consistent basis?

☐ Yes ☐ No ☐ Not yet discharging

2. If No:

- a. What additional operations and maintenance procedures are being considered to bring the facility into compliance? Also, list additional treatment technology or practice being considered in order to bring the facility into compliance.

- b. Provide a schedule for bringing the facility into compliance. Specify major events planned along with reasonable completion dates. Note that if the Control Authority issues a permit to the applicant, it may establish a schedule for compliance different from the one submitted by the facility.

Milestone Activity

Completion DateThis image shows a blank sheet of white paper with horizontal ruling lines. The lines are evenly spaced and run across the width of the page. There are no margins, text, or other markings on the paper.

APPENDIX J: EXAMPLE LETTER – SIGNIFICANT INDUSTRIAL USER DETERMINATION NOTIFICATION

Significant Industrial User Determination Notification

As a part of the Industrial Pretreatment Program (IPP), the City will conduct annual inspections of your facility to evaluate compliance of your sanitary sewer discharge with the City Ordinance and State and Federal regulations. The City will also conduct unscheduled monitoring of your sanitary sewer discharge to evaluate compliance with the City Ordinance and the facility's Wastewater Discharge Permit.

Failure to meet the requirements of the IPP Program may result in the assessment of fines and/or issuance of a Termination of Services Order.

If you have any questions or comments relating to the information in this submittal, do not hesitate to contact us. The City looks forward to your response.

Sincerely,

Wastewater Superintendent
City of Cadillac

Attachments

cc: File

APPENDIX K: MODEL WASTEWATER DISCHARGE PERMIT



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

**MODEL / TEMPLATE
INDUSTRIAL WASTEWATER**

DISCHARGE PERMIT

ISSUED TO: <<INDUSTRY NAME>>

PERMIT NUMBER: 590-xx

PERMIT EFFECTIVE DATE: <DATE>

PERMIT EXPIRATION DATE: <DATE>

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;
Act 245 of the Michigan Public Acts of 1929, as amended;
Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **INDUSTRY NAME**

to discharge certain commercial and industrial wastewaters into the City of Cadillac wastewater collection system from the facility located at: **ADDRESS**

Cadillac, MI 49601

This permit shall become effective on _____ **date** and **remain in effect until _____ date,** providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: <DATE>

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Dept

PART 1 - WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: <DATE>

A. The compliance monitoring location is the sampling manhole located in the garage door entrance on the east side of the building just north of the loading docks.

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code. <<IF CATEGORICAL ADD - Bold values indicate parameters for which the Cadillac Local Limit is more stringent than the Categorical Limit in 40 CFR PART ____.>>

Discharge Parameter	Parameter Limit	Units	Monitoring Requirement	Frequency
<<Discharge Flow>>	Monitor	GPD	Daily	Report/Month
Conductance	Report		Grab	1 x /Week
pH	Min 5.5 Max. 9.5	sic	Grab	1 x /Week
Arsenic	2.00	ug/L	24 HC	1 x /Month
Cadmium	2.00	ug/L	24 HC	1 x /Month
Chromium, Total	370	ug/L	24 HC	1 x /Month
Copper	58.0	ug/L	24 HC	1 x /Month
Cyanide, Total	4.00	ug/L	Grab	4 x /Year
Lead	29.0	ug/L	24 HC	1 x /Month
Molybdenum	33.0	ug/L	24 HC	1 x /Month
Nickel	76.0	ug/L	24 HC	1 x /Month
Selenium	13.0	ug/L	24 HC	1 x /Month
Silver	3.00	ug/L	24 HC	1 x /Month
Zinc	156	ug/L	24 HC	1 x /Month
Mercury	Non-Detect		24 HC	1 x /Year
Toluene	Report	ug/L	Grab	1 x /Year
Dichloroethylene	Report	ug/L	Grab	1 x /Year
Total Phenols	Report	ug/L	Grab	1 x /Year
Bis(2-ethylhexylphthalate)	Report	ug/L	Grab	1 x /Year
BOD5	400	mg/L	24 HC	1 x /Year
TSS	700	mg/L	24 HC	1 x /Year
Ammonia Nitrogen	33	mg/L	24 HC	1 x /Year
Phosphorus	12	mg/L	24 HC	1 x /Year

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

C – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals. Composite samples shall be flow-proportional 24-hour composites in accordance with 40 CFR Part 403 unless the permittee has demonstrated that time-proportional sampling is representative of the discharge.

<<Paragraph describing category / categorical process>>

Discharge Parameter	Parameter Limit Daily Maximum	Units	Parameter Limit Monthly Avg	Units
List Categorical limits				

<<TTO – Total Toxic Organics. The summation of all quantifiable values greater than 0.01 mg/L for the toxic organics included in **Appendix A.**>>

B. All discharges shall comply with all other applicable laws, regulations, standards and requirements contained in the City of Cadillac Code of Ordinances and any applicable State and Federal pretreatment laws, regulations, standards and requirements including any such laws, regulations, standards or requirements that may become effective during the term of this permit.

C. All handling and preservation of collected samples and laboratory analysis of samples shall be performed in accordance with **CFR part 136** and amendments thereto unless specified otherwise in the monitoring conditions of this permit.

D. <<In lieu of TTO monitoring, a certification that none of the listed organic compounds are used or discharged into the system must be submitted. **Please submit a certification letter annually.**>>

PART 2. WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **INDUSTRY NAME** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.
3. <<**INDUSTRY NAME** shall submit the discharge flow information to the City of Cadillac on a monthly basis. This **flow data** must be received by the fourth day of the following month. >>

4. **Automatic Re-sampling**
If the results of the City's wastewater analysis indicates that a violation of this permit has occurred, the City shall repeat the sampling and pollutant analysis within 30 days of the first violation.

PART 3 - MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

NAME has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. DUTY TO COMPLY

The permittee must comply with all conditions of this permit. Failure to comply with the requirements of this permit may be grounds for administrative action, or enforcement proceedings including civil or criminal penalties, injunctive relief, and summary abatements.

3. DUTY TO MITIGATE

The permittee shall take all reasonable steps to minimize or correct any adverse impact to the public treatment plant or the environment resulting from noncompliance with this permit, including such accelerated or additional monitoring as necessary to determine the nature and impact of the noncomplying discharge.

4. OPERATING UPSETS

Any permittee that experiences an upset in operations that places the permittee in a temporary state of noncompliance with the provisions of either this permit or with City Ordinance, Chapter 42, shall inform the City of Cadillac Wastewater Treatment Plant within 24 hours of becoming aware of the upset.

A written follow-up report of the upset shall be filed by the permittee with the City of Cadillac Wastewater Treatment Plant within five days. The report shall specify:

- a) Description of the upset, the cause(s) thereof and the upset's impact on the permittee's compliance status;
- b) Duration of noncompliance, including exact dates and times of noncompliance, and if not corrected, the anticipated time the noncompliance is expected to continue; and
- c) All steps taken to reduce, eliminate and prevent recurrence of such an upset.

The report must also demonstrate that the treatment facility was being operated in a prudent and workmanlike manner. A documented and verified operating upset shall be

an affirmative defense to any enforcement action brought against the permittee for violations attributable to the upset event.

5. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

6. PERMIT MODIFICATION

This permit may be modified for good causes including, but not limited to, the following:

- a) To incorporate any new or revised Federal, State, or local pretreatment standards or requirements.
- b) Material or substantial alterations or additions to the user's operations, processes, or discharge volume or character that were not considered in the effective permit.
- c) A change in any conditions in either the industrial user or the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge to assure compliance with applicable laws, regulations and the POTW's NPDES permit.
- d) Information indicating that the permitted discharge poses a threat to the Control Authority's collection and treatment systems, POTW personnel or the receiving waters.
- e) Violation of any terms or conditions of this permit.
- f) Misrepresentation or failure to disclose fully all relevant facts in the permit application or in any required reporting.
- g) Revision of or grant of variance from applicable categorical standards pursuant to 40 CFR 403.13.
- h) To correct typographical or other errors in the permit.
- i) To reflect transfer of the facility ownership and/or operation to a new owner/operator.
- j) Upon request of the permittee, provided such request does not create a violation of any applicable requirements, standards, laws, rules, or regulations.

The filing of a request by the permittee for a permit modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance, does not stay any permit condition.

7. PERMIT TERMINATION

This permit may be terminated for the following reasons:

- a) Falsifying self-monitoring reports.
- b) Tampering with monitoring equipment.
- c) Refusing to allow timely access to the facility premises and records.
- d) Failure to meet effluent limitations.
- e) Failure to pay fines or penalties.
- f) Failure to pay sewer charges.
- g) Failure to pay permit fees.
- h) Failure to meet compliance schedules.
- i) Failure to comply with any term or condition of the permit.
- j) Failure to comply with any reporting or notice requirement.
- k) Failure to disclose fully all relevant facts in the permit application or during the permit issuance process, or misrepresentation of any relevant fact at any time.
- l) The Superintendent determines that the discharge permitted by the permit has a reasonable potential to endanger human health or the environment and the threat can be abated only by suspension or revocation of the permit.

8. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1) collect, analyze and report results of all wastewater discharge parameters listed in this permit, or, 2) stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

9. INSPECTION AND ENTRY

The permittee shall allow the City of Cadillac Wastewater Treatment Plant staff, or an authorized representative, upon the presentation of credentials and other documents as may be required by law, to:

- a) Enter upon the permittee's premises where a regulated facility or activity is located or conducted, or where **records must be kept under the conditions of this permit;**
- b) Have access to and copy, at reasonable times, any records that must be kept under the conditions of this permit;
- c) Inspect at reasonable times any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this permit;
- d) Sample or monitor, for the purposes of assuring permit compliance, any substance or parameters at any location; and
- e) Inspect any production, manufacturing, fabricating, or storage area where pollutants, regulated under permit, could originate, be stored, or be discharged to the sewer system.

10. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

11. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

12. RECOVERY OF COSTS INCURRED

In addition to civil and criminal liability, the permittee violating any of the provisions of this permit or Ordinance Chapter 42, or causing damage to or otherwise inhibiting the City of Cadillac Wastewater Treatment Plant wastewater disposal system shall be liable to the City of Cadillac Wastewater Treatment Plant for any expense, loss, or damage caused by such violation or discharge. The City of Cadillac Wastewater Treatment Plant shall bill the permittee for the costs incurred by the City of Cadillac Wastewater Treatment Plant for any cleaning, repair, or replacement work caused by the violation or discharge. Refusal to pay the assessed costs shall constitute a separate violation of the City Ordinance.

13. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.

<<Appendix A: List of Total Toxic Organics>>

- Acenaphthene
- Acrolein
- Acrylonitrile
- Benzene
- Benzidine
- Carbon tetrachloride (tetrachloromethane)
- Chlorobenzene
- 1,2,4-Trichlorobenzene
- Hexachlorobenzene
- 1,2-Dichloroethane
- 1,1,1-Trichloroethane
- Hexachloroethane
- 1,1-Dichloroethane
- 1,1,2-Trichloroethane
- 1,1,2,2-Tetrachloroethane
- Chloroethane
- Bis (2-chloroethyl) ether
- 2-Chloroethyl vinyl ether (mixed)
- 2-Chloronaphthalene
- 2,4,6-Trichlorophenol
- Parachlorometa cresol
- Chloroform (trichloromethane)
- 2-Chlorophenol
- 1,2-Dichlorobenzene
- 1,3-Dichlorobenzene
- 1,4-Dichlorobenzene
- 3,3-Dichlorobenzidine
- 1,1-Dichloroethylene
- 1,2-Trans-dichloroethylene
- 2,4-Dichlorophenol
- 1,2-Dichloropropane
- 1,3-Dichloropropylene (1,3-dichloropropene)
- 2,4-Dimethylphenol
- 2,4-Dinitrotoluene
- 2,6-Dinitrotoluene
- 1,2-Diphenylhydrazine
- Ethylbenzene
- Fluoranthene
- 4-Chlorophenyl phenyl ether
- 4-Bromophenyl phenyl ether
- Bis (2-chloroisopropyl) ether
- Bis (2-chloroethoxy) methane
- Methylene chloride (dichloromethane)
- Methyl chloride (chloromethane)
- Methyl bromide (bromomethane)
- Bromoform (tribromomethane)
- Dichlorobromomethane
- Chlorodibromomethane
- Hexachlorobutadiene
- Hexachlorocyclopentadiene
- Isophorone
- Naphthalene
- Nitrobenzene
- 2-Nitrophenol
- 4-Nitrophenol
- 2,4-Dinitrophenol
- 4,6-Dinitro-o-cresol
- N-nitrosodimethylamine
- N-nitrosodiphenylamine
- N-nitrosodi-n-propylamine
- Pentachlorophenol
- Phenol
- Bis (2-ethylhexyl) phthalate
- Butyl benzyl phthalate
- Di-n-butyl phthalate
- Di-n-octyl phthalate
- Diethyl phthalate
- Dimethyl phthalate
- 1,2-Benzanthracene
- (benzo(a)anthracene)
- Benzo(a)pyrene (3,4-benzopyrene)
- 3,4-Benzofluoranthene
- (benzo(b)fluoranthene)
- 11,12-Benzofluoranthene
- (benzo(k)fluoranthene)
- Chrysene
- Acenaphthylene
- Anthracene
- 1,12-Benzoperylene (benzo(ghi)perylene)
- Fluorene
- Phenanthrene
- 1,2,5,6-Dibenzanthracene
- (dibenzo(a,h)anthracene)
- Indeno(1,2,3-cd) pyrene (2,3-o-phenylene pyrene)
- Pyrene
- Tetrachloroethylene
- Toluene
- Trichloroethylene
- Vinyl chloride (chloroethylene)
- Aldrin
- Dieldrin
- Chlordane (technical mixture and metabolites)
- 4,4-DDT
- 4,4-DDE (p,p-DDX)
- 4,4-DDD (p,p-TDE)
- Alpha-endosulfan
- Beta-endosulfan
- Endosulfan sulfate
- Endrin
- Endrin aldehyde
- Heptachlor
- Heptachlor epoxide
- (BHC-hexachloro-cyclohexane)
- Alpha-BHC
- Beta-BHC
- Gamma-BHC
- Delta-BHC
- (PCB-polychlorinated biphenyls)
- PCB-1242 (Arochlor 1242)
- PCB-1254 (Arochlor 1254)
- PCB-1221 (Arochlor 1221)
- PCB-1232 (Arochlor 1232)
- PCB-1248 (Arochlor 1248)
- PCB-1260 (Arochlor 1260)
- PCB-1016 (Arochlor 1016)
- Toxaphene
- 2,3,7,8-Tetrachlorodibenzo-p-dioxin (TCDD)

APPENDIX L: EXISTING WASTEWATER DISCHARGE PERMITS

Proposed Revised Permits Are Being Submitted to EGLE For Review



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: AAR CADILLAC MANUFACTURING

PERMIT NUMBER: 590-17

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **AAR Cadillac Manufacturing, Inc.**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **1405 6th Avenue**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Discharge Flow	Monitor GPD	Daily Report/Month
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	200 ug/L	24 HC 1 x /Month
Chromium	369 ug/L	24 HC 1 x /Month
Copper	99.0 ug/L	24 HC 1 x /Month
Cyanide	4.00 ug/L	24 HC 2 x /Year
Lead	100 ug/L	24 HC 1 x /Month
Nickel	185 ug/L	24 HC 1 x /Month
Zinc	835 ug/L	24 HC 1 x /Month
Toluene	100 ug/L	Grab 2 x /Year
Dichloroethylene	100 ug/L	Grab 2 x /Year

All samples collected for analysis will be sampled from the sampling manhole located on the lawn of the South East corner of the building.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **AAR Cadillac Manufacturing** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023.**
3. **AAR Cadillac Manufacturing** shall submit the discharge flow information to the City of Cadillac on a monthly basis. This flow data must be received by the fourth day of the following month.
4. **AAR Cadillac Manufacturing** is classified as a categorical industry (Metal Finishing) for this discharge under EPA Pretreatment Program standards. The sampling requirements given above are required by those standards.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Greg Shay has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for any and all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: AAR CADILLAC MANUFACTURING

PERMIT NUMBER: 590-01-FAC

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **AAR Cadillac Manufacturing, Inc.**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **201 Haynes Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Dept.

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average		Monitoring Requirement	
	Conc.	Units	Type	Frequency
Discharge Flow	Monitor	GPD	Daily	Report/Month
pH	Min 5.5	Max. 9.5	Grab	1 x /Week
Conductance	Report		Grab	1 x /Week
Cadmium	2.00	ug/L	24 HC	1 x /Month
Copper	99.0	ug/L	24 HC	1 x /Month
Lead	100	ug/L	24 HC	1 x /Month
Zinc	835	ug/L	24 HC	1 x /Month
Chromium, Total	369	ug/L	24 HC	2 x /Year
Toluene	100	ug/L	Grab	2 x /Year
Dichloroethylene	100	ug/L	Grab	2 x /Year

All samples collected for analysis will be sampled from the sampling manhole located in the center of the facility on the north side of the plant near the press line.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. AAR Cadillac Manufacturing must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.
3. AAR Cadillac Manufacturing shall submit the discharge flow information to the City of Cadillac on a monthly basis. This flow data must be received by the fourth day of the following month.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Greg Shay has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 23 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: AAR CADILLAC MANUFACTURING

PERMIT NUMBER: 590-01-RT

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **AAR Cadillac Manufacturing, Inc.**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **201 Haynes Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Discharge Flow	Monitor GPD	Daily Report/Month
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 1 x /Month
Chromium	369 ug/L	24 HC 2 x /Month
Copper	99.0 ug/L	24 HC 1 x /Month
Cyanide	4.00 ug/L	24 HC 2 x /Year
Lead	100 ug/L	24 HC 1 x /Month
Nickel	185 ug/L	24 HC 2 x /Month
Zinc	835 ug/L	24 HC 1 x /Month
Toluene	100 ug/L	Grab 2 x /Year
Dichloroethylene	100 ug/L	Grab 2 x /Year

All samples collected for analysis will be sampled from the sampling manhole located in the garage door entrance on the east side of the building just north of the loading docks.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **AAR Cadillac Manufacturing** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023.**
3. **AAR Cadillac Manufacturing** shall submit the discharge flow information to the City of Cadillac on a monthly basis. This flow data must be received by the fourth day of the following month.
4. **AAR Cadillac Manufacturing** is classified as a categorical industry (Metal Finishing) for this discharge under EPA Pretreatment Program standards. The sampling requirements given above are required by those standards.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Greg Shay has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: ARVCO CONTAINER CORP.

PERMIT NUMBER: 590-20

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **ARVCO Container Corp.** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at:

1355 Marty Paul Street

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 2 x /Month
Copper	99.0 ug/L	24 HC 2 x /Month
Lead	100 ug/L	24 HC 2 x /Month
Zinc	835 ug/L	24 HC 2 x /Month
Chromium	369 ug/L	24 HC 2 x /Month

All samples collected for analysis will be sampled from the sampling manhole located on the southside of the main drive on the east side of the property off Marty Paul St.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **ARVCO Container Corp.** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Mike Gordon has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the issuance or the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: AKWEL

PERMIT NUMBER: 590-06B 5th St. Manhole

PERMIT EFFECTIVE DATE: January 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **AKWEL** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at:

603 West Seventh Street

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average		Monitoring Requirement	
	Conc.	Units	Type	Frequency
pH	Min 5.5	Max. 9.5	Grab	1 x /Week
Conductance	Report		Grab	1 x /Week
Cadmium	2.00	ug/L	24 HC	2 x /Month
Copper	99.0	ug/L	24 HC	2 x /Month
Lead	100	ug/L	24 HC	2 x /Month
Zinc	835	ug/L	24 HC	2 x /Month
Nickel	185	ug/L	24 HC	2 x /Month
Solids, total	Report	mg/L	24 HC	1 x /Month

All samples collected for analysis will be sampled from the sampling manhole located in the drive on the southside of the property off Fifth St.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **AKWEL** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023** .

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Jamie Pritchard has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: AKWEL

PERMIT NUMBER: 590-06

PERMIT EFFECTIVE DATE: January 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **AKWEL** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at:

603 West Seventh Street

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 2 x /Month
Copper	99.0 ug/L	24 HC 2 x /Month
Lead	100 ug/L	24 HC 2 x /Month
Zinc	835 ug/L	24 HC 2 x /Month
Nickel	185 ug/L	24 HC 2 x /Month
Solids, total	Report mg/L	24 HC 1 x /Month

All samples collected for analysis will be sampled from the sampling manhole located on the northeast corner of the building off Seventh St.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **AKWEL** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023.**

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Jamie Pritchard has been designated as the person responsible for any and all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: AVON PROTECTION

PERMIT NUMBER: 590-21

PERMIT EFFECTIVE DATE: January 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **AVON PROTECTION**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **503 Eighth Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement	
		Type	Frequency
pH	Min 5.5 Max. 9.5 sic	Grab	1 x /Week
Conductance	Report	Grab	1 x /Week
Cyanide	4.00 ug/L	Grab	4 x /Year

All samples collected for analysis will be sampled from the sampling manhole west of the building in the drive except the cyanide which will be prepped by the QC lab and picked up by the WWTP.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **AVON PROTECTION** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Todd Bruggema has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: BORG WARNER OF CADILLAC

PERMIT NUMBER: 590-02-E

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;
The Code of Federal Regulations, Part 403;
Act 245 of the Michigan Public Acts of 1929, as amended;
Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **BORG WARNER of Cadillac**
to discharge certain commercial and industrial waste into the
City of Cadillac wastewater collection system from the facility
located at: **1100 Wright Street**
Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and
remain in effect until **December 31, 2024**, providing compliance
with the general requirements of Chapter 42 of the City Code and
compliance with the discharge limits and conditions contained
within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 4 x /Year
Copper	99.0 ug/L	24 HC 4 x /Year
Lead	100 ug/L	24 HC 4 x /Year
Zinc	835 ug/L	24 HC 4 x /Year

All samples collected for analysis will be sampled from the sampling manhole located at the southeast corner of the property.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **BORG WARNER of Cadillac** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Jeff Durga has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

**ISSUED TO: HUTCHINSON ANTIVIBRATION SYSTEMS -
CADILLAC**

PERMIT NUMBER: 590-03

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **HUTCHINSON ANTIVIBRATION SYSTEMS**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **600 Seventh Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 4 x /Year
Copper	99.0 ug/L	24 HC 4 x /Year
Lead	100 ug/L	24 HC 4 x /Year
Zinc	835 ug/L	24 HC 4 x /Year

All samples collected for analysis will be sampled from the sampling manhole located on the southeast corner of the property.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **HUTCHINSON ANTIVIBRATION SYSTEMS** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. William Walker has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for any and all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: MICHIGAN RUBBER PRODUCTS, INC.

PERMIT NUMBER: 590-05

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **Michigan Rubber Products, Inc.**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **1600 Holman St.**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average		Monitoring Requirement	
	Conc.	Units	Type	Frequency
pH	Min 5.5	Max. 9.5	Grab	1 x /Week
Conductance	Report		Grab	1 x /Week
Cadmium	2.00	ug/L	24 HC	4 x /Year
Copper	99.0	ug/L	24 HC	4 x /Year
Lead	100	ug/L	24 HC	4 x /Year
Zinc	835	ug/L	24 HC	4 x /Year

All samples collected for analysis will be sampled from the sampling manhole located on the northwest corner of plant 3 off Holman St.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Michigan Rubber Products** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Ms. Harshit Singh has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for any and all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: MUNSON HEALTHCARE-CADILLAC

PERMIT NUMBER: 590-16

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **MUNSON HEALTHCARE-CADILLAC**

(FORMERLY, MERCY HOSPITAL) to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at:

400 Hobart Street

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units		Monitoring Requirement Type Frequency	
Silver	Report	ug/L	24 HC	2 x /Year
Mercury	Report	ug/L	24 HC	2 x /Year

All samples collected for analysis will be sampled from the sampling manhole located in the drive of the emergency room drop off doors on the west of the facility.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. The City of Cadillac will require Munson Hospital to submit semi-annual reports on silver reclaim units. This shall include copies of contract maintenance and volume of silver processed. This requirement is waived until Munson returns to use of this reclamation unit. We require a 30 day notice.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Dan Debano has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: PIRANHA HOSE INC.

PERMIT NUMBER: 590-19

PERMIT EFFECTIVE DATE: January 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **PIRANHA HOSE INC.** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **2500 Weigel Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement	
		Type	Frequency
pH	Min 5.5 Max. 9.5 sic	Grab	1 x /Week
Conductance	Report	Grab	1 x /Week
Copper	99.0 ug/L	24 HC	1 x /Month

All samples collected for analysis will be sampled from the sampling manhole located next to the loading dock on the east end of the building.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Piranha Hose** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Brian Blake has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: Fiamm Technologies Inc.

PERMIT NUMBER: 590-18

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **Fiamm Technologies Inc.**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **946 Frisbie Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average		Monitoring Requirement	
	Conc.	Units	Type	Frequency
Zinc	835	ug/L	24 HC	4 x /Year
Copper	99.0	ug/L	24 HC	4 x /Year
Lead	100	ug/L	24 HC	4 x /Year
pH	Min 5.5	Max. 9.5 sic	Grab	1 x /Week
Conductance	Report		Grab	1 x /Week
Cadmium	2.00	ug/L	24 HC	4 x /Year
Silver	3.00	ug/L	24 HC	4 x /Year

All samples collected for analysis will be sampled from the sampling manhole located on the northeast corner of the building next to the LDFA ground water well S-5.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Fiamm Technologies Inc.** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Jason Roorda has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: Spencer Plastics

PERMIT NUMBER: 590-21

PERMIT EFFECTIVE DATE: January 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **Spencer Plastics**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **2300 Gary East Schwach St.**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average		Monitoring Requirement	
	Conc.	Units	Type	Frequency
Cadmium	2.00	ug/L	24 HC	4 x /Year
Copper	99.0	ug/L	24 HC	4 x /Year
Lead	100	ug/L	24 HC	4 x /Year
Zinc	835	ug/L	24 HC	4 x /Year

All samples collected for analysis will be sampled from the sampling manhole located on the southside of the building in the lawn.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Spencer Plastics** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Thomas Spencer has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: CADILLAC CASTING INC.

PERMIT NUMBER: 590-11

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **CADILLAC CASTING INC.** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at:

1500 Fourth Avenue

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Discharge Flow	Monitor GPD	Daily Report/Month
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 4 x /Year
Copper	99.0 ug/L	24 HC 4 x /Year
Lead	100 ug/L	24 HC 2 x /Month
Molybdenum	118 ug/L	24 HC 2 x /Month
Nickel	185 ug/L	24 HC 4 x /Year
Silver	3.00 ug/L	24 HC 4 x /Year
Zinc	835 ug/L	24 HC 2 x /Month

All samples collected for analysis will be sampled from the sampling manhole located on the southside of the property line next to the motorcycle parking.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **CADILLAC CASTING INC.** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023.**
3. **CADILLAC CASTING INC.** is classified as a categorical industry (Cast Iron Foundry) for this discharge under EPA Pretreatment program standards. The sampling requirements are required by those standards. This classification also requires certification that none of the listed organic compounds are used or discharged into the system. Please submit a certification letter annually.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Erik Olson has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: Rec Boat Holdings, CRUISER DIVISION

PERMIT NUMBER: 590-07

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 23, of the City of Cadillac Codified Ordinances;

Gives authorization to **Rec Boat Holdings, Cruiser Division** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **609 West 13th Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 23 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article XI, Section 2.183, of Chapter 23 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Flow - Utility report	Report GPD	Water Usage Yearly

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article XI, of Chapter 23 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 23, due to facility specific wastewater discharge characteristics.

1. Chapter 23, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Rec Boat Holdings, Cruiser Division** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Rick Videan has been designated as the person responsible for any and all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for any and all cases of permit noncompliance as allowed in Chapter 23 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: Rec Boat Holdings, SPORT DIVISION

PERMIT NUMBER: 590-08

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 23, of the City of Cadillac Codified Ordinances;

Gives authorization to **Rec Boat Holdings, Sport Division**
to discharge certain commercial and industrial waste into the
City of Cadillac wastewater collection system from the facility
located at: **925 Frisbie Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and
remain in effect until **December 31, 2024**, providing compliance
with the general requirements of Chapter 23 of the City Code and
compliance with the discharge limits and conditions contained
within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article XI, Section 2.183, of Chapter 23 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Flow - Utility report	Report GPD	Water Usage Yearly

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article XI, of Chapter 23 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 23, due to facility specific wastewater discharge characteristics.

1. Chapter 23, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Rec Boat Holdings, Sport Division** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Rick Videan has been designated as the person responsible for any and all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for any and all cases of permit noncompliance as allowed in Chapter 23 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: Rec Boat Holdings, TRAILER DIVISION

PERMIT NUMBER: 590-09

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 23, of the City of Cadillac Codified Ordinances;

Gives authorization to **Rec Boat Holdings Trailer Division** to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **1500 Ron Wilson Street**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 23 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article XI, Section 2.183, of Chapter 23 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Discharge Flow	Monitor GPD	Daily Report/Month
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 6 x /Year
Chromium	369 ug/L	24 HC 4 x /Year
Copper	99.0 ug/L	24 HC 12 x /Year
Cyanide	4.00 ug/L	24 HC 4 x /Year
Lead	100 ug/L	24 HC 6 x /Year
Nickel	185 ug/L	24 HC 4 x /Year
Zinc	835 ug/L	24 HC 6 x /Year
Molybdenum	118 ug/L	24 HC 12 x /Year

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article XI, of Chapter 23 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 23, due to facility specific wastewater discharge characteristics.

1. Chapter 23, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Rec Boat Holdings, Trailer Division** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. An updated copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023.**
3. **Rec Boat Holdings, Trailer Division** is classified as a categorical industry (Metal Finishing) for this discharge under EPA Pretreatment program standards. The sampling requirements are required by those standards. This classification also requires certification that none of the listed organic compounds are used or discharged into the system. **Please submit a certification letter annually.**

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Rick Videan has been designated as the person responsible for any and all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department at least 30 days prior to the actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for any and all cases of permit noncompliance as allowed in Chapter 23 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.



*Cadillac Utilities Department
200 Lake St.
Cadillac, MI 49601
231-775-0181
231-775-8755*

CITY OF CADILLAC, MICHIGAN

INDUSTRIAL WASTEWATER

DISCHARGE PERMIT

ISSUED TO: CADILLAC RENEWABLE ENERGY

PERMIT NUMBER: 590-15

PERMIT EFFECTIVE DATE: JANUARY 1, 2023

PERMIT EXPIRATION DATE: DECEMBER 31, 2024

The City of Cadillac in compliance with the following Acts and Ordinances:

The Clean Water Act (PL92-500), as amended;

The Code of Federal Regulations, Part 403;

Act 245 of the Michigan Public Acts of 1929, as amended;

Chapter 42, of the City of Cadillac Codified Ordinances;

Gives authorization to **Cadillac Renewable Energy**

to discharge certain commercial and industrial waste into the City of Cadillac wastewater collection system from the facility located at: **1525 Frank Miltner**

Cadillac, MI 49601

This permit shall become effective on **January 1, 2023** and remain in effect until **December 31, 2024**, providing compliance with the general requirements of Chapter 42 of the City Code and compliance with the discharge limits and conditions contained within this permit for the above listed facility.

Date Issued: January 1, 2023

Issued By:

Patrick Miller
Water Resources Supervisor
Cadillac Utilities Department

WASTEWATER DISCHARGE LIMITATIONS

Permit effective Date: **January 1, 2023**

The following discharge limitations are included as a condition of this permit under Article IV, Division 10, of Chapter 42 of the Cadillac City Code.

Discharge Parameter	Parameter Limit 30 Day Average Conc. Units	Monitoring Requirement Type Frequency
Discharge Flow	Monitor GPD	Monthly Report/Month
pH	Min 5.5 Max. 9.5 sic	Grab 1 x /Week
Conductance	Report	Grab 1 x /Week
Cadmium	2.00 ug/L	24 HC 4 x /Year
Chromium	369.0 ug/L	24 HC 4 x /Year
Copper	99.0 ug/L	24 HC 4 x /Year
Lead	100.0 ug/L	24 HC 4 x /Year
Molybdenum	118.0 ug/L	24 HC 4 x /Year
Nickel	185.0 ug/L	24 HC 4 x /Year
Zinc	835.0 ug/L	24 HC 4 x /Year

All samples collected for analysis will be sampled from the sampling manhole located in the north side of the property in the lawn out in front of the security office.

Abbreviations/Definitions

Grab – Grab sample. A grab sample is a sample taken from a wastestream without regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Comp – Composite sample. A composite sample is a collection of individual grab samples obtained at regular intervals, either based on time intervals or flow intervals.

WASTEWATER DISCHARGE PERMIT SPECIAL CONDITIONS

Permit effective Date: **January 1, 2023**

The following special permit conditions are included under the provisions of Article IV, of Chapter 42 of the City Code. They are required (if present) in addition to the general discharge requirements provided for in Chapter 42, due to facility specific wastewater discharge characteristics.

1. Chapter 42, of the City of Cadillac Code contains a listing of prohibited discharges that are not allowed into the sanitary sewer system. Review of this chapter is a requirement of the permit.
2. **Cadillac Renewable Energy** must have a spill prevention program that would prevent the entry of solvents and/or other hazardous materials from entering the sanitary sewer in the event of a leak or spill. A copy of this plan must be submitted to the Cadillac WWTP by **April 1, 2023**.
3. **Cadillac Renewable Energy** is classified as a categorical industry (Power Production) for this discharge under EPA Pretreatment program standards. The sampling requirements are required by those standards and City of Cadillac Local Limits.

MANAGEMENT REQUIREMENTS OF USER

1. RESPONSIBILITY:

Mr. Chase Shepherd has been designated as the person responsible for all operations necessary to meet the requirements of this permit. Any change in designation must be submitted in writing to the City of Cadillac Utilities Department within 30 days of actual change.

2. CHANGE IN PROCESS AND/OR DISCHARGE:

The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized, shall constitute a violation of this permit. Any anticipated facility expansions or process change which will result in new, increased or different discharges must be reported to the City of Cadillac in writing at least 60 days prior to the change or expansion. Notification of such change or expansions must include a description of the change, names and chemical content of all new materials to be used, volume of additional wastewater to be discharged and plan drawings of process modifications. Failure to make this notification will constitute a violation of the permit.

3. MONITORING AND REPORTING REQUIREMENTS:

The City of Cadillac will require the user to do either of the following: 1)collect, analyze and report results of all wastewater discharge parameters listed in this permit or 2)stipulate that the City of Cadillac Utilities Department collect, analyze and report results of all wastewater parameters as listed in the permit. All cost for the above surveillance will be borne by the user. The City will complete the second option unless written notification that a private laboratory will be utilized by your facility is received within 30 days of the effective date of this permit.

4. NONTRANSFERABILITY:

In the event of any changes in facility ownership or control from which the permitted discharge emanates, the permittee shall notify the new owner or controller of the existence of this permit by letter, 30 days prior to the actual transfer of ownership or control. A copy of this letter shall be forwarded to the Cadillac Utilities Department to document such transfer. Failure to complete this requirement will result in permit noncompliance.

5. CIVIL AND CRIMINAL PENALTIES:

The City of Cadillac maintains the right and option to assess civil and criminal penalties for all cases of permit noncompliance as allowed in Chapter 42 of the City of Cadillac Ordinances.

6. VALIDITY:

All requirements specified prior to issuance of this permit shall remain in full effect unless otherwise noted by the City of Cadillac. Please note: we are in the process of renewing our IPP permit with the State. Once this process is complete, the State will issue the City a new permit with potentially new testing parameters, limits, and monitoring frequencies. If this happens, the City may issue your facility a new discharge permit, upholding the new standards, within the effective dates of this permit.

APPENDIX M: NON-DOMESTIC WASTEWATER SURVEY

Cadillac Wastewater Treatment Plant
1121 Plett Road
Cadillac, Michigan, 49601
(231) 775 - 2841

INDUSTRIAL PRETREATMENT PROGRAM
Nondomestic User Survey

I. COMPANY INFORMATION

Company Name: _____

Contact (Name & Title): _____ Tel: _____

Site Address: _____

Mailing Address (if different): _____

II. CATEGORY DETERMINATION

A. Unit Operations

Please check any of the following unit operations / processes which are performed at your facility:

- | | | |
|----|---|-------|
| 1. | Electroplating | _____ |
| 2. | Electroless Plating | _____ |
| 3. | Anodizing | _____ |
| 4. | Coating (phosphatizing, chromating, coloring) | _____ |
| 5. | Chemical etching and milling | _____ |
| 6. | Printed circuit board manufacturing | _____ |
| 7. | Leather Tanning: | _____ |
| 8. | Food Processing: | _____ |
| 9. | Other: _____ | _____ |

If you checked item numbers 1 through 7 in II.A. above, please also submit SDS/MSDS sheets for all chemicals stored onsite and used in your processes, and a plumbing or process flow diagram showing all wastewater streams.

Please state the Federal Standard Industrial Classification Number(s) (SIC) used for your facility:

B. Are any per- or poly-fluoroalkyl substances (PFAS) containing products or chemicals used or stored onsite? If so, describe its use:

C. What types of waste(s) are discharged to the sanitary sewer at this location?

Cadillac Wastewater Treatment Plant
1121 Plett Road
Cadillac, Michigan, 49601
(231) 775 - 2841

Please indicate the daily volume (gallons per day) for each type of discharge.

Sanitary	_____	Process Water	_____
Wash Water	_____	Scrubber Water	_____
Rinse Water	_____	Other	_____
Cooling Water	_____		

If batch discharges, describe:

Frequency of Discharge _____ Volume Discharged _____ gals

Duration of Discharge _____

Character of Wastewater _____

D. Describe your facility's sewer outlets to the Public sanitary sewer system

Location _____	Waste Discharged _____	Size _____
Location _____	Waste Discharged _____	Size _____
Location _____	Waste Discharged _____	Size _____

E. Do any outlets of your business discharge to storm drains? If so, where do the collection points originate and what areas contribute storm water to those lines?

III. ENVIRONMENTAL CONTROL PERMITS

Please indicate other environmental control permits held by or for your facility (DO NOT include permits regulating air quality control): _____

Does your facility have an air pollution control device which produces a discharge to the sewer?

Yes _____ No _____

IV. PRODUCTION INFORMATION

Nature of the operation: _____

Product(s): _____

Cadillac Wastewater Treatment Plant
1121 Plett Road
Cadillac, Michigan, 49601
(231) 775 - 2841

Number of days per week of operation: _____

Hours per day of operation: _____

Total number of all employees: _____

Is any of the enclosed information considered to be confidential: _____yes _____no

if yes, explain what and why (all requests for confidentiality will be process according to 40 CFR Part 2):__

Water Supply (% of total):

Municipal _____ Well _____ Other (explain) _____

Volumes of discharge:

Average Daily Flow _____ gallons per day

Maximum Daily Flow _____ gallons per day

Discharge flow is _____ Measured

_____ Estimated

If possible, please submit a schematic of each waste generating process including any pretreatment system for your facility's operations (flows can be estimated).

V. SPILL PREVENTION

(add extra pages if necessary)

List bulk materials stored on site (liquid/solids), including cleaning agents.

Material: _____ Volume: _____ Location in Plant: _____

Material: _____ Volume: _____ Location in Plant: _____

Material: _____ Volume: _____ Location in Plant: _____

Material: _____ Volume: _____ Location in Plant: _____

Material: _____ Volume: _____ Location in Plant: _____

Is separate secondary containment provided for bulk materials?

Yes _____ No _____ Some _____

VI. DISPOSAL PRACTICES

Does this facility have any other waste streams/residuals other than what is discharged into the Sanitary Sewer? _____Yes _____No

Cadillac Wastewater Treatment Plant
1121 Plett Road
Cadillac, Michigan, 49601
(231) 775 - 2841

If yes, list the material and the disposal method: _____

How do you dispose of spent chemicals (explain)? _____

_____ Volume Disposed of: _____

How do you dispose of precipitates and/or sludges (explain)? _____

_____ Volume Disposed of: _____

Do you have pretreatment for your wastes? _____ Yes _____ No

Type: _____

Size: _____

Frequency of Operation: _____

VII. SAMPLING AND ANALYSIS

Are sampling points available for each:

Process line _____ Yes _____ No

Outfall (discharge) _____ Yes _____ No

Do you sample your process discharge(s)? _____ Yes _____ No

Type of Sample? _____ Grab _____ Composite (indicate flow or time proportional)

Is a sampling vault and/or manhole provided? _____ Yes _____ No

Sampling Schedule (i.e. 24-hour, during working hours, every shift, etc.): _____

What laboratory analysis is run? Indicate whether run onsite or sent to 3rd party lab. _____

VIII. STATEMENT OF COMPLIANCE

This statement is to be made by a qualified environmental professional or (for the exempt category) by a responsible company official.

Cadillac Wastewater Treatment Plant
1121 Plett Road
Cadillac, Michigan, 49601
(231) 775 - 2841

I hereby certify that the EPA categorical pretreatment standards which apply to this company are being met on a consistent basis.

Yes _____ No _____ Exempt _____

Print Name: _____

Signature: _____ Date: _____

APPENDIX N: FOOD SERVICE ESTABLISHMENT SURVEY

INDUSTRIAL PRETREATMENT PROGRAM
Food Establishment Wastewater Survey

I. COMPANY INFORMATION

Company Name: _____

Contact (Name & Title): _____ Tel: _____

Site Address: _____

Mailing Address (if different): _____

II. TYPE OF ESTABLISHMENT

What type of Food Service Establishment is this? Circle the most appropriate choice(s):

Restaurant (dine-in)	Restaurant (take-out only)	Coffee Shop	Deli
Cafeteria	Bar / Pub	Market / Grocery	Commissary
Hotel	Food Manufacturer	Other (Describe):	

What type of food preparation is done at this facility?

Full Prep Minimal Prep No Prep

Number of days per week of operation: _____

Hours per day of operation: _____

Maximum Seating Capacity: _____

Estimated number of meals served per day: _____

III. KITCHEN EQUIPMENT

What type of tableware (e.g. plates, bowls, cups, flatware) does your facility use? Circle all that apply.

Re-usable Disposable Both

Does your establishment have any of the following equipment? Circle all that apply.

Automatic Dishwasher	Deep Fryer	Boiler
Garbage Grinder	Hot Grill	Rotisserie

IV. DRAINAGE FIXTURES

List the number of each type of fixture in your Food Service Establishment and the dimensions of each compartment/sink. Use additional sheets if needed to document all sinks and drains that may receive grease laden wastewater (exclude bathroom fixtures and dedicated hand sinks).

Number of 3-compartment sinks: _____

Compartment	Length (inches)	Width (inches)	Depth (inches)
1.			
2.			
3.			

Number of 2-compartment sinks: _____

Compartment	Length (inches)	Width (inches)	Depth (inches)
1.			
2.			

Number of pre-rinse sinks: _____

Length (inches)	Width (inches)	Depth (inches)

Number of prep sinks: _____

Length (inches)	Width (inches)	Depth (inches)

Number of floor sinks and floor drains: _____

Number of mop/utility sinks: _____

List any other sinks/drains in facility: _____

Does your facility have a grease trap or grease interceptor? _____

If yes, where is it located? _____

If yes, indicate the size/dimensions: _____

If yes, who cleans/services the grease trap/interceptor: _____

If yes, how frequently is the equipment cleaned/serviced: _____

How does your facility dispose of the following:

Solid grease (e.g grill scrapings, bacon grease, etc)? _____

Liquid grease (e.g fryer oil, etc)? _____

Food Scraps? _____

V. WASTEWATER USE

What types of waste(s) are discharged to the sanitary sewer at this location?

Please indicate the daily volume (gallons per day) for each type of discharge.

Sanitary _____

Process Water _____

Wash Water _____

Scrubber Water _____

Rinse Water _____

Other _____

Cooling Water _____

If batch discharges, describe:

Frequency of Discharge _____ Volume Discharged _____ gals

Duration of Discharge _____

Character of Wastewater _____

A. Describe your facility's sewer outlets to the Public sanitary sewer system

Location _____ Waste Discharged _____ Size _____

Location _____ Waste Discharged _____ Size _____

Location _____ Waste Discharged _____ Size _____

VI. SAMPLING AND ANALYSIS

Are sampling points available for each discharge location? _____ Yes _____ No

Do you sample your discharge(s)? _____ Yes _____ No

Type of Sample? _____ Grab _____ Composite (indicate flow or time proportional)

Is a sampling vault and/or manhole provided? _____ Yes _____ No

Sampling Schedule (i.e. 24-hour, during working hours, every shift, etc.): _____

What laboratory analysis is run? Indicate whether run onsite or sent to 3rd party lab. _____

APPENDIX O: REQUIREMENTS FOR WASTEWATER SAMPLING

REQUIREMENTS FOR WASTEWATER SAMPLING

1. Sampling

- a. **Types of Samples:** Samples collected as a part of the scheduled monitoring will normally consist of composite samples collected over a 24- hour period. This will enable samples to be collected which correspond to possible waste variations during shift operations. The composite samples will be made up of equal sample volumes collected at intervals of 60 minutes. For sampling of certain parameters which require discrete samples for analysis, including total volatile organics and fats, grease and oil, individual grab samples will be collected as a part of the scheduled monitoring.

Samples collected as a part of the unscheduled monitoring program will normally be grab samples.

It should be noted that certain types of analyses; such as low-level mercury and PFAS, have specific sampling procedures that must be followed.

- b. **Sample Volumes:** The volumes of sample to be collected will be determined by the analyses to be made. Recommended sample volumes for the various pollutant parameters are attached. These volumes should be confirmed by the laboratory during the actual analysis.

During sample collection, the POTW will collect adequate volumes to permit the samples to be split with User. This will permit User to have independent analyses run by a qualified laboratory if desired. Encouraging User to conduct independent analyses on the split samples will serve as a means of cross-checking analytical results and will assist in avoiding possible questions regarding test results.

- c. **Sample Containers and Preservation:** Recommended sample containers, preservation techniques, and maximum sample holding times have been developed by EPA for sampling conducted as a part of the IPP.

For composite samples which require multiple preservatives, the samples should be preserved at 4°C until compositing and sample splitting is completed.

- d. **Sample Identification:** At the time of sample collection, a tag will be placed on the sample container to identify the sample. Information to be recorded on the identification tag is:

- i. User name and address
- ii. Date, time, and location of sample collection
- iii. Analyses to be performed
- iv. Preservatives added
- v. Person collecting sample
- vi. Sample container identification number

- e. **Safety Precautions:** During sample collection, it is important that personnel observe all safety regulations of the POTW as well as those of the specific user being sampled.

Safety precautions to be taken include:

- i. Prior to conducting sampling operations on the user's property, information regarding potential plant hazards and specific plant safety requirements should be obtained from an appropriate plant official.
- ii. When working in traffic areas, warning signs and barriers should be used.

- iii. Prior to entering manholes or similarly confined areas, the area should be ventilated, and the atmosphere tested for explosive gases, hydrogen sulfide, and oxygen levels. The atmosphere should continue to be monitored while working in the area.
 - iv. When working a manhole or similar below-grade structures, one person shall remain at the surface to tend the lifeline of the person in the manhole.
 - v. Suitable protective clothing should be worn during sample collection to prevent direct contact of the skin with the waste stream. Safety harnesses should be used when working in manholes.
- f. **Chain-of-Custody Procedures:** Samples and resultant data collected as a part of the IPP monitoring may form the basis for enforcement measures and possibly legal proceedings. Therefore, it is very important that the integrity of the data be well established. Accordingly, documentation of the chain-of-custody of samples must be accurately kept. It is recommended that a chain-of-custody form similar to that presented in Appendix S be used by the POTW sampling personnel. This form should accompany the sample at all times.

Samples which are collected should be stored in a locked and secure area for which access is restricted to authorized personnel only.

APPENDIX P: REQUIREMENTS FOR WASTEWATER FLOW METERING

REQUIREMENTS FOR WASTEWATER FLOW METERING

Concentration based local limitations have been developed for nondomestic users of the Cadillac WWTP. These limits are based on the maximum pollutant load allowed to be discharged to the WWTP. An assessment of the pollutant load from each user requires accurate flow information. **Flow volume may be measured or estimated**, depending on circumstances such as, but not limited to, the ability to provide an accurate estimate of flow; flow variability, categorical standard requirements; use of mass-based limits; or combined waste streams.

For those not required to provide direct measurement of flows, indirect determination of waste stream flows will provide useful information in estimating the total quantity of pollutants entering the system from specific users.

Generally, an estimate of the total amount of wastewater discharged can be obtained from, and considered equal to, the total water used. Nondomestic wastewater flow would then be the difference between the total water used and the estimated amount of sanitary water generated. When wastewater flows are measured by the individual user, these records can be utilized if appropriate calibration has been performed and certified. If it is found that specific flow measurements are desirable, weirs or flumes with appropriate recording instruments, as outlined below, will be installed during the sample collection period.

1. Metering shall be done utilizing a Palmer-Bowlus Flume, Parshall Flume, or any type weir (V notch or Cipolletti) as approved by the City. Flumes and weirs shall be sized with respect to the maximum flow rare anticipated. The flume or weir shall be made of materials that will not corrode or deteriorate and shall be securely fastened in place so that no leakage occurs under or around it.
2. The flow meter shall be for metering open channel flows and be capable of totaling and recording flow in standard units. The flow meter may be of the float, bubbler, or other type as approved by the City.
3. All junction, receptacle, and switch boxes shall be suitable for installations underground in manholes. All wiring for permanent flow metering equipment located in the manhole shall be installed in water-tight conduit suitable for such location. All electrical work shall conform to the current edition of the National Electrical Code and any applicable local codes.
4. Calibration of the metering equipment shall be required at least semi-annually or as deemed necessary by the City. Certification of the calibration shall be submitted to the City.

APPENDIX Q: MONITORING MANHOLE SPECIFICATIONS

PART 1 - GENERAL

1.01 DESCRIPTION

- A. This section includes the work required for monitoring manhole structures and appurtenant work in the City of Cadillac. All monitoring manhole structures are to be located on User's property, unless otherwise permitted and kept accessible to City personnel by the user which the structure is serving.
- B. Job Conditions:
 - 1. Maintain existing sewer system operational.
 - 2. Do not bypass wastewater to ground or surface waters.

PART 2 - PRODUCTS

2.01 MONITORING MANHOLES

- A. Manholes shall be reinforced precast units.
- B. Precast Units: ASTM C76 Class III, or ASTM C478, modified for "o" ring gaskets. Pipe: AWWA C151.
 - 1. Pipe Openings: Provide flexible, watertight rubber boot using mechanically compressed flexible joint re-seal, link-seal, Pressure Wedge II, Kor-N-Seal, or equal. Conform to ASTM C923. Minimum six-inch diameter through structure.
- C. Concrete Brick: ASTM C55, Grade N-
- D. Grade Rings: ASTM C478.
- E. Mortar: ASTM C270: 1 part Portland cement, 1 part lime and 3 parts sand by volume.
- F. Manhole Steps:
 - 1. Plastic with 3/8-inch steel rod reinforcement.
 - 2. Dimensions: 10-inch deep by 10-inch wide, 5-inch tread depth.
- G. Castings as Specified:
 - 1. Standard Manhole Castings: East Jordan 1120Z1 cover or Neenah R- 1764 - 2 hole cover.
 - 2. Watertight Manhole Castings: East Jordan 1040 ZPT or Neenah R- 1916 F.
 - 3. Where sewer elevation is less than 5 feet below grade, the manhole cover shall be Neenah R-6662-PP, East Jordan 8313, or approved equal.
- H. Bituminous Waterproofing: ASTM D449.
- I. Cement Waterproofing: Masonry filler.

PART 3 - EXECUTION

3.01 PREPARATION:

- A. Manholes:

MONITORING MANHOLES

1. General: To be constructed in accordance with the following Details "Monitoring Manhole Type 1, and Monitoring Manhole Type 2."
2. Base bedding: Provide 4" pea stone with full and even bearing in impervious soils or wet conditions. Otherwise provide on undisturbed frost-free dry subgrade.
3. Fill joint space completely and trowel between sections of precast units.
4. Provide casting grade setting as follows:
 - a. Existing pavement: Finished grade.
 - b. Gravel or lawn grade: 4 inches below.
 - c. Unpaved areas: Finished grade.
5. Provide waterproofing on ASTM C478 units using one of the following methods:
 - a. Bituminous: Apply 1 gallon per 100 s.f. to outside free of holidays and open pin holes.
 - b. Cement: Apply masonry filler to outside by brushing on 2 coats, each minimum of 2 lbs. per sq. yd.
6. When required, a 115 VAC, 60 Hz, single phase 20-amp circuit shall be provided in the manhole. It shall be terminated with a duplex receptacle in a wall mount Nema 4x enclosure no lower than 3 feet above bench grade. All electrical work will conform to the current edition of the National Electrical Code, specifically Article 501, Class I Locations and all referenced sections.

PART 4 - MAINTENANCE RESPONSIBILITIES

- A. General:
 1. Monitoring manholes are to be kept accessible and clean, as directed by City personnel.
 2. Proper safety precautions are to be employed by any person entering a monitoring manhole.

END OF SECTION

APPENDIX R: IN-PLANT INSPECTION FORM

City of Cadillac Industrial User Inspection Form

I. Industrial User Background Information

(Facility Name)

(Facility Address)

(IPP Contact Person)

(Title)

(Phone Number)

(Email)

(State Permit #)

(City Permit #)

(Expiration Date)

II. Inspection Information

(Inspector's Name)

(Title)

(Others Present at Inspection)

Type of Inspection: _____

Date/Time of Inspection: _____

Reason for Inspection: _____

Scheduled: _____

Unannounced: _____

New Company: _____

Spill: _____

Complaint: _____

Violation: _____

Routine: _____

Sampling: _____

Non-Sampling: _____

Annual: _____

Follow-up: _____

Other: _____

Date of Last Inspection: _____

City of Cadillac
Industrial User Inspection Form

III. General Industrial User Information

A. Nature of Business: _____

B. Number of employees: _____

C. Schedule of Operation: _____ Hours/day _____ Days/week
_____ Shifts/day _____ Months/year

D. Schedule shutdown periods: _____

E. Standard Industrial Classification (SIC) codes: _____

F. Is this a Significant User? _____ Yes _____ No

G. Criteria for this determination: _____

H. Is this a Categorical User? _____ Yes _____ No

Category(s) – if applicable: _____

Subpart(s) – if applicable: _____

I. Is this an existing or new source? _____

J. If a categorical IU, has the Baseline Monitoring Report (BMR) been submitted?

_____ Yes _____ No

K. Does the BMR include all the information required in 40 CFR 403.12(B)?

_____ Yes _____ No

L. Is the industrial user subject to any of the following:

- | | | |
|--|-----------|----------|
| 1. Combined wastestream formula? | _____ Yes | _____ No |
| 2. Production-based categorical standards? | _____ Yes | _____ No |
| 3. Total Toxic Organic (TTO) limits? | _____ Yes | _____ No |
| 4. Solvent Management Plans? | _____ Yes | _____ No |

M. Is there proper implementation of the above items that the IU is subject to?

_____ Yes _____ No

Comments: _____

City of Cadillac
Industrial User Inspection Form

III. General Industrial User Information (continued)

N. **Wastewater Discharged to POTW:**

	Flowrates	
	Average (gals/day)	Maximum (gals/day)
1. Process waters		
2. Sanitary waters		
3. Non-contact cooling water		
4. Boiler blowdown		
5. Others: (list)		

Give verifiable estimates if necessary – indicate whether flow rates are Estimated (E) or Measured (M)

O. How is flow measured? _____

P. Are flow measurement devices properly installed and maintained?
_____ Yes _____ No

Q. If flow measured at proper locations? (i.e. Influent flow is measured before all return lines & effluent flow is measured after all return lines?)
_____ Yes _____ No

R. Water Supply(%)? _____Municipal _____Well _____Other

IV. Wastewater Pretreatment Facility

A. Is there pretreatment at the facility? _____Yes _____No

B. Brief description of pretreatment methods? _____

C. Brief description of pretreatment facilities? _____

City of Cadillac
Industrial User Inspection Form

D. List wastewater that are treated in wastewater treatment system: _____

E. Design flow for pretreatment system: _____ gallons/day

F. Are all treatment units, other than back-up units in service?

_____ Yes _____ No

If no, why? (on standby, broken down, etc.) _____

G. Is there a full-time qualified operator?

_____ Yes _____ No

H. Are on-the-shelf stock replacement parts available for critical components (e.g. pumps)?

_____ Yes _____ No

I. Are all treatment units, other than back-up units in service?

_____ Yes _____ No

J. Are treatment chemicals for use in the wastewater treatment system readily available?

_____ Yes _____ No

K. Is there an O&M Manual?

_____ Yes _____ No

L. Is there a potential for bypasses?

_____ Yes _____ No

V. Solid Waste Generation & Disposal

A. Is there a sludge generated due to the treatment of wastewater?

_____ Yes _____ No

B. Waste characterization of sludge: _____

C. Sludge disposal method: _____

City of Cadillac
Industrial User Inspection Form

D. Solid Wastes, Sludges, and Residuals:

Describe Non-Hazardous Waste	Name of Transportation Company	Disposal Destination

E. Does this facility generate hazardous materials or waste?

_____ Yes _____ No

F. Describe hazardous waste: _____

G. Hazardous waste disposal: _____

VI. Storage Areas

A. Is there pretreatment at the facility? _____ Yes _____ No

B. List of chemicals stored onsite:

Brand Name & Common Name	MSDS Available?	Reactive?	Contained?

C. Description of the chemical storage onsite: _____

D. Are there floor drains within the chemical storage area?

_____ Yes _____ No

City of Cadillac
Industrial User Inspection Form

If yes, where do the floor drains discharge to (sanitary, storm, etc.?) _____

E. Are there wastes stored on site? _____ Yes _____ No

F. Are there floor drains within the waste storage area?
_____ Yes _____ No

If yes, where do the floor drains discharge to (sanitary, storm, etc.?) _____

VII. Production Areas

A. Are there floor drains in the production area? _____ Yes _____ No

VIII. Slug Discharge Control Plan

A. Does the industrial user need a slug discharge control pursuant to 40 CFR 403.8(f)(2)(v)?
_____ Yes _____ No

If yes, has the industrial user submitted a slug discharge control plan?
_____ Yes _____ No

If yes, does the plan have the minimum elements required in 40 CFR 403.8(f)(2)(v)?
_____ Yes _____ No

B. Do the emergency spill or discharge procedures include notification policies?
_____ Yes _____ No
To the control authority? _____ Yes _____ No
To the approved authority? _____ Yes _____ No

C. Has the industrial user been responsible for any slug discharges or spills since the last inspection date? _____ Yes _____ No

If yes, when? _____
Describe: _____

IX. Industrial User Sampling Procedures

A. Does the industrial user self-monitor? _____ Yes _____ No
B. Are analytical results available in file? _____ Yes _____ No
For at least three years? _____ Yes _____ No

City of Cadillac
Industrial User Inspection Form

C. Is frequency the same as required in permit?

_____ Yes _____ No

If different, how? _____

D. Are sampling techniques according to 40 CFR part 136 or some other approved method?

_____ Yes _____ No

E. Are sample locations and type of sample the same as specified in the permit?

_____ Yes _____ No

F. Does the control authority and industrial user both have access to sampling locations?

_____ Yes _____ No

G. Is the pH a grab sample? _____ Yes _____ No

H. Where does the IU have laboratory work done?

_____ Onsite _____ Offsite

I. What parameters are done onsite? _____

J. What parameters are done offsite? _____

K. Name of offsite laboratory: _____

Address: _____

Phone: _____

Contact person: _____

L. Is a QA/QC program implemented for sampling?

_____ Yes _____ No

For analysis? _____ Yes _____ No

M. Description of AQ/QC program (blanks, duplicates, splits, unknowns, etc.)

City of Cadillac
Industrial User Inspection Form

X. Wastestream Characteristics

- A. Observe and describe the characteristics of the wastestream being discharged by the IU to the sanitary sewer? _____

- B. Time of observation: _____
- C. List pollutants that come in direct contact with the water that is discharged to the POTW:

- D. List pollutants that do not come in direct contact with the water that is discharged to the POTW, but has the potential to enter the wastewater due to spills, machinery malfunctions or other similar problems: _____

XI. General & Comments

- A. Is the facility well maintained? _____Yes _____No
- B. Is any of the information in this form confidential information pursuant to 40 CFR 403.14?
_____Yes _____No
- C. Has the IU notified the POTW of substances discharged to the POTW that otherwise disposed of would be a hazardous waste under 40 CFR part 261 as required in 40 CFR 403.12 (p)? _____Yes _____No
- D. Additional comments about the inspection: _____

XII. Schematic Drawing (attached)

On an attached page provide a schematic drawing of the industrial user's facility. The schematic drawing should include, but not be limited to, the following:

1. Locations of process equipment, wastewater treatment, chemical and waste storage areas.
2. Water flow throughout the facility (replete with direction)
3. Locations of sampling points.
4. Locations of floor drains.
5. Locations of discharge points.

This drawing only has to be submitted once, however it should be continually updated if any changes, additions, deletions occur to any of the above items required in the schematic drawing.

APPENDIX S: SAFETY CONSIDERATIONS DURING SAMPLING AND INSPECTION

City of Cadillac
CONFINED SPACE ENTRY POLICY

A CONFINED SPACE IS A SPACE WHICH HAS ANY ONE OF THE FOLLOWING CHARACTERISTICS:

- LIMITED OPENINGS FOR ENTRY AND EXIT; SMALL OPENINGS RESTRICT MOVEMENT OF PROTECTIVE AND RESCUE EQUIPMENT AND RESCUE PERSONNEL - SPACES WITH LARGE OPENINGS SUCH AS OPEN-TOPPED VESSELS WHICH REQUIRE ENTRY BY LADDER OR HOIST MAY COMPLICATE ESCAPE OR RESCUE.
- UNFAVORABLE NATURAL VENTILATION; DEADLY, EXPLOSIVE, OXYGEN DEFICIENT OR OXYGEN RICH GASES COULD BE TRAPPED INSIDE - SOME GASES ARE HEAVIER OR LIGHTER THAN AIR AND MAY ACCUMULATE AT THE TOP OR BOTTOM OF A CONFINED SPACE.
- NOT DESIGNED FOR CONTINUOUS WORKER OCCUPANCY; MOST CONFINED SPACES ARE DESIGNED FOR SPECIFIC PURPOSES OTHER THAN WORKER OCCUPANCY MAKING ENTRY DIFFICULT AND DANGEROUS.

EXAMPLES OF CONFINED SPACES ARE: BOILER, CUPOLA, DEGREASER, FURNACE, PIPELINE, PIT, PUMPING STATION, REACTION OR PROCESS VESSEL, SEPTIC TANK, SEWAGE DIGESTER, SEWER, SILO, STORAGE TANK, SHIP'S HOLD, UTILITY VAULT, VAT OR SIMILAR TYPE ENCLOSURE

GAS DETECTION EQUIPMENT SHALL BE IN CONTINUOUS USE BY ANY EMPLOYEE ENTERING A CONFINED SPACE;

MANY TOXIC GASES AND VAPORS ARE INVISIBLE AND HAVE NO ODOR - THEY MAY BE UNDETECTABLE BY HUMAN SENSES AND MAY ACCUMULATE HIGH OR LOW IN A CONFINED SPACE DEPENDING ON THE WEIGHT OF THE SUBSTANCE

VENTILATION SHALL BE ACHIEVED BEFORE ENTRANCE TO A CONFINED SPACE IS PERMITTED AND WILL CONTINUE FOR THE DURATION OF ANY WORK CONDITION WHICH COULD BE SUSPECTED OF PRODUCING A HAZARDOUS ATMOSPHERE

PERMIT-REQUIRED CONFINED SPACE

A. SCOPE AND APPLICATION

This section contains requirements for practices and procedures to protect employees in general industry from the hazards of entry into permit-required confined spaces. This section does not apply to agriculture, to construction, or to shipyard employment (Parts 1928, 1926, and 1915 of this chapter, respectively).

B. DEFINITIONS

Acceptable entry conditions means the conditions that must exist in a permit space to allow entry and to ensure that employees involved with a permit-required confined space entry can safely enter into and work within the space.

Attendant means an individual stationed outside one or more permit spaces who monitors the authorized entrants and who performs all attendant's duties assigned in the employer's permit space program.

Authorized entrant means an employee who is authorized by the employer to enter a permit space.

Blanking or blinding means the absolute closure of a pipe, line, or duct by the fastening of a solid plate (such as a spectacle blind or a skillet blind) that completely covers the bore and that is capable of withstanding the maximum pressure of the pipe, line, or duct with no leakage beyond the plate.

Confined space means a space that:

- (1) Is large enough and so configured that an employee can bodily enter and perform assigned work; and
- (2) Has limited or restricted means for entry or exit (for example, tanks, vessels, silos, storage bins, hoppers, vaults, and pits are spaces that may have limited means of entry); and
- (3) Is not designed for continuous employee occupancy.

Double block and bleed means the closure of a line, duct, or pipe by closing and locking or tagging two in-line valves and by opening and locking or tagging a drain or vent valve in the line between the two closed valves.

Emergency means any occurrence (including any failure of hazard control or monitoring equipment) or event internal or external to the permit space that could endanger entrants.

Engulfment means the surrounding and effective capture of a person by a liquid or finely divided solid substance that can be aspirated to cause death by filling or plugging the respiratory system or that can exert enough force on the body to cause death by strangulation, constriction, or crushing.

Entry means the action by which a person passes through an opening into a permit required confined space. Entry includes ensuing work activities in that space and is considered to have occurred as soon as any part of the entrant's body breaks the plane of an opening into the space.

Entry permit (permit) means the written or printed document that is provided by the employer to allow and control entry into a permit space and that contains the information specified in paragraph (f) of this section.

Entry supervisor means the person (such as the employer, foreman, or crew chief) responsible for determining if acceptable entry conditions are present at a permit space where entry is planned, for authorizing entry and overseeing entry operations, and for terminating entry as required by this section.

Note: An entry supervisor also may serve as an attendant or as an authorized entrant, as long as that person is trained and equipped as required by this section for each role he or she fills. Also, the duties of entry supervisor may be passed from one individual to another during the course of an entry operation.

Hazardous atmosphere means an atmosphere that may expose employees to the risk of death, incapacitation, impairment of ability to self-rescue (that is, escape unaided from a permit space), injury or acute illness from one or more of the following causes:

- (1) Flammable gas, vapor, or mist in excess of 10 percent of its lower flammable limit (LFL);
- (2) Airborne combustible dust at a concentration that meets or exceeds its LFL;

Note: This concentration may be approximated as a condition in which the dust obscures vision at a distance of 5 feet (1.52 m) or less. Atmospheric oxygen concentration below 19.5 percent or above 23.5 percent; Atmospheric concentration of any substance for which a dose or a permissible exposure limit is published in Subpart G, Occupational Health and Environmental Control, or in Subpart Z, Toxic and Hazardous Substances, of this part and which could result in employee exposure in excess of its dose or permissible exposure limit;

Note: An atmospheric concentration of any substance that is not capable of causing death, incapacitation, impairment of mobility to self-rescue, injury, or acute illness due to its health effects is not covered by this provision.

- (5) Any other atmospheric condition that is immediately dangerous to life or health.

Note: For air contaminants for which OSHA has not determined a dose or permissible exposure limit, other sources of information, such as Material Safety Data Sheets that comply with the Hazard Communication Standard 1910.1200 of this part published information, and internal documents can provide guidance in establishing acceptable atmospheric conditions.

Hot work permit means the employer's written authorization to perform operations (for example, riveting, welding, cutting, burning, and heating) capable of providing a source of ignition.

Immediately dangerous to life or health (IDLH) means any condition that poses an immediate or delayed threat to life or that would cause irreversible adverse health effects or interfere with an individual's ability to escape unaided from a permit space.

Note: Some material- hydrogen fluoride gas and cadmium vapor, for example -may produce immediate transient effects that, even if severe, may pass without medical attention, but are followed by sudden, possibly fatal collapse 12 -72 hours after exposure. The victim "feels normal" from recovery from transient effects until collapse. Such materials in hazardous quantities are considered to be "immediately" dangerous to life or health. Inerting means the displacement of the atmosphere in a permit space by a noncombustible gas (such as nitrogen) to such an extent that the resulting atmosphere is noncombustible.

Note: This procedure produces a JDLH oxygen-deficient atmosphere. Isolation means the process by which a permit space is removed from service and completely protected against the release of energy and material into the space by such means as: blanking or blinding; misaligning or removing sections of lines, pipes, or ducts; a double block and bleed system; lockout or tag out of all sources of energy; or blocking or disconnecting all mechanical linkages.

Line breaking means the intentional opening of a pipe, line, or duet that is or has been carrying flammable, corrosive, or toxic material, an inert gas, or any fluid at a volume, pressure, or temperature capable of causing injury.

Non-permit confined space means a confined space that does not contain or, with respect to atmospheric hazards, have the potential to contain any hazard capable of causing death or serious physical harm.

Oxygen deficient atmosphere means an atmosphere containing less than 19.5 percent oxygen by volume.

Oxygen enriched atmosphere means an atmosphere containing more than 23.5 percent oxygen by volume.

Permit required confined space (permit space) means a confined space that has one or more of the following characteristics:

- (1) Contains or has the potential to contain a hazardous atmosphere;
- (2) Contains a material that has the potential for engulfing an entrant;
- (3) Has an internal configuration such that an entrant could be trapped or asphyxiated by inwardly converging walls or by a floor which slopes downward and tapers to a smaller cross section; or
- (4) Contains any other recognized serious safety or health hazard.

Permit-required confined space program (permit space program) means the employer's overall program for controlling, and, where appropriate, for protecting employees from permit space hazards and for regulating employee entry into permit spaces.

Permit system means the employer's written procedure for preparing and issuing permits for entry and for returning the permit space to service following termination of entry.

Prohibited condition means any condition in a permit space that is not allowed by the permit during the period when entry is authorized.

Rescue service means the personnel designated to rescue employees from permit spaces.

Retrieval system means the equipment (including a retrieval line, chest or full body harness, wristlets, if appropriate, and a liking device or anchor) used for non-entry rescue of persons from permit spaces.

Testing means the process by which the hazards that may confront entrants of a permit space are identified and evaluated. Testing includes specifying the tests that are to be performed in the permit space.

Note: Testing enables employers both to devise and implement adequate control measures for the protection of authorized entrants and to determine if acceptable entry conditions are present immediately prior to and during entry.

C. GENERAL REQUIREMENTS

1. The employer shall evaluate the workplace to determine if any spaces are permit-required confined spaces.

Note: Proper application of the decision flow chart in Appendix A to 1019.146 would facilitate compliance with this requirement.

2. If the workplace contains permit spaces, the employer shall inform exposed employees, by posting danger signs or by any other equally effective means, of the existence and location of and the danger posed by the permit spaces.

Note: A sign reading "DANGER - PERMIT-REQUIRED CONFINED SPACE, DO NOT ENTER" or using other similar language would satisfy the requirement for a sign.

3. If the employer decides that its employees will not enter permit spaces, the employer shall take effective measures to prevent its employees from entering the permit spaces and shall comply with paragraphs (c)(1), (c)(2), (c)(6), and (c)(8) of this section.

4. If the employer- decides that its employees will enter permit spaces, the employer shall develop and implement a written permit space entry program that complies with this section. The written program shall be available for inspection by employees and their authorized representatives.

5. An employer may use the alternate procedures specified in paragraph (c)(5)(ii) of this section for entering a permit space under the conditions set forth in paragraph (c)(5)(i) of this section.

(i) An employer whose employees enter a permit space need not comply with paragraphs (d) through (f) and (h) through (k) of this section, provided that:

(A) The employer can demonstrate that the only hazard posed by the permit space is an actual or potential hazardous atmosphere; (B) The employer can demonstrate that continuous forced air Ventilation alone is sufficient to maintain that the permit space is safe for entry;

(C) The employer develops monitoring and inspection data that supports the demonstrations required by paragraphs (c)(5)(i)(A) and (c)(5)(i)(B) of this section;

(D) If an initial entry of the permit space is necessary to obtain the data required by paragraph (c)(5)(i)(C) of this section, the entry is performed in compliance with paragraphs (d) through (k) of this section;

(E) The determinations and supporting data required by paragraphs (c)(5)(i)(A), (c)(5)(i)(B), and (c)(5)(i)(C) of this section are documented by the employer and are made available to each

employee who enters the permit space under the terms of paragraph (c)(5) of this section; and

(F) Entry into the permit space under the terms of paragraph (c)(5)(i) of this section is performed in accordance with the requirements of paragraph (c)(5)(ii) of this section.

Note: See paragraph (C)(7) of this section for reclassification of a permit space after all hazards within the space have been eliminated (ii) The following requirements apply to entry into permit spaces that meet the conditions set forth in paragraph (c)(5)(i) of this section.

(A) Any conditions making it unsafe to remove an entrance cover shall be eliminated before the cover is removed.

(B) When entrance covers are removed, the opening shall be promptly guarded by a railing, temporary cover, or other temporary barrier that will prevent an accidental fall through the opening and that will protect each employee working in the space from foreign objects entering the space.

(C) Before an employee enters the space, the internal atmosphere shall be tested, with a calibrated direct-reading instrument, for the following conditions in the order given:

(1) Oxygen content,

(2) Flammable gases and vapors, and

(3) Potential toxic air contaminants.

(D) There may be no hazardous atmosphere within the space whenever any employee is inside the space.

(E) Continuous forced air ventilation shall be used as follows:

(1) An employee may not enter the space until the forced air ventilation has eliminated any hazardous atmosphere;

(2) The forced air ventilation shall be so directed as to ventilate the immediate areas where an employee is or will be present within the space and shall continue until all employees have left the space;

(3) The air supply for the forced air ventilation shall be from a clean source and may not increase the hazards in the space.

(F) The atmosphere within the space shall be periodically tested as necessary to ensure that the continuous forced air ventilation is preventing the accumulation of a hazardous atmosphere.

(G) If a hazardous atmosphere is detected during entry:

(1) Each employee shall leave the space immediately;

(2) The space shall be evaluated to determine how the hazardous atmosphere developed; and

(3) Measures shall be implemented to protect employees from the hazardous atmosphere before any subsequent entry takes place.

(H) The employer shall verify that the space is safe for entry and that the measures required by paragraph (c)(5)(ii) of this section have been taken, through a written certification that contains the date, the location of the space, and the signature of the person providing the certification. The certification shall be made before entry and shall be made available to each employee entering the space.

(6) When there are changes in the use or configuration of a non-permit confined space that might increase the hazards to entrants, the employer shall reevaluate that space and, if necessary, reclassify it as a permit-required confined space.

(7) A space classified by the employer as a permit required confined space may be reclassified as a non-permit confined space under the following procedures:

(i) If the permit space poses no actual or potential atmospheric hazards and if all hazards within the space are eliminated without entry into the space, the permit space may be reclassified as a non-permit confined space for as long as the non-atmospheric hazards remain eliminated.

(ii) If it is necessary to enter the permit space to eliminate hazards, such entry shall be performed under paragraphs (d) through (k) of this section. If testing and inspection during that entry demonstrate that the hazards within the permit space have been eliminated, the permit space may be reclassified as a non-permit confined space for as long as the hazards remain eliminated.

Note: Control of atmospheric hazards through forced air ventilation does not constitute elimination of the hazards. Paragraph (c)(5) covers permit space entry where the employer can demonstrate that forced air ventilation alone will control all hazards in the space. The employer shall document the basis for determining that all hazards in a permit space have been eliminated, through a certification that contains the date, the location of the space, and the signature of the person making the determination. The certification shall be made available to each employee entering the space.

(iv) If a hazard arises within a permit space that has been declassified to a non-permit space under paragraph (c)(7) of this section, each employee in the space shall exit the space. The employer shall then reevaluate the space and determine whether it must be reclassified as a permit space, in accordance with other applicable provisions of this section.

(8) When an employer (host employer) arranges to have employees of another employer (contractor) perform work that involves permit space entry, the host employer shall:

(i) Inform the contractor that the workplace contains permit spaces and that permit space entry is allowed only through compliance with a permit space program meeting the requirements of this section; Apprise the contractor of the elements, including the hazards identified and the host employer's experience with the space, that make the space in question a permit space; Apprise the contractor of any precautions or procedures that the host employer has implemented for the protection of employees in or near permit spaces where contractor personnel will be working;

(iv) Coordinate entry operations with the contractor, when both host employer personnel and contractor personnel will be working in or near permit spaces, as required by paragraph (d)(1) of this section; and

(v) Debrief the contractor at the conclusion of the entry operations regarding the permit space program followed and regarding any hazards confronted or created in permit spaces during entry operations.

(9) In addition to complying with the permit space requirements that apply to all employers, each contractor who is retained to perform permit space entry operations shall:

(i) Obtain any available information regarding permit space hazards and entry operations from the host employer;

(ii) Coordinate entry operations with the host employer, when both host employer personnel and contractor personnel will be working in or near permit spaces, as required by paragraph (d)(1) of this section; and

(iii) Inform the host employer of the permit space program that the contractor will follow and of any hazards confronted or created in permit spaces, either through a debriefing or during the entry operation.

(d) PERMIT-REQUIRED CONFINED SPACE PROGRAM

Under the permit-required confined space program required by paragraph (c)(4) of this section, the employer shall:

- (1) Implement the measures necessary to prevent unauthorized entry;
- (2) Identify and evaluate the hazards of permit spaces before employees enter them;
- (3) Develop and implement the means, procedures, and practices necessary for safe permit space entry operations, including, but not limited to, the following:
 - (i) Specifying acceptable entry conditions;
 - (ii) Isolating the permit space;
 - (iii) Purging, inerting, flushing, or ventilating the permit space as necessary to eliminate or control atmospheric hazards;
 - (iv) Providing pedestrian, vehicle, or other barriers as necessary to protect entrants from external hazards; and
 - (v) Verifying that conditions in the permit space are acceptable for entry throughout the duration of an authorized entry.

(4) Provide the following equipment (specified in paragraphs (d)(4)(i) through (d)(4)(ix) of this section) at no cost to employees, maintain that equipment properly, and ensure that employees use that equipment properly:

- (i) Testing and monitoring equipment needed to comply with paragraph (d)(5) of this section;
 - (ii) Ventilation equipment needed to obtain acceptable entry conditions;
 - (iii) Communications equipment necessary for compliance with paragraphs (h)(3) and (i)(5) of this section;
 - (iv) Personal protective equipment insofar as feasible engineering and work practice controls does not adequately protect employees;
 - (v) Lighting equipment needed to enable employees to see well enough to work safely and to exit the space quickly in an emergency;
 - (vi) Barriers and shields as required by paragraph (d)(3)(iv) of this section;
 - (vii) Equipment, such as ladders, needed for safe ingress and egress by authorized entrants;
 - (viii) Rescue and emergency equipment needed to comply with paragraph (d)(9) of this section, except to the extent that the equipment is provided by rescue services; and
 - (ix) Any other equipment necessary for safe entry into and rescue from permit spaces.
- (5) Evaluate permit space conditions as follows when entry operations are conducted:
- (i) Test conditions in the permit space to determine if acceptable entry conditions exist before entry is authorized to begin, except that, if isolation of the space is infeasible because the space is large or is part of a continuous system (such as a sewer), pre-entry testing shall be performed to the extent feasible before entry is authorized and, if entry is authorized, entry conditions shall be continuously monitored of the areas where authorized entrants are working;
 - (ii) Test or monitor the permit space as necessary to determine if acceptable entry conditions are being maintained during the course of entry operations; and
 - (iii) When testing for atmospheric hazards, test first for oxygen, then for combustible gases and vapors, and then for toxic gases and vapors.

Note: Atmospheric testing conducted in accordance with Appendix B to 1910.146 would be considered as satisfying the requirements of this paragraph. For permit space operations in sewers, atmospheric testing conducted in accordance with Appendix B, as supplemented by Appendix E to 1910.146, would be considered as satisfying the requirements of this paragraph.

(6) Provide at least one attendant outside the permit space into which entry is authorized for the duration of entry operations;

Note: Attendants may be assigned to monitor more than one permit space provided the duties described in paragraph (i) of this section can be effectively performed for each permit space that is monitored. Likewise, attendants may be stationed at any location outside the permit space to be monitored as long as the duties described in paragraph (i) of this section can be effectively performed for each permit space that is monitored.

(7) If multiple spaces are to be monitored by a single attendant, include in the permit program the means and procedures to enable the attendant to respond to an emergency affecting one or more of the permit spaces being monitored without distraction from the attendant's responsibilities under paragraph (i) of this section;

(8) Designate the persons who are to have active roles (as, for example, authorized entrants, attendants, entry supervisors, or persons who test or monitor the atmosphere in a permit space) in entry operations, identify the duties of each such employee, and provide each such employee with the training required by paragraph (g) of this section;

(9) Develop and implement procedures for summoning rescue and emergency services, for rescuing entrants from permit spaces, for providing necessary emergency services to rescued employees, and for preventing unauthorized personnel from attempting a rescue;

(10) Develop and implement a system for the preparation, issuance, use, and cancellation of entry permits as required by this section;

(11) Develop and implement procedures to coordinate entry operations when employees of more than one employer are working simultaneously as authorized entrants in a permit space, so that employees of one employer do not endanger the employees of any other employer;

(12) Develop and implement procedures (such as closing of a permit space and canceling the permit) necessary for concluding the entry after entry operations have been completed;

(13) Review entry operations when the employer has reason to believe that the measures taken under the permit space program may not protect employees, and revise the program to correct deficiencies found to exist before subsequent entries are authorized; and

Note: Examples of circumstances requiring the review of the permit-required confined space program are: any unauthorized entry of a permit space, the detection of a permit space hazard not covered by the permit, the detection of a condition prohibited by the permit, the occurrence of an injury or near-miss during entry a change in the use or configuration of a permit space, and employee complaints about the effectiveness of the program.

(14) Review the permit-required confined space program using the canceled permits retained under paragraph (e)(6) of this section within 1 year after each entry and revise the program as necessary to ensure that employees participating in entry operations are protected from permit space hazards.

Note: Employers may perform a single annual review covering all entries performed during a 12 month period. If no entry is performed during a 12-month period, no review is necessary. Appendix C to 1910.146 presents examples of permit entry programs that are considered to comply with the requirements of paragraph (d) of this section.

(e) PERMIT SYSTEM

(1) Before entry is authorized, the employer shall document the completion of measures required by paragraph (d)(3) of this section by preparing an entry permit.

Note: Appendix D to 1910.146 presents examples of permits whose elements are considered to comply with the requirements of this section.

(2) Before entry begins, the entry supervisor identified on the permit shall sign the entry permit to authorize entry.

(3) The completed permit shall be made available at the time of entry to all authorized entrants, by posting it at the entry portal or by any other equally effective means; so that the entrants can confirm that pre-entry preparations have been completed.

(4) The duration of the permit may not exceed the time required to complete the assigned task or job identified on the permit in accordance with paragraph (f)(2) of this section.

(5) The entry supervisor shall terminate entry and cancel the entry permit where:

(i) The entry operations covered by the entry permit have been completed; or

(ii) A condition that is not allowed under the entry permit arises in or near the permit space.

(6) The employer shall retain each canceled entry permit for at least 1 year to facilitate the review of the permit-required confined space program required by paragraph (d)(14) of this section. Any problems encountered during an entry operation shall be noted on the pertinent permit so that appropriate revisions to the permit space program can be made.

(f) ENTRY PERMIT

The entry permit that documents compliance with this section and authorizes entry to a permit space shall identify:

(1) The permit space to be entered;

(2) The purpose of the entry;

(3) The date and the authorized duration of the entry permit;

(4) The authorized entrants within the permit space, by name or by such other means (for example, through the use of rosters or tracking systems) as will enable the attendant to determine quickly and accurately for the duration of the permit which authorized entrants are inside the permit space;

Note: This requirement may be met by inserting a reference on the entry permit as to the means used, such as a roster or tracking system, to keep track of the authorized entrants within the permit space.

(5) The personnel, by name, currently serving as attendants;

(6) The individual, by name, currently serving as entry supervisor, with a space for the signature or initials of the entry supervisor who originally authorized entry;

(7) The hazards of the permit space to be entered;

(8) The measures used to isolate the permit space and to eliminate or control permit space hazards before entry;

Note: Those measures can include the lockout or tagging of equipment and procedures for purging; inerting, ventilating and flushing permit spaces.

(9) The acceptable entry conditions;

(10) The results of initial and periodic tests performed under paragraph (d)(5) of this section, accompanied by the names or initials of the testers and by an indication of when the tests were performed;

(11) The rescue and emergency services that can be summoned and the means (such as the equipment to use and the numbers to call) for summoning those services;

(12) The communication procedures used by authorized entrants and attendants to maintain contact during the entry;

(13) Equipment, such as personal protective equipment, testing equipment, communications equipment, alarm systems, and rescue equipment, to be provided for compliance with this section;

(14) Any other information whose inclusion is necessary, given the circumstances of the particular confined space, in order to ensure employee safety; and

(15) Any additional permits, such as for hot work, that have been issued to authorize work in the permit space.

(g) TRAINING

(1) The employer shall provide training so that all employees whose work is regulated by this section acquire the understanding, knowledge, and skills necessary for the safe performance of the duties assigned under this section.

(2) Training shall be provided to each affected employee:

(i) Before the employee is first assigned duties under this section;

(ii) Before there is a change in assigned duties;

(iii) Whenever there is a change in permit space operations that presents a hazard about which an employee has not previously been trained;

(iv) Whenever the employer has reason to believe either that there are deviations from the permit space entry procedures required by paragraph (d)(3) of this section or that there are inadequacies in the employee's knowledge or use of these procedures.

(3) The training shall establish employee proficiency in the duties required by this section and shall introduce new or revised procedures, as necessary, for compliance with this section.

(4) The employer shall certify that the training required by paragraphs (g)(1) through (g)(3) of this section has been accomplished. The certification shall contain each employee's name, the signatures or initials of the trainers, and the dates of training. The certification shall be available for inspection by employees and their authorized representatives.

(h) DUTIES OF AUTHORIZED ENTRANTS

The employer shall ensure that all authorized entrants:

(1) Know the hazards that may be faced during entry, including information on the mode, signs or symptoms, and consequences of the exposure;

(2) Properly use equipment as required by paragraph (d)(4) of this section;

(3) Communicate with the attendant as necessary to enable the attendant to monitor entrant status and to enable the attendant to alert entrants of the need to evacuate the space as required by paragraph (1)(6) of this section;

(4) Alert the attendant whenever:

(i) The entrant recognizes any warning sign or symptom of exposure to a dangerous situation, or

(ii) The entrant detects a prohibited condition; and

(5) Exit from the permit space as quickly as possible whenever:

(i) An order to evacuate is given by the attendant or the entry supervisor,

(ii) The entrant recognizes any warning sign or symptom of exposure to a dangerous situation,

(iii) The entrant detects a prohibited condition, or

(iv) An evacuation alarm is activated.

(i) DUTIES OF ATTENDANTS

The employer shall ensure that each attendant:

(1) Knows the hazards that may be faced during entry, including information on the mode, signs or symptoms and consequences of the exposure;

(2) Is aware of possible behavioral effects of hazard exposure in authorized entrants;

(3) Continuously maintains an accurate count of authorized entrants in the permit space and ensures that the means used to identify authorized entrants under paragraph (f)(4) of this section accurately identifies who is in the permit space;

(4) Remains outside the permit space during entry operations until relieved by another attendant;

Note: When the employer's permit entry program allows attendant entry for rescue, attendants may enter a permit space to attempt a rescue if they have been trained and equipped for rescue operations as required by paragraph (k)(1) of this section and if they have been relieved as required by paragraph (1) (4) of this section.

(5) Communicates with authorized entrants as necessary to monitor entrant status and to alert entrants of the need to evacuate the space under paragraph (i)(6) of this section;

(6) Monitors activities inside and outside the space to determine if it is safe for entrants to remain in the space and orders the authorized entrants to evacuate the permit space immediately under any of the following conditions:

(i) If the attendant detects a prohibited condition;

(ii) If the attendant detects the behavioral effects of hazard exposure in an authorized entrant;

(iii) If the attendant detects a situation outside the space that could endanger the authorized entrants; or

(iv) If the attendant cannot effectively and safely perform all the duties required under paragraph (i) of this section;

(7) Summons rescue and other emergency services as soon as the attendant determines that authorized entrants may need assistance to escape from permit space hazards;

(8) Takes the following actions when unauthorized persons approach or enter a permit space while entry is underway:

(i) Warn the unauthorized persons that they must stay away from the permit space;

(ii) Advise the unauthorized persons that they must exit immediately if they have entered the permit space; and

(iii) Inform the authorized entrants and the entry supervisor if unauthorized persons have entered the permit space;

(9) Performs non-entry rescues as specified by the employer's rescue procedure; and

(10) Performs no duties that might interfere with the attendant's primary duty to monitor and protect the authorized entrants.

(j) DUTIES OF ENTRY SUPERVISORS

The employer shall ensure that each entry supervisor:

(1) Knows the hazards that may be faced during entry, including information on the mode, signs or symptoms, and consequences of the exposure;

(2) Verifies, by checking that the appropriate entries have been made on the permit, that all tests specified by the permit have been conducted and that all procedures and equipment specified by the permit are in place before endorsing the permit and allowing entry to begin;

(3) Terminates the entry and cancels the permit as required by paragraph (e)(5) of this section;

(4) Verifies that rescue services are available and that the means for summoning them are operable;

(5) Removes unauthorized individuals who enter or who attempt to enter the permit space during entry operations; and

(6) Determines, whenever responsibility for a permit space entry operation is transferred and at intervals dictated by the hazards and operations performed within the space that entry operations remain consistent with terms of the entry permit and that acceptable entry conditions are maintained.

(k) RESCUE AND EMERGENCY SERVICES

(1) The following requirements apply to employers who have employees enter permit spaces to perform rescue services:

(i) The employer shall ensure that each member of the rescue service is provided with, and is trained to use properly, the personal protective equipment and rescue equipment necessary for making rescues from permit spaces.

Each member of the rescue service shall be trained to perform the assigned rescue duties. Each member of the rescue service shall also receive the training required of authorized entrants under paragraph (g) of this section.

Each member of the rescue service shall practice making permit space rescues at least once every 12 months, by means of simulated rescue operations in which they remove dummies, mannequins, or actual persons from the actual permit spaces or from representative permit spaces. Representative permit spaces shall, with respect to opening size, configuration, and accessibility, simulate the types of permit spaces from which rescue is to be performed.

(iv) Each member of the rescue service shall be trained in basic first-aid and in cardiopulmonary resuscitation (CPR). At least one member of the rescue service holding current certification in first aid and in CPR shall be available.

(2) When an employer (host employer) arranges to have persons other than the host employer's employees perform permit space rescue, the host employer shall:

(i) Inform the rescue service of the hazards they may confront when called on to perform rescue at the host employer's facility, and

(ii) Provide the rescue service with access to all permit spaces from which rescue may be necessary so that the rescue service can develop appropriate rescue plans and practice rescue operations.

(3) To facilitate non-entry rescue, retrieval systems or methods shall be used whenever an authorized entrant enters a permit space, unless the retrieval equipment would increase the overall risk of entry or would not contribute to the rescue of the entrant. Retrieval systems shall meet the following requirements:

(i) Each authorized entrant shall use a chest or full body harness, with a retrieval line attached at the center of the entrant's back near shoulder level, or above the entrant's head. Wristlets may be used in lieu of the chest or full body harness if the employer can demonstrate that the use of a chest or full body harness is infeasible or creates a greater hazard and that the use of wristlets is the safest and most effective alternative.

(ii) The other end of the retrieval line shall be attached to a mechanical device or fixed point outside the permit space in such a manner that rescue can begin as soon as the rescuer becomes aware that rescue is necessary. A mechanical device shall be available to retrieve personnel from vertical type permit spaces more than 5 feet deep.

(4) If an injured entrant is exposed to a substance for which a Material Safety Data Sheet (MSDS) or other similar written information is required to be kept at the worksite, that MSDS or written information shall be made available to the medical facility treating the exposed entrant.

PERMIT-REQUIRED CONFINED SPACES

Note: Appendix A through E serves to provide information and non-mandatory guidelines to assist employers and employees in complying with the appropriate requirements of this section.

Appendix B Procedures for Atmospheric Testing

Atmospheric testing is required for two distinct purposes: evaluation of the hazards of the permit space and verification that acceptable entry conditions for entry into that space exist.

(1) Evaluation Testing

The atmosphere of a confined space should be analyzed using equipment of sufficient sensitivity and specificity to identify and evaluate any hazardous atmospheres that may exist or arise, so that appropriate permit entry procedures can be developed and acceptable entry conditions stipulated for that space.

Evaluation and interpretation of this data, and development of the entry procedure, should be done by, or reviewed by, a technically qualified professional (e.g., OSHA consultation service, or certified industrial hygienist, registered safety engineer, certified safety professional, etc.) based on evaluation of all serious hazards.

(2) Verification Testing

The atmosphere of a permit space which may contain a hazardous atmosphere should be tested for residues of all contaminants identified by evaluation testing using permit specified equipment to determine that residual concentrations at the time of testing and entry are within the range of acceptable entry conditions. Results of testing (i.e., actual concentration, etc.) should be recorded on the permit in the space provided adjacent to the stipulated acceptable entry condition.

(3) Duration of testing

Measurement of values for each atmospheric parameter should be made for at least the minimum response time of the test instrument specified by the manufacturer.

(4) Testing Stratified Atmospheres

When monitoring for entries involving a descent into atmospheres that may be stratified, the atmospheric envelope should be tested a distance of approximately 4 feet (1.22 m) in the direction of travel and to each side. If a sampling probe is used, the entrant's rate of progress should be slowed to accommodate the sampling speed and detector response.

Appendix C

Example of Permit-Required Confined Space Programs

Example 1: Workplace - Sewer Entry

POTENTIAL HAZARDS

The employees could be exposed- to the following:

Engulfment

Presence of toxic gases

Equal to or more than 10 ppm hydrogen sulfide. If the presence of other toxic contaminants is suspected, specific monitoring programs will be developed.

Presence of explosive/flammable gases

Equal to or greater than 10% of the lower flammable limit (LFL). Oxygen Deficiency
A concentration of oxygen in the atmosphere equal to or less than 19.5% by volume.

A. ENTRY WITHOUT PERMITTE ATTENDANT

Certification

Confined spaces may be entered without the need for a written permit or attendant provided that: 1) the space is determined not to be a permit required confined space, or 2) the space can be maintained in a safe condition for entry by mechanical ventilation alone. All spaces shall be considered permit-required confined spaces until the pre-entry procedures demonstrate otherwise. Any employee required or permitted to pre-check or enter an enclosed confined space shall have successfully completed, as a minimum, the training as required by the following sections of these procedures. A written copy of operating and rescue procedures as required by these procedures shall be at the work site for the duration of the job. The Confined Space Pre-Entry Check List must be completed by the LEAD WORKER before entry into a confined space. This list verifies completion of items listed below. This check list shall be kept at the job site for the duration of the job. If circumstances dictate an interruption in the work, the permit space must be re-evaluated and a new check list must be completed.

Control of Atmospheric and Engulfment- Hazards, Pumps, and Lines

All pumps and lines which may reasonably cause contaminants to flow into the space shall be disconnected, blinded and locked out, or effectively isolated by other means to prevent development of dangerous air contamination or engulfment. Not all laterals to sewers or storm drains require blocking. However, where experience or knowledge of industrial use indicates there is a reasonable potential for contamination of air or engulfment into an occupied sewer then all affected laterals shall be blocked. If blocking and/or isolation require entry into the space the provisions for entry into a permit-required confined space must be implemented.

Surveillance

The surrounding area shall be surveyed to avoid hazards, such as drifting vapors from the tanks, piping, or sewers.

Testing

The atmosphere within-the space will be tested to determine whether dangerous air contamination and/or oxygen deficiency exists. An alarm only type gas monitor may be used. Testing shall be performed by the LEAD WORKER who has successfully completed the Gas Detector training for the monitor he will use. The minimum parameters to be monitored are oxygen deficiency, LFL, and hydrogen sulfide concentration. A written record of the pre-entry test results shall be made and kept at the work site for the duration of the job. The supervisor will certify in writing, based upon the results of the pre-entry testing, that all hazards have been eliminated. Affected employees shall be able to review the testing results. The most hazardous conditions shall govern when work is being performed in two adjoining, connecting spaces.

Entry Procedures

If there are no non-atmospheric hazards present and if the pre-entry tests show there is no dangerous air contamination and/or oxygen deficiency within the space and there is no reason to believe that any is likely to develop, entry into and work within may proceed. Continuous testing of the atmosphere in the immediate vicinity or the workers within the space shall be accomplished. The workers will immediately leave the permit space when any of the gas monitor alarm set points are as defined. Workers will not return to the area until a SUPERVISOR who has completed the gas detector training has used a direct reading gas detector to evaluate the situation and has determined that it is safe to enter.

Rescue

Arrangements for rescue services are not required where there is no attendant. See the rescue portion of section B., below, for instructions regarding rescue planning where an entry permit is required.

B. ENTRY PERMIT REQUIRED

1. Confined Space Entry Permit. All spaces shall be considered permit-required confined spaces until the pre-entry procedures demonstrate otherwise. Any employee required or permitted to pre-check or enter a permit-required confined space shall have successfully completed, as a minimum, the training as required by the following sections of these procedures. A written copy of operating and rescue procedures as required by these procedures shall be at the work site for the duration of the job. The Confined Space Entry Permit must be completed before approval can be given to enter a permit-required confined space. This permit verifies completion of items listed below. This permit shall be kept at the job site for the

duration of the job. If circumstances cause an interruption in the work or a change in the alarm conditions for which entry was approved, a new Confined Space Entry Permit must be completed.

Control of Atmospheric and Engulfment Hazards

Surveillance

The surrounding area shall be surveyed to avoid hazards such as drifting vapors from tanks, piping or sewers.

Testing

The confined space atmosphere shall be tested to determine whether dangerous air contamination and/or oxygen deficiency exists. A direct reading gas monitor shall be used. Testing shall be performed by the SUPERVISOR who has successfully completed the gas detector training for the monitor he will use. The minimum parameters to be monitored are oxygen deficiency, LFL and hydrogen sulfide concentration. A written record of the pre-entry test results shall be made and kept at the work site for the duration of the job. Affected employees shall be able to review the testing results. The most hazardous conditions shall govern when work is being performed in two adjoining, connected spaces.

Space Ventilation

Mechanical ventilation systems, where applicable, shall be set at 100% outside air. Where possible, open additional manholes to increase air circulation. Use portable blowers to augment natural circulation if needed. After a suitable ventilation period, repeat the testing. Entry may not begin until testing has demonstrated that the hazardous atmosphere has been eliminated.

Entry Procedures

The following procedure shall be observed under any of the following conditions:

1. Testing demonstrates the existence of dangerous or deficient conditions and additional ventilation cannot reduce concentrations to safe levels;
2. The atmosphere tests as safe but unsafe conditions can reasonably be expected to develop;
3. It is not feasible to provide for ready exit from spaces equipped with automatic fire suppression systems and it is not practical or safe to deactivate such systems; or
4. An emergency exists and it is not feasible to wait for pre-entry procedures to take effect. All personnel must be trained. A self-contained breathing apparatus shall be worn by any person entering the space.

At least one worker shall stand by the outside of the space ready to give assistance in case of emergency. The standby worker shall have a self-contained breathing apparatus available for immediate use. There shall be at least one additional worker within sight or call of the standby worker. Continuous powered communications shall be maintained between the worker within the confined space and standby personnel.

If at any time there is any questionable action or non-movement by the worker inside, a verbal check will be made. If there is no response, the worker will be moved immediately. Exception: If the worker is disabled due to falling or impact, he/she shall not be removed from the confined space unless there is immediate danger to his/her life. Local fire department rescue personnel shall be notified immediately. The standby worker may only enter the confined space in case of an emergency (wearing the self-contained breathing apparatus) and only after being relieved by another worker. Safety belt or harness with attached lifeline shall be used by all workers entering the space with the free end of the line secured outside the entry opening. The standby worker shall attempt to remove a disabled worker via his lifeline before entering the space. When practical, these spaces shall be entered through side openings - those within 31/2 feet (1.07 m) of the bottom. When entry must be through a top opening, the safety belt shall be of the harness type that suspends a person upright and a hoisting device or similar apparatus shall be available for lifting workers out of the space.

In any situation where their use may endanger the worker, use of a hoisting device or safety belt and attached lifeline may be discontinued. When dangerous air contamination is attributable to flammable and/or explosive substances, lighting and electrical equipment shall be Class 1, Division 1 rated per National Electrical Code and no ignition sources shall be introduced into the area. Continuous gas monitoring shall be performed during all confined space operations. If alarm conditions change adversely, entry personnel shall exit the confined space and a new confined space permit issued.

Rescue

Call the fire department services for rescue. Where immediate hazards to injured personnel are present, workers at the site shall implement emergency procedures to fit the situation.

Example 2: Workplace - Meat and Poultry Rendering Plants

Cookers and dryers are either- batch or continuous in their operation. Multiple batch cookers are operated in parallel. When one unit of a multiple set is shut down for repairs, means are available to isolate that unit from the others which remain in operation. Cookers and dryers are horizontal, cylindrical vessels equipped with a center rotating shaft and agitator paddles or discs. If the inner shell is jacketed, it is usually heated with steam at pressures up to 150 psig (1034.25 kPa). The rotating shaft assembly of the continuous cooker or dryer is also steam heated.

POTENTIAL HAZARDS

The recognized hazards associated with cookers and dryers are the risk that employees could be:

1. Struck or caught by a rotating agitator;
2. Engulfed in raw material or hot, recycled fat;
3. Burned by steam from leaks into the cooker/dryer steam jacket or the condenser duet system if steam valves are not properly closed and locked out;
4. Burned by contact with hot metal surfaces, such as the agitator shaft assembly, or inner shell of the cooker/dryer;
5. Heat stress caused by warm atmosphere inside cooker/dryer;
6. Slipping and falling on grease in the cooker/dryer;
7. Electrically shocked by faulty equipment taken into the cooker/dryer;
8. Burned or overcome by fire or products of combustion; or
9. Overcome by fumes generated by welding or cutting done on grease covered surfaces.

PERMITS

The supervisor in this case is always present at the cooker/dryer or other permit entry confined space when entry is made. The supervisor must follow the pre-entry isolation procedures described in the entry permit in preparing for entry and ensure that the protective clothing, ventilating equipment and any other equipment required by the permit are at the entry site.

CONTROL OF HAZARDS

Mechanical

Lock out main power switch to agitator motor at main power panel. Affix tag to the lock to inform others that a permit entry confined space entry is in progress.

Engulfment

Close all valves in the raw material blow line. Secure each valve in its closed position using chain and lock. Attach a tag to the valve and chain warning that a permit entry confined space entry is in progress. The same procedure shall be used for securing the fat recycle valve.

Burns and Heat Stress

Close steam supply valves to jacket and secure with chains and tags. Insert solid blank at flange in cooker vent line to condenser manifold duct system. Vent cooker/dryer by opening access door at discharge end

and top center door to allow natural ventilation throughout the entry. If faster cooling is needed, use a portable ventilation fan to increase ventilation.

Cooling water may be circulated through the jacket to reduce both outer and inner surface temperatures of cooker/dryer faster. Check air and inner surface temperatures in cooker/dryer to assure they are within acceptable limits before entering, or use proper protective clothing.

Fire and Fume Hazards

Careful site preparation, such as cleaning the area within 4 inches (10.16 cm) of all welding or torch cutting operations, and proper ventilation are the preferred controls. All welding and cutting operations shall be done in accordance with the requirements of 29 CFR Part 1910, Subpart Q, OSHA's welding standard. Proper ventilation may be achieved by local exhaust ventilation, or the use of portable ventilation fans, or a combination of the two practices.

Electrical Shock

Electrical equipment used in cooker/dryers shall be in serviceable condition.

Slips and Falls

Remove residual grease before entering cooker/dryer.

ATTENDANT

The supervisor shall be the attendant for employees entering cooker/dryers.

PERMIT

The permit shall specify how isolation shall be done and any other preparations needed before making entry. This is especially important in parallel arrangements of cooker/dryers so that the entire operation need not be shut down to allow safe entry into one unit.

RESCUE

When necessary, the attendant shall call the fire department as previously arranged.

Example 3: Workplace - Workplaces where tank cars, trucks, and trailers, dry bulk tanks and trailers, railroad tank cars, and similar portable tanks are fabricated or serviced.

A. DURING FABRICATION

These tanks and dry bulk carriers are entered repeatedly throughout the fabrication process. These products are not configured identically, but the manufacturing processes by which they are made are very similar.

Sources of Hazards

In addition to the mechanical hazards arising from the risks that an entrant would be injured due to contact with components of the tank or the tools being used, there is also the risk that a worker could be injured by breathing fumes from welding materials or mists or vapors from materials used to coat the tank interior. In addition, many of these vapors and mists are flammable, so the failure to properly ventilate a tank could lead to a fire or explosion.

Control of Hazards

Welding

Local exhaust ventilation shall be used to remove welding fumes once the tank or carrier is completed to the point that workers may enter and exit only through a manhole. (Follow the requirements of 29 CFR 1910, Subpart Q, OSHA's welding standard, at all times.) Welding gas tanks may never be brought into a tank or carrier that is a permit entry confined space.

Application of Interior Coatings/Linings.

Atmospheric hazards shall be controlled by forced air ventilation sufficient to keep the atmospheric concentration flammable materials below 10% of the lower flammable limit (LFL) (or lower explosive limit (LEL), whichever term is used locally). The appropriate respirators are provided and shall be used in addition to providing forced ventilation if the forced ventilation does not maintain acceptable respiratory conditions.

Permits

Because of the repetitive nature of the entries in these operations, Area Entry Permits will be issued for a period of one month to cover those production areas where tanks are fabricated to the point that entry and exit are made using manholes.

Authorization

Only the area supervisor may authorize an employee to enter a tank within the permit area. The area supervisor must determine that conditions in the tank trailer, dry bulk trailer or truck, etc. meet permit requirements before authorizing entry.

Attendant

The area supervisor shall designate an employee to maintain communication by employer specified means with employees working in tanks to ensure their safety. The attendant may not enter any permit entry confined space to rescue an entrant or for any other reason, unless authorized by the rescue procedures and, even then, only after calling the rescue team and being relieved as attendant by another worker.

Communications and Observation

Communications between attendant and entrant(s) shall be maintained throughout entry. Methods of communication that may be specified by the permit include voice, voice powered radio, tapping or rapping codes on tank walls, signaling tugs on a rope, and the attendant's observation that work activities, such as chipping, grinding, welding, spraying, etc., which require deliberate operator control, continue normally. These activities often generate so much noise that the necessary hearing protection makes communication by voice difficult.

Rescue Procedures

Acceptable rescue procedures include entry by a team of employee-rescuers, use of public emergency services, and procedures for breaching the tank. The area permit specifies which procedures are available, but the area supervisor makes the final decision based on circumstances. (Certain injuries may make it necessary to breach the tank to remove a person rather than risk additional injury by removal through an existing manhole. However, the supervisor must ensure that no breaching procedure used for rescue would violate terms of the entry permit. For instance, if the tank must be breached by cutting with a torch, the tank surfaces to be cut must be free of volatile or combustible coatings within 4 inches (10.16 cm) of the cutting line and the atmosphere within the tank must be below the LFL.

Retrieval Line and Harnesses

The retrieval lines and harnesses generally required under this standard are usually impractical for use in tanks because the internal configuration of the tanks and their interior baffles and other structures would prevent rescuers from hauling out injured entrants. However, unless the rescue procedure calls for breaching the tank for rescue, the rescue team shall be trained in the use of retrieval lines and harnesses for removing injured employees through manholes.

B. REPAIR OR SERVICE OF "USED" TANKS AND BULK TRAILERS

Sources of Hazards

In addition to facing the potential hazards encountered in fabrication or manufacturing, tanks or trailers which have been in service may contain residues of dangerous materials, whether left over from the transportation of hazardous cargoes or generated by chemical or bacterial action of residues of non-hazardous cargoes.

Control of Atmospheric Hazards

A "used" tank shall be brought into areas where tank entry is authorized only after the tank has been emptied, cleansed (without employee entry) of any residues, and purged of any potential atmospheric hazards.

Welding

In addition to tank cleaning for control of atmospheric hazards, coating and surface materials shall be removed 4 inches (10.16 cm) or more from any surface area where welding or other torch work will be done and care taken that the atmosphere within the tank remains well below the LFL. (Follow the requirements of 29 CFR 1910, Subpart Q, OSHA's welding standard, at all times.)

Permits

An entry permit valid for up to 1 year shall be issued prior to authorization of entry into used tank trailers, dry bulk trailers or trucks. In addition to the pre-entry cleaning requirement, this permit shall require the employee safeguards specified for new tank fabrication or construction permit areas.

Authorization

Only the area supervisor may authorize an employee to enter a tank trailer, dry bulk trailer or truck within the permit area. The area supervisor must determine that the entry permit requirements have been met before authorizing entry.

Appendix E

Sewer System Entry

Sewer entry differs in three vital respects from other permit entries; first, there rarely exists any way to completely isolate the space (a section of a continuous system) to be entered; second, because isolation is not complete, the atmosphere may suddenly and unpredictably become lethally hazardous (toxic, flammable or explosive from causes beyond the control of the entrant or employer; and third, experienced sewer workers are especially knowledgeable in entry and work in their permit spaces because of their frequent entries. Unlike other employments where permit space entry is a rare and exceptional event, sewer workers' usual work environment is a permit space.

(1) ADHERENCE TO PROCEDURE

The employer should designate as entrants only employees who are thoroughly trained in the employer's sewer entry procedures and who demonstrate that they follow these entry procedures exactly as prescribed when performing sewer entries.

(2) ATMOSPHERIC MONITORING

Entrants should be trained in the use of, and be equipped with, atmospheric monitoring equipment which sounds on audible alarm, in addition to its visual readout, whenever one of the following conditions is encountered: oxygen concentration less than 19.5 percent; flammable gas or vapor at 10 percent or more of the lower flammable limit (LFL); or hydrogen sulfide or carbon monoxide at or above their PEL (10 ppm or 50 ppm, respectively); or, if a broad range sensor device is used, at 100 ppm as characterized by its response to toluene. Normally, the oxygen sensor/broad range sensor instrument is best suited for sewer entry; however, substance specific devices should be used whenever actual contaminants have been identified. The instrument should be carried and used by the entrant in sewer line work to monitor the atmosphere in the entrant's environment, and in advance of the entrant's direction of movement, to warn the entrant of any deterioration in atmospheric conditions. Where several entrants are working together in the same immediate location, one instrument, used by the lead entrant, is acceptable.

(3) SURGE FLOW AND FLOODING

Sewer crews should develop and maintain liaison, to the extent possible, with the local weather bureau and fire and emergency services in their area so that sewer work may be delayed or interrupted and entrants withdrawn whenever sewer lines might be suddenly flooded by rain or fire suppression activities, or whenever flammable or other hazardous materials are released into sewers during emergencies by industrial or transportation accidents.

(4) SPECIAL EQUIPMENT

Entry into large bore sewers may require the use of special equipment. Such equipment might include such items as atmosphere monitoring devices with automatic audible alarms, escape self-contained breathing apparatus (ESCBAs) with at least 10 minute air supply (or other NIOSH approved self-rescuer), and waterproof flashlights, and may also include boats and rafts, radios and rope stand-offs for pulling around bends and corners as needed.

ENTRY PERMIT

CONFINED SPACE HAZARDOUS AREA

PERMIT VALID FOR 8 HOURS ONLY. ALL COPIES OF PERMIT WILL REMAIN AT JOB SITE UNTIL JOB IS COMPLETED.

SITE LOCATION and DESCRIPTION

PURPOSE OF ENTRY

SUPERVISOR(S) in charge of crews Type of Crew Phone #

BOLD DENOTES MINIMUM REQUIREMENTS TO BE COMPLETED AND REVIEWED PRIOR TO ENTRY x

REQUIREMENTS COMPLETED DATE TIME REQUIREMENTS COMPLETED DATE TIME

Lock Out/De-energize/Try-out Full Body Harness w/ "D" ring

Line(s) Broken-Capped Emergency Escape Retrieval

Blanked Equipment

Purge-Flush and Vent Lifelines

Ventilation Fire Extinguishers

Secure Area (Post and Flag) Lighting (Explosive Proof)

Breathing Apparatus Protective Clothing

Resuscitator - Inhalator Respirator(s) (Air Purifying)

Standby Safety Personnel Burning and Welding Permit

Note: Items that do not apply enter N/A in the blank.

** RECORD CONTINUOUS MONITORING RESULTS EVERY 2 HOURS

CONTINUOUS MONITORING" PERMISSIBLE

TEST(S) TO BE TAKEN ENTRY LEVEL MONITORING RESULTS

Percent of Oxygen 19.5% to 23.5%

Lower Flammable Limit Under 10%

Carbon Monoxide +35 PPM

Aromatic Hydrocarbon + 1 PPM * 5 PPM

Hydrogen Cyanide (Skin) (Skin) *4 PPM

Hydrogen Sulfide +10 PPM * 15 PPM

Sulfur Dioxide + 2 PPM * 5 PPM

Ammonia *35 PPM

* Short-term exposure limit: Employee can work in the area up to 15 minutes.

+ 8 hr. Time - Weighted Avg.: Employee can work in area 8 hrs (longer with appropriate respiratory protection). REMARKS:

GAS TESTER NAME & CHECK # INSTRUMENT(S) USED MODEL &/OR TYPE SERIAL &/OR UNIT #

SAFETY STANDBY PERSON IS REQUIRED FOR ALL CONFINED SPACE WORK

SAFETY STANDBY PERSON(S) CHECK # NAME OF SAFETY STANDBY PERSON(S) CHECK #

SUPERVISOR AUTHORIZING ENTRY Ambulance Fire

ALL ABOVE CONDITIONS SATISFIED Safety Gas Coordinator

DEPARTMENT PHONE Original to Department Pink Copy to Safety

APPENDIX T: EXAMPLE CHAIN OF CUSTODY FORM

City Of Cadillac – Utilities – Laboratory Services
US EPA Lab Code MI00082
CHAIN OF CUSTODY

Sample Location (Address, if different than below)	Sample Taken By (Name, Affiliation)	Date Start / End	Time Start / End	Analysis Requested	Purpose
	City of Cadillac			Fecal Coliform Total Coliform E. Coli Metals: Cd Cr Pb Mo Se Ag / Cu Ni Zn Other _____	Routine Repeat/Check IPP Water Quality Other _____
				Fecal Coliform Total Coliform E. Coli Metals: Cd Cr Pb Mo Se Ag / Cu Ni Zn Other _____	Routine Repeat/Check IPP Water Quality Other _____
				Fecal Coliform Total Coliform E. Coli Metals: Cd Cr Pb Mo Se Ag / Cu Ni Zn Other _____	Routine Repeat/Check IPP Water Quality Other _____
				Fecal Coliform Total Coliform E. Coli Metals: Cd Cr Pb Mo Se Ag / Cu Ni Zn Other _____	Routine Repeat/Check IPP Water Quality Other _____
				Fecal Coliform Total Coliform E. Coli Metals: Cd Cr Pb Mo Se Ag / Cu Ni Zn Other _____	Routine Repeat/Check IPP Water Quality Other _____
				Fecal Coliform Total Coliform E. Coli Metals: Cd Cr Pb Mo Se Ag / Cu Ni Zn Other _____	Routine Repeat/Check IPP Water Quality Other _____
Attn: _____ City of Cadillac - WWTP Address: _____ 1121 Plett Rd _____ Cadillac MI 49601 Phone: _____ 231-775-2841				Email: _____ Permit #: _____ Y / N Fwd to: _____ Y / N Expedited Turnaround (may incur add'l surcharge): Date _____ Comments: _____	
Sample Dropped Off By: _____ Print Name: _____ Date: _____ Time: _____				Received By: _____ Date: _____ Time: _____ Sample Temp: _____ Y / N received on ice/icepack Sample Notes: acidified upon receipt at lab	

* Bottle pick-up / Sample drop-off at Cadillac Wastewater Treatment Plant (1121 Plett Rd. Cadillac, MI 49601) 7:00 AM – 3:00 PM, Mon-Thurs

* Standard report turnaround 15 business days, unless expedited turnaround indicated above

Call 231-775-2368 with any questions

APPENDIX U: REQUIRED CONTAINERS, PRESERVATION TECHNIQUES, AND HOLDING TIMES

Parameter		Type of Container	Preservation	Hold Time
No.	Name			
Bacterial Tests				
1	Coliform, Fecal	Plastic or Glass	Cool, 4°C (1) Sterile	6 Hours
2	Coliform, Total	Plastic or Glass	Cool, 4°C (1) Sterile	6 Hours
3	Fecal streptococci	Plastic or Glass	Cool, 4°C (1) Sterile	6 Hours
Inorganic Tests				
1	Acidity	Plastic or Glass	Cool, 4°C	14 Days
2	Alkalinity	Plastic or Glass	Cool, 4°C	14 Days
3	Aluminum	Plastic or Glass	HNO ₃ to pH <2	6 Months
4	Ammonia	Plastic or Glass	Cool, 4°C	28 Days
5	Antimony	Plastic or Glass	HNO ₃ to pH <2	6 Months
6	Arsenic	Plastic or Glass	HNO ₃ to pH <2	6 Months
7	Barium	Plastic or Glass	HNO ₃ to pH <2	6 Months
8	Beryllium	Plastic or Glass	HNO ₃ to pH <2	6 Months
9	BOD	Plastic or Glass	Cool, 4°C	48 Hours
10	Boron	Plastic or Glass	HNO ₃ to pH <2	6 Months
11	Bromide	Plastic or Glass	None	28 Days
12	Cadmium	Plastic or Glass	HNO ₃ to pH <2	6 Months
13	Calcium	Plastic or Glass	HNO ₃ to pH <2	6 Months
14	Carbonaceous BOD	Plastic or Glass	Cool, 4°C	48 Hours
15	Chemical Oxygen Demand	Plastic or Glass	Cool, 4°C	28 Days
16	Chloride	Plastic or Glass	None	28 Days
17	Chlorine, Total Residual	Plastic or Glass	None	Immediate
18	Chromium VI	Plastic or Glass	Cool, 4°C	24 Hours
19	Chromium	Plastic or Glass	HNO ₃ to pH <2	6 Months
20	Cobalt	Plastic or Glass	HNO ₃ to pH <2	6 Months
21	Color	Plastic or Glass	Cool, 4°C	48 Hours
22	Copper	Plastic or Glass	HNO ₃ to pH <2	6 Months
23	Cyanide, Total	Plastic or Glass	Cool, 4°C, NaOH to pH>12	14 Days
24	Cyanide, Amenable to Chlorination	Plastic or Glass	Cool, 4°C, NaOH to pH>12	14 Days
25	Fluoride	Plastic	None	28 Days
26	Gold	Plastic or Glass	HNO ₃ to pH <2	6 Months
27	Hardness	Plastic or Glass	HNO ₃ to pH <2	6 Months
28	Hydrogen Ion (pH)	Plastic or Glass	None	Immediate
29	Iridium	Plastic or Glass	HNO ₃ to pH <2	6 Months
30	Iron	Plastic or Glass	HNO ₃ to pH <2	6 Months

Parameter		Type of Container	Preservation	Hold Time
No.	Name			
31	Kjeldahl Nitrogen	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	28 Days
32	Lead	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	6 Months
33	Magnesium	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	6 Months
34	Manganese	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	6 Months
35	Mercury	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	28 Days
36	Molybdenum	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	6 Months
37	Nickel	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	6 Months
38	Nitrate as N	Plastic or Glass	Cool, 4°C	48 Hours
39	Nitrate-Nitrite as N	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	28 Days
40	Nitrite as N	Plastic or Glass	Cool, 4°C	48 Hours
41	Oil & Grease	Glass Only	Cool, 4°C, H ₂ SO ₄ to pH<2	28 Days
42	Organic Carbon, Total	Plastic or Glass	Cool, 4°C	28 Days
43	Organic Nitrogen as N	-	-	-
44	Orthophosphate as P	Plastic or Glass	Cool, 4°C, Filter immediately	48 Hours
45	Osmium	Plastic or Glass	HNO ₃ to pH <2	6 Months
46A	Oxygen, Dissolved Probe	Glass Bottle & Top	None	Immediate
46B	Oxygen, Dissolved Winkler	Glass Bottle & Top	Fix on site, store in dark	8 Hours
47	Palladium	Plastic or Glass	HNO ₃ to pH <2	6 Months
48	Phenols	Glass only	Cool, 4°C, H ₂ SO ₄ to pH<2	28 Days
49	Phosphorus (Elemental)	Glass	Cool, 4°C	48 Hours
50	Phosphorus, Total	Plastic or Glass	Cool, 4°C, H ₂ SO ₄ to pH<2	28 Days
51	Platinum	Plastic or Glass	HNO ₃ to pH <2	6 Months
52	Potassium	Plastic or Glass	HNO ₃ to pH <2	6 Months
53	Residue, Total	Plastic or Glass	Cool, 4°C	7 Days
54	Residue, Filterable	Plastic or Glass	Cool, 4°C	7 Days
55	Residue, Non-filterable	Plastic or Glass	Cool, 4°C	7 Days
56	Residue, Settleable	Plastic or Glass	Cool, 4°C	48 Hours
57	Residue, Volatile	Plastic or Glass	Cool, 4°C	7 Days
58	Rhodium	Plastic or Glass	HNO ₃ to pH <2	6 Months
59	Ruthenium	Plastic or Glass	HNO ₃ to pH <2	6 Months
60	Selenium	Plastic or Glass	HNO ₃ to pH <2	6 Months
61	Silica, Dissolved	Plastic	Cool, 4°C	28 Days

Parameter		Type of Container	Preservation	Hold Time
No.	Name			
62	Silver	Plastic or Glass	HNO ₃ to pH <2	6 Months
63	Sodium	Plastic or Glass	HNO ₃ to pH <2	6 Months
64	Specific conductance	Plastic or Glass	Cool, 4°C	28 Days
65	Sulfate	Plastic or Glass	Cool, 4°C	28 Days
66	Sulfide	Plastic or Glass	Cool, 4°C, zinc acetate and sodium hydroxide to pH>9	7 Days
67	Sulfite	Plastic or Glass	None	Immediate
68	Surfactants	Plastic or Glass	Cool, 4°C	48 Hours
69	Temperature	Plastic or Glass	None	Immediate
70	Thallium	Plastic or Glass	HNO ₃ to pH <2	6 Months
71	Tin	Plastic or Glass	HNO ₃ to pH <2	6 Months
72	Titanium	Plastic or Glass	HNO ₃ to pH <2	6 Months
73	Turbidity	Plastic or Glass	Cool, 4°C	48 Hours
74	Vanadium	Plastic or Glass	HNO ₃ to pH <2	6 Months
75	Zinc	Plastic or Glass	HNO ₃ to pH <2	6 Months
Organic Tests				
1	Volatile Organic Compounds	Glass with Teflon Lined Septum	Cool, 4°C, no headspace	14 Days
2	Semivolatile Organic Compounds	Glass with Teflon Lined Cap	Cool, 4°C, store in dark	7 Days to extraction, 40 Days after extraction
3	Pesticides	Glass with Teflon Lined Cap	Cool, 4°C (1) pH 4-5	8 Days to extraction, 40 Days after extraction
4	PCB	Glass with Teflon Lined Cap	Cool, 4°C	9 Days to extraction, 40 Days after extraction
5	Herbicides	Glass with Teflon Lined Cap	Cool, 4°C (1) store in dark	10 Days to extraction, 40 Days after extraction

APPENDIX V: PROCEDURE FOR IDENTIFYING NON-CONTRIBUTORS

City of Cadillac
Industrial Pretreatment Program

Procedure for Identifying Non-contributors

The City of Cadillac has identified current non-domestic wastewater customers who do not discharge chemicals above domestic background concentrations. These customers could be called "non-contributors" as they do not discharge significant quantities of pollutants into the City wastewater system. This procedure is to provide the means whereby "non-contributors" are identified and monitored as necessary, thereby minimizing the discharge of wastewater above domestic background strength.

1. Once every five years, the City conducts a non-domestic user survey as outlined in the City's "Guidelines for the Implementation of the Industrial Pretreatment Program" (hereafter shortened to "IPP Guidelines"). This step allows the City to update its records every five years and collect new data from each non-domestic user. The non-domestic user list is also kept up to date as users enter or leave the City.
2. Existing customers who make a significant change in wastewater use at any time, are required to notify the City. The City then sends them a "Baseline Monitoring Report" (see Appendix F of the IPP Guidelines). This report form will indicate the wastewater flows and/or parameters which the user proposes to change. This step is voluntary on the part of the non-domestic user.
3. To monitor all pollutants discharged into the wastewater collection system and to assist in determining if non-domestic users are failing to notify the City of a change in discharge, the City will conduct periodic sampling of its wastewater collection system for key pollutants. The pollutants which will be sampled include compatible pollutants (BOD, TSS, ammonia and total phosphorus) and the Michigan metals.
4. If significant changes are detected at any of these locations, a survey of the non-domestic users discharging through the location will be conducted, along with additional upstream sampling to find the source, if required. Local limits may be revised to account for new/changed discharge(s).

APPENDIX X: PROCEDURE FOR HANDLING REQUESTS FOR INCREASE POLLUTANT LOADINGS

City of Cadillac
Industrial Pretreatment Program

Procedure for Handling Requests for Increased Pollutant Loadings

The City of Cadillac has allocated waste loads to its significant industrial customers using the "industrial contribution method". If a new industry locates in the City or an existing industry wants to increase its pollutant loading to the City wastewater collection system, then the waste load allocation must be carefully re-evaluated. When a written request is received by the City or if the City measures increased loading from its non-domestic customers, then the following procedure will be implemented.

1. The MAHL spreadsheet (maximum allowable headwork's loading) will be used to assess the impact of an increased discharge on local limits.
2. Industrial user permits will be adjusted if necessary.
3. The City will submit any changes in the MAHL or of the associated safety factors to the Michigan Department of Environment, Great Lakes and Energy (EGLE) for approval. Supporting data and revised draft permits would be included with this submittal.
4. Changes to the City's IPP program will be implemented once EGLE approval is received.

APPENDIX Y: PROGRAM IMPLEMENTATION COSTS AND FUNDING SOURCES

City of Cadillac
Industrial Pretreatment Program

Program Implementation Costs and Funding Sources

FINANCIAL SOURCES

The general guidelines of an IPP user charge system are that revenue should be sufficient to cover all operational costs of the system, and that all users should pay in proportion to the expenses they cause. For this reason, all users must pay a fee when applying for or renewing a discharge permit to defer the administration costs of the program. In addition, users are responsible for the cost of any contract laboratory analyses which are required as part of their discharge monitoring.

Section 42-369 through 42-375 outlines sewer use fees.

IPP fees payable by users may include, but are not limited to, any of the following:

- A. Fees to reimburse the POTW for the costs of development and operation of an industrial pretreatment program, and fees to reimburse the POTW for monitoring, inspections and surveillance procedures, including expenses incurred for analysis of samples.*
- B. Fees for reviewing discharge reports, and for related enforcement procedures.*
- C. Fees associated with permit applications, permit renewals, and permit transfers.*
- D. Fees for reviewing accidental discharge procedures and construction.*
- E. Fees for filing appeals.*
- F. Fees for removal by the POTW of pollutants subject to federal or state pretreatment standards.*
- G. User fees based on volume of waste and concentration or quantity of specific pollutants in the discharge.*
- H. Other charges or fees for services or procedures performed by the POTW as are required by law.*
- I. Such other charges or fees as the POTW may deem necessary to perform fully the provisions of applicable federal and state laws, this chapter, rules and regulations issued or adopted pursuant to law or ordinance, and terms and conditions of service.*

APPENDIX Z: EXAMPLE LETTER – NON-DOMESTIC USER HAZARDOUS WASTE DISCHARGE REPORTING REQUIREMENTS

Date

Industry Name

Address

Cadillac, MI 49601

Attn:

Re: New Hazardous Waste Reporting Requirements

Dear User:

This letter is to inform you of new reporting requirements for all Nondomestic Users discharging into the City of Cadillac sanitary sewer system. According to U.S. Environmental Protection Agency (EPA) wastewater pretreatment regulations [see 40 CFR Part 403.12(P)] and Section 42-492 of Cadillac Sewer Use Ordinance, all Nondomestic Users are required to notify the EPA Region V Waste Management Division Director, Chief of the Waste Management Division of the **Michigan Department of Natural Resources**, and the Cadillac Wastewater Superintendent of any discharge into the treatment plant of a substance which is considered a hazardous waste under 40 CFR Part 261. This regulation applies to Users that discharge any nondomestic wastewater to the treatment plant, as opposed to only domestic sanitary waste.

The following reporting requirements should be noted:

1. The notification must be in writing and must include the name of the hazardous waste as listed in 40 CFR 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, other). The attached "Hazardous Waste Notification" form can be used if desired.
2. If more than 100 kilograms of the waste is discharged per calendar month to the treatment plant, the following additional information is also required:
 - a. Identify the hazardous constituents contained in the waste;
 - b. Estimate the mass and concentration of such constituents in the wastestream discharged during the calendar month;
 - c. Estimate the mass of constituents expected to be discharged during the following twelve (12) months.
3. The Industrial User is exempt from this notification if the mass of the hazardous waste discharged is not more than 15 kilograms per calendar month. However, if the waste is considered acutely hazardous under 40 CFR 261.30(d) or 261.33(e), it must be reported regardless of the amount discharged.
4. Notification does not apply to pollutants already reported by a Significant Industrial User in semi-annual continuing compliance reports submitted to the treatment plant.
5. Notification is required within six (6) months of the discharge or listing date.
6. A "one-time only" notification is required for each waste unless there is a substantial change in volume or character of the discharge as identified in 40 CFR 403.12(j).
7. If any new hazardous wastes are included under section 3001 of RCRA, notification of discharge of this waste is required within 90 days of the effective date of such regulations.

In the notification, User must certify that a program is in place to reduce the volume and toxicity of the hazardous waste generated to the degree it has determined to be economically practical.

Notification of hazardous waste discharges should be sent to the addresses indicated on the attached list.

After review of hazardous waste listings and with knowledge of your discharge, you may determine that no hazardous materials are being discharged from your facility to the sanitary sewer. In this event, please sign and return the attached form to the Wastewater Superintendent, certifying that this is indeed the case. Please submit this "Certification of No Hazardous Waste Discharge to Sanitary Sewer" within thirty days of receipt.

If you have any questions regarding this new regulation, please direct them to the U.S. EPA's Resource Conservation and Recovery Act (RCRA) hotline at 1-800-424-9346.

Sincerely,

Wastewater Superintendent

City of Cadillac

Attachments

cc: File

Reports should be submitted to:

Patrick Miller, WWTP Superintendent
City of Cadillac
200 N. Lake Street,
Cadillac, MI 49601
Phone: (231) 775-0181

Technical Services Section
Waste Management Division - MDNR
PO Box 30028
Lansing, MI 48909

Director
Waste Management Division
U.S. EPA - Region V
230 S. Dearborn Avenue
Chicago, IL 60604

HAZARDOUS WASTE NOTIFICATION

Company Name _____

Address _____

City _____ State _____ Zip Code _____

Contact Person _____ Title _____

Phone _____

Name of Publicly Owned Treatment Works City of Cadillac Wastewater Treatment Plant

NPDES Permit # _____

Address 1121 Plett Road

City Cadillac State MI Zip Code 49601

HAZARDOUS WASTE INFORMATION (use additional sheets if necessary)

Name of Waste: _____

EPA Hazardous Waste Number: _____

Type of Discharge:

 Continuous Batch Other _____

If more than 100 kilograms of any hazardous waste per calendar month is discharged to the sewer, please include the following items of information for each hazardous waste, **to the extent such information is known and readily available.**

Hazardous Constituent Information:

Name of Constituent	Mass in Wastestream (this month)	Concentration in Wastestream (this month)	Mass in Wastestream (next 12 months)

I certify that I have a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree I have determined to be economically practical.

Signature of Company Representative _____ Date _____

CERTIFICATION OF NO HAZARDOUS WASTE DISCHARGE TO SANITARY SEWER

As authorized representative for _____ (Name of business/industry) _____, I certify under penalty of law that this facility does not discharge any materials which would be classified as hazardous wastes as listed in 40 CFR Part 261 to the sanitary sewer of the City of Cadillac. Through review of these hazardous waste listings and with knowledge of what is discharged from this facility to the sanitary sewer, I have determined, to the best of my knowledge, that this information is indeed true and accurate. I am aware that there are significant penalties for submitting false information, including the possibility of fines and imprisonment for knowing violation.

This certification has been requested by the City of Cadillac as a result of new U.S. Environmental Protection Agency (EPA) reporting requirements under 40 CFR 403.12(p).

(Signature of Representative)

(Title)

(Date)

APPENDIX AA: CERTIFICATION OF LEGAL AUTHORITY

<<To be inserted after EGLE approval of program and attorney review of approved program>>

APPENDIX BB: CITY OF CADILLAC SEWER USE ORDINANCE

ARTICLE IV. - SEWER SERVICE

DIVISION 1. - GENERALLY

Sec. 42-238. - Findings and purpose.

- (a) *Necessity.* The city council has previously found, and currently reaffirms that the use of septic tanks, privies, privy vaults, cesspools, or similar private sewage disposal facilities, is deleterious to the health, safety and welfare of the businesses, industries, governmental and charitable agencies, and residents of the city and that the health, safety and welfare of the businesses, industries, governmental and charitable agencies and residents is enhanced by the creation of a public sewer system and treatment plant, with regulation by the city of pollutants and other harmful materials according to state and federal standards.
- (b) *Method of measuring use.* Based on advice of its engineers, the city council has previously found, and currently reaffirms, that the most practical, cost effective and accurate method, given available technology, of measuring the use of the system's sewers and treatment plant by any user is by the meter or meters used to measure water usage.
- (c) *Continuation of service.* The city has previously found and, further currently reaffirms that, in order to provide and continue to provide for the safe and uninterrupted removal and treatment of sewage, pollutants and other harmful materials, it is necessary from time to time to install improvements, enlargements, extensions and repairs to the sewage disposal system.
- (d) *Purpose of charges.* Charges for the use of the system are hereby established for the purpose of recovering the cost of construction, reconstruction, maintenance, repair, and operation of the sewage disposal system. Such charges shall be made in accordance with the provisions hereinafter set forth and shall be made against all users of the sewage disposal system.
 - (1) All premises connected directly or indirectly to the sewage disposal system, except as hereinafter provided, shall be charged and shall make payments to the city in amounts computed on the basis of this article.
 - (2) The charges, rates and fees for service by the sewage disposal system are established herein to adequately provide for bond requirements and to ensure that the system shall not operate at a deficit.
 - (3) The city staff or designated parties shall periodically review the charges, rates, fees, rules and regulations of the sewage disposal system. Said review shall be completed not less than one time per fiscal year. Results of said review shall be reported to the city council with respective recommendations for any adjustments.
 - (4) The charges, rates and fees shall be set so as to recover costs from users in reasonable proportion to the cost of serving those users.
- (e) *Proportionality, fairness, and benefits of charges, rates and fees.*
 - (1) The city has previously found and further currently reaffirms that the fairest and most reasonable method of providing for the operation, maintenance, repair, replacement and improvement of the sewage disposal system, is to charge each user, based in all cases on amount of use, for the:
 - a. Cost of retiring debt secured by the net revenues of the system issued to pay for improvements and replacements to the system;
 - b. Costs of ongoing repair, replacement and improvement and budgeted as part of the annual costs of the system; and
 - c. Operation, administration and maintenance costs of the system.

- (2) The city has investigated several methods of apportioning the cost of the system. Based on its investigation and advice of its engineers, the city council has previously found, and currently reaffirms, that to ensure the stability viability of the system for the benefit of its users, the fairest and most accurate way to apportion the costs of operation, maintenance, replacement and improvement of the system is to charge each user:
- a. A monthly service charge for sewer service (which varies depending on the size of the water intake pipe and meter) which fee reflects each user's proportionate share of the costs of the system;
 - b. A commodity charge for sewer service which is based on the user's actual use of water supplied by the system or, in the case of users whose water service is unmetered, a flat monthly fee based upon the number of rooms of such user.
- (3) The city council has previously found, and currently reaffirms that the charges, rates and fees set forth herein fairly and accurately apportion the fixed and variable costs of the system among the users of the system and that the monthly service charge for sewer service charged to each user of the system provides actual benefits to such users in the form of ready access to sewer services that would be unavailable if the monthly service charge was not charged.
- (f) *Useful life of improvements.* Based on the advice of its engineers, the city council has previously found and currently reaffirms that any improvements to or capital expenditures by the system did not, at the time of such construction and financing, have an expected useful or design life that would exceed the term of the bonded indebtedness issued to finance such improvement or capital acquisition and paid for by rates and charges.
- (g) *Charges, rates and fees for nonresidents.* The city has previously found, and hereby ratifies and confirms, that the total direct and indirect costs of providing service to users outside the city jurisdiction, where no other contract exists with the governmental units where those users are located, equals at least two times the rates and charges imposed for direct services and debt service cost to users located in the city. Indirect costs include payment for capital improvements, extraordinary repairs and replacements for the system benefiting all users of the system and paid for by users served within the corporate limits of the city or the corporate limits of other municipalities which have entered into contracts with the city for such costs, funding depreciation of the improvements comprising the system, and fire and police or other protection for the system paid by city taxpayers or by the governmental units with which the city has contracts for sewage disposal service.

(Prior Code, § 2.81; Ord. No. 2000-09, 5-15-2000)

Sec. 42-239. - Establishment of the system.

Based on the findings and purposes set forth in section 42-238, the city has previously established and hereby reestablishes the city sewage disposal system (the system) consisting of all of the sewers, drains, the POTW treatment plant, and all other appurtenances to the system.

(Prior Code, § 2.82; Ord. No. 2000-09, 5-15-2000)

Sec. 42-240. - Extensions or improvements.

Extensions of and improvements to the system shall be constructed when the same become necessary or proper, in the judgment of the council. The cost of all improvements to, and extensions of, the system shall be at the expense of the person or properties benefiting by the improvements or extension, reasonably proportioned to the benefits received, or at the expense of the general fund of the city. Notwithstanding the foregoing, improvements to the system that cannot be

attributed to particular users of the system may be allocated proportionally among all users of the system. Notwithstanding the foregoing, the cost of improvements to the system whose benefit cannot be attributed to particular users or groups of users of the system may be allocated proportionally among all users of the system.

(Prior Code, § 2.83; Ord. No. 2000-09, 5-15-2000)

Sec. 42-241. - Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accidental discharge means the loss of any toxic, hazardous or other potential pollutant into the sanitary sewer system by a discharger as a result of an accident or failure of a facility within the plant or pretreatment facility.

Act or the act means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 USC 1251 et seq.

Approval authority means the director in a NPDES state with an approved state pretreatment program and the administrator of the EPA in a nonNPDES state or NPDES state without an approved state pretreatment program.

Authorized representative of industrial user means:

- (1) A principal executive officer of at least the level of vice-president, if the industrial user is a corporation;
- (2) A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively;
- (3) A duly authorized representative of the individual designated in subsections (1) and (2) of this definition, if such representative is responsible for the overall operation of the facilities from which the indirect discharge originates.

Biochemical oxygen demand (BOD) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure, five days at 20 degrees Celsius, expressed in terms of weight and concentration, milligrams per liter or mg/l.

Building drain means that part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste and other drainage pipes inside of walls of the building and conveys to the building sewer, beginning five feet outside the inner face of the building wall.

Building sewer means the extension from the building drain to the public sewer or other place of disposal.

Bypass means the intentional diversion of wastestreams from any portion of a user's treatment facility.

Categorical pretreatment standards means national pretreatment standards specifying quantities or concentrations of pollutants or pollutant properties which may be discharged into a POTW by a specific category of industrial users described in such standards. The term "categorical pretreatment standards" includes the following categorical standards and those which are hereafter promulgated by U.S. EPA, along with amendments to the existing or hereafter promulgated standards of EPA effluent guidelines and standards for:

- (1) Aluminum forming.
- (2) Battery manufacturing.
- (3) Coil coating (phase 1) and (canmaking).
- (4) Copper forming.
- (5) Electrical and electronic components (phases 1 and 2).

- (6) Electroplating.
- (7) Inorganic chemicals (phases 1 and 2).
- (8) Iron and steel.
- (9) Leather tanning and finishing.
- (10) Metal finishing.
- (11) Metal molding and castings (foundries).
- (12) Nonferrous metals forming and metal powders.
- (13) Nonferrous metals manufacturing (phases 1 and 2).
- (14) Organic chemicals, plastics and synthetic fibers.
- (15) Pesticide chemicals.
- (16) Petroleum refining.
- (17) Pharmaceuticals manufacturing.
- (18) Porcelain enameling.
- (19) Pulp, paper, paperboard.
- (20) Steam electric power generation.
- (21) Timber products processing.

COD means chemical oxygen demand or the measure of the oxygen consuming capacity of inorganic and organic matter present in water or wastewater, expressed as the amount of oxygen consumed from a chemical oxidant in a specified test; it does not differentiate between stable and unstable organic matter, and thus does not necessarily correlate with BOD.

Combined sewer means a sewer receiving both surface runoff and sewage.

Control authority means and shall refer to the approval authority or the director if the city has an approved pretreatment program under the provisions of 40 CFR 403.11.

Cooling water means the water discharged from any use such as air conditioning, cooling or refrigeration, or to which the only pollutant added is heat.

Daily average means the sum of the concentrations of a constituent for the measurement period divided by the number of days on which the discharge was sampled and analyzed in such period. The concentrations which are added are single numbers for single days for all days for which analyses are obtained (whether by the user or the city), but such concentrations may be based upon a sample or samples taken over either all or part of that day and upon single or multiple analyses for that day as determined by the city. Sampling for daily average shall be a 24-hour flow proportioned composite sample, except that a minimum of four grab samples shall be taken in lieu of a 24-hour flow proportioned composite sample for a single day for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. If it is not feasible to obtain a flow proportioned composite sample, a time proportioned composite sample or a minimum of four grab samples may be used in lieu of the flow proportioned composite sample if the user demonstrates to the city director that representative samples will be obtained.

Daily maximum means the concentration which shall not be exceeded on any single calendar day. Sampling for daily maximum shall be a 24-hour flow proportioned composite sample except that a minimum of four grab samples shall be taken in lieu of a 24-hour flow proportioned composite sample for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. If it is not feasible to obtain a flow proportioned composite sample, a time proportioned composite sample or a minimum of four grab samples may be used in lieu of the flow proportioned composite sample if the user demonstrates to the city director that a representative sample will be obtained.

Direct discharge means the discharge of treated or untreated wastewater directly to the waters of the state.

Director means the person designated by the city to supervise the operation of the publicly owned treatment works and who is charged with certain duties and responsibilities by this article, or his duly authorized representative.

Domestic waste means that waste originating mainly from residential sources.

Environmental protection agency (EPA) means the U.S. Environmental Protection Agency, or where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Garbage means solid wastes from the preparation, cooking and dispensing of food, and from the handling, storage, and sale of produce.

Grab sample means a sample which is taken from a wastestream on a one-time basis with no regard to the flow in the wastestream and without consideration of time.

Holding tank waste means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks.

Indirect discharge means the discharge or the introduction of nondomestic pollutants from any source regulated under section 307(b) or (c) of the act (33 USC 1317), into the POTW (including holding tank waste discharged into the system).

Industrial user means a source of indirect discharge, which does not constitute a discharge of pollutants under regulations issued pursuant to section 402 of the act (33 USC 1342.)

Industrial waste means the liquid waste from industrial processes as distinct from sanitary sewage.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

- (1) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal; and
- (2) A cause of a violation of any requirement of the NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulations):
 - a. Section 405 of the Clean Water Act;
 - b. The Solid Waste Disposal Act (SWDA), including title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including state regulations contained in any state sludge management plan prepared pursuant to subtitle D of the SWDA;
 - c. The Clean Air Act;
 - d. The Toxic Substances Control Act; and
 - e. The Marine Protection, Research, and Sanctuaries Act.

MDEQ means the state department of environmental quality or its successor.

Medical waste means isolation wastes, infectious agents, human blood and blood byproducts, pathological wastes, sharps, body parts, fomites, etiologic agents, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes and dialysis wastes.

Mg/l means milligrams per liter, or parts per million (ppm).

National Pollution Discharge Elimination System (NPDES) permit means a permit issued pursuant to section 402 of the Act (33 USC 1342).

Natural outlet means any outlet into a watercourse, pond, ditch, lake or other body of surface water or groundwater.

New source means:

- (1) Any building, structure, facility, or installation from which there is or may be a discharge, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:
 - a. The building, structure, facility, or installation is constructed at a site at which no other source is located;
 - b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge at an existing source; or
 - c. The production of wastewater generating processes of the building; structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.
- (2) Construction on a site at which an existing source is located results in a modification rather than a new source, if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsections (1)b or c of this definitions, but otherwise alters, replaces, or adds to existing process or production equipment.
- (3) Construction of a new source, as defined herein, has commenced if the owner or operator has:
 - a. Begun, or caused to begin, as part of a continuous on-site construction program:
 1. Any placement, assembly, or installation of facilities or equipment;
 2. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or
 3. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time.
 - b. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.

Operation and maintenance means the satisfactory provision for ensuring proper and efficient functioning of the treatment works in accordance with the NPDES permit and U.S. EPA grant conditions.

Operational upset means an exceptional incident in which the discharger unintentionally and temporarily is in a state of noncompliance with the terms of the discharge permit or with various federal or state parameters and as a result of factors not under reasonable control of the discharger.

Pass through means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation).

Person means any individual, firm, municipality, company, association, society, corporation, partnership, or group, including their officers and employees who have responsibility for or actual involvement in the matters regulated by the chapter.

pH means the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in grams per liter of solution.

Pollutant means any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt and industrial, municipal and agricultural waste discharged into water.

Pollution means the manmade or man-induced alteration of the chemical, physical, biological, and radiological integrity of water.

POTW treatment plant means the portion of the POTW designed to provide treatment to wastewater.

Pretreatment or *treatment* means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, process changes, or by other means, except as prohibited by 40 CFR 403.6(d).

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a national pretreatment standard imposed on an industrial user.

Properly shredded garbage means the wastes from the preparation, cooking and dispensing of foods that have been shredded to such degree that all parties will be carried freely under the flow conditions normally prevailing in public sewers, with no particle greater than one-half inch in any dimension.

Public sewer means a sewer in which all owners of abutting properties have equal rights, and is controlled by a public authority.

Publicly owned treatment works (POTW) means a treatment works as defined by section 212 of the Act, (33 USC 1292) which is owned in this instance by the city. The term "publicly owned treatment works" includes any sewer that conveys wastewater to the POTW treatment plant, but does not include pipes, sewers or other conveyances not connected to a facility providing treatment. The term "POTW" shall also include any sewers that convey wastewaters to the POTW from persons outside the city who are, by contract or agreement with the city, users of the city's POTW.

Replacement means expenditures for obtaining and installing equipment, accessories, or appurtenances which are necessary during the service life of the treatment works to maintain the capacity and performance, for which such works were designed and constructed.

Sanitary sewer means a sewer which carries sewage and to which stormwater, surface water and groundwater are not intentionally admitted.

Significant industrial user means:

- (1) Any industrial user subject to categorical standards.
- (2) Any industrial user of the city's wastewater disposal system who:
 - a. Discharges 25,000 gallons per day or more of process wastewater;
 - b. That contributes a process wastestream which makes up five percent or more of the dry weather hydraulic or organic capacity of the POTW; or

- c. Has a reasonable potential, in the opinion of the control authority, to adversely affect the POTW.

Significant noncompliance (SNC) means:

- (1) Chronic violations of wastewater discharge limits, defined herein, as those in which 66 percent or more of all of the measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter.
- (2) Technical review criteria (TRC) violations, defined herein, as those in which 33 percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH).
- (3) Any other violation of a pretreatment effluent limit (daily maximum, or longer-term average) that the control authority determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public).
- (4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under this article.
- (5) Failure to meet, within 90 days after the scheduled date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.
- (6) Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, 90 day compliance reports, periodic self monitoring reports, and reports on compliance with compliance schedules.
- (7) Failure to accurately report noncompliance.
- (8) Any other violation or group of violations which the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

Slug discharge means a discharge of a nonroutine, episodic nature, including, but not limited to, an accidental spill or a noncustomary batch discharge.

Standard industrial classification (SIC) means a classification pursuant to the Standard Industrial Classification Manual, issued by the Executive Office of the President, Office of Management and Budget, 1972.

Storm sewer or *storm drain* means a sewer which carries stormwater and surface water and drainage, but excludes sewage and polluted industrial wastes.

Stormwater means any flow occurring during or following any form of natural precipitation and resulting therefrom.

Suspended solids means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable by laboratory filtering.

User means any person, who contributes, causes or permits the contribution of wastewater into the city's POTW.

User charge means a charge levied on users of treatment works for the cost of operation and maintenance of such works.

Wastewater means the liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities, and institutions together with any groundwater or surface water that may be present, whether treated or untreated, which is contributed into or permitted to enter the POTW.

Wastewater contribution permit. As set forth in division 10 of this article.

Watercourse means a channel in which a flow of water occurs, either continuously or intermittently.

Waters of the state means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through, or border upon the state or any portion thereof.

(Prior Code, § 2.84; Ord. No. 2000-09, 5-15-2000)

Sec. 42-242. - Abbreviations.

The following abbreviations shall have the following designated meanings:

BOD	Biochemical oxygen demand
CFR	Code of Federal Regulations
COD	Chemical oxygen demand
EPA	Environmental Protection Agency
l	Liter
mg	Milligrams
mg/l	milligrams per liter
NPDES	National Pollutant Discharge Elimination System
POTW	Publicly owned treatment works
SIC	Standard industrial classification
SWDA	Solid Waste Disposal Act, <u>42</u> USC 6901 et seq.
USC	United States Code
TSS	Total suspended solids

(Prior Code, § 2.85; Ord. No. 2000-09, 5-15-2000)

Secs. 42-243—42-255. - Reserved.

DIVISION 2. - USE OF PUBLIC SEWERS REQUIRED

Sec. 42-256. - Waste deposits.

It shall be unlawful for any person to place, deposit, or permit to be deposited in any unsanitary manner upon public or private property within the city, or in any area under the jurisdiction of said city, any human or animal excrement, garbage, or other objectionable waste.

(Prior Code, § 2.86; Ord. No. 2000-09, 5-15-2000)

Sec. 42-257. - Water pollution.

It shall be unlawful to discharge or cause to be discharged into any storm sewer, natural watercourse, or artificial watercourse, any sewage or other polluted waters other than stormwater or uncontaminated industrial waters as heretofore defined; or to increase an approved use, except upon special agreement or arrangement with the city manager and in accordance with rules and procedures of appropriate agencies of the state.

(Prior Code, § 2.87; Ord. No. 2000-09, 5-15-2000)

Sec. 42-258. - Privies and septic tanks.

Except as hereinafter provided, it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of sewage.

(Prior Code, § 2.88; Ord. No. 2000-09, 5-15-2000)

Sec. 42-259. - Sewer connection required.

The owner of all houses, buildings or properties used for human occupancy, employment, recreation, or other purpose, (where liquid wastes are produced), situated within the city and abutting on any street, alley or other public right-of-way in which there is now located or may in the future be located a public sanitary sewer of the city, is hereby required, at their expense, to install suitable toilet facilities and connect such facilities directly to the proper public sanitary sewer. Said connection shall be preceded by proper application for and receipt of a sanitary sewer connection permit. The city council may require any such owner, pursuant to the authority conferred upon it by law or ordinance, to make such installations and connections. Said connections shall be completed and inspected prior to occupancy.

(Prior Code, § 2.89; Ord. No. 2000-09, 5-15-2000)

Secs. 42-260—42-270. - Reserved.

DIVISION 3. - PRIVATE SEWAGE DISPOSAL

Sec. 42-271. - Public system unavailable.

When a public sanitary or combined sewer is not available under the provision of section 42-259 the building sewer shall be connected to a private sewage disposal system constructed in compliance with state law and the regulations of the city council.

(Prior Code, § 2.90; Ord. No. 2000-09, 5-15-2000)

Sec. 42-272. - Location requirements.

Where private sewage disposal systems are constructed, they must be located at least 50 feet from any surface water, natural or artificial drain, or open joint, subsurface groundwater, or tile drain unless otherwise approved by the city. All installations shall comply with the existing state laws and regulations.

(Prior Code, § 2.91; Ord. No. 2000-09, 5-15-2000)

Sec. 42-273. - Discontinuance when public system available.

- (a) At such time as a public sanitary sewer becomes available to a property served by a private sewage disposal system, and unless established by council to the contrary, all buildings as described in section 42-259 shall make proper installation and connection to said public sewer when one of the following occurs:
 - (1) Failure of an existing private sewage disposal system. Said failure shall be confirmed by either the appropriate city official or the local health department sanitarian.
 - (2) Action by the city council to establish a date certain for connections to be made. Said action may be applied to individual buildings or to defined areas or districts.
- (b) All connections shall be preceded by a proper application and receipt of a sanitary sewer connection permit.
- (c) All component parts of any private sewage disposal system shall be abandoned in accordance with city regulations and shall be inspected and approved by designated city officials.

(Prior Code, § 2.92; Ord. No. 2000-09, 5-15-2000)

Sec. 42-274. - Maintenance.

The owner shall operate and maintain the private sewage disposal facilities in a sanitary manner at all times, at no expense to the city.

(Prior Code, § 2.93; Ord. No. 2000-09, 5-15-2000)

Sec. 42-275. - Additional requirements.

No statement contained in this article shall be construed to interfere with any additional requirements that may be imposed by the city council or health department with respect to private sewage disposal.

(Prior Code, § 2.94; Ord. No. 2000-09, 5-15-2000)

Secs. 42-276—42-298. - Reserved.

DIVISION 4. - BUILDING SEWERS AND CONNECTIONS

Sec. 42-299. - Authorized persons.

No unauthorized person shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance thereof without first obtaining a written permit from the manager or from such official as he may designate.

(Prior Code, § 2.95; Ord. No. 2000-09, 5-15-2000)

Sec. 42-300. - Permit required.

All connections with any sewer or the city shall be made only on written authorization and permits issued by the city and on such forms and on payment of such fees as shall be established from time to time by ordinance.

(Prior Code, § 2.96; Ord. No. 2000-09, 5-15-2000)

Sec. 42-301. - Costs borne by owner of property.

All costs and expenses incident to the installation and connection of the building sewer shall be borne by the owner of said property. The owner shall indemnify the city from all loss or damage that may directly be occasioned by the installation of the building sewer.

(Prior Code, § 2.97; Ord. No. 2000-09, 5-15-2000)

Sec. 42-302. - Application; plans required.

All applicants for sewer connection permits shall, when required, submit plans and specifications of all plumbing construction within such building or premises and such plans and specifications shall meet the requirements of the state construction code, and all orders, rules and regulations of the department of health. The approval of a connection permit shall also be contingent upon the availability of the capacity in all downstream sewers, lift stations, force mains, and the sewage treatment plant and including such limitations as may be applied under division 9 of this article. When such plans and specifications have been approved by the city council or by such officials as they may designate, a sewer or plumbing permit shall be issued, subject to final inspection and approval when construction is completed. Final approval will be subject to compliance with the state construction code, and all orders, rules and regulations of the local department of health and MDEQ.

(Prior Code, § 2.98; Ord. No. 2000-09, 5-15-2000)

Sec. 42-303. - Inspection.

The applicant for a building sewer permit shall notify the city engineer when the building sewer is ready for inspection. The city engineer or his designated representative shall then inspect said building and plumbing construction therein and if such construction meets the previous requirements as so approved in the construction permit, a sewer connection approval shall be issued, subject to the applicable provisions of this article. Upon final approval of any sewer connection, all sewer supports, testing of the sewer, back filling of sewer, including material and other elements contingent on completion of installation, shall comply with the state construction code.

(Prior Code, § 2.99; Ord. No. 2000-09, 5-15-2000)

Sec. 42-304. - Maintenance responsibility of owner.

The costs of all repairs, maintenance and replacements of existing building sewers and their connection to public sewers shall be borne by the property owner. Such owner shall make application for a permit to perform such work to the city through the designated representative.

(Prior Code, § 2.100; Ord. No. 2000-09, 5-15-2000)

Sec. 42-305. - Connections to public sewer by approved representative.

All connections to existing or new sewers will be made by employees of the city or their approved representatives. The connection of the building sewer into the public sewer shall be made at the "y" branch, if such branch is available at a suitable location.

(Prior Code, § 2.101; Ord. No. 2000-09, 5-15-2000)

Sec. 42-306. - Notice to inspect.

The applicant for the building sewer permit shall notify the city when the building sewer is ready for inspection and connection to the public sewer.

(Prior Code, § 2.102; Ord. No. 2000-09, 5-15-2000)

Sec. 42-307. - Excavation precautions.

All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the city.

(Prior Code, § 2.103; Ord. No. 2000-09, 5-15-2000)

Sec. 42-308. - Separate connections required.

Each building connected to any public sewer shall be connected by means of a separate building sewer. The use of multiple building sewers is prohibited.

(Prior Code, § 2.104; Ord. No. 2000-09, 5-15-2000)

Secs. 42-309—42-334. - Reserved.

DIVISION 5. - USE OF THE PUBLIC SEWERS

Sec. 42-335. - Unpolluted water.

No person shall discharge, or cause to be discharged, any stormwater, surface water, groundwater, roof runoff, subsurface drainage, cooling water or unpolluted industrial process waters to any sanitary sewer.

(Prior Code, § 2.105; Ord. No. 2000-09, 5-15-2000)

Sec. 42-336. - Stormwater and unpolluted drainage.

Stormwater and all other unpolluted drainage shall be discharged to such sewers as are specifically designated as storm sewers, or to a natural outlet approved by the city, and in compliance with rules and procedures of various agencies of the state. Industrial cooling water or unpolluted process waters may be discharged, upon approval of the city, to a storm sewer or natural outlet. The city has the right to exclude industrial or commercial waste in whole or in part, for any reason from storm sewers. The city shall issue permits for all direct connections to designated storm sewers prior to allowing said connections.

(Prior Code, § 2.106; Ord. No. 2000-09, 5-15-2000)

Sec. 42-337. - Prohibited uses.

- (a) No user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which will interfere with the operation or performance of the POTW. These general prohibitions apply to all such users of a POTW whether or not the user is subject to national categorical pretreatment standards or any other national, state, or local pretreatment standards or requirements.
- (b) A user may not contribute the following substances to any POTW:
 - (1) Any wastewater having a temperature which will inhibit biological activity in the POTW treatment plant resulting in interference, but in no case wastewater with a temperature at the introduction into the POTW which exceeds 40 degrees Celsius (104 degrees Fahrenheit) unless the POTW treatment plant is designed to accommodate such temperature.
 - (2) Any gasoline, benzene, naphtha, fuel oil, or other flammable or explosive liquid, solid or gas. Pollutants which create a fire or explosion hazard in the POTW, including, but not limited to, wastestreams with a closed cup flashpoint of less than 140 degrees Fahrenheit or 60 degrees Celsius using the test methods specified in 40 CFR 261.21.
 - (3) Any garbage that has not been properly shredded.
 - (4) Any ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastic, wood, paunch manure, or any other solid or viscous substance of causing obstruction to the flow in sewers or other interference with the proper operation of the sewage works.
 - (5) Any wastes having any other corrosive properties capable of causing damage or hazard to structures, equipment, and personnel of the sewage works.
 - (6) Any waters, or wastes containing a toxic or poisonous substance in sufficient quantity to injure or interfere with any sewage treatment process, constitute a hazard to humans or animals, fish or aquatic life, or create any hazard in the receiving waters or in the POTW.
 - (7) Any waters or wastes containing suspended solids of such character and quantity that unusual attention or expense is required to handle such materials at the sewage treatment plant.
 - (8) Any noxious or malodorous gas or substance capable of creating a public nuisance.
 - (9) Any waters and/or wastes not complying to all NPDES permit requirements, pretreatment standards, and all other unspecified state and federal regulations.
 - (10) Any waters or wastewaters having chlorine demand in excess of 15 mg/l.
 - (11) Any waters or wastes having a pH less than 5.5 and greater than 9.5.
 - (12) Any substance which may cause the POTW's effluent or any other product of the POTW such as residues, sludges, or scums, to be unsuitable for reclamation process. In no case, shall a substance discharged to the POTW cause to the POTW to be in noncompliance with sludge use or disposal criteria, guidelines or regulations developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substance Control Act, or state criteria applicable to the sludge management method being used.
 - (13) Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.
 - (14) Any pollutants, including oxygen demanding pollutants (BOD, etc.), released at a flow rate and/or pollutant concentration which a user knows or has reason to know will cause interference to the POTW. In no case

shall a slug load have a flow rate or contain concentration or qualities of pollutants that exceed, for any time period longer than 15 minutes, more than five times the average 24-hour concentration, quantities, or flow during normal operation.

- (15) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the director in compliance with applicable state or federal regulations.
- (16) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.
- (17) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health safety problems.
- (18) Any trucked or hauled pollutants, except as provided by division 9 of this article.
- (c) When the director determines that a user is contributing to the POTW, any of the above enumerated substances in such amounts as to interfere with the operation of the POTW, the director shall:
 - (1) Advise the user of the impact of the contribution on the POTW;
 - (2) Develop effluent limitations for such user to correct the interference with the POTW;
 - (3) Set a time limit for compliance with subsections (c)(1) and (2) of this section.

(Prior Code, § 2.107; Ord. No. 2000-09, 5-15-2000)

Sec. 42-338. - Interceptors.

Grease, oil, sand interceptors, and conventional grease traps shall be provided when, in the opinion of the city, they are necessary for the proper handling of liquid wastes containing grease in excessive amounts, or any flammable wastes, sand and other harmful ingredients; except that such interceptors shall not be required for private living quarters or dwelling units. All interceptors shall be of a type and capacity approved by the city, and shall be located as to be readily and easily accessible for cleaning and inspection. Grease and oil interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight, and equipped with easily removable covers which when bolted in place shall be gastight and watertight.

(Prior Code, § 2.108; Ord. No. 2000-09, 5-15-2000)

Sec. 42-339. - Maintenance by owner.

Where installed, all grease, oil, and sand interceptors shall be maintained by the owner, at his expense, in continuously efficient operation at all times and shall be accessible for inspection by city employees at all reasonable times.

(Prior Code, § 2.109; Ord. No. 2000-09, 5-15-2000)

Sec. 42-340. - Agreements.

No statement contained in this division shall be construed as preventing any special agreement or arrangement between the city and any industrial concern whereby an industrial waste of unusual strength or character may be accepted by the city for treatment, subject to payment therefore by the industrial concern.

(Prior Code, § 2.110; Ord. No. 2000-09, 5-15-2000)

Secs. 42-341—42-368. - Reserved.

DIVISION 6. - USER RATES AND CHARGES FOR WASTEWATER DISPOSAL SERVICES

Sec. 42-369. - Authorization as public utility.

The system shall, as far as possible, be operated and maintained on a public utility basis as authorized by Public Act No. 94 of 1933 (MCL 141.101 et seq.). Each premises within the city connected to and using facilities of the system shall pay user rates and charges as fixed and established from time to time by the city council.

(Prior Code, § 2.111; Ord. No. 2000-09, 5-15-2000)

Sec. 42-370. - User rates and charges determined by resolution.

The user rates and charges for wastewater treatment shall be as tabulated in section 42-374. Charges for wastewater treatment furnished to premises outside the corporate limits of the city shall be fixed by the city council by ordinance or resolution prior to the rendering of such services.

(Prior Code, § 2.112; Ord. No. 2000-09, 5-15-2000)

Sec. 42-371. - Miscellaneous users for special consideration.

Where sewage disposal service is furnished to users not connected to the water supply system, or in cases where users make use of large quantities of water which may be discharged into storm sewers or an approved outlet other than the system, or for other miscellaneous users of water for which special consideration should be given, special rates may be fixed by the city council.

(Prior Code, § 2.113; Ord. No. 2000-09, 5-15-2000)

Sec. 42-372. - Burden to system consideration for denial.

If the character of sewage from any manufacturing or industrial plant, or from any other building or premises is such that it imposes an unreasonable burden upon the system, in the discretion of the city council, such owner may be required to separately and satisfactorily treat such sewage before being emptied into any public sewer, or the right to discharge said sewage may be denied, if necessary, for the protection of the system, public health and safety.

(Prior Code, § 2.114; Ord. No. 2000-09, 5-15-2000)

Sec. 42-373. - Monthly billing along with water service.

Bills shall be payable monthly and simultaneously with payments made for water consumed and/or used and shall be subject to such penalties and/or discounts as may apply to payment of bills for water service.

(Prior Code, § 2.115; Ord. No. 2000-09, 5-15-2000)

Sec. 42-374. - Monthly wastewater user service charges.

No free service shall be furnished by the system to the city or to any person, firm or corporation, public or private, or to any public agency or instrumentality.

(1) *Metered users.*

a. *Base rate.* The base rate for metered users is as follows:

Meter Size (in inches)	Service Charge (per month)
$\frac{5}{8}$	\$12.83
$\frac{3}{4}$	\$18.39
1	\$30.61
1½	\$61.21
2	\$97.97
3	\$214.48
4	\$367.44
6	\$765.64
8	\$1,102.48

b. *Commodity charges.* A charge of \$2.83 per 100 cubic feet of metered water used will be charged each month.

(2) *Unmetered users (flat rate).* Unmetered users will be charged according to the following rate schedule:

a. Room charge: Count living, dining, bedrooms and kitchens. DO NOT COUNT bathrooms, halls, storage closets. This charge includes lavatories, dishwashing, laundry, and all other domestic uses except bathtubs, showers and toilets.

Rooms	Per Month
1 to 3 rooms, inclusive	\$10.59
4 to 6 rooms, inclusive	\$11.86
7 to 8 rooms, inclusive	\$14.00
Each additional room	\$1.95

b. For each additional bathtub or shower, add \$5.07 per month.

c. For each additional toilet, add \$5.58 per month.

(3) *Surcharges.* Additional charges will be in accordance with the following schedule:

Parameter	Parameter Surcharge (per month-per pound)	Base Concentration (in mg/L)
Suspended Solids	\$0.41	215
Biochemical oxygen demand	\$0.60	185
Phosphorus	\$3.96	10
Nitrogen	\$9.27	20
Total organic carbon	\$3.33	600
Chemical oxygen demand	\$1.43	600
Total chlorides	\$0.74	600

(4) *Unmetered users with private water systems.* The monthly wastewater user service charges for those homes, businesses and other customers who do not have city water available, and are using a private water supply system shall be as follows:

- All commercial, industrial, and institutional accounts shall have a water meter installed. The meter shall be installed under the direction of the city utilities department. The cost of installation shall be borne by the owner. The cost of replacement shall be borne by the utilities department.
- All residential customers shall be given the option of having a water meter installed as provided for above, or the residential customer shall be billed a flat rate sewer charge equal to the average billing as determined on an annual basis.
- The average monthly residential sewer bill, as of July 1, 2022, is a charge of \$32.64.

(5) *Watering adjustment basis.*

- For all residential users, charges for sewer for the months of May, June, July, August and September shall be computed for each account based on the average metered water consumption for the base period of the preceding October, November, December January and February. If no previous base history is available, a citywide residential average will be used.
- For all other users, a separate meter may be purchased and installed at owner's expense, which will be utilized for watering only with the billing to reflect that amount.

(Prior Code, § 2.116; Ord. No. 2000-09, 5-15-2000; Ord. No. 2001-04, 5-21-2001; Ord. No. 2002-10, 5-6-2002; Ord. No. 2003-12, 5-19-2003; Ord. No. 2004-10, 4-19-2004; Ord. No. 2005-09, 5-2-2005; Ord. No. 2006-07, 5-1-2006; Ord. No. 2007-04, § 1, 5-7-2007; Ord. No. 2008-04, § 1, 4-21-2008; Ord. No. 2009-06, § 1, 4-20-2009; Ord. No. 2010-06, § 1, 4-19-2010; Ord. No.

2011-02, § 1, 4-18-2011; Ord. No. 2015-06, § 1, 4-20-2015; Ord. No. 2016-06, § 1, 5-2-2016; Ord. No. 2018-04, § 1, 4-2-2018; Ord. No. 2019-03, § 1, 5-20-2019; Ord. No. 2020-06, § 1, 5-18-2020; Ord. No. 2021-11, § 1, 5-17-2021, eff. 7-1-2021; Ord. No. 2022-08, § 1, 5-16-2022, eff. 7-1-2022)

Sec. 42-375. - Providing service to nonresidents.

- (a) *Contracts for wastewater treatment.* The city has previously entered into contracts with townships adjacent to the city, whereby the city has received consideration in exchange for providing certain of the capital costs, and other indirect costs, of providing wastewater treatment service to users located in those townships. Rates and charges billed for use by the residents of those townships shall be in accordance with the applicable contract.
- (b) *Charges where no other contract compensates the city for indirect costs.* Users who reside outside the city where no contract exists with the governmental unit where such user is located shall pay charges, rates and fees equal to two times the charges, rates and fees imposed on users located within the city.

(Prior Code, § 2.117; Ord. No. 2000-09, 5-15-2000)

Secs. 42-376—42-393. - Reserved.

DIVISION 7. - POWERS AND AUTHORITY OF INSPECTORS

Sec. 42-394. - Authority to enter property.

The duly authorized employees of the city bearing proper credentials and identification shall be permitted to enter upon all properties for the purpose of inspection, observation, measurement, sampling and testing, in accordance with the provisions of this article.

(Prior Code, § 2.119; Ord. No. 2000-09, 5-15-2000)

Sec. 42-395. - Discharge records of nondomestic users—Right to copy.

Inspectors or other authorized employees shall have the right to have access to and make copies of any discharge related records of any nondomestic user. This right is in compliance with section 308 of the Clean Water Act.

(Prior Code, § 2.220; Ord. No. 2000-09, 5-15-2000)

Sec. 42-396. - Same—Right to request specific information.

The city shall have the right to request and receive certain specific information from all nondomestic users. This information is not limited to those items listed in section 42-485, but may include specific additional information which may be used to classify users or identify potential hazardous waste sources.

(Prior Code, § 2.221; Ord. No. 2000-09, 5-15-2000)

Secs. 42-397—42-420. - Reserved.

DIVISION 8. - ENFORCEMENT

Sec. 42-421. - Collection of rates.

The utilities department is hereby authorized to enforce the payment of charges for sewer service to any premises by discontinuing the water service to such premises and the payment of charges for sewage disposal service to any premises may be enforced by discontinuing either the water service or the sewage disposal service to such premises, or both, and an action of assumpsit may be instituted by the city against the customer. The charges for water services and sewage disposal service, which, under the provisions of Public Act No. 94 of 1933 (MCL 141.101 et seq.), are made a lien on the premises to which furnished, are hereby recognized to constitute such lien; the director shall annually, on June 1, certify all unpaid charges for such services furnished to any premises which, on March 31 preceding, have remained unpaid for a period of six months, to the city assessor who shall place the same on the next tax roll of the city. Such charges so assessed shall be collected in the same manner as general city taxes. In cases where the city is properly notified in accordance with said Act 94, as amended, that a tenant is responsible for water and sewage disposal service charges, no such service shall be commenced or continued to such premises until there has been deposited with the utilities department a sum equal to the last three months bill for sewer service based on the average residential usage for the previous calendar year, such deposit to be in no case less than \$80.00, plus the deposit required in article II of chapter 32 and article III of this chapter. The city will allow up to seven calendar days for payment of such deposit where the tenant has been residing for at least 30 days prior to notification of responsibility. When the water service to any premises is turned off to enforce the payment of water service charges or sewage disposal charges, the service shall not be restored until all delinquent charges have been paid and a deposit as in the case of tenants is made, and there shall be a water turn-on charge as hereby specified. In any other case where in the discretion of the director, the collection of charges for water or sewage disposal service may be difficult or uncertain, the director may require a deposit. Such deposits may be applied against any delinquency, as described above, water or sewage disposal service charges and the application thereof shall not affect the right of the department to turn off the water service and/or sewer service to any premises for any delinquency thereby satisfied. No such deposit shall bear interest and such deposit, or any remaining balance thereof, shall be returned to the customer making the same when he shall discontinue receiving water and sewage disposal service. Said refunds will be made only upon completion of appropriate refund request forms; the refund amount will be determined and a check drawn within 14 calendar days of the date of refund request.

(Prior Code, § 2.122; Ord. No. 2000-09, 5-15-2000; Ord. No. 2003-12, 5-19-2003)

Sec. 42-422. - Water shutoff.

In addition to other remedies provided, the city shall have the right to shut off and discontinue the supply of water to any premises for the nonpayment of sewer rates when due. If such charges are not paid within 30 days after the due date thereof, then water services to such premises shall be discontinued. Water services so discontinued shall not be restored until such time as all charges and penalties are paid. Water shutoff shall be preceded by adequate notification by the utilities department.

(Prior Code, § 2.123; Ord. No. 2000-09, 5-15-2000)

Secs. 42-423—42-442. - Reserved.

DIVISION 9. - HAULED WASTE

Sec. 42-443. - Purpose and policy.

This division sets forth the policy for accepting vehicle transported wastes into the city sewage disposal system.

(Prior Code, § 2.124; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-444. - Background.

- (a) The sewage disposal system has made it a practice for many years not to accept any hauled waste under any conditions. These wastes have been viewed as potential threats to the treatment plant through the inclusion of toxic, hazardous or other undesirable constituents. Additionally, to provide the degree of control necessary to properly screen and monitor these wastes would require extensive preliminary sampling and lab analysis, review of load manifests and trip tickets and a complete recordkeeping system. Lastly, once wastes are accepted into the system, they and any environmental problems they may cause become the responsibility of the sewage disposal system.
- (b) Requests have come from septage haulers, public institutions, private industrial waste haulers and private industrial and commercial firms. Each request would require a significant amount of time to properly evaluate prior to acceptance or rejection. Requests by waste generators are made for one reason only, to reduce their costs of disposal and, thus, the costs of doing business.

(Prior Code, § 2.125; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-445. - Management of hauled waste.

The following are waste acceptance criteria:

- (1) The city will accept hauled waste from destinations that originate from within or outside the city. This policy will include accepting leachate from a type II landfill that accepts the solid waste from the city's contracted waste haulers.
- (2) The city will accept hauled waste by permitted waste haulers only. Anyone from inside or outside the city wishing to discharge any material into the city sewage disposal system via truck will be required to obtain a permit application from the city utilities department located in the municipal complex. The permit will be issued for one specific class or type of waste only. The city shall maintain the right to reject any particular waste hauler if the proposed waste would damage or cause any other problem to the city sewage disposal system.
- (3) The hauled waste permit will be issued for a maximum period of one year. There will be a permit fee of \$200.00.
- (4) Applicants will be notified within 30 days as to acceptance or rejection of the permit.

(Prior Code, § 2.126.1; Ord. No. 2000-09, 5-15-2000; Ord. No. 2015-09, § 3, 6-1-2015; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-446. - Administration.

To ensure that the integrity of the wastewater treatment plant is maintained, and that a complete record of each hauled waste load is available, the following requirements must be met prior to the acceptance of each load:

- (1) The only site approved for waste hauler discharge will be located at the city wastewater treatment plant. Any discharge to the city sewage disposal system other than the approved site will constitute a violation of section 42-299. The discharge site will be open only during normal working hours that the plant is staffed. Any after hours request will be assessed an additional fee.

- (2) Any hauled waste discharger will be required, prior to discharge into the plant, to submit a copy of the load manifest to the wastewater treatment plant superintendent or his appointed representative. The load manifest shall contain the following information:
- Origin of waste.
 - Waste hauler's name, address, etc.
 - Date/time of pickup and date/time of discharge off-loading at WWTP.
 - Volume of waste.
 - A certification statement that the waste is not a RCRA hazardous waste or a prohibited discharge. This certification statement must be signed before any discharge will be allowed.
- (3) The manifest shall be completed in triplicate for the following:
- One copy for the waste hauler;
 - One copy for the WWTP; and
 - One copy for the utilities billing clerk.

(Prior Code, § 2.126.2; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-447. - Inspection, sampling and load analysis.

- The city shall have the right to collect samples of the waste for analysis at any time. The purpose of the analysis shall be for billing surcharges and compliance monitoring. All analysis costs shall be paid by the generator of the waste.
- The city shall maintain the right to deny discharge of any material that may cause any treatment plant interference. The city shall also have the right to request load analysis before accepting any material from an unknown source.

(Prior Code, § 2.126.3; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-448. - Compliance with industrial pretreatment.

Waste hauler discharges fall within the scope of the general pretreatment regulations, 40 CFR 403.1(b). Therefore, the local limits and general prohibited discharge standards (40 CFR 403.5(b)) apply as well as any categorical limits if the waste comes from a categorical industry.

(Prior Code, § 2.126.4; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-449. - Hazardous waste.

The discharge of any hazardous waste, as defined by the Resource Conservation and Recovery Act, 42 USC 6901 et seq. (RCRA), is expressly prohibited. Any violation of this section will result in an immediate fine of \$10,000.00 per occurrence and the discharger shall be held responsible for any fines, damage, litigation cost, etc., that could result from such acts.

(Prior Code, § 2.126.5; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Sec. 42-450. - Fee schedule and classification.

- The fees charged for approved wastes transported to the city wastewater treatment plant shall be assessed based on classification, volume, strength and treatability characteristics.

- (b) Wastes will be identified by the following classifications:
 - (1) Class I: septage from domestic origins;
 - (2) Class II: septage from non-domestic origins;
 - (3) Class III: leachate from type II landfills only;
 - (4) Class IV: industrial/commercial wastes, groundwater decontamination project wastewaters, underground tank removal waste products and other nondramatic wastes as defined by federal, state and local laws.
- (c) The manifest shall be completed in triplicate for the following:
 - (1) One copy for the waste hauler;
 - (2) One copy for the WWTP; and
 - (3) One copy for the utilities billing clerk.
- (d) Bills will be provided on a monthly basis and will be due within 30 days of the billing date. Billings in arrears shall be cause to void the permit.
- (e) In cases where circumstances warrant, the city may require a deposit as prepayment. Such deposit shall be equal to the total estimated costs plus \$25.00. Any balance shall be returned at the conclusion of the permit period or of the project.

(Prior Code, § 2.127; Ord. No. 2000-09, 5-15-2000; Ord. No. 2016-03, § 1, 3-21-2016)

Secs. 42-451—42-468. - Reserved.

DIVISION 10. - INDUSTRIAL MONITORING AND PRETREATMENT

Sec. 42-469. - Purpose and policy.

- (a) This division sets forth uniform requirements for direct and indirect contributors into the wastewater and treatment system, for the city and enables the city to comply with all applicable state and federal laws required by the Clean Water Act of 1977 and the general pretreatment regulations 40 CFR 403, as found in part 400 to 424, dated July 1, 1991.
- (b) The objectives of this division are:
 - (1) To prevent the introduction of pollutants into the system which will interfere with the operation of the system or contaminate the resulting sludge;
 - (2) To prevent the introduction of pollutants into the system which will pass through the system, inadequately treated, into receiving waters or the atmosphere or otherwise be incompatible with the system;
 - (3) To improve the opportunity to recycle and reclaim wastewaters and sludges from the system; and
 - (4) To provide for equitable distribution of the cost of the system.
- (c) This division provides for the regulation of direct and indirect contributors to the system through the issuance of permits to certain nondomestic users and through enforcement of general requirements for other users, authorizes monitoring and enforcement activities, requires user reporting, assumes that existing user's capacity will not be preempted, and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

(Prior Code, § 2.131; Ord. No. 2000-09, 5-15-2000)

Sec. 42-470. - Interjurisdictional agreement.

This section acknowledges the existence of an interjurisdictional agreement between the City of Cadillac, Wexford County DPW, and the Townships of Haring, Selma, Cherry Grove and Clam Lake for the operation of the industrial pretreatment program in these townships. This interjurisdictional agreement gives the city the authority to regulate and monitor industrial wastewater discharged into its treatment facility.

(Prior Code, § 2.132; Ord. No. 2000-09, 5-15-2000)

Sec. 42-471. - Federal categorical pretreatment standards.

Upon the federal categorical pretreatment standards for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this division for sources in that subcategory, shall immediately supersede the limitations imposed under this division. The director shall notify all affected users of the applicable reporting requirements under 40 CFR 403.12.

(Prior Code, § 2.133; Ord. No. 2000-09, 5-15-2000)

Sec. 42-472. - Modification of specific limits.

Where the system achieves consistent removal of pollutants limited by federal pretreatment standards, the city may apply to the approval authority for modification of specific limits in the federal pretreatment standards. The term "consistent removal" means reduction in the amount of a pollutant or alteration of the nature of the pollutant by the wastewater treatment system to a less toxic or harmless state in the effluent which is achieved in 95 percent of the samples taken when measured according to the procedures set forth in 40 CFR 403.7(c)(2), the general pretreatment regulations for existing and new sources of pollution promulgated pursuant to the act. The city may then modify pollutant discharge limits in the federal pretreatment standards if the requirements contained in 40 CFR 403.7 are fulfilled and prior approval from the approval authority is obtained.

(Prior Code, § 2.134; Ord. No. 2000-09, 5-15-2000)

Sec. 42-473. - City's right to establish more stringent limitations.

The city reserves the right to establish, by ordinance, more stringent limitations or requirements on discharges to the wastewater disposal system if deemed necessary to comply with the objectives presented in section 42-469.

(Prior Code, § 2.135; Ord. No. 2000-09, 5-15-2000)

Sec. 42-474. - Dilution not adequate treatment.

No user shall increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or in any other pollutant-specific limitation developed by the city or state.

(Prior Code, § 2.136; Ord. No. 2000-09, 5-15-2000)

Sec. 42-475. - Protection from accidental discharges and operational upsets required.

Each user shall provide protection from accidental discharge of prohibited materials or other substances prohibited by this division. Facilities to prevent accidental discharge of prohibited materials shall be provided and maintained at the owner or user's own cost and expense. Detailed plans showing facilities and operating procedures to provide this protection shall be submitted to the city for review, and shall be approved by the city before construction of the facility. All existing users shall complete such a plan within 180 days of enactment of the ordinance from which this division is derived. Review and approval of such plans and operating procedures shall not relieve the industrial user from the responsibility to modify the user's facility as necessary to meet the requirements of this division. **In the case of an accidental discharge or an operational upset, it is the responsibility of the user to immediately telephone and notify the POTW of the incident. The notification shall include the location of the discharge, the type of waste, concentration and volume, and corrective actions.**

(Prior Code, § 2.137; Ord. No. 2000-09, 5-15-2000)

Sec. 42-476. - Written report following accidental discharge; liability for damage.

Within five days following an accidental discharge or operational upset, the user shall submit to the director a detailed written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other liability which may be imposed by this division or other applicable law.

(Prior Code, § 2.137.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-477. - Notification procedure posted.

A notice shall be permanently posted on the user's bulletin board or other prominent location advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees who may cause or suffer such a dangerous discharge to occur are advised of the emergency notification procedure.

(Prior Code, § 2.137.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-478. - Discharge limitations; purpose.

In addition to the wastewater discharge prohibitions listed in division 5 of this article, the city shall enforce the limitation specified by any pertinent categorical pretreatment standards and any city specific local limits.

(Prior Code, § 2.138.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-479. - **Categorical pretreatment standards.**

All federal categorical industries, as identified in the definition of categorical pretreatment standards, section 42-241, shall be required to meet the pretreatment discharge limits for their classification as described in 40 CFR 403.6.

(Prior Code, § 2.138.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-480. - Local limits.

The city retains the right to publish specific local limits as listed in section 42-481 for the purpose of protecting the POTW from harmful nondomestic discharges. These local limits are generated under the authority of 40 CFR 403.5. The local discharge limits shall be deemed pretreatment standards and supersede categorical standards if they are more restrictive.

(Prior Code, § 2.138.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-481. - Numerical local limits.

Numerical local limits are derived using development rationale outlined by U.S. EPA contract document 68-01-7043 and the city utilities department's local discharge limits development rationale. The numerical values derived by the above methods are found in separate documents and are subject to regulatory modification. The city has the authority to convert mass limits to concentration limits as defined in 40 CFR 403.6c.

(Prior Code, § 2.138.4; Ord. No. 2000-09, 5-15-2000)

Sec. 42-482. - Recovery of cost program.

It is the purpose of this section to provide for the recovery of costs from users of the system for the implementation of the program established herein. The applicable charges for fees shall be set forth in the city's schedule of charges and fees.

(Prior Code, § 2.139.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-483. - Charges and fees.

(a) The city may adopt charges and fees which may include fees for:

- (1) Reimbursement of costs of setting up and operating the city's pretreatment program;
- (2) Monitoring, inspections and surveillance procedures;
- (3) Reviewing accidental discharge procedures and construction;
- (4) Permit applications;
- (5) Filing appeals;
- (6) Consistent removal, by the city, of pollutants otherwise subject to federal pretreatment standards;
- (7) As the city may deem necessary to carry out the requirements contained herein.

(b) These fees relate solely to the matters covered by this division and are separate from all other fees chargeable by the city.

(Prior Code, § 2.139.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-484. - Wastewater contribution permit—Users identified.

All significant industrial users proposing to connect or to contribute to the POTW shall obtain a wastewater discharge permit before connecting to or contributing to the POTW. All existing significant industrial users connected to or contributing to the POTW shall obtain a wastewater contribution permit within 180 days after the effective date of the ordinance from which this division is derived. Significant industrial user shall be taken to include all those identified under the definition of significant industrial user in section 42-241 and any other source whom the city feels has any potential to deliver any hazardous or toxic waste to the POTW.

(Prior Code, § 2.140.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-485. - Same—Application.

(a) Users required to obtain a wastewater contribution permit shall complete and file with the city, an application in the form prescribed by the city. Proposed new users shall apply at least 60 days prior to connecting to or

contributing to the POTW. In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:

- (1) Name, address and location, (if different from the address);
 - (2) SIC number according to the Standard Industrial Classification Manual, Bureau of the Office of Management and Budget, 1972, as amended;
 - (3) Wastewater constituents and characteristics, including but not limited to, those mentioned in section 42-337(b) as determined by a reliable analytical laboratory; sampling and analysis shall be performed in accordance with procedures established by the EPA pursuant to section 304(g) of the act and contained in 40 CFR 136 as amended;
 - (4) Average daily and 30-minute peak wastewater flow rates, including daily, monthly and seasonal variations if any;
 - (5) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, sewer connections, and appurtenances by the size, location and elevation;
 - (6) Description of activities, facilities and plant processes on the premises including all materials which are or could be discharged;
 - (7) Where known, the nature and concentration of any pollutants in the discharge which are limited by any city, state, of federal pretreatment standard, and a statement regarding whether or not the pretreatment standards are being met on a consistent basis and if not, whether additional operation and maintenance (O & M) and/or additional pretreatment is required for the user to meet applicable pretreatment standards;
 - (8) If additional pretreatment and/or O & M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment. The completion date in said schedule shall not be later than the compliance date established for the applicable pretreatment standard. The following conditions shall apply to this schedule:
 - a. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet applicable pretreatment standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.).
 - b. No increment referred to in subsection (a)(8)a of this section, shall exceed nine months.
 - (9) Each product produced by type, amount, process or processes and rate or production;
 - (10) Type and amount of raw materials processed (average and maximum per day);
 - (11) Number and type of employees, and hours of operation of the plant and proposed or actual hours of operation of the pretreatment system;
 - (12) Any other information as may be deemed by the city to be necessary to evaluate the permit application.
- (b) The city will evaluate the data furnished by the user and may require additional information. After evaluation and acceptance of the data furnished, the city may issue a wastewater contribution permit subject to terms and conditions provided herein.

(Prior Code, § 2.140.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-486. - Same—Modifications.

Within nine months of the promulgation of a national categorical pretreatment standard, the wastewater contribution permit of users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a national categorical pretreatment standard, has not previously submitted an application for a wastewater contribution permit as required by section 42-485, the user shall apply for a wastewater contribution permit within 180 days after the promulgation of the applicable national categorical pretreatment standard. In addition, the user with an existing wastewater contribution permit shall submit to the director within 180 days after the promulgation of an applicable federal categorical pretreatment standard, the information required by section 42-485(a)(8) and (9).

(Prior Code, § 2.140.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-487. - Discharge conditions.

Wastewater discharge shall be expressly subject to provisions of this division and all other applicable regulations, user charges and fees established by the city. Permits may contain the following:

- (1) Designation of types and sizes of containment facilities to control process spills to the designated sewers;
- (2) Limits on the average and maximum wastewater constituents and characteristics;
- (3) Limits on the average and maximum rate and time of discharge or requirements for flow regulations and equalization;
- (4) Requirements for the installation and maintenance of inspection and sampling facilities;
- (5) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types and standards for tests and reporting schedule;
- (6) Compliance schedules;
- (7) Requirements for submission of technical reports or discharge reports (see sections 42-492 through 42-495);
- (8) Requirements for maintaining and retaining plant records, relating to wastewater discharge as specified by the city, and affording city access thereto;
- (9) Requirements for notification of the city of any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the wastewater treatment system;
- (10) Requirements for notification of slug discharges as per section 42-503;
- (11) Other conditions as deemed appropriate by the city to ensure compliance with this division.

(Prior Code, § 2.140.4; Ord. No. 2000-09, 5-15-2000)

Sec. 42-488. - Permit duration.

Permits shall be issued for a specific time period, not to exceed two years. A permit may be issued for a period less than a year or may be stated to expire on a specific date. The terms and conditions of the permit may be subject to modification by the city during the term of the permit as limitations or requirements as identified in section 42-487 are modified or other just cause exists. The user shall be informed of any proposed changes in this permit at least 30 days prior to the effective date of change. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

(Prior Code, § 2.140.5; Ord. No. 2000-09, 5-15-2000)

Sec. 42-489. - Discharge permits nontransferable.

Wastewater discharge permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, or a new or changed operation without the approval of the city. Any succeeding owner or user shall also comply with the terms and conditions of the existing permit.

(Prior Code, § 2.140.6; Ord. No. 2000-09, 5-15-2000)

Sec. 42-490. - Monitoring.

The city shall retain the right to perform the required industrial monitoring and analysis as given in 40 CFR 403.12(g), or require the industry to meet the permit requirements.

(Prior Code, § 2.140.7; Ord. No. 2000-09, 5-15-2000)

Sec. 42-491. - Penalty provision.

A permitted user shall comply with all of the provisions of its permit. A violation of any provision of a permit is a violation of this division, subject to the penalty, damage, surcharge, and other enforcement provisions of this division.

(Prior Code, § 2.140.8; Ord. No. 2000-09, 5-15-2000)

Sec. 42-492. - Reporting requirements for permittee; compliance data report.

Within 90 days following the date for final compliance with applicable pretreatment standards or, in the case of a new source, following commencement of the introduction of wastewater into the POTW, any user subject to pretreatment standards and requirements shall submit to the director a report indicating the nature and concentration of all pollutants in the discharge from the regulated process which are limited by pretreatment standards and requirements and the average and maximum daily flow for these process units in the user facility which are limited by such pretreatment standards or requirements. The report shall state whether the applicable pretreatment or requirements are being met on a consistent basis and, if not, what additional O & M and/or pretreatment is necessary to bring the user into compliance with the applicable pretreatment standards or requirements. This statement shall be signed by an authorized representative of the industrial user, and certified to by a qualified professional.

(Prior Code, § 2.141.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-493. - Compliance reports.

Any user subject to a pretreatment standard, after the compliance date of such pretreatment standard, or, in the case of a new source, after commencement of the discharge into the POTW, shall submit to the director, at frequencies indicated in the user permit, a report indicating the nature and concentration of pollutants in the effluent which are limited by such pretreatment standards. In addition, this report shall include a record of all daily flow which during the reporting period exceeded the average daily flow reported in section 42-485(a)(4). At the discretion of the director and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the director may agree to alter the months during which the above reports are to be submitted.

(Prior Code, § 2.141.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-494. - Maintenance of records.

Any nondomestic user subject to the sampling, analysis, or reporting requirements in this division, including reports under 40 CFR 403.12, as amended, shall maintain copies of the reports and records pertaining to those reports. Such reports and records shall be retained by such user, and by the city, for at least three years. This period shall be extended during the course of any unresolved litigation regarding the discharges of the user or the POTW pretreatment program or when requested by the city director, the state director, or U.S. EPA.

(Prior Code, § 2.141.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-495. - Control authority program control.

- (a) Where the city maintains the monitoring and sampling program, the industrial user shall not be required to submit the reports outlined in 40 CFR 403.12, at the city's discretion.
- (b) All industrial users are required to report to the city substantial changes in discharge as listed in (40 CFR 403.12(j)).

(Prior Code, § 2.141.4, 2.141.5; Ord. No. 2000-09, 5-15-2000)

Sec. 42-496. - Monitoring facilities.

- (a) The city shall require to be provided and operated at the user's own expense, monitoring facilities to allow inspection, sampling, and flow measurement of the building sewer and/or internal drainage systems. The monitoring facility should normally be situated on the user's premises, but the city may, when such location would normally be impractical or cause undue hardship on the user, allow the facility to be constructed in the public street or sidewalk area, located so that it will not be obstructed by landscaping or parked vehicles.
- (b) There shall be ample room in or near such sampling manhole or facility to allow accurate sampling and preparation of samples for analysis. The facility, sampling, and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the user.
- (c) Whether constructed on public or private property, the sampling and monitoring facilities shall be provided in accordance with the city's requirements and all applicable local construction standards and specifications. Construction shall be completed within 90 days following written notification by the city.

(Prior Code, § 2.142; Ord. No. 2000-09, 5-15-2000)

Sec. 42-497. - Inspection and sampling.

The city shall inspect the facilities of any user to ascertain whether the purpose of this division is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow the city or their representative ready access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, records examination or in the performance of any of their duties. The EPA shall have the right to set up on the user's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations. Where a user has security measures in force which would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with their security guards so that upon presentation of suitable identification, personnel from the city, approval authority and EPA will be permitted to enter, without delay, for the purposes of performing their specific responsibilities.

(Prior Code, § 2.143; Ord. No. 2000-09, 5-15-2000)

Sec. 42-498. - Pretreatment; plans required.

Users shall provide necessary wastewater treatment as required to comply with this division and shall achieve compliance with all federal categorical pretreatment standards within the time limitations as specified by the federal pretreatment regulations. Any facilities required to pretreat wastewater to a level acceptable to the city shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the city for review, and shall be acceptable to the city before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this division. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be acceptable to the city prior to the user's initiation of the changes.

(Prior Code, § 2.144.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-499. - Bypass notice requirements.

If a user knows in advance of the need for a bypass, it shall submit prior notice to the POTW if possible, at least ten days before the date of the bypass. A user shall submit oral notice of an unanticipated bypass that exceeds applicable categorical pretreatment standards and other applicable limits to the POTW within one hour from the time the user becomes aware of the bypass. A written submission shall also be provided within five days of the time the user becomes aware of the bypass.

(Prior Code, § 2.144.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-500. - Bypass prohibited; exceptions.

Bypass is prohibited, and the POTW may take enforcement action against a user for a bypass unless:

- (1) The bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;
- (2) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and
- (3) The user submitted notices as required under section 42-499.

(Prior Code, § 2.144.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-501. - Confidential information.

- (a) Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other governmental agency without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user.
- (b) When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon written request to governmental agencies for uses related to this division. The National Pollutant Discharge Elimination System (NPDES) permit, state disposal system permit and/or the pretreatment programs; provided,

however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information.

- (c) Information accepted by the city as confidential shall not be transmitted to any governmental agency or to the general public by the city until and unless a ten-day notification is given to the user.

(Prior Code, § 2.145; Ord. No. 2000-09, 5-15-2000)

Sec. 42-502. - **Suspension of permit procedure.**

- (a) The city may suspend the wastewater treatment service and/or a wastewater contribution permit when such suspension is necessary, in the opinion of the city, in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons, to the environment, causes interference to the POTW or causes the city to violate any condition of its NPDES permit.
- (b) Any person notified of a suspension of the wastewater treatment service and/or the wastewater contribution permit shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily with the suspension order, the city shall take such steps as deemed necessary including immediate severance of the sewer connection, to prevent or minimize damage to the POTW system or endangerment to any individuals. The city shall reinstate the wastewater contribution permit and/or the wastewater treatment service upon proof of the elimination of the noncomplying discharge. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any further occurrence shall be submitted to the city within 15 days of the date of occurrence.

(Prior Code, § 2.146.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-503. - Revocation of permits.

Any user who violates the following conditions of this division, or applicable state and federal regulations, is subject to having his permits revoked in accordance with the procedures of section 42-502, this section, and sections 42-504—42-509:

- (1) Failure of a user to factually report the wastewater constituents and characteristics of his discharge;
- (2) Failure of the user to report significant changes in operations, or wastewater constituents and characteristics;
- (3) Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring; or
- (4) Violation of conditions of the permit.

(Prior Code, § 2.146.2; Ord. No. 2000-09, 5-15-2000)

Sec. 42-504. - **Notification of violation.**

Whenever the city finds that any user has violated or is violating this division, wastewater contribution permit, or any prohibition, limitation or requirements contained here, the city may serve upon such person a written notice stating the nature of the violation and indicating a time limit for the correction of the violation.

(Prior Code, § 2.146.3; Ord. No. 2000-09, 5-15-2000)

Sec. 42-505. - Compliance schedule.

The city may issue a compliance schedule which shall be signed by both the city and user that is in significant violation of this division. A compliance schedule is used when serious or longterm violations of discharge limits or conditions occur that require the design and installation of new or additional pretreatment equipment.

(Prior Code, § 2.146.4; Ord. No. 2000-09, 5-15-2000)

Sec. 42-506. - Administrative order.

The city may issue an administrative order for a major violation and an order for compliance. Prior to receiving an administrative order, the violator usually has received a series of noncompliance notifications, a compliance schedule, or other enforcement actions. The order will be followed by litigation and penalties if the violator does not come into compliance with the order.

(Prior Code, § 2.146.5; Ord. No. 2000-09, 5-15-2000)

Sec. 42-507. - Annual public notification of significant violations.

The city shall annually publish in the city newspaper a list of the users which were in significant noncompliance with their respective industrial discharge permits during the previous 12 months. For the purposes of this provision, an industrial user is in significant noncompliance if its violations meets one or more of the following criteria:

- (1) Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all of the measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter.
- (2) Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC; TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH.
- (3) Any other violations of a pretreatment effluent limit (daily maximum or longer-term average) that the city determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of the POTW personnel or the general public).
- (4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or the environment or has resulted in the POTW's exercise of its emergency authority under 40 CFR 403.8(f)(1)(vi)(b) to halt or prevent such a discharge.
- (5) Failure to meet within 90 days after the schedule date, a compliance schedule milestone contained in a discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance.
- (6) Failure to provide, within 30 days after the due date, required reports as contained in user permits.
- (7) Failure to accurately report noncompliance.
- (8) Any other violation or group of violations which the city determines will adversely affect the operation or implementation of the pretreatment program.

(Prior Code, § 2.146.6; Ord. No. 2000-09, 5-15-2000)

Sec. 42-508. - Show cause hearing.

- (a) The city may order any user who causes or allows an unauthorized discharge to enter the POTW to show cause

before the city council why the proposed enforcement action should not be taken. A notice shall be served on the user specifying the time and place of a hearing to be held by the city council regarding the violation, the reasons why the action is to be taken, the proposed enforcement action, and directing the user to show cause before the city council why the proposed enforcement action should not be taken. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten days before the hearing. Service may be made on any agent or officer of a corporation.

- (b) The city council may itself conduct the hearing and take the evidence, or may designate any of its members or any officer or employee of the assigned department to:
 - (1) Issue in the name of the city council, notices of hearings requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in such hearings;
 - (2) Take the evidence;
 - (3) Transmit a report of the evidence and hearing, including transcripts and other evidence, together with recommendations to the city council for action thereon.
- (c) At any hearing held pursuant to this division, testimony taken must be under oath and recorded stenographically. The transcript, so recorded, will be made available to any member of the public or any party to the hearing upon payment of the usual charges thereof.
- (d) After the city council has reviewed the evidence, it may issue an order to the user responsible for the discharge directing that, following a specified time period, the sewer service be discontinued unless adequate treatment facilities, devices or other related appurtenances shall have been installed on existing treatment facilities, devices or other related appurtenances are properly operated. Further orders and directive as are necessary and appropriate may be issued.

(Prior Code, § 2.146.7; Ord. No. 2000-09, 5-15-2000)

Sec. 42-509. - Legal action.

If any person discharges sewage, industrial wastes or other wastes into the city's wastewater disposal system contrary to the provisions of this division, state or federal pretreatment requirements, or any order of the city, the city attorney may commence an action for appropriate legal and/or equitable relief in the circuit court of this county.

(Prior Code, § 2.146.8; Ord. No. 2000-09, 5-15-2000)

Secs. 42-510—42-526. - Reserved.

DIVISION 11. - PENALTIES

Sec. 42-527. - Violations.

Any user who is found to have violated any order of the city council, or who willfully or negligently, failed to comply with any of the provisions of this article, and the orders, rules, regulations and permits issued hereunder, shall be punished for violation of a misdemeanor. In addition to the penalties provided therein, the city may recover reasonable attorneys' fees, court costs, court reporters' fees and other expenses of litigation by appropriate suit at law against the person found to have violated this article, or the orders, rules, regulations, and permits issued hereunder. In addition, should it be determined that the POTW or any of the connecting sewer lines or lift stations have incurred damage as a result of any violation of this article, the city shall have the right to recover any and all damages from those parties in violation.

(Prior Code, § 2.147.1; Ord. No. 2000-09, 5-15-2000)

Sec. 42-528. - Falsifying information.

Any person who knowingly makes any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this article or wastewater contribution permit, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article, shall, upon conviction, be punished for violation of a misdemeanor.

(Prior Code, § 2.147.2; Ord. No. 2000-09, 5-15-2000)

APPENDIX CC: EXAMPLE NON PERMITTED USER NOTICE OF VIOLATION

<<on City letterhead>>

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

**NOTICE OF VIOLATION
FOR NONPERMITTED USER
(CONTROL NO. _____)**

LEGAL AUTHORITY

The following findings are made and order issued pursuant to the authority vested in the Wastewater Treatment Plant Superintendent under Chapter 42 Sewers of City Ordinance 2000-09. This Notice represents an enforcement action of the Cadillac Industrial Pretreatment Program (IPP), which is required by the City's discharge permit under the National Pollutant Discharge Elimination System (NPDES).

FINDINGS

WHEREAS:

1. _____ (the DISCHARGER) discharges nondomestic wastewater containing pollutants into the sanitary sewer system and treatment works of the City of Cadillac (the CITY).
2. The SEWER USE ORDINANCE contains general discharge prohibitions for pollutants or wastewater of which no user shall contribute or cause to be contributed, as well as notification responsibilities and other requirements for nondomestic users.
3. As indicated: () On _____ 20____, pollutant analysis revealed that the DISCHARGER exceeded the following general discharge prohibitions:

() As of _____ 20____, the DISCHARGER failed to meet the following notification responsibilities pursuant to the SEWER USE ORDINANCE:

() As of _____ 20____ the DISCHARGER failed to achieve the following other specific requirements of the SEWER USE ORDINANCE and/or the Order of the City:

NOTICE

THEREFORE, BASED ON THE ABOVE FINDINGS, THE DISCHARGER IS HEREBY NOTIFIED THAT:

1. *It is in violation of the SEWER USE ORDINANCE.*
2. *In accordance with the SEWER USE ORDINANCE, within thirty (30) days of the date of receipt of this notice, the DISCHARGER shall respond personally or in writing to the Wastewater Treatment Superintendent advising of its position with respect to this violation.*
3. *Failure to correct this violation shall constitute a further violation of the SEWER USE ORDINANCE and may subject the DISCHARGER to escalated enforcement response. This could include civil prosecution with a maximum penalty of \$500 for each violation, or criminal prosecution with a maximum penalty of \$500 and/or six months imprisonment, as authorized by the SEWER USE ORDINANCE.*
4. *This notice, entered this _____ day of _____, 20____, shall be effective upon receipt by the DISCHARGER.*

Signed: _____
Wastewater Treatment Plant Superintendent

APPENDIX DD: EXAMPLE PERMITTED USER NOTICE OF VIOLATION

<<on City Letterhead>>

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

**NOTICE OF VIOLATION
FOR PERMITTED USER
(CONTROL NO. _____)**

LEGAL AUTHORITY

The following findings are made and order issued pursuant to the authority vested in the Wastewater Treatment Plant Superintendent under Chapter 51 of the City of Cadillac Ordinance 2000-09 (the SEWER USE ORDINANCE). This order is based on findings of violation of the conditions of the wastewater discharge permit issued Chapter 42.

FINDINGS

WHEREAS:

1. _____ (the DISCHARGER) discharges nondomestic wastewater containing pollutants into the sanitary sewer system and treatment works of the City of Cadillac (the CITY).
2. The DISCHARGER is a "Significant Industrial User," as defined by the SEWER USE ORDINANCE.
3. The DISCHARGER was issued a wastewater discharge permit (the PERMIT) on _____ 20____, which contains limitations on pollutants, monitoring/reporting requirements, and other specific conditions of discharge.
4. Pursuant to the SEWER USE ORDINANCE and the PERMIT, data is routinely collected or submitted on the compliance status of the DISCHARGER.
5. As indicated: () On _____ 20____, pollutant analysis revealed that the DISCHARGER exceeded the following numerical limit(s) of the PERMIT:

() As of _____ 20____, the DISCHARGER failed to meet the following monitoring/reporting requirement(s) of the PERMIT:

() As of _____ 20____, the DISCHARGER was in violation of the following other specific condition(s) of the PERMIT, SEWER USE ORDINANCE and/or the Order of the City:

NOTICE

THEREFORE, BASED ON THE ABOVE FINDINGS, THE DISCHARGER IS HEREBY NOTIFIED THAT:

1. *It is in violation of the PERMIT and SEWER USE ORDINANCE.*
2. *In accordance with the SEWER USE ORDINANCE, within thirty (30) days of the date of receipt of this notice, the DISCHARGER shall respond personally or in writing to the Wastewater Treatment Superintendent advising of its position with respect to this violation.*
3. *Failure to correct this violation shall constitute a further violation of the SEWER USE ORDINANCE and may subject the DISCHARGER to escalated enforcement response. This could include civil prosecution with a maximum penalty of \$500 for each violation, or criminal prosecution with a maximum penalty of \$500 and/or six months imprisonment, as authorized by the SEWER USE ORDINANCE.*
4. *This notice, entered this _____ day of _____, 20____, shall be effective upon receipt by the DISCHARGER.*

Signed: _____
Wastewater Treatment Plant Superintendent

APPENDIX EE: EXAMPLE ADMINISTRATIVE ORDER TO SHOW CAUSE

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

**ADMINISTRATIVE ORDER
TO SHOW CAUSE
(CONTROL NO. _____)**

LEGAL AUTHORITY

The following findings are made and order issued pursuant to the authority vested in the Wastewater Treatment Plant Superintendent under Chapter 42 of the City of Cadillac Ordinance 2000-09 (the SEWER USE ORDINANCE). This order is based on findings of violation of the conditions of the wastewater discharge permit issued under Chapter 42 of the ORDINANCE.

FINDINGS

WHEREAS:

1. _____(the DISCHARGER) discharges nondomestic wastewater containing pollutants into the sanitary sewer system and treatment works of the City of Cadillac (the CITY).
2. The DISCHARGER is a "Significant Industrial User," as defined by the SEWER USE ORDINANCE.
3. The DISCHARGER was issued a wastewater discharge permit (the PERMIT) on _____20____, which contains limitations on pollutants, monitoring/reporting requirements, and other specific conditions of discharge.
4. Pursuant to the SEWER USE ORDINANCE and the PERMIT, data is routinely collected or submitted on the compliance status of the DISCHARGER.
5. The data shows that the DISCHARGER has violated the PERMIT and the SEWER USE ORDINANCE in the following manner: _____

ORDER

THEREFORE, BASED ON THE ABOVE FINDINGS, THE DISCHARGER IS HEREBY ORDERED THAT:

1. The DISCHARGER shall appear at a hearing with the CITY to be held on _____20____, at _____o'clock, at the following location: _____
2. *The DISCHARGE shall prepare and present a plan for satisfactory correction of this noncompliance, subject to review and approval by the CITY.*
3. *The meeting will be closed to the public.*
4. *Failure to comply with this order shall constitute a further violation and may subject the DISCHARGER to escalated enforcement response including civil penalties, criminal penalties, and/or other actions available under the law.*
5. *This order, entered this _____day of _____, 20____, shall be effective upon receipt by the DISCHARGER.*

Signed: _____
Wastewater Treatment Plant Superintendent

APPENDIX FF: EXAMPLE ADMINISTRATIVE ORDER OF CONSENT

<<on city letterhead>>

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

**ADMINISTRATIVE ORDER
OF CONSENT
(CONTROL NO. _____)**

WHEREAS, the City of Cadillac (the CITY) pursuant to the powers and responsibilities vested in and imposed upon the Wastewater Treatment Plant by provisions of the City of Cadillac Sewer Use Ordinance (the SEWER USE ORDINANCE), has conducted an ongoing investigation of _____ (the Discharger) and thereby determined that:

1. The City owns and operates a sanitary sewer system and wastewater treatment plant which is potentially impacted by discharges from industrial users, including the DISCHARGER'S, and has implemented an Industrial Pretreatment Program (IPP) to control such discharges.
2. The DISCHARGER has failed to achieve specific requirements or schedules of its wastewater discharge permit (the PERMIT), as set forth in Exhibit I attached hereto.

THEREFORE, IT IS HEREBY AGREED BETWEEN THE DISCHARGER AND THE CITY, AND ORDERED THAT:

1. The DISCHARGER shall achieve the following requirements and schedules:

2. Within ten (10) working days, the DISCHARGER shall pay to the City of Cadillac, Treasurer 's office, an amount of \$ _____ in accordance with Section 527 of the SEWER USE ORDINANCE.
3. In the event the DISCHARGER fails to achieve any of the requirements or schedules set forth herein, the DISCHARGER shall, within five (5) working days after expiration of the deadline, notify the CITY in writing by certified mail/return receipt requested. This notification shall describe reasons for the failure, the additional amount of time needed, and the steps that will be taken to avoid future delays. This notification does not excuse the DISCHARGER from its responsibility to meet any other requirements or schedules of this Order, unless also addressed in the notification and agreed to by the CITY.
4. This order does not relieve the DISCHARGER of its obligation to comply with the PERMIT, which remains in full force and effect.
5. Failure to comply with this Order shall constitute a violation of the PERMIT and the SEWER USE ORDINANCE, and shall subject the DISCHARGER to any and all legal actions and/or escalated enforcement responses available under the law.
6. Nothing in this Order shall be construed to limit any authority of the CITY to issue further orders or take any other action which it deems necessary to protect the sanitary sewer system, the wastewater treatment plant, the environment, or the public health and safety, or to ensure compliance with its NPDES permit.
7. None of the foregoing agreements, statements, stipulations, findings, or actions shall be deemed an admission by the DISCHARGER of the violation(s) referred to herein. These agreements, statements, stipulations, findings, and actions are made for the purpose of settling this matter economically and amicably and shall not be used for any purpose other than proceedings to enforce the provisions of this Order.

8. *This Order shall be effective upon signatures of authorized representatives from both the DISCHARGER and the CITY.*

SIGNATURES

FOR THE DISCHARGER:

Date

Authorized Representative

Title

FOR THE CITY:

Date

Wastewater Treatment Plant Superintenden

APPENDIX GG: EXAMPLE ADMINISTRATIVE ORDER TO ACHIEVE COMPLIANCE

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

**ADMINISTRATIVE ORDER
TO ACHIEVE COMPLIANCE
(CONTROL NO. _____)**

LEGAL AUTHORITY

The following findings are made and order issued pursuant to the authority vested in the Wastewater Treatment Plant Superintendent under Chapter 42 of the City of Cadillac Ordinance 2000-09 (the SEWER USE ORDINANCE). This Order is based on findings of violation of the conditions of the wastewater discharge permit issued under Chapter 42 of the ORDINANCE.

FINDINGS

WHEREAS:

1. _____ (the DISCHARGER) discharges nondomestic wastewater containing pollutants into the sanitary sewer system and treatment works of the City of Cadillac (the CITY).
2. The DISCHARGER is a "Significant Industrial User" as defined by the SEWER USE ORDINANCE.
3. The DISCHARGER was issued a wastewater discharge permit (the PERMIT) on _____ 20____, which contains limitations on pollutants, monitoring/reporting requirements, and other specific conditions of discharge.
4. Pursuant to the SEWER USE ORDINANCE and the PERMIT, data is routinely collected or submitted on the compliance status of the DISCHARGER.
5. This data shows the DISCHARGER has violated the PERMIT and the SEWER USE ORDINANCE in the following manner:

ORDER

THEREFORE, BASED ON THE ABOVE FINDINGS, IT IS HEREBY ORDERED THAT:

1. *The DISCHARGER is in noncompliance with the PERMIT and the SEWER USE ORDINANCE.*
2. *To ensure compliance with the PERMIT and the SEWER USE ORDINANCE at the earliest possible date, the DISCHARGER shall achieve the following requirement(s) and schedule(s):*

3. *Within ten (10) working days, the DISCHARGER shall pay to the City of Cadillac, Treasurer 's office, a fine of \$_____ for the indicated violation(s) in accordance with Section 42-491 of the ORDINANCE.*
4. *In accordance with the SEWER USE ORDINANCE, the DISCHARGER may request review of this Order by the CITY's wastewater appeal board. The request must be in writing, address the specific objections, and be filed within twenty (20) days following receipt of this ORDER.*
5. *In the event the DISCHARGER fails to comply with any of the requirements set forth herein, the DISCHARGER shall, within five (5) working days after expiration of the deadline, notify the CITY in writing by certified mail/return receipt requested. This notification shall describe reasons for the failure, the additional amount of time needed, and the steps that will be taken to avoid future delays. This notification does not excuse the DISCHARGER from its responsibility to meet any other requirements or schedules of this Order. unless also addressed in the notification and agreed to by the CITY.*
6. *This order does not relieve the DISCHARGER of its obligation to comply with the PERMIT which remains in full force and effect.*
7. *Failure to comply with this Order shall constitute a violation of the PERMIT and the SEWER USE ORDINANCE. and shall subject the DISCHARGER to any and all legal actions and/or enforcement responses available under the law.*
8. *Nothing in this Order shall be construed to limit any authority of the CITY to issue further orders or take any other action which it deems necessary to protect the sanitary sewer system, the wastewater treatment plant, the environment, or the public health and safety, or to ensure compliance with its NPDES permit.*
9. *This Order, entered this _____ day of _____, 20____, shall be effective upon receipt by the DISCHARGER.*

Signed: _____
Wastewater Treatment Plant Superintendent

<<On city letterhead>>

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

CEASE AND DESIST ORDER
(CONTROL NO. _____)

LEGAL AUTHORITY

The following findings are made and order issued pursuant to the authority vested in the Wastewater Treatment Plant Superintendent under Chapter 42 of the City of Cadillac Ordinance 2000-09 (the SEWER USE ORDINANCE). This Order is based on findings of violation of the conditions of the wastewater discharge permit issued under Chapter 42 of the ORDINANCE.

FINDINGS

WHEREAS:

1. _____ (the DISCHARGER) discharges nondomestic wastewater containing pollutants into the sanitary sewer system and treatment works of the City of Cadillac (the CITY).
2. The DISCHARGER is a "Significant Industrial User" as defined by the SEWER USE ORDINANCE.
3. The DISCHARGER was issued a wastewater discharge permit (the PERMIT) on _____ 20____, which contains limitations on pollutants, monitoring/reporting requirements, and other specific conditions of discharge.
4. Pursuant to the SEWER USE ORDINANCE and the PERMIT, data is routinely collected or submitted on the compliance status of the DISCHARGER.
5. This data shows the DISCHARGER has violated the PERMIT and the SEWER USE ORDINANCE in the following manner:

6. The DISCHARGER is in noncompliance with the PERMIT and the SEWER USE ORDINANCE.
7. Previous enforcement actions regarding the indicated violation(s) were as indicated below.

() The CITY issued Notice(s) of Violation to the DISCHARGE on the following dates:

() A Show Cause Hearing was held between the DISCHARGER and the CITY on _____ 20____.

() On _____ 20____, an Administrative Order issued by the CITY required the DISCHARGER to achieve specific requirements and schedules. The Order () was / () was not objected to by the DISCHARGER and () was / () was not taken before the CITY's Sanitary Board of Appeal.

ORDER

THEREFORE, BASED ON THE ABOVE FINDINGS, IT IS HEREBY ORDERED THAT:

1. *Within 24 hours of receiving this Order, the DISCHARGER shall cease the noncompliant discharge into the CITY's sanitary sewer in order to prevent endangerment to the sanitary sewer system, pass-through or interference to the wastewater treatment plant, threat to the public health and safety, and/or violation of a condition of the CITY's NPDES permit.*
2. *Such discharge shall not recommence until such time as the DISCHARGER is able to demonstrate to the CITY that it can, and will, comply with the PERMIT and the SEWER USE ORDINANCE.*
3. *Failure to comply with this Order may subject the DISCHARGER to having its sanitary sewer service terminated by the CITY, and assessed the costs thereof.*
4. *Nothing in this Order shall be construed to limit any authority of the CITY to issue further orders or take any other action which it deems necessary to protect the sanitary sewer system, the wastewater treatment plant, the environment, or the public health and safety, or to ensure compliance with its NPDES permit.*
5. *This Order, entered this _____ day of _____, 20____, shall be effective upon receipt by the DISCHARGER.*

Signed: _____
Wastewater Treatment Plant Superintendent

Signed: _____
City Attorney

APPENDIX II: EXAMPLE EMERGENCY CEASE AND DESIST ORDER

<<on city letterhead>>

IN THE MATTER OF

USER NAME: _____
ADDRESS: _____
PERMIT NO: _____

**EMERGENCY
CEASE AND DESIST ORDER
(CONTROL NO. _____)**

LEGAL AUTHORITY

The following findings are made and order issued pursuant to the authority vested in the Wastewater Treatment Plant Superintendent under Chapter 42 of the City of Cadillac Ordinance 2000-09 (the SEWER USE ORDINANCE). This Order is based on findings of violation of the conditions of the wastewater discharge permit issued under Chapter 42 of the ORDINANCE.

FINDINGS

WHEREAS:

1. _____ (the DISCHARGER) discharges nondomestic wastewater containing pollutants into the sanitary sewer system and treatment works of the City of Cadillac (the CITY).
2. The following shows that the DISCHARGER has a discharge which is **in emergency violation with the SEWER USE ORDINANCE** and must be immediately ceased to prevent endangerment to the sanitary sewer system, pass-through or interference to the wastewater treatment plant, threat to the public health and safety, and/or violation of a condition of the CITY's NPDES permit:

ORDER

THEREFORE, BASED ON THE ABOVE FINDINGS, IT IS HEREBY ORDERED THAT:

1. *The DISCHARGER shall immediately cease the violating discharge into the CITY's sanitary sewer.*
2. *Failure to immediately cease the violating discharge shall subject the DISCHARGER to having its sanitary sewer service terminated by the CITY at any time, and assess the costs therefor.*
3. *In accordance with the SEWER USE ORDINANCE, within fifteen (15) days of this Order, the DISCHARGER shall provide the CITY with a detailed written statement describing the causes of this violating discharge and measure taken to prevent any future occurrences. Such discharge shall not recommence until such time as the DISCHARGER is able to provide to the CITY that the violation has been eliminated.*
4. *Nothing in this Order shall be construed to limit any authority of the CITY to issue further orders or take any other action which it deems necessary to protect the sanitary sewer system, the wastewater treatment plant, the environment, or the public health and safety, or to ensure compliance with its NPDES permit.*
5. *This Order, entered this _____ day of _____, 20____, shall be effective upon receipt by the DISCHARGER.*

Signed: _____
Wastewater Treatment Plant Superintendent

Signed: _____
City Attorney

APPENDIX JJ: PROCEDURE FOR NOTIFYING EGLE

City of Cadillac
Industrial Pretreatment Program

Procedure for Notifying EGLE

The Michigan Department of Environment, Great Lakes and Energy (EGLE) is required to be notified when monitoring shows a change in effluent characteristics. This is described further in Part II.C. of the City's NPDES Permit.

EGLE should also be notified of any significant increase in pollutant loading to the facility and any process modifications which the City undertakes.

The City should contact the Cadillac District IPP Coordinator, Claire Lowe, whose phone number is (989) 330-4639. Reports of non-compliance should be followed up in writing at the time of submittal of the monthly operating data. See the NPDES Permit for all conditions requiring notification.